

PAPAL INFALLIBILITY

REV. W. J. SPARROW SIMPSON

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*** START OF THE PROJECT GUTENBERG EBOOK ROMAN
CATHOLIC OPPOSITION TO PAPAL INFALLIBILITY ***

ROMAN CATHOLIC OPPOSITION TO PAPAL INFALLIBILITY

BY W. J. SPARROW SIMPSON

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LONDON

JOHN MURRAY, ALBEMARLE STREET, W.

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PREFACE

THE following pages have been written to show the difficulties experienced by Roman Catholics in assenting to the doctrine of Papal Infallibility. No attempt is here made to write a complete account of the Vatican Council. Indeed, many subjects discussed in that Assembly are entirely omitted. Our interest is with one doctrine alone. What is attempted is, simply to sketch the inner history of Roman opposition to the dogma in different countries and several centuries, until and after the memorable Decree of 18th July 1870. We are simply concerned to show the process by which a very considerable section of Bishops, priests, and laity in the Roman Church were constrained to pass from one belief to its opposite.

The literature of the subject is, of course, immense. A considerable part of the details here recorded have never appeared in English before. They lie buried in enormous German treatises, or in the vast official Acta of the Council; or in the documentary collections of Cecconi, Von Schulte, Friedrich, Friedberg, and many others; or in scattered pamphlets and periodicals to which access is now by no means easily obtained.

The materials for a history of the opposition to the doctrine have of recent years largely increased. All the principal actors in the Vatican disputes have, by this time, passed away; and a large series of biographies have placed at our disposal private letters never published while they lived.

But it will be obvious that an Ultramontane biographer of a Bishop who vehemently opposed the doctrine may be gravely perplexed between the conflicting claims of history and of edification. His loyalty to truth, his reverence for the personage of whom he writes, his regard for living authority, with its tremendous powers to revise, cancel, or condemn, his proper disinclination to scandalise the faithful by rigorous records of episcopal unbelief, or to reveal the family disunions before an incredulous world—are elements which, when they coexist, may, even in the sincerest mind possibly blend together in very various proportions. At any rate the biographies of certain great French Bishops of the Vatican struggle manifest marked reluctance and hesitation in recording fully the facts. And even

when the facts have been fairly fully recorded, the English translator has—for whatever reasons—condensed them, we had almost said mutilated them, beyond recognition.

The recently published selection of Lord Acton's letters has increased our knowledge of his attitude toward the Infallibility Decree; but the entire omission of correspondence during ten most critical years of the struggle suggests, what other considerations endorse, that there is yet considerably more remaining unrevealed.

Still, with whatever drawbacks, the resources at a writer's disposal to-day are vastly greater than they were some years ago.

Accordingly the following pages are written under a strong sense that the material is ample, that the history of the minority has never yet for English people been fully told, and with a desire to supply the omission.

It should be added that the adverse criticisms herein repeated are almost entirely derived from Roman Catholic sources, and are, as far as possible, given in the actual words. Protestant criticism has been systematically excluded. The object being simply to describe how the doctrine of Pontifical Infallibility appeared; what difficulties, intellectual, historic, and moral, it created; what fierce and desperate strife its increasing ascendancy awakened; how, and with what results, moral and intellectual, it was finally regarded, not by the outer world, nor by other religious communions, but by clergy and laity within the limits of the Roman Catholic Church.

Since these pages have passed through the press, Turmel's *Histoire du Dogme de la Papauté* has been placed upon the Roman Index of prohibited books (5th July 1909). It is therefore among that lengthy list of modern writings which no member of the Roman Obedience may "dare to read or retain." The interests of edification are conceived by Authority as incompatible with those of historical research. Such procedure deprives the historian of that freedom to report results without which history cannot be written.

The author desires to express his deep indebtedness to the kindness of the Reverend Darwell Stone, Librarian of the Pusey House, who has read through the proof sheets of this book. He is of course in no way responsible

for its contents; but it has been the greatest privilege to have the encouragement and aid of so critical and learned an adviser.

NOTE.—The number of Bishops who, though resident in Rome, absented themselves from the Vatican Council on the day of the Decree is variously given on [page 268](#) as 91, on [page 271](#) as 70, and on [page 281](#) as more than 80. It will be noticed that these variations are due to the authors quoted; the first being that given by Quirinus; the second by the letter of the Opposition to the Pope; the third by Dr Newman.

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CONTENTS

	PAGE
I. THE EVIDENCE OF SCRIPTURE	<u>1</u>
II. THE AGE OF THE FATHERS	<u>9</u>
III. THE CASE OF HONORIUS	<u>31</u>
IV. THE SCHOLASTIC PERIOD	<u>48</u>
V. THE AGE OF THE REFORMING COUNCILS	<u>55</u>
VI. THE COUNCIL OF TRENT	<u>66</u>
VII. CARDINAL BELLARMINE	<u>72</u>
VIII. THE SORBONNE	<u>79</u>
IX. BOSSUET	<u>85</u>
X. OPPOSITION AMONG ROMAN CATHOLICS IN ENGLAND	<u>98</u>
XI. ULTRAMONTANISM IN FRANCE	<u>143</u>
XII. DARBOY, DUPANLOUP, MARET, GRATRY AND MONTALEMBERT	<u>157</u>
XIII. OPPOSITION IN GERMANY—DÖLLINGER	<u>188</u>
XIV. HOHENLOHE AND FRIEDRICH	<u>207</u>
XV. THE IMMEDIATE PREPARATIONS	<u>217</u>
XVI. THE OPENING OF THE VATICAN COUNCIL	<u>229</u>
XVII. THE VATICAN DECISION	<u>238</u>
XVIII. THE MINORITY AFTER THE VATICAN DECREE	<u>275</u>
XIX. THE INFALLIBILITY DOCTRINE	<u>340</u>
XX. WHERE ARE THE INFALLIBLE DECISIONS?	<u>356</u>

ROMAN CATHOLIC OPPOSITION TO PAPAL INFALLIBILITY

CHAPTER I

THE EVIDENCE OF SCRIPTURE

THOSE who do not identify history with heresy will always desire to know how a Christian affirmation of the present compares with the past. Whatever validity faith may attach to the teaching of the Church of to-day, there must be reasons and reasons which demand and justify an enquiry into the doctrine of other ages. If serious discrepancies would cause perplexity, unforeseen harmonies would confirm. In any case the refusal to examine is not the product of a genuine faith. For, after all, history is, if on one side human, on another divine. Moreover, the actual development of human thought must be of profoundest living interest. This enquiry, then, must be undertaken in reference to the doctrine of Papal Infallibility. For it is, in a large portion of modern Christian life, an existing affirmation. The question is, What relation does the doctrine bear to the facts of History? And obviously, first of all, what does Scripture say?

The Ultramontane, so far as he founds the doctrine on Scripture language, finds it chiefly in the words of our Lord to St Peter: "I have prayed for thee, that thy faith fail not; and when thou art converted, strengthen thy brethren."^[1] Now seeing that this dogma of Papal Infallibility would be, if true, no less than fundamental, it is necessary to dwell at length on the asserted scriptural witness to the same. For those who believe that fundamental Christian truth must be traceable to the records of Revelation must test each doctrine by what is told them there. And we are here concerned with the express words of Christ. And the issues which depend on a right understanding of the Redeemer's words are, as all Christians will acknowledge, momentous.

The Roman interpretation of this passage maintains the following points:

—

1. That Christ here confers on Peter an exclusive prerogative, on the ground of Peter's superior position;

2. That this prerogative is infallible insight;

3. That thereby he was enabled to give infallible instructions to his brethren;

4. That this prerogative extends to all Peter's successors and to none but those—the prerogative being as exclusive in its range as it was in its origin.

There is, however, another interpretation which has been in substance and in many details accepted by members of the Roman Church, and which is unable to find any of these doctrines in the words of Christ.

There are clearly four points to be considered: Christ's Prayer; Peter's Faith; Peter's Brethren; Peter's Successors.

i. *First, then, Christ's Prayer: I have prayed for thee.*

1. Certainly it was an *exclusive* prayer. Satan hath desired to have you, collectively; but I have prayed for thee, Peter, individually. Christ here prays for the one: for the others, on this occasion, He does not pray.

Does not this imply, asks the Ultramontane, the superiority of the individual thus selected and distinguished? Does not Christ here place the security of the many in the security of the one? If the leader and chief is protected, those who follow him and obey him will be secure. This exposition labours under the double defect of assuming a theory of Peter's supremacy and of ignoring the historical circumstances which prompted Christ's words. That the prayer was exclusive is true. But exclusive petition does not necessarily imply the greater superiority of the person prayed for; it may equally well imply his greater need. Remembering that Peter alone was on the verge of a triple denial, no wonder he became the object of an exclusive prayer. If his confident self-reliance, together with his impulsive temperament, laid him open to perils from which the Twelve were exempt, what else could his Master do than offer special intercession for him? To build a theory of permanent prerogative as universal teacher on the fact of Christ's exclusive petition is therefore to forget that the historic circumstances, which elicited our Lord's concern, suggest a totally different explanation.

2. Moreover, while we are reminded that Christ's prayer was exclusive, we should also be reminded that it was *conditional*.

It seems at first sight a natural outcome of Christian piety to assume that whatever Christ prayed for was certain to come to pass. Is it not written, “I know that thou hearest me always”? But the effectiveness of Christ’s prayers must take into account our human independence. To say that the prayer of Christ must necessarily realise its design, is really to reduce mankind to a mechanism upon which the Spirit plays. But this is false to Christian teaching and human experience. The prayers of Christ are invariably conditional upon the human response. They demand human co-operation. The prayer for Peter unquestionably implies that the resources needed to discharge his function would be placed at his disposal, provided that he yielded his will to the offered grace. But that Peter would invariably fulfil the essential conditions, Christ’s petition does not affirm and cannot even suggest. It cannot mean unconditional security, exemption from the liabilities of human weakness and imperfection, apart from all considerations of personal effort and moral state.

ii. *The second object for our analysis is Peter’s Faith—and here two points arise:—What is meant by “faith” and what is meant by “fail.”*

1. Now when our Lord says “faith,” the meaning is in general not difficult to ascertain. The faith which, if present, could remove mountains, or, if absent, hinders His merciful works, is plainly not so much an intellectual assent to a number of propositions, as a moral relation to a Person; a devotion to Himself, demanding qualities, not only of the intellect, but also of the affections and of the will. It is a quality inseparable from love. It may exist in many varying degrees.

2. What, then, is meant by “fail”? The Greek term here translated “fail” sometimes describes an eclipse, which to the primitive imagination suggested death, much as we talk of the dying day. “Thou art the same and thy years shall not fail,”^[2] means shall not cease, or come to an end.

3. Accordingly, by “a faith which should not fail,” our Lord described a personal devotion to Himself, which should never cease to exist. But we must carefully distinguish between the inward quality of faith and its outward expressions. St Peter, in the subsequent denial, failed; not in his inward belief, but its outward expression. The failure was not in his thoughts but in his words. As a fact, his outward expressions of faith were

not protected from error. He said exactly what his intellect contradicted, what he knew was false. The natural inference is that the prayer of Christ was concerned with Peter's inward spiritual state, not with the outward phrases. A very able Roman writer saw this plainly enough. Consequently, he says, Christ demanded here for Peter *two* privileges—not merely one: first, that he should never lose his faith; secondly, that as Pope he should never teach anything contrary to the faith. That is what the Ultramontane position would require. But that is exactly what did not happen at the denial. The prayer of Christ did not secure St Peter from false expressions. Nor did it secure Peter's personal devotion from a temporary eclipse. But even if Peter's dogmatic insight remained unclouded, that would help his brethren comparatively little if his official utterances could be mistaken. And it was expressly in his utterances that he did fail.

iii. *The third theme for analysis is the Strengthening his Brethren.*

1. Now to strengthen is to give support. It is employed several times by St Paul. As when he says: "I long to see you, that I may impart unto you some spiritual gift, to the end ye may be *established*."^[3] He says he sent Timothy "to establish you, and to comfort you concerning your faith."^[4] He speaks of "stablishing your hearts unblameable in holiness";^[5] prays that God will "comfort your hearts and stablish you in every good word and work";^[6] and says "the Lord is faithful, who shall stablish you, and keep you from evil."^[7] So St Peter desires that God would "stablish, strengthen, settle"^[8] the Christian; and says that Christians are "established in the present truth."^[9] The Revelation of St John again says: "Be watchful and strengthen the things which remain, which are ready to die."^[10]

This scriptural use of the term "strengthen," or "stablish," shows conclusively that any kind of moral support may be intended. The strengthening may be that which Divine Grace supplies; or that which comes from the knowledge of the Truth; or that which comes from the encouragement of Christian ministers. But in no solitary instance is there any suggestion of infallibility as essential to enable one to be a strengthener. Thus, "when thou art converted, strengthen thy brethren," would naturally mean, When thou hast by repentance recovered from thine own moral infirmity, do thou become a moral support to the impulsive and the weak. It

is a merciful promise to St Peter before his sin, of restoration to Apostleship after the sin had been committed. It suggests that even through the denial he may gain a humility and self-knowledge which may enlarge his sympathies and increase his strength. It is all in the moral rather than in the purely intellectual sphere.

2. But further: The utterance, “strengthen thy brethren,” is a command and not a promise. We cannot infer, from a duty enjoined, its invariable fulfilment. Otherwise, we are all perfect: For this command is laid upon us all. Moreover, whatever Peter may have done, what is certain is that at Antioch he did not strengthen his brethren. All human analogy would suggest a more or less imperfect human endeavour to fulfil a divinely appointed ideal.

iv. The fourth and last point for consideration is Peters Successors.

1. Now, first, our Lord does not mention them. They are not mentioned even by implication. There is no necessary implication, unless we assume, *à priori*, as some Roman writers do, that such a prerogative could not be restricted to a single generation, nor to the Apostolic Age;^[11] and therefore that the function of Peter in strengthening his brethren must be continued to his successors to the end of time. But by no process of interpretation can this be derived from the words of Christ. It can be read into them: it cannot be read out of them. Whether false or true, it is certainly not what our Lord has said.

Moreover, since the prerogative here conferred on Peter was the prerogative of sympathy learnt by the humiliations of failure, not the gift of Infallibility, its perpetuation among his successors could not confer upon them what it did not confer on him. If our exposition of this prayer of Christ be correct, the extension of the prerogative over a series of successors would be doubtless morally valuable but of no dogmatic use.

2. Moreover, if the words, “strengthen thy brethren,” apply to Peter’s successors, so do the words “when thou art converted.” Bellarmine himself saw this, and was disturbed by it. He suggested that “converted” must not be understood as moral renovation and repentance, but as an adverb equivalent to, “in turn,” as if the passage ran—I have strengthened thee, do thou in thy turn strengthen thy brethren. Or else it might mean—so it was

suggested—Having turned your attention to them, exercise your Infallibility. But even if the sentence, “when thou art converted,” bore no allusion to Peter’s denial, still no possible exegesis can justly elicit the Infallibility of his successors out of the injunction “strengthen thy brethren.” Peter’s successors would be thereby ordered to bestow moral support upon their weaker brethren. But whether they would obey this command and fulfil it with more invariable exactitude than he to whom it was spoken, is a question of historical investigation and not of *à priori* theory.

The preceding exposition has been very largely derived from Roman Catholic sources; from the writings of Bossuet, Bishop of Meaux, opposing, in behalf of the Church of France, the Ultramontanism of the seventeenth century; of Barral, Archbishop of Tours, in the early nineteenth century; of Bishop Maret, and of Gratry, just before the Vatican Council of 1870; of Döllinger, prior to the rupture with Rome; of Archbishop Kenrick of St Louis, in the speech which he intended to deliver in the Vatican Council, in exercise of his divine right as a Bishop, but whose delivery was prevented by the closure of the discussion.

[1] Luke xxii. 32.

[2] Heb. i. 12.

[3] Rom. i. 11.

[4] 1 Thess. iii. 2.

[5] 1 Thess. iii. 13.

[6] 2 Thess. ii. 17.

[7] 2 Thess. iii. 3.

[8] 1 Peter v. 10.

[9] 2 Peter i. 12.

[10] Apoc. iii. 2.

[11] So Vat. C., cf. *Knabenbauer in Luc.*

CHAPTER II

THE AGE OF THE FATHERS

ROMAN writers have differed greatly in their view of the Patristic evidence for Papal Infallibility. Some have found very little definite statement in the Fathers, upon which they thought it wise, at any rate in controversy, to rely.

Cardinal Bellarmine^[12] makes but scanty appeal for this doctrine to the Age of the Fathers. He contents himself with asserting first that the Patriarchal Churches of Constantinople, Alexandria, and Antioch have been presided over by heretics, whereas Rome has been exempt from this calamity;^[13] and secondly, he observes that Popes have passed judgment on heresies apart from any Council, and that their decisions have been accepted. This asserted exemption of the Roman Church from heresy he claims as identical with impossibility of heresy; and this acceptance of decisions as an acknowledgment of Infallibility. Bellarmine's meagre use of the Patristic period to prove the doctrine of Papal Infallibility is strikingly contrasted with his ample use of the same to prove the primacy or the authority of the Roman See. And this difference of appeal in the two cases means a capacity to distinguish between authority and Infallibility.

Other writers have seen Infallibility implied in every recognition of authority or primacy; in every judicial sentence of the Roman See.

A third section of Roman theologians has been definitely unable to discover the doctrine anywhere in the Patristic period. Among the more critical and historically-minded of recent Roman writers there is a belief in the doctrine, independent of any evidence for it in the Age of the Fathers; indeed often coupled with an acknowledgment that the period does not yield to their scrutiny instances either of its recognition as a principle, or of its exercise as a fact. Advancing to the Patristic times with the definition of Infallibility as given in the Vatican Decree, they affirm that one essential condition of its exercise is deliberate intention to instruct the Universal Church. All instruction not given with that express intention is entirely

outside the range of Infallibility. Evidently the great mass of judicial decisions, appeals to Rome, recognitions of its authority, praises of its impartiality and rectitude, assertions of the danger of disobedience to its words, have nothing to do with the doctrine of Infallibility; and are acknowledged by this school of Roman writers to be no proof of the doctrine's existence. This recent Roman attitude involves an entirely different estimate of Patristic evidence from that formerly prevalent among the Ultramontanes. It brings the Ultramontane curiously round to agreement with the opposite school as to the actual contents of the Patristic period. There is far less readiness to-day than formerly to assume that inferences which appear to a modern Ultramontane necessarily obviously involved in a statement or a claim, were really actually seen and understood and accepted among the primitive writers by whom the statement or claim was made. This is a sign of a more historic spirit, and therefore exceedingly hopeful.

Of course the doctrine's recognition as a theory is separable from its exercise as a fact. Many Roman Catholic writers have not only maintained that during the Age of the Fathers no case occurs of its exercise; but that the principles advocated demonstrate that it was not even recognised as a theory, since by those very principles it is actually excluded. Roman opponents of the doctrine have also pointed out that no profession of belief in the infallibility of the Church can be adduced to prove belief in the infallibility of the Pope for the simple reason that many Roman theologians who believed the former have rejected the latter.

All that can be done in a limited space is to select the chief examples of the Patristic teaching; and then to show how the Ultramontanes and their opponents employed them.

1. A crucial instance is the famous language of St Irenæus:—

“It is within the power of all, who may wish to see the truth, to contemplate clearly the tradition of the Apostles manifested throughout the world in every Church; and we are able to enumerate those whom the Apostles appointed to be Bishops in the churches, and their successors, quite down to our time, who

neither taught nor knew anything like what these [heretics] rave about. Yet surely if the Apostles had known any hidden mysteries, which they were in the habit of teaching to the perfect apart and privily from the rest, they would have taken special care to deliver them to those to whom they were also committing the churches themselves.... But because it would be too long in such a volume as this, to enumerate the successions of all the churches, we point to the tradition of the very great and very ancient and universally known Church which was founded and established at Rome by the two most glorious Apostles, Peter and Paul;—we point, I say, to the tradition which this Church has from the Apostles, and to her faith proclaimed to man, which comes down to our time through the succession of her Bishops.... For to this Church, on account of its more influential pre-eminence, it is necessary that every church should resort—that is to say, the faithful who are from all quarters; and in this Church the tradition, which comes from the Apostles, has ever been preserved by those who are from all quarters.”^[14]

This classic passage, says a Roman writer,^[15] proves how universal was the belief in the Sovereign Pontiff’s Infallibility. It does not merely state a fact: it enunciates a principle. Accordance with the traditional doctrine of the Church of Rome is here stated to be the duty of all churches. But how could this be so, unless the Pope was the infallible organ of Apostolic teaching? The holy martyr calls, says another, the faithful of the entire Christian world to the Roman Church, that they may drink in the Apostolic truth without fear of error or misleading.^[16] What else is this but infallible authority?^[17]

On the other side a Roman historian of dogmas writes:—

“Irenæus was not contemplating the case of contradictions between churches founded by the Apostles.... There existed at that period complete agreement in faith and doctrine. Consequently, the Fathers had no cause to consider a case of disagreement between Apostolic churches.”^[18]

According to the French Bishop Maret,^[19] the principle laid down by Irenæus is an appeal to tradition manifested in all the Apostolic churches.

He considers that truth is to be found in the tradition manifested in all the Apostolic foundations. But for the sake of brevity it is enough to consult the tradition of the Roman Church. Maret acknowledges a primacy in the Roman Church, but cannot believe that Irenæus would disallow the rightfulness of consulting the tradition of the Universal Church in which Irenæus himself considers the Truth is found.

Gratry, in his famous letters during the Vatican Council, goes further than this, for he quotes the sequel to the passage of Irenæus, and underlines the statement which shows that the principle which this primitive writer considers Catholic is an appeal to the ancient Churches (plural) and by no means exclusive appeal to one.

“... It is not then necessary to seek elsewhere the truth, since it is easily found *in the Church, the Apostles* having made of *the Church* a rich bank, in which they have amassed all the treasures of truth; so that every man, whosoever will, can draw from her the water of life.... Thus if a dispute should arise relative to a detail of tradition, should we not have recourse to *the most ancient Churches* (*nonne oporteret in antiquissimas recurrere Ecclesias, in quibus Apostoli conversati sunt*) in which the Apostles themselves have lived, and learn from them immediately what is certain and clear upon the question?”^[20]

Upon this passage Gratry observes:—

“The reader has here before him the whole doctrine of St Irenæus upon this subject. This doctrine is perfectly clear. It is almost the same as that of Tertullian, who says: ‘Run over the Apostolic Churches, in which are found the chairs of the Apostles, upon which are seated the Bishops who succeeded them, in which are still read their authentic letters, each echoing the voice and representing the face of its author. Is Achaia near to thee? Thou hast Corinth. Art thou near Macedonia? Thou hast Philippi; thou hast the Thessalonians. If thou canst travel into Asia, thou hast Ephesus. If thou art near to Italy, thou hast Rome, where we can find also authority at hand.’”

The thesis of St Irenæus, adds Gratry, is this:—We must bring back heretics “to the tradition of the Apostles, which, by their successors, is

preserved in the Churches.” And “when there is any doubt, we must have recourse to the Ancient Churches.”

2. In the case of St Cyprian (A.D. 250) special difficulties arise owing to controversies on the actual text. We can only set down the chief passage and afterwards indicate the use made of his principles by Roman opponents of Infallibility.

“And although after His resurrection He assigns equal power to all His Apostles, ... nevertheless, in order to make the unity manifest, He *established one Chair and* by His own authority appointed the origin of that same unity beginning from one. Certainly the rest of the Apostles were that which Peter *also* was, endued with equal partnership, both of honour and office, but the beginning sets out from unity, *and Primacy is given to Peter, that one Church of Christ and one Chair may be pointed out; and all are pastors and one flock is shown, to be fed by all the Apostles with one-hearted accord, that one Church of Christ may be pointed out....* He that holds not this unity of the Church, does he believe that he holds the faith? He, who strives and rebels against the Church, *he who deserts the Chair of Peter on which the Church was founded*, does he trust that he is in the Church?”^[21]

Whether the passages underlined are Cyprian’s or unauthorised interpolations, is the critical difficulty. They appear in the earlier printed editions, not, however, without editorial misgivings. But the modern critical text^[22] omits them. Many Roman theologians do the same. Leo XIII. himself omits them in his Encyclical on the unity of the Church. On the other hand, their genuineness is still asserted by certain Protestant and Roman writers. In any case all that they affirm is a Primacy. No modern Romanist of the historical school would quote them as affirming infallibility. Under these circumstances perhaps it will be best to confine attention to words whose genuineness no one disputes. The Ultramontane emphasised Cyprian’s statements on the Primacy: the opposing school, his

statements on Episcopal equality. The former quoted “the principal Church, whence sacerdotal unity arose”; the latter “the episcopate is one, it is a whole, in which each enjoys full possession”; and again, “the rest of the Apostles were that which Peter was, endowed with equal partnership, both of honour and office.”

Minority Bishops asserted in the Vatican Council, on the ground of these two passages, that Ecclesiastical power was divinely entrusted to Peter and to the other Apostles; and that it was derived from them to their successors by Divine institution. Accordingly the minority complained that the exclusive consideration of Papal authority was irreconcilable with Catholic truth and Cyprianic principles. The equal authority of the episcopate deserved and required an equal exposition.^[23] Cyprian’s inference from St Matt. xvi. 18 was that “the Church should be built upon the Bishops, and that every act of the Church should be guided by them as presidents.”^[24]

And this is the principle upon which Cyprian acts. After assembling the local Bishops and forming their own decision, Cyprian wrote to Stephen, Bishop of Rome, in the following terms:—

“These considerations, dear brother, we bring home to your conscience out of regard to the office we hold in common, and to the simple love we bear you. We believe that you, too, from the reality of your religious feeling and faith, approve what is religious as well as true. Nevertheless, we know there are those who cannot readily part with principles once imbibed, or easily alter a view of their own, but who, without hurting the bond of peace and concord between colleagues, hold to special practices once adopted among them, and herein we do no violence to any one and impose no law. For, in the administration of the Church each several prelate has the free discretion of his own will—having to account to the Lord for his action.”^[25]

Quoting Cyprian’s own words St Augustine repeats the passage from a letter:—

“For neither did Peter whom the Lord chose first, and on whom He built His Church, when Paul afterwards disputed with him about circumcision, claim or assume anything and arrogantly to himself, so as to say that he held the primacy, and

should rather be obeyed by newcomers. Nor did he despise Paul because he had before been a persecutor of the Church, but he admitted the counsel of truth, and readily assented to the legitimate grounds which Paul maintained; giving us thereby a pattern of concord and patience, that we should not pertinaciously love our own opinions, but should rather account as our own any true and rightful suggestions of our brethren and colleagues for the common health and weal.”^[26]

Upon this Augustine’s comment is:—

“Here is a passage in which Cyprian records what we also learn in Holy Scripture, that the Apostle Peter, in whom the primacy of the Apostles shines with such exceeding grace, was corrected by the later Apostle Paul, when he adopted a custom in the matter of circumcision at variance with the demand of truth....^[27]

“Wherefore the holy Cyprian, whose dignity is only increased by his humility, who so loves the pattern set by Peter as to use the words; ‘giving us thereby a pattern of concord and patience, that we should not pertinaciously love our own opinions, but should rather account as our own any true and rightful suggestions of our brethren and colleagues for the common health and weal’—he, I say, abundantly shows that he was most willing to correct his own opinion, if any one should prove to him that it is as certain that the baptism of Christ can be given by those who have strayed from the fold, as that it could not be lost when they strayed.... Nor should we ourselves venture to assert anything of the kind were we not supported by the unanimous authority of the whole Church—to which he himself would unquestionably have yielded, if at that time the truth of this question had been placed beyond dispute by the investigation and decree of a General Council. For if he quotes Peter as an example for his allowing himself quietly and peacefully to be corrected by one junior colleague, how much more readily would he himself, with the Council of his Province, have yielded to the authority of the whole world, when the truth had been thus brought to light? For, indeed, so holy and peaceful

a soul would have been more ready to assent to the arguments of any single person who could prove to him the truth; and perhaps he even did so, though we have no knowledge of the fact.”^[28]

To Cardinal Bellarmine, Jesuit of the sixteenth century, the persistent refusal of Cyprian to accept the Pope’s teachings appeared very grave indeed. Cyprian, says Bellarmine, was not a heretic, because those who say that the Pope can err are not even yet considered manifestly heretics. But whether Cyprian did not commit a mortal sin in disobeying the Pope, Bellarmine is not sure. On the one hand, Cyprian sinned in ignorance. Thinking the Pope in serious error, he was obliged to disobey; for no man ought to go against his conscience—and a Council of eighty Bishops agreed with him. On the other hand, he appears to have mortally sinned, for he disobeyed an apostolic precept, and refused to submit to the judgment of his superior.

Archbishop Kenrick’s dogmatic inference from these facts in the Vatican Council was as follows:—

“When Cyprian, Bishop of Carthage, held mistaken views as to the rebaptism of heretics upon their return to the Church, and had strenuously defended them against the Roman Pontiff Stephen, Augustine considered him to be justified: because the matter in question had not yet been elucidated by the authority of a General Council. Thus Augustine did not regard as decisive the Roman Pontiff’s opinion which had already condemned this error, and by which, according to my opponents, the dispute had been already infallibly determined. Augustine therefore was ignorant of the doctrine of Pontifical Infallibility. Had he acknowledged it, it must have followed that Cyprian was not only indefensible for his conduct, but had actually incurred condemnation for heresy.”

3. From the writings of St Augustine probably no phrase has been more often quoted in behalf of papal inerrancy than that in which, referring to the Pelagian controversy, he says:—

“Already on this matter two Councils have sent to the Apostolic See, whence also answers have been received. The cause is finished, would that the error were also finished.”^[29]

In other words, says a Roman writer,^[30] Pope Innocent I. has determined the matter. The Pontifical Decree has settled that the truth is on Augustine’s side. Could it do so unless it were infallible? To another writer this inference is indisputably clear.^[31]

It is, however, more than questionable whether this exposition would satisfy Roman critical writers of to-day. For they do not claim Pope Innocent’s reply to the African Bishops as an exercise of Infallibility. Thus Augustine’s criticism is no evidence of his belief in Innocent’s inerrancy.

“St Augustine and all his century,” says a Bishop of the Roman Church, “like the centuries before him, placed the supreme authority, the authority which cannot fail, not in the Pope alone, but in the Pope and the Episcopate.”^[32]

Nevertheless, the passage was appealed to by the Ultramontanes in the Vatican struggle. They assigned to St Augustine the statement: “Rome has spoken, the cause is finished.” This was the form in which Augustine’s sentiments were commonly quoted for centuries. Gratry’s criticism upon it represents the opposition.

“Rome has spoken, the cause is finished. It is certain that this formula of St Augustine possesses something decisive and absolute about it like an axiom. It says everything. ‘Rome has spoken, the cause is finished.’ Rome has spoken; all is said, the rest is of no consequence.

“But the objection to this is that St Augustine never said that at all.”

Gratry then quotes the passage as it actually occurs. To Gratry’s mind the real words do not even imply that the judgment of Rome by itself is everything; while the misquoted formula does.^[33]

4. Constantly appealed to again are the words of St Jerome.

“I know that the Roman faith praised by the Apostle’s voice does not accept suggestion of such a kind. Although an angel taught otherwise than that which has been once proclaimed, strengthened by the authority of St Paul, it could not change.”^[34]

“Upon this rock I know that the Church is builded. I entreat you, authorise me by your letters either to assert or not to assert three substances. I shall not fear to assert three substances if you order me.”^[35]

Here, then, St Jerome is found affirming that the Roman Church cannot fail, and that he who accepts its instruction cannot be misguided.^[36]

On the other hand, Bishop Bossuet appeals to Jerome’s own account of Pope Liberius that he was induced to endorse heresy, and that, overcome by the weariness of exile, he subscribed to heretical error.^[37] The question, therefore, arises whether Jerome would not have feared to follow an example which he so describes. Can he who so describes Liberius have believed that he who accepts papal instruction cannot be misguided?

5. Another example is the striking utterance of Pope Gelasius.

“This it is against which the Apostolic See is greatly on its guard, that the glorious confession of the Apostle, since it is the security of the world, should not be defiled by the least error or contagion.^[38] For if—which God avert, and we trust cannot happen—such a misfortune should occur, how could we venture to resist any error, or how should we be able to correct the wandering?”

Gelasius teaches here, said Bellarmine, that the Apostolic See cannot err. For since the security of the world depends upon its utterances, if it were to err the whole world would be in error with it.^[39]

Bossuet, on the other hand, replied as follows: A Roman Synod addressed to Bishops the question: How could they correct the error of the

people if they were in error themselves? This was not an encouragement to think themselves infallible, but a warning to take precautions against being deceived. Similarly Gelasius claims that consciousness of the disastrous results which would attend its deception has deepened the cautiousness of the Roman See. To infer, however, from the character of the results, the impossibility of the occurrence is, says Bossuet, the utterly illogical conclusion that what ought not will not be. The dangerous character of the results which would follow from deception of the Roman See do not prove the impossibility of its occurrence. All they prove is the urgent necessity for care and deliberation. And this is what Gelasius implies. For his language is —“which God avert, we trust it cannot happen.” But this is the language of prayer and piety; it is not the certainty of a truth revealed. Gelasius has every hope that, contingently on compliance with the necessary conditions, this disaster will not be permitted to take place. But we may not transpose hope into fact. Tested by history, urges Bossuet, individual occupants of the Roman See have grievously misled the Church. Liberius and Honorius, as far as in them lay, did actually deceive the world. Yet the world was not deceived: for other remedies exist against calamities such as these. The language of Gelasius is one of the most magnificent from the Roman See. But it is the language of a pious confidence, not a dogma of the immutable faith.

6. The classic expression of the proper method, according to the Ancient Church, for distinguishing Catholic Faith from falsehood, is the famous Canon of St Vincent of Lerins. We propose to summarise his principles, and then to record their controversial use within the Roman Communion.

“Moreover, in the Catholic Church itself all possible care must be taken that we hold that faith which has been believed everywhere always by all. For that is truly and in the strictest sense Catholic, which, as the name itself and the reason of the thing declare, comprehends all universally.

“This rule we shall observe if we follow universality, antiquity, consent. We shall follow universality if we confess that one faith to be true, which the whole Church throughout the

world confesses; antiquity, if we in no wise depart from those interpretations which it is manifest were notoriously held by our holy ancestors and fathers; consent, in like manner, if in antiquity itself we adhere to the consentient definitions and determinations of all, or at least of almost all priests and doctors.”^[40]

Vincent’s famous Canon states the appeal to tradition in a triple form: in relation to place and time and persons. The test of a doctrine’s apostolic character is its universality in place and time. That which commands a consent virtually coextensive with the Church’s existence, across the entire world geographically, and across the entire Christian ages historically, constitutes the Catholic Faith.

Vincent’s application of this test to several instances shows alike its clearness and its use.

i. First Case—If the Local oppose the Universal.

“What, then, will a Catholic Christian do if a small portion of the Church have cut itself off from the communion of the universal faith?

“What, surely, but prefer the soundness of the whole body to the unsoundness of a pestilent and corrupt member?”

ii. Second Case—If the Modern oppose the Ancient.

“What if some novel contagion seek to infect not merely an insignificant portion of the Church, but the whole?

“Then it will be his care to cleave to antiquity, which at this day cannot possibly be seduced by any fraud of novelty.

“To preach any doctrine therefore to Catholic Christians other than what they have received never was lawful, never is lawful, never will be lawful.”

Thus according to Vincent the Christian obligation is to keep that deposit of doctrine which is committed to our trust. And this obligation rests in general on the Universal Church, and in particular on the whole body of pastors whose duty it is to possess and communicate to others a complete knowledge of religion. Vincent considers the transmission of the Faith in its integrity the function not exclusively of the pastors, but also of the entire community of the Universal Church. His famous often quoted words must

be quoted once again, for it would be impossible to express his theory in better terms than his own.

“Keep the Deposit. What is the Deposit? That which has been entrusted to thee, not that which thou hast thyself devised: a matter not of wit but of learning; not of private adoption but of public tradition; a matter brought to thee, not put forth by thee, wherein thou art bound to be not an author but a keeper, not a teacher but a disciple, not a leader but a follower.... Let that which formerly was believed, though imperfectly apprehended, as expounded by thee be clearly understood. Let posterity welcome, understood through thy exposition, what antiquity venerated without understanding. Yet teach still the same truths which thou hast learned, so that while thou speakest newly, thou speakest not what is new.”

Nothing can be stronger than St Vincent’s sense of the substantial immutability of the Faith. Nor is there any finer exposition than his of the principle of identity. What is perhaps even more remarkable, considering the period when he wrote, is his recognition that the principle of immutability requires to be balanced by the principle of progress. We have in his pages the earliest statement of the principles of theological development, drawn with a wonderful insight into its nature and limitations.

“But some one will say, perhaps—Shall there then be no *progress* in the Christian Church? Certainly all possible progress.... Yet on condition that it be real progress, *not alteration* of the Faith. For progress requires that the subject be enlarged in itself, alteration that it be *transformed into something else*. The intelligence, then, the knowledge, the wisdom, as well of individual as of all, as well of *one man* as of *the whole Church*, ought in the course of ages and centuries, to increase and make much and vigorous progress; *but yet only in its own kind; i.e., in the same doctrine, in the same sense, and in the same meaning.*”

Thus, according to Vincent, there may be all possible progress consistent with substantial identity. And the method by which the progress of the Church of the present day is safeguarded and controlled is perpetual

reversion to the primitive type; any substantial deviation from which is a sign of variation from the truth.

The Romanist opponent of Papal Infallibility laid the greatest stress on St Vincent's principle, while the Ultramontane attempted a distinction between implicit and explicit truth. Grant that the Catholic faith must be contained in the original deposit of Revelation, must its recognition have been explicit from the first?^[41] The Canon of St Vincent was asserted to be true in an affirmative sense, but not in a negative. Whatever satisfies the test of universality was undoubtedly part of the Catholic faith; but it did not follow that a doctrine which failed to fulfil this test was therefore uncatholic.

This distinction carried no conviction to a very large minority in the Roman Church, partly because the doctrine in question did not satisfy the test of universality, even in the nineteenth century, and partly because of the doctrine's intrinsic character. They failed to see how a doctrine which explicitly affirmed the Pope's independence of the Church's consent could be a legitimate outcome of, and implicitly contained within, the principle of consent, which is the negative of that independence. Vincent placed the whole stress on universality and consent. The Ultramontane considered the Pope's utterance infallible without that universality and consent. To the Roman opponents of the Vatican view these two theories seemed mutually exclusive. They could not reconcile the Vincentian Canon with the Vatican claim, nor reject St Vincent's demand that progress must retain substantial identity. They remembered how Bishop Bossuet, intellectually the head of the seventeenth-century Church in France, had claimed for the Roman Catholic Church the distinctive glory of immutability—the *quod semper* of St Vincent—as contrasted with the variations of Protestantism.^[42]

In the Vatican Council itself the Bishops appealed repeatedly to the Canon of St Vincent as a proof that the Infallibility doctrine formed no portion of the Catholic faith. Bishop Maret had already affirmed in the treatise which he sent to all the members of the Council that the principles of St Vincent can never legitimately issue in a system of absolute Infallibility and monarchy of each individual Pope. Bishop Hefele said that

“when differences on matters of faith arose in the primitive Church appeal was made to the Apostolic Churches, Rome,

Alexandria, Antioch; and that only was dogmatically propounded to the faithful, which was universally believed. None of the ancients ever imagined that an infallible decision of controversies could be obtained by any shorter method at the hands of any single individual. On the contrary, Vincent said, let us follow universality, antiquity, consent.”^[43]

Another Bishop urged that according to the principle of St Vincent no definition could be made without moral unanimity. We have no proof, said another Bishop, least of all from the first five centuries. And if nothing can ever be defined except that which has been believed always everywhere and by all, by what right can we defend the Papal Infallibility? None but the Bishops, said another, can testify whether a doctrine is held always everywhere and by all. Consequently, he, and others with him, demurred to the opinion that a Pope’s utterance could be infallible without the consent of the episcopate.

More emphatic still was the statement of the American Archbishop Kenrick:—

“The famous writer, Vincent of Lerins, in his golden treatise the *Commonitorium*, which has been highly esteemed for the last fourteen centuries ... gives the rule by which a believer should guide himself when conflicting opinions arise among the Bishops: namely, that nothing is to be considered of Catholic faith which has not been acknowledged always everywhere and by all. When the Bishops disagree Vincent affirms that antiquity and universality are to be followed. He makes no reference to the Roman Pontiff whose opinion, according to the Pontifical Party, instantly determines all controversies of faith. This theory assuredly Vincent never heard of. And his contemporaries entirely agreed with him.”

The authors of Janus made an equally strong appeal to St Vincent of Lerins.

“If the view of Roman Infallibility had existed anywhere in the Church at that time, it could not have been possibly passed over in a book exclusively concerned with the question of the means for ascertaining the genuine Christian doctrine. But the

author keeps to the three notes of universality, permanence, and consent, and to the Ecumenical Councils.”^[44]

7. What was the true relation of the Pope and the Council to each other? How was it understood in primitive times? Did the Collective Episcopate regard itself as subordinated, with no independent judgment of its own, to decisions of the Roman authority? Or was the Council conscious of possessing power to accept or refuse the papal utterances brought before it?^[45] Bossuet maintained that the treatment of Papal Letters by the early General Councils afforded convincing proof against their belief in any theory of papal inerrancy. The famous letter of Leo to Flavian was laid before the Council of Chalcedon in the following terms:—“Let the Bishops say whether the teaching of the 318 Fathers [the Council of Nicea] or that of the 150 [Constantinople] agrees with the letter of Leo.” Nor was Leo’s letter accepted until its agreement with the standards of the former Ecumenical Councils had been ascertained.

The very signatures of the subscribing Bishops bear this out—“The letter of Leo agrees,” says one, “with the Creed of the 318 Fathers and of the 150 Fathers, and with the decisions at Ephesus under St Cyril. Wherefore I assent and willingly subscribe.”^[46] Thus the act of the Episcopate at Chalcedon was one of critical investigation and authoritative judgment, not of blind submission to an infallible voice. The theologian, Bellarmine, and the historian, Baronius, both strong advocates of the papal authority, contradict one another on this point. Baronius asserts that the Bishops regarded the letter of Leo as the rule and guide in faith which all churches must accept. Bellarmine, however, perplexed by the episcopal investigation which undeniably the letter endured, suggested that Leo’s letter to the Council was not intended as a final definition, but as a general advice for the Bishops’ assistance.

Bossuet points out that this happy solution is refuted by the simple fact that Leo wrote to Flavian before any Council was even thought of.^[47] It illustrates Bellarmine’s uncritical ingenuity. And since Baronius acknowledges the authoritative character of Leo’s letter, and Bellarmine the

reality of its scrutiny by the Bishops, the obvious conclusion is that both the papal authority and the consent of the Universal Council are elements in producing a dogma of the Faith. Accordingly, the Pope's decision, taken by itself apart from the consent of the Church, is not infallible. Bossuet claims that Leo's own teaching endorses this, for he wrote the following words: "The things which God had formerly defined by our ministry, He confirmed by the irreversible consent of the entire brotherhood."

To sum up the procedure of the early Church in a question of faith: Bishop Flavian first declared what was of faith as the local Bishop. Leo at Rome endorsed it and gave his definition. After this definition came the examination of the question in the General Council, and judgment was ultimately given. After the definition had been approved by the judgment of the Bishops no further room for doubt or dispute remained.^[48]

The impression made upon a Roman writer by Roman research for proof of Infallibility in the writings of the Fathers may be gathered from the following significant passage:

"To sum up. The defenders of the dogma of Infallibility discover valuable hints in history. But they also encounter difficulties. After systematising against the Gallican School the grounds of their belief, they endeavoured to meet the difficulties which required to be solved. These difficulties came from many sources. They came from Councils which on various occasions constituted themselves judges of teaching sent from Rome. They came from certain teachers who opposed other works to the doctrinal decisions of Popes. But they came, above all, from Popes themselves who were not always at the level required of their mission, and at times allowed themselves to be ensnared with error."^[49]

Primitive evidence for Papal Infallibility is then admitted by some Roman writers to be meagre and disappointing.^[50] A curious instance of this is found in the theologian, Melchior Cano. He says that the quotations given by St Thomas from St Cyril of Alexandria afford a much clearer evidence for this doctrine than that in any other patristic writer. But when he sought for the original passages they were not to be found. "This is the work of the heretics," he exclaims indignantly. "They have mutilated the

writings, and erased everything that concerned pontifical authority.” So Melchior Cano. To-day, however, it is universally acknowledged that these passages were interpolations by which St Thomas Aquinas was deceived. Thus Melchior Cano’s clearest evidence is nothing else than a simple forgery.

[12] See *Controv.*

[13] Cf. Turmel, *Hist. Théol. Positive*, p. 303.

[14] St Irenæus, III. iii. pp. 1–2, trans. F. Puller, p. 20.

[15] Botalla, i. p. 79.

[16] Perrone, p. 38.

[17] Cf. Bellarmine, p. 267.

[18] Schwane, *Histoire du Dogme*, i. p. 667.

[19] Maret, *Du Concile Général*, ii. p. 110.

[20] Gratry’s second letter.

[21] Cyprian, *De Unit.* 4.

[22] Text of the *Vienna Corpus*, ed. Hartel.

[23] Friedrich, *Documenta*.

[24] *Ep.* xxxiii.

[25] *Ep.* xlvii. 3.

[26] Cyprian, *Ep.* lxxi.

[27] Augustine, *De Baptismo*, II. i. 2.

[28] Augustine, *De Baptismo*, II. iv. p. 5.

[29] St Aug. *Serm.* cxxii. Gaume, v. 930.

[30] Botalla, i. p. 77.

[31] Perrone, p. 43.

[32] Maret, i. p. 161.

[33] Second letter.

[34] *Ad Rufinum*, ii.

[35] *Ep. ad Damasum*, ii. p. 131.

[36] Perrone, p. 42.

[37] Bossuet, xxii. p. 227. Jerome, *De Script. Eccles. and Chronicon*.

[38] Bossuet, xxii. p. 277.

[39] *Works*, ii. p. 83.

[40] *Commonitorium*, ii.

- [41] Franzelin. *De Trad.* p. 295.
- [42] Bossuet, *Premier Avertissement aux Protestants*.
- [43] Friedrich, *Documenta*, ii. p. 121.
- [44] Janus, p. 89.
- [45] Bossuet, *Defence*, i. p. 80.
- [46] *Ibid.* ii. p. 38.
- [47] Bossuet, *Defence*, i. p. 81.
- [48] *Ibid.* ii. p. 41.
- [49] Turmel, *Hist. Théol. Positive*, p. 309.
- [50] Melchior Cano, *Op.* lib. v. cap. v.

CHAPTER III

THE CASE OF HONORIUS

THE case of Pope Honorius naturally occupied the attention of Roman Catholics more than any other instance of papal pronouncements, because it presented peculiar difficulties to the advocates of Infallibility. The literature created by this single case within the Roman Communion is enormous. We shall but represent its actual historical position in the development of the subject, if we treat it at considerable and even disproportionate length. For in reality it is no solitary incident. It reaches out into the Universal Councils of the Church. It shows the early conception of the relation between Council and Pope; what the Collective Episcopate thought of the nature of a papal definition of faith; what subsequent Popes thought of a predecessor's pronouncement.

To understand it we must revert to the conditions of Christian thought when the first four General Councils were completed. The Incarnation was then interpreted to involve two natures united in one Person. But the inferences which this statement required were not yet clearly thought out. The difficulty of the period was to allow full scope to the human nature in Christ. If there was one Person in Christ, then there must be one will, and that will manifestly divine. Accordingly it was supposed that His human nature had no human will. The relation of the divine to the human in Christ was thought to resemble that of the soul to the body, in such a way that the human nature was but a will-less passive instrument under the absolute control of the will which was divine.

This is the Monothelite heresy. It is a heresy of a disastrous kind, for it virtually denies the reality of the Incarnation. If the Son of God took a will-less human nature, then He did not take our human nature at all. For the will is essential to the perfection of our nature.

Now the Monothelite heresy was widely prevalent in the East: the real leader and chief promoter being Sergius, Patriarch of Constantinople.

Acting under his influence, Cyrus, Patriarch of Alexandria, published in 633 a document asserting the existence of only one will in Christ. This was earnestly opposed by Sophronius, afterwards Patriarch of Jerusalem, who entreated Cyrus to cancel the objectionable statement, and visited Sergius with a view to enlist his support. This he naturally failed to obtain. But Sergius, with more subtlety than frankness, being in fact alarmed at the sensation produced by the heresy in Catholic minds, proposed as a compromise that both the assertion of one energy in Christ, and the counter-assertion of two energies should be abandoned. Sophronius consented. Sergius then wrote his famous diplomatic letter to Honorius of Rome, giving his own version of the controversy, explaining that in the interests of peace it was desirable that both expressions should be discouraged. To speak of “one energy” in Christ seemed strange to many, and offended them because it seemed to deny the duality of nature in our Lord; while the expression “two energies” offended others, because it would follow that there were two contradictory wills in Christ. Sergius then explained his theory by the illustration that as the body is controlled by the soul, so is the human nature in Christ controlled by His Divine Will—an illustration which certainly ought to have opened Honorius’s eyes, even if the proposal to abandon the orthodox expression, “two energies,” did not already alarm him. Now this letter of Sergius was condemned by the Sixth General Council. But this same letter Honorius approved.

Honorius replied that he learns from Sergius’s letter that new controversies have been stirred up by a certain Sophronius, a monk, now Bishop of Jerusalem, against “our brother, Cyrus of Alexandria, who taught converts from heresy the doctrine of one energy in Christ.” He is glad to hear that this expression, “one energy,” has been abandoned, because it “might give offence to the simple.” Honorius, however, asserts for himself “we confess one will of our Lord Jesus Christ,” and explains that there was no diverse or conflicting will in the human nature of Christ; no conflict that is of the flesh against the spirit. He says that we may not erect into dogmas of the Church the statements that in Christ there is one energy or two, since neither the New Testament nor the Councils have so taught. He says, further, that he desires to reject everything which as a novelty of expression might cause uneasiness in the Church. He is quite aware that the expression “two energies” might be considered Nestorian, and “one energy” Eutychian.

Accordingly, he “exhorts” Sergius to avoid both expressions and to keep to the already sanctioned phrases.

This letter of Honorius was utilised in the East to justify the Monothelite heresy—the existence of one will in Christ. Honorius died shortly after its publication (638). His successor, John IV., defended Honorius’s orthodoxy on the ground that, since Sergius’s enquiry was concerned only with our Lord’s humanity, the reply was similarly restricted to the same. A later successor, Martin I., held a Synod at the Lateran in 649, in which the two Patriarchs, Cyrus of Alexandria and Sergius of Constantinople, were both condemned as Monothelites; and in which, without any allusion to Honorius, it was affirmed that the coexistence of two wills in Christ was a necessary consequence of the co-existence of the two natures, human and divine. In 680 was held the Sixth General Council with a view to reconcile and reunite the East with the West. To this Council Pope Agatho sent a letter reaffirming the orthodox doctrine of two natural wills and operations, and declaring that his Church had, by the grace of God, never erred from the Apostolic Tradition nor submitted to heretical innovations. This letter the Council received and adopted; and proceeded to condemn as heretical the writings of his predecessor, Honorius, upon whom they gave judgment as well as upon the two Patriarchs of Alexandria and Constantinople. After reading the letter of Sergius to Pope Honorius and that of Honorius to Sergius, the Council pronounced judgment in the following terms:—

“We find that these documents are quite foreign to the Apostolic dogmas, also to the declarations of the holy Councils, and all the Fathers of repute; therefore we entirely reject them, and execrate them as hurtful to the soul. But the names of these men must also be thrust forth from the Church, namely, that of Sergius, who first wrote on this impious doctrine; further, that of Cyrus of Alexandria, etc.... We anathematise them all. And along with them, it is our unanimous decree that there shall be expelled from the Church and anathematised Honorius, formerly Pope of Old Rome, because we found in his letter to Sergius that in all respects he followed his view and confirmed his impious doctrines.”

This conclusion was followed up by burning the heretical letters, including that of Pope Honorius. It is significant that when the Council

were about to proceed to pronounce the Anathemas, George, Patriarch of Constantinople, was anxious to secure the omission of his predecessors' name, but the majority overruled him. So the sentence was uttered, "Anathema to the heretic Sergius, to the heretic Cyrus, to the heretic Honorius."

The announcement of these decisions was made not to Pope Agatho, for he had died; but to his successor, Leo II. Leo accepted the decisions of Constantinople. He has carefully examined the Acts of the Council and found them in harmony with the declarations of faith of his predecessor, Agatho, and of the Synod of the Lateran. He anathematised all these heretics, including his predecessor, Honorius, "who so far from aiding the Apostolic See with the doctrine of the Apostolic Tradition, attempted to subvert the faith by a profane betrayal."

This condemnation of Honorius was reiterated by two more Ecumenical Councils. It recurs in the papal Profession of Faith uttered by each Pope on his accession down to the eleventh century. This formula is contained in the *Liber Diurnus*, a volume which has had a remarkable history. The *Liber Diurnus* is a collection of ancient documents relating to the Papal Office, forms of faith, and other formulas, which were in use in the Roman Church probably from the sixth to the eleventh centuries. The collection was made in Rome itself. At what precise date the formulas therein contained ceased to be in use the learned appear unable to say.

The *Liber Diurnus* disappeared from sight and almost from memory. Its very existence seemed uncertain. In the middle of the seventeenth century Holstein, afterwards librarian of the Vatican, found the MS. at Rome.^[51] Another MS. was found in the Jesuit College of Clermont in Paris. Holstein prepared an edition for the press. It should have seen the light in 1650.^[52] Nothing was wanting but approval of the censors. The approval was, however, refused, and the copies were consigned to imprisonment in the Vatican. The reason for this suppression is given by the liturgical writer, Cardinal Bona:^[53]—

"Since in the Profession of Faith by the Pope elect, P. Honorius is condemned as having given encouragement to the depraved assertions of heretics—if these words actually occur in the original and there is no obvious means of remedying such a

wound—it is better that the work should not be published—*præstat non divulgari opus.*”^[54]

Such was Cardinal Bona’s opinion and advice.

Another learned writer, P. Sirmond, in a letter to Holstein, expressed himself with still more remarkable frankness:—

“It appears to me not so astonishing,” said Sirmond, “that the Greek Monothelites should attempt to identify Honorius with their error, as it seems extraordinary that the Romans themselves, in the newly elected Pope’s Profession of Faith, should have branded the name of Honorius together with the authors of heretical ideas, such as Sergius, etc., for having given encouragement to the depraved assertions of heretics. And yet such are the terms of that Profession of Faith, as I found it among the ancient formulas of the Roman Church. And this is the only reason which deterred me from producing an edition of it, notwithstanding my promise to Cardinal S.”^[55]

The suppression of Holstein’s edition created a sensation among the learned men of France. “The *Liber Diurnus*,” wrote Launoy, “has been printed in Rome several years, and is detained by the masters of the Papal Court and the Inquisitors. These men cannot bear the light of ancient truth.”^[56] However, in the year 1680, the Jesuit writer, Garnier, published an edition of the work. Whatever his motive may have been and it is still disputed, he was summoned to Rome to give an explanation, and died on the way.^[57] However, the mischief was out, and from that time authorised publication became easy. The great scholar, Mabillon, printed the work without let or hindrance, and the comparative indifference of the world exemplified the maxim that an institution which has survived a fact will also survive its publication.

Such, then, appear to be the historic facts, stated as objectively as we can state them.

We now proceed to give the various Roman explanations. “It is,” says Hefele,^[58] the learned historian of the Councils, “in the highest degree startling, even scarcely credible, that an Ecumenical Council should punish with anathemas a Pope as a heretic.” Certainly from an Ultramontane

standpoint it must be so. And this perplexity has led to a curious and instructive variety of conflicting solutions from the days of Cardinal Bellarmine down to the present time.

1. First explanation: It was boldly asserted in the seventeenth century that Pope Honorius was not condemned at all. The historian, Baronius, made himself responsible for this view, and Bellarmine followed him. No doubt the documents as we possess them affirm the contrary; but then they must have been interpolated and falsified. The reasons given for this procedure are that the Council of the Lateran over which Pope Martin presided condemned the Monothelites, but did not mention Honorius. Also that the Ecumenical Council of Constantinople could not possibly have condemned Honorius as a heretic; for that would make them contradict Pope Agatho's letter, to the effect that the Apostolic Church had never strayed from the path of the Apostolic Tradition, nor yielded to the perversions of heretical novelties. Either, therefore, the Council's words are falsified, or the letter of Agatho is falsified, or the Council and Agatho disagree. But no one asserts this last, and no one has ever suggested the second, therefore the first alternative is the one to be maintained. Bellarmine shows grounds to mistrust those fraudulent Greeks. He gives numerous instances of forgery. Baronius conjectures that a heretical Bishop, finding his own name in the Council's list of the condemned, quietly erased it and substituted that of Pope Honorius.

Bossuet^[59] thinks the mere recital of these conjectures sufficient refutation, and deplores that so learned a man should be dishonoured by these fictions. Sceptical criticism so utterly unfounded would, if universally applied, destroy the foundation of all historic certainty.

A recent Roman writer (1906) says that the theory of Bellarmine and Baronius offers valuable advantage, that is to the Ultramontane, but is attended by enormous difficulties.^[60] For, if the fraudulent Greeks interpolated the Acts of the Council, who interpolated the letter of Leo II. in which he accepts its conclusion and condemns Honorius by name? Accordingly the solution dear to Bellarmine and Baronius has been abandoned by the strongest advocates of Papal Infallibility.

2. A second explanation admitted that Honorius was condemned, but asserted that he was only condemned in his private capacity, as an

individual theologian, and not as Pope.

One obvious advantage of this theory was that at any rate it did no violence to historic documents. It encouraged no universal scepticism as to sources. Bellarmine himself suggested it as an alternative to those who could not be satisfied with discrediting wholesale on suspicion the long series of documents. But Bellarmine did not like the theory; for he held that although the opinion that a Pope can err as a private teacher is probable, yet the opposite opinion was more probable still. However, for those whom it might assist, there it was. All that the Council meant to say was that Honorius by his private letters promoted heresy.

Private letters! echoes Bossuet^[61] scornfully. When, then, is a decision given, *ex cathedra*, unless when the successor of St Peter, being consulted by the entire East, should suppress a deadly error and strengthen his brethren? Or did he prefer to be deceived, when, being so interrogated, he did not reply under these conditions in which he knew that he could not be deceived?

A recent Roman writer^[62] assures us that the opinion that the letter of Honorius was compiled as a private theologian has never been enthusiastically received, never achieved a real success. Its partisans have been few in number and authority.

“To allow that a Pope had been solemnly charged with heresy even as a private doctor was too much for the infallibilists. On the other hand, the Gallicans could not forget Bossuet’s retort. ‘When can a Pope have cause to speak *ex cathedra* if not when consulted by the entire East?’”^[63]

3. A third explanation of the case of Honorius is that he was condemned for heresy, but mistakenly; the Council being in error on a question of fact. Bellarmine proposes this as an alternative solution to those who cannot be induced to believe that the Decrees of the Sixth General Council have been interpolated and corrupted. It may be said that Honorius was actually condemned by the Council as a heretic, but that they acted on false information. If infallible in doctrine, they were not infallible in questions of fact. If the reader objects, and interposes an enquiry whether Bellarmine understands Honorius’s letter better than an Ecumenical Council understood him, the ready reply is that Pope Agatho said that his See had never strayed.

Pope Agatho understood the letter of Honorius better than the Greeks assembled in the Council. If you ask why, then, didn't the legates of Agatho resist the condemnation, Bellarmine answers that this was diplomatic. They acquiesced to avert a greater evil; namely, continuance of false doctrine. Thus, according to Bellarmine, to secure the condemnation of the Monothelite heresy, the legates sanctioned the condemnation of a Pope for heresy—apparently on the principle of two evils prefer the less—with consequences, however, which Bellarmine does not seem to have thought out. If the reader still persists, in his incredulous temper, to ask, Why, then, did Pope Leo in his letter after the Council also condemn Honorius? it is suggested that you can say that Leo followed the legates of Agatho; he preferred to let sleeping dogs lie. But we are not bound, says Bellarmine, to follow Leo. We may follow Agatho. For you see that whether Honorius erred is, after all, a question of fact: and in questions of fact even Popes may differ.

This theory appeared congenial to some in the sixteenth century. But then it received an unexpected application, being utilised by the Jansenists to justify their treatment of papal decisions with respectful incredulity. Whether certain doctrines were or were not contained within the pages of Jansenius's great book was not a question of faith but of fact. Consequently it was enough to adopt towards any papal assertions on the subject an attitude of external deference while maintaining unchanged one's inward convictions.

This application opened the eyes of papal theologians to the dangerous character of the theory. It became, says Turmel,^[64] almost invariably abandoned among defenders of Papal Infallibility.

But, after all, was the Universal Council mistaken in the interpretation it placed upon the theological contents of Honorius's letter? Upon this question Roman writers have been sharply divided. This was the defence set up for him by his immediate successor, but obviously not accepted by the long line of his successors who condemned him; nor by the Ecumenical Council which pronounced its judgment upon him; nor by the two other Ecumenical Councils which followed.

Honorius's successor, Agatho, indeed asserted that his See had never deflected from the way of truth, and that the Roman Pontiffs had obeyed the

injunction laid upon Peter to strengthen his brethren. This language was accepted by the Fathers of the Sixth Council. But what they understood by it, said Bossuet, can be readily gathered from the following single fact: they approved the teaching of Agatho, but they condemned the teaching of Honorius. Manifestly they did not endorse the theory that no Roman Pontiff had ever deflected from the faith, or that his decisions deserved the unquestioning submission of Christendom. All that the Council could have assented to was that as a general fact the truth was held in Rome; without pronouncing any opinion as to the invariable fidelity of individual Popes. If Agatho meant more than this, he was, said Bossuet, mistaken in a question of fact. His statement must be set beside that of Leo II., who affirmed that Honorius, “instead of suppressing the flame of heretical views by his apostolic authority, encouraged it by his neglect.”

The immediate successors of Honorius passed over his error and spared his memory. This was natural. For his pontificate was exemplary in other respects; he died in the peace of the Church; he had not acted with evil intentions; nor was he pertinacious in defence of his error; nor did anything in the condition of the Western Church require a public refutation of his error. But in the East it was otherwise. The Monothelites publicly supported themselves under his authority. Accordingly, the Sixth Council felt compelled to condemn Honorius also, as having in all things followed the lines of Sergius and promoted his dangerous teaching. Thus the Council’s reply to Agatho’s letter on the invariability of his See was an announcement that they had condemned his predecessor.

Bellarmino boldly asserts that in any case Honorius’s letters contain no heresy. He only forbade the use of the terms, “one will,” or “two wills” in Christ, a course which, according to the same writer, only shows his prudence. The critical words, “Wherefore we confess one will in our Lord Jesus Christ,” are, as his explanation shows, a reference exclusively to Christ’s human nature. What he meant was that in Christ as man there were not two conflicting wills of the flesh and the spirit.

Bossuet replied that probably Honorius was not heretical in his private convictions. But he very badly instructed the Patriarchs who consulted him; and he secured peace at the price of silence as to the Orthodox Faith. He spoke disparagingly of the teaching of Sophronius, Patriarch of Jerusalem, who maintained the Catholic Truth upon the subject, and favourably of

Cyrus of Alexandria, who propagated the false doctrine. His language suggests heretical explanation. It was most unsuited to the special occasion and the requirements of the Church. It failed to give any definite guidance on the doctrine in question; and, by its vague and general terms, promoted the very error which ought to have been suppressed.

Perhaps the ablest Roman criticism on the contents of Honorius's letter is that of the historian Hefele. It should be read in the form in which he published it prior to the alterations which the Vatican Council forced upon his historical expositions. "Honorius," says Hefele,^[65] "did not grasp the matter aright at the very beginning." He argued briefly but inappropriately that where there is one Person there is only one Worker and therefore only one Will. He said that in our ordinary corrupted nature there are certainly two wills, that of the flesh and that of the spirit, but that the former is only a consequence of the Fall, and therefore could not exist in Christ. "So far Honorius was quite on the right way; but he did not accurately draw the inferences." He ought now to have said: Hence it follows that in Christ, since He is God and man, there exists, together with His Divine Will, only the incorrupt human will. But Honorius kept the human will entirely out of account. He thought that to maintain the co-existence of two distinct wills in Christ would compel the admission of two contradictory wills. He ought to have answered Sergius, You are quite right in saying we must not ascribe two contrary wills to Christ; but, nevertheless, there are in Christ two wills, the divine and the incorrupt human.^[66] Instead of which Honorius asserted: "We confess one will of our Lord Jesus Christ." Hefele, even after the Vatican decision, felt constrained to describe this statement as "the unhappy sentence which, literally taken, is quite Monothelite."^[67]

Hefele also was unable to accept the excuse for this language, proposed by Honorius's immediate successor, to the effect that, being consulted only on the manhood of Christ, there was no occasion to speak of anything else than the human will. This interpretation Hefele characterises as *suavior quam verior*. For it is simply untrue that he was consulted only on the contents of Christ's human will. Sergius did not ask whether we ought to acknowledge in Christ a will of the flesh and a will of the spirit. He asked nothing at all on this subject, but asserted that in Christ there can be only one will. Hefele's conclusion accordingly was that Honorius encouraged heresy by enjoining silence on the orthodox expression, "two energies," and

still more by the unhappy expression, “We confess one will in our Lord Jesus Christ.”^[68]

But even then, Hefele is constrained by his historic insight to recognise that the Sixth Ecumenical Council thought much more seriously of Honorius’s errors than Hefele himself does; especially as controlled by the Vatican Council. After recalling the association of Honorius with Sergius and others, and the exact language of the condemnation, Hefele says:—

“From all this it cannot be doubtful in what sense Pope Honorius was anathematised by the Sixth Ecumenical Council, and it is equally beyond doubt that the Council judged much more severely respecting him than we have done.”^[69]

Into the significance of this difference of judgment Hefele does not enter. But apart from all enquiry whether the estimate of an Ecumenical Council outweighs that of an individual theologian, apart from the question of the accuracy of their decision, there lie the theological principles which this severity of judgment on a papal utterance involved. Such condemnation obviously assumes a certain conception of the value and authority of papal decisions. Hefele said that “It is in the highest degree startling, even scarcely credible, that an Ecumenical Council should punish with anathema a Pope as a heretic.” And on Ultramontane presuppositions so it is. Does not this, together with the evident difficulty which a modern Romanist experiences in bringing himself to accept this Ecumenical decision, betray a singular deviation from the principles of an earlier age? That which seems to-day “in the highest degree startling, even scarcely credible,” did it appear in that light to the age in which it was decreed? Did the startled representatives of the Apostles shrink away in silent amazement at their own audacity, abashed before the horror of the Catholic world? Or did not the Pope of the period assent to their decrees as being in no way conflicting with Catholic principles?

4. A fourth explanation of the fact has been proposed. It is acknowledged that Honorius was condemned, but asserted that he was not charged with heresy, but only with imprudence.

This was the theory of Father Garnier, the Jesuit, editor of the *Liber Diurnus*. An admirable summary of his opinions is given by Turmel in his *Histoire de la Théologie Positive*.^[70]

Garnier read the Council's sentence that Honorius "followed the false doctrines of the heretics." This means, says Garnier, that he failed in courage to oppose them. If Honorius was declared excommunicated and anathematised, this only meant that he had made himself congenial to heretics by imposing silence on certain expressions, not that he had sanctioned heretical ideas. If the Council ordered his letters to be burnt, as tending to the same impiety as those of Sergius, this did not mean that they were necessarily heretical. A writing may tend to impiety by its omissions just as much as by its positive assertions. Garnier then faced the great difficulty that the Council proclaimed Anathema to Sergius and to Honorius.... Anathema to all heretics. Anathema to all who have taught or teach one will and one energy in our Lord Jesus Christ. Surely, this time, Honorius is included among the heretics. Garnier is quite equal to the occasion. Granted that the Pope was anathematised simultaneously with the Monothelite, yet it does not follow that the motive of his condemnation was the same. Garnier, therefore, says Turmel, closed the Acts of the Sixth Ecumenical Council with the conviction that Honorius was nowhere condemned for heresy, but simply for his imprudence.

The theory of Garnier, says Turmel, has met with an approval in the theological world, which has only increased with the passage of time. It became the favourite defence of Honorius down to the eve of the Council of the Vatican.

[51] Rosière, xxxix.

[52] *Ibid.* xviii.

[53] *Ibid.* cxiii.

[54] *Ibid.* cxiii.

[55] Rosière, cxiv.

[56] *Ibid.* xlix. lvii.

[57] *Ibid.* lx. lxi.

[58] *History of the Councils*, i. p. 181. (Engl. trans.).

[59] *Works*, V. xvii. p. 67.

[60] Turmel, *Hist. Théol. Positive*, p. 315.

[61] Bossuet, t. xxi. p. 76.

[62] Turmel, *Hist. Théol. Positive*, p. 76.

[63] Turmel, *Hist. Théol. Positive*, p. 317.

[64] Turmel, *Hist. Théol. Positive*, p. 32.

[65] *History of the Councils*, p. 32.

[66] *History of the Councils*, p. 36.

[67] *Ibid.* p. 54.

[68] *Ibid.* p. 58.

[69] *History of the Councils*, p. 184.

[70] Page 317.

CHAPTER IV

THE SCHOLASTIC PERIOD

FROM the case of Honorius we may pass clean away to *the Scholastic period*, when the great systematic theologians were gathering into consolidated form the developments of the Middle Ages. Six hundred years have elapsed since Honorius was condemned by the Episcopate. The relation of Papal to Episcopal power has greatly changed. To contrast the theology of the thirteenth century with that of the seventh is to realise a different atmosphere. Many elements contributed to the enormous increase of papal influence. The Mohammedan conquests and the isolation of the Apostolic Churches of the East left the Roman spirit to develop its governmental tendencies, unbalanced, unchecked by those more primitive conceptions which it was the mission of the unchanging East to retain. The calamitous severance between the East and West must have had disastrous influence on the proportionate development of Papal and Episcopal power.

The growth also of the temporal power of the Roman See falls within this period. It is neither our purpose nor permitted by our limits to dwell much on this aspect of papal claims. Yet a reference to the subject is necessary, because the growth of temporal power contributed to the general influences of the Papacy on the mediæval mind, and to no inconsiderable confusion between the secular and spiritual spheres. The learned work of Gosselin, [\[71\]](#) Superior of the Seminary of St Sulpice in 1850, on the power of the Pope in the Middle Ages, shows how naturally the temporal authority grew out of the circumstances of the period.

The temporal sovereignty of the Roman See arose simply out of the necessities of the Roman People, who, being abandoned by the Empire, intrusted their temporal interests to the papal guardianship. Neither Charlemagne nor Pepin were the founders of the temporal sovereignty; they were but its protectors and promoters. It was founded in the legitimate consent of a helpless and forsaken people. But, being once founded, loftier

reasons were gradually created to justify and explain it. Archbishop Fénelon's opinion, which Gosselin quotes and accepts, was that the deposition of princes by the Pope in the Middle Ages was based in the belief that none but Catholics could rule over Catholic nations. Consequently, a contract between Prince and People was implied: their loyalty depending on his fidelity to Religion. Therefore the Church neither made temporal rulers nor unmade them; but when consulted by the people, the Pope decided cases of conscience arising from a contract and an oath of fidelity. But this power to determine when consulted, easily slid into an assertion and a claim of a loftier character. The double effect of excommunication on the religious and the temporal status of the victim naturally led to endless confusion: it exalted the possessor of this two-fold power to a height which earlier ages would have considered simply amazing. It was a principle universally admitted in the time of Gregory VII. that excommunication entailed the loss of all civil rights. Consequently, says Fleury, when Gregory VII., adopting novel maxims, and carrying them to greater lengths, openly asserted that, as Pope, he had the right to depose all sovereigns who were rebellious to the Church, and grounded these pretensions on the power of excommunication, his opponents had no defence to make. Conceding the principle that excommunication involves temporal results, Gregory was invincible. But the consequence was a vast extension of the papal authority.

And of course this vastly extended authority affected the weight of every papal claim. Gosselin's study of the temporal power of the Papacy is exceedingly interesting as an illustration of development. It shows how easily developments may be defended on theological theories with which those developments had really nothing whatever to do. It shows how little we can trust ultimate developments merely on the ground of their existence; as if prevalence and legitimacy were invariably one and the same. It shows the insecurity of assuming that the theories by which developments are supported are necessarily the causes by which they were produced.

The Episcopate still retained in the year 1300 its dignity, as the ultimate court of appeal when in Council assembled; but the Papacy had made gigantic strides from the conditions of its tenure in the Cyprianic age. The Vincentian test of Catholic doctrine by identity with the past was being exchanged for submission to a living authority in Rome. The ancient appeal

to the Universal Church was being exchanged for a theory which identified the Roman Communion with the Catholic Church. A strong and dangerous tendency had arisen to substitute *à priori* conceptions of the appropriate for appeal to ancient facts. Speculative theories of ecclesiastical principle were being made a substitute, in Scripture reading, for real interpretation. Theories were read into apostolic utterances from which they could by no critical ingenuity be derived.

The greatest theologian of the Roman Church, St Thomas Aquinas, is an embodiment of mediæval theories of papal claims. He died in 1274. The treatise, *De Regimine Principum*, whether his or not, was universally ascribed to him in former days, and possessed for many centuries the weight of his name and authority. It represents, at any rate, the prevailing mediæval view. By an obvious misuse of the metaphor that the Pope is the Head of the Church, it draws the inference that from the Head all understanding descends to the Body. In the Pope is the plenitude or fulness of all grace; for he alone confers plenary indulgence on all sinners, so that the words originally applied to Christ are also applicable to him: “of his fulness have all we received.” Certainly those who accepted habitually this view were being prepared for the conclusion that the Church was the passive recipient of the Pope’s infallible utterances.

And yet it by no means follows that St Thomas Aquinas drew the infallibilist inferences, still less that he taught the Vatican doctrine. It is acknowledged by a recent Roman theologian^[72] that while the theology of the Middle Ages on the primacy attained in him its climax, yet he has not developed the doctrine systematically. In point of fact, from an infallibilist standpoint, he still leaves much to be desired. He taught that “we must not believe that the governor of the Universal Church should wish to deceive anybody, specially in those matters which the whole Church receives and approves.”^[73] And he argued from this in behalf of the validity of indulgences which the Pope preached and caused to be preached. But this passage of Aquinas obviously admits of more than one construction. It is general and vague. It does not necessarily ascribe to the Pope any Infallibility at all. It affirms that it would be wrong to credit the Pope with a desire to deceive. It infers that indulgences possess validity because the Pope proclaims them, but also because it is a matter which the whole Church receives and approves. The infallibilist writer Schwane^[74] urges

that we must not infer from the phrase “which the whole Church receives” that the Pope’s Infallibility depends on the Church’s consent. But it seems perfectly clear that to St Thomas’s mind the reception and approval by the whole Church of the doctrine in question was precisely that which gave stability to the papal utterance about it. He does not write as if the Church’s consent was a necessary sequel to a papal decree. In point of fact, if this were so, any reference to the Church’s consent might seem superfluous, since it could add nothing to the validity of the Pope’s instructions. But in Aquinas’s argument for indulgences the elements are two: the Church’s reception and approval of the doctrine, and the papal utterance. And these are mutually supporting.

Elsewhere Aquinas says:—

“If any one rejected a decision after it had been made by the authority of Universal Church, he would be considered a heretic. And that authority chiefly [principaliter] resides in the Supreme Pontiff.”^[75]

But the exact force of his language is among his interpreters a matter of dispute.

Bossuet held that the language of St Thomas on Papal Infallibility is capable of a construction not widely different from that of the School of Paris.^[76] At any rate the idea of an Infallibility completely independent of any endorsement by the consent of the Church is foreign to his mind. If, however, in spite of this the Ultramontane claims him still, then appeal must be made from St Thomas to the Fathers of an earlier period.^[77]

The value of St Thomas’s theological inferences on the subject has been challenged within the Roman Church on the ground that he relied upon falsified authorities. Pope Urban IV., intending to assist Aquinas’s studies, sent him a collection of assorted extracts from the Fathers, calculated to refute the errors of the Gentile world. Aquinas utilised this collection, confessedly, says Schwane,^[78] without much critical endeavour to sift the true character of the extracts. The importance of the passages may be gathered from the fact already mentioned that the theologian Melchior Cano, contemporary of the Council of Trent, considered them to be the strongest evidence from the early Church in behalf of Infallibility. Now it is

admitted that this collection of extracts is not genuine. “It appears,” says Schwane, himself an Ultramontane, “that the compiler permitted himself to add here and there explanations.” Other passages he “developed.” Schwane contends that he has not absolutely falsified any; but admits that he ascribed to St Cyril words which cannot be found in the writings preserved to us. Schwane suggests that, possibly, for all that, they might be genuine. Turmel is much less sanguine about this possibility. That Aquinas utilised his authorities in all sincerity is indisputable. It is also indisputable that he was deceived. This was urged very forcibly by Janus and Gratry before the Vatican Decisions.

Some maintained that he would have arrived in any case at the same conclusion. Others said that inferences from falsified premises mistaken for the faith of saints awaken serious doubt as to their validity. It was also urged, and probably with truth, that these extracts were not the basis of his doctrine on the primacy. Still it was felt that they contributed to advance ideas. It is an unwholesome pedigree, especially when a Roman theologian calls these forged authorities the strongest passages in the patristic evidences.

[71] Translated by Kelly of Maynooth, 2 vs., 1853.

[72] Schwane, *Hist. Dogm.* v. p. 321.

[73] *In Sententiis*, 4 Disc. 20, a. 17.

[74] *Hist. Dogm.* v. p. 321.

[75] *Summa*, 2, 2, Q. 11, a. 2, ad. 3.

[76] Bausset, *Hist. de Bossuet*, ii. p. 399.

[77] Bossuet, xxi. p. 494.

[78] *Hist. Dogm.* v. p. 333.

CHAPTER V

THE AGE OF THE REFORMING COUNCILS

THE development of theories of papal power may next be traced in the fourteenth and fifteenth centuries. Pursuing the method adopted hitherto, we will endeavour to describe the facts as objectively as possible, and then to relate the criticisms to which they have given rise within the Roman obedience.

1. With the fourteenth century (1305) the Popes transferred their residence from Rome to Avignon. There they continued for seventy years. It was to the papal prestige a period of unmixed calamity. The authority of the Church was subordinated to France. Rome made numerous overtures to secure the Popes' return. Europe at large was jealous of the French preponderating influence; and France was naturally reluctant to lose its ascendancy.

But the "Babylonish Captivity of the Papacy," with its inevitable effect on theories of papal power, was to be followed by a worse disaster: the Great Schism of forty years (1378–1417). On the death of Gregory XI. in 1378 the Cardinals had before them a great alternative: either to elect an Italian and so secure residence in Rome, or to elect a Frenchman and so continue the residence at Avignon. The Conclave met in Rome, and was furiously beset by magistrates and people, demanding a Roman or at least an Italian Pope. External pressure resulted in a hurried election and the production of Urban VI. The Cardinals declared him canonically elected and treated him for some months as actual Pope. Then, under pretext that they had acted under compulsion, partly, it is said, disgusted by the new Pope's brutality, many Cardinals fled from Rome, declared their election void, and appointed Robert of Geneva Pope, as Clement VII. Men have enquired, men still enquire, how should this double election be esteemed? Which was the genuine Pope? Was the election of Urban canonical? Was it the result of intimidation? If the latter, does the subsequent

acknowledgment by the Cardinals cancel irregularities? Or was Clement the real Pope?^[79] This is one of the problems of history.

The historian Pastor sides with Urban VI.^[80] The pretext that he was elected under compulsion will not hold for a moment; for all the Cardinals took part in his coronation, and assisted afterwards in his ecclesiastical functions. They gave him homage as Pope and proclaimed him to the world. Catherine of Sienna told them plainly, “If what you say were as true as it is false, must you not have lied when you proclaimed him lawful Pope?”^[81] In any case Christendom was now divided into two obediences. This lasted for forty years. The most learned canonists differed on the question which of the two was the Vicar of Christ. Distinguished teachers and saintly people were found on either side, in equally good faith; and a Roman writer declares himself unable to characterise either with the title of Antipope.^[82] Nations were divided, so were cities and universities, into Urbanists and Clementines. Urban and Clement both died, but each received successors. It looked as if Christendom might witness a double headship becoming part of the permanent constitution of the Church. It was the glory of France, and, in particular, of the famous University of Paris, then at the height of its power, to intervene and take steps in behalf of unity. It was now A.D. 1400. The Avignon line was now represented by Peter de Luna, entitled Benedict XIII.; the Italian line by Angelo Corario, entitled Gregory XII. Christendom was scandalised by their mutual excommunications.

The state of the Church was deplorable. Gregory asserted that as Pope he was above law; Benedict that no appeal from a Pope was permissible.^[83] This, says Bossuet, was the first time in Christendom that a Pope ventured expressly to condemn all appeals from his authority.^[84] A recent historian of the Papacy says:—

“The amount of evil wrought by the Schism of 1378, the longest known in the history of the Papacy, can only be estimated when we reflect that it occurred at a moment when thorough reform in ecclesiastical affairs was a most urgent need. This was now utterly out of the question; and indeed all evils which had crept into ecclesiastical life were infinitely increased. Respect for the Holy See was also greatly impaired, and the Popes became more than ever dependent on the temporal power,

for the Schism allowed each Prince to choose which Pope he would acknowledge. In the eyes of the people the simple fact of a double Papacy must have shaken the authority of the Holy See to its very foundations. It may truly be said that these fifty years of Schism prepared the way for the great Apostasy of the sixteenth century.”^[85]

Through all this crisis, the Sorbonne, the theological faculty of the University of Paris, was the strenuous advocate of the doctrine that the supreme authority in Christendom was the Council, not the Pope. They declared that things were come to such a pass, through the Schism, that on all sides men did not hesitate publicly to affirm that it was purely indifferent whether there were two Popes or twelve. Gerson, the celebrated Chancellor of the University of Paris, reassured men by asserting that the ultimate authority in Christendom was the entire Church and not the Pope. This teaching implies a denial of Papal Infallibility: and with this teaching the entire Church in France was identified.

The perplexity of the situation forced upon men’s attention certain neglected aspects of ecclesiastical truth. It compelled them to consider, what resources, apart from the Pope, did the Church possess? The rival Pontiffs scandalising Christendom by their selfish indifference, as it appeared, to the Church’s real interests, challenged reflection on the relation between the Papacy and the Church. Yet where was the authority competent to intervene? Theories of papal power had greatly developed since the age of Honorius. The Pope’s practical ascendancy was very different from that which existed eight hundred years before. Habitual acquiescence in large practical assumptions made it harder now than in earlier times to find the true solution. The problem, therefore, absorbed the gravest attention of the ablest theologians of the day.

The Pope, said Gerson, is removable by his own voluntary abdication.^[86] This was historically exemplified in the case of Pope Celestine, who, while he abdicated the Papacy, is elevated among the saints. And if removable by his own act, he must be also removable by the Church, or by its representative, a General Council. For since he can give his Spouse a writing of divorcement, she must possess an equal liberty. Moreover, no office, dignity, or ministry, exists except for the edification and good of the community. Many cases may arise in which the Church will not be edified

unless the Pope either abdicates or is deposed. There is no contradiction between this principle and the legitimate sense of the injunction—"Touch not Mine Anointed!" If the Greeks were willing to return to unity conditionally on the removal of the existing Pope, Gerson has no hesitation in saying that for the sake of so great a blessing this concession should be made.

From discussion men advanced to action. The two Colleges of Cardinals united, and summoned a Council of the Church to be held at Pisa in 1409. The significance of the Council of Pisa lies in its assumption of superiority over Popes. The trend of several centuries had been the other way. Now the balance of power was asserted and employed. The explicit intention of the Council was the healing of the Schism and the reforming of the Church alike in its head and members.^[87] It declared its action necessary and lawful, and pledged itself not to dissolve until it had effected a real reformation. It discussed at full length the respective claimants to the Roman See; and decided that Peter de Luna and Angelo Corario, named in their respective obediences Benedict XIII. and Gregory XII., were both schismatics, and were hereby deposed. This deposition of Pope by Council was hitherto unexampled.

The Roman See was now declared to be vacant, and then the Council proceeded to fill the vacancy by the creation of a new Pope under title of Alexander V.

It is generally admitted that this creation was unwise because premature. Its success depended on the consent of Christendom. And since neither Benedict nor Gregory would resign, it resulted in a triple obedience. To the Italian and Avignonese lines was now added the Pisan.^[88] Alexander V. vainly denounced those "two monstrous sons of perdition"; and then, after an exemplary pontificate of ten months, died at Bologna, and was replaced by the notorious and unfortunate, Balthasar Cossa, Master of Bologna, who assumed the style of John XXIII. Between these three Popes there followed the routine of mutual anathema and excommunication, which continued to lower the dignity of the Papacy in the esteem of Europe. Thus the Council of Pisa failed to heal the afflicted Church, or remedy the Schism.

In the Council of Constance, 1414, the attempt was made again. Briefly, after numerous struggles John XXIII., Benedict XIII., and Gregory XII.,

were all declared deposed, and eventually this sentence, through the influence of the Emperor Sigismund, prevailed. A new Pope was created in the person of Martin V. The three obediences were reunited, and the peace of the Church restored.

The main interest of this Council, however, lies in its famous declaration. It claimed to be an Ecumenical Council, legitimately assembled with the authority of the Holy Spirit, representing the Catholic Church, having its power direct from Jesus Christ. Accordingly, to its decision in matters of faith as well as in other things, persons of whatever rank, including papal, are subordinate.

“This holy Synod of Constance, being a General Council, lawfully assembled in the Holy Spirit, and representing the Church militant, has received immediately from Jesus Christ a power to which all persons of whatever rank and dignity, not excepting the Pope himself, are bound to submit in those matters which concern the faith; the extirpation of the existing Schism; and the reformation of the Church in its head and its members.”

“Whosoever, be his dignity what it may, without excepting the Pope, shall obstinately refuse to obey the statutes, ordinances, and precepts of the present Council, or of any other General Council lawfully assembled, shall be subjected, unless he repent, to proportionate penance, and punished according to his deserts” (etc.).

2. So far, then, for the details of history. We are next to follow the criticisms of theological schools within the Roman Communion upon the facts. Bellarmine, the Jesuit theologian, was a Cardinal in 1600. While claiming for the Pope a supremacy and Infallibility, in the most uncompromising terms, and with a fulness and clearness hitherto unexampled, he was naturally challenged to harmonise his theories with the facts of the Councils of the fifteenth century.

It was argued that the Council of Constance possessed an ecumenical character. Now either this claim is legitimate or it is not. If it is, we must accept its principles, which affirm that an Ecumenical Council has its authority direct from Christ, and that all, of whatever rank, including papal, are subjected to its decisions. If it is not, then its work in deposing John

XXIII., Gregory XII., and Benedict XIII., and in replacing them by Martin V. is invalid, and cannot be sustained. Consequently, the whole line of Martin's successors is also illegitimate.

Bellarmino denied that Constance was an Ecumenical Council. For, he said, it included only a third of the Church, one obedience out of three. He denied also that its election of Martin V. was thereby invalidated. An assembly may have power to elect, but not to define in matters of faith. Constance possessed exceptional power in an exceptional time. For a doubtful Pope is no Pope at all.

With regard to the ecumenical character of the Council of Constance, Bossuet replied to Bellarmine that his criticism upon it did not go far enough. For the Council described itself as a general Synod assembled in the Holy Spirit, rightly and justly summoned, opened, and enacted. Now this account of itself is either a simple truth, or a blasphemous assumption. Its opponents dare not venture to call it the latter.

It is also quite misleading to say, as Bellarmine does, that the Council of Constance represented only one out of three obediences. As a matter of fact, the vast majority of Christendom was represented there. The adherents of Gregory XII. and Benedict XIII. had by that time dwindled to relative insignificance. The great nationalities, the theological faculties, the religious orders, were all on the Council's side. If insignificant fractions, with Popes of doubtful claims, still remained for a period aloof, this did not seriously affect the claims of Constance to a representative character in Christendom. Still less is it possible that their claim to authority as assembled in the Holy Ghost, and constituting a General Council, can be condemned as a falsehood and a blasphemy.

Bellarmino himself admitted that the Council of Basle decided with the Legate's consent that the Council is above the Pope, which is certainly *now* considered erroneous. Now! echoes Bossuet: that is a sign of novelty. And by whom? By a private theologian. Is, then, the opinion of a private teacher to be set above the unanimous decree of a Universal Council presided over by the Legates of the Apostolic See?^[89]

The argument that these Councils possessed exceptional power in an exceptional time was, according to Bossuet,^[90] refuted by the Councils themselves. No doubt the Assembly of Constance declared its mission to be

the termination of the Schism, and the union and reformation of the Church in its head and members—a temporary work. But it also affirmed that it was the duty of all men of whatever rank and condition, even papal, to submit to the authority not only of this Council, but also of every other General Council lawfully assembled. Thus the supremacy of the Council is asserted to be not a mere temporary expedient to solve exceptional difficulties, but an inherent characteristic of the Universal Church in this representative form of self-expression.

Bellarmino's second main argument against the Council of Constance was that Pope Martin V. never confirmed its decrees. This involved two points: a speculative theory of the nature of papal confirmation; and also a question of fact. Bossuet replied to the speculative theory that confirmation of the acts of a Council did not imply what Bellarmine supposed; for Popes have often confirmed the acts and decrees of their predecessors, which certainly on Ultramontane principles could not be interpreted as imparting to them a validity not possessed before. Confirmation merely meant acceptance, assent. Beyond it lay the further enquiry: What is the inherent value of a Universal Council's decree apart from papal acceptance? Bossuet would answer that question one way, Bellarmine another. And in so doing each would have his followers; for each represented schools of thought within the Roman Communion.

Then as to the question of fact:

Bellarmino's assertion that Martin V. did not accept the decisions of Constance is, according to Bossuet, particularly unfortunate. For Martin V. was, as Cardinal Colonna, present through the sessions of Pisa and of Constance, and influential in passing the Council's claims to be ecumenical and assembled in the Holy Spirit. And yet this Cardinal, without any revocation of this opinion, was elected to the Papal See. Martin's own mind on the authority of General Councils is sufficiently clear. All that Bellarmine found to urge was that Martin said he confirmed what had been done *conciliariter*; that is, says Bellarmine, in the proper way, as Councils should: which he interpreted to mean, after careful examination into facts—a condition which was not fulfilled at Constance. And, therefore, Martin did not intend to confirm this claim.

Bossuet considered that nothing could exceed the feebleness of the argument. The Roman Pontiffs, says Bossuet, have never spoken of the Council of Constance without veneration; have never passed any adverse criticism upon it. Paul V. had its proceedings published by the Vatican, complete, on a level of authority with the Council of Nicea.^[91]

The long struggle of the fifteenth century between two conceptions of Ecclesiastical Authority—that which placed the ultimate decision in the Collective Episcopate, and that which placed it in the solitary Voice—issued, on the whole, to the advantage of the latter. However great the services which the reforming Council rendered to Christendom, and great undoubtedly they were, yet the blunders perpetrated by them, and their ultimate collapse, seriously compromised their rightful claims. The Papacy had learnt lessons it was never likely to forget, and the following period was instinctively a period of self-protection and recovered authority. Wonderful as it seems, even the characters of Alexander VI., Julius II., and Leo X. did not prevent an advance of the papal power over the limits which it occupied in the previous period. None of these individuals asserted their Infallibility. Their interests were elsewhere. Pope Hadrian VI. was successor to Leo X. As Professor of Theology at Louvain, he published the following observations on Infallibility:—

“If by the Roman Church is understood its head, that is the Pope, it is certain that it can err, even in those matters which concern the Faith, by publishing heresy in its decisions and decrees. For many Roman Pontiffs have been heretics. Of recent times it is reported that Pope John XXII. publicly taught, declared, and commanded to be believed by all, that purified souls do not have the clear vision of God before the Final Judgment.”

Bossuet calls the reader's attention to Pope Hadrian's view of the Papacy.^[92] How clearly he taught, and held as indisputable, that the Pope could be a heretic not only in his private capacity, but in his official decisions and decrees! How emphatically he rejects what his predecessor “publicly taught, declared, and commanded to be believed by all!” Whether any explanation of the teaching of Pope John XXII. can be attempted is not to the point. In any case the fact remains that Hadrian VI. held these ideas of Papal Fallibility. And if he wrote this as a theologian, before his elevation

to the Papacy, there is no trace that he ever retracted his doctrine, as he must have done had he come to think it erroneous. On the contrary, he published it after becoming Pope (1522).

[79] Christophe, *Histoire de la Papauté, pendant le XIV. Siècle*, iii. p. 36.

[80] Pastor, i. p. 119.

[81] *Ibid.* i. p. 131.

[82] Christophe, *Histoire de la Papauté, pendant le XIV. Siècle*, iii. p. 37.

[83] Bossuet, *Defense*, i. p. 567.

[84] *Ibid.* ii. p. 325.

[85] Pastor, i. p. 142.

[86] Gerson, *De Auferibilitate Papæ ab Ecclesia*.

[87] Bonnechose, *C. Const.* i. p. 40.

[88] Baronius, *Annals*.

[89] Bossuet, t. xxi. p. 57.

[90] *Works*, t. xxi. p. 551.

[91] Bossuet, *Works*, t. xxi. p. 53.

[92] *Works*, i. p. 37.

CHAPTER VI

THE COUNCIL OF TRENT

THE next crisis between papal and episcopal theories of authority is reached in the *Council of Trent*. The primary purpose of that Assembly was to reply to those without, rather than to determine opinions within the Roman Communion. But the effort to formulate their own convictions disclosed sharply contested theories within. The conflict of opposing schools became particularly conspicuous when the Sacrament of Orders came up for consideration in November 1562. The century and a half between Constance and Trent had somewhat diminished the impression of the Schism. Teaching on the supremacy of the Council over the Pope was naturally less emphatic now than in those disastrous days. Yet the school which considered the Pope supreme, and that which considered the Collective Episcopate to hold that high position, coexisted within the Roman Body; just as the entire previous development would lead us to expect. In the Council Chamber of Trent, from the lips of Bishops, both theories are sharply stated.

On the papal side it was claimed that consecration to the Episcopate confers orders but not jurisdiction. Jurisdiction is the authority to govern the Christian flock. And it was argued that a Bishop does not necessarily possess jurisdiction. He possesses jurisdiction when the flock has been assigned to him. But, said the papal advocates, it is the Pope who gives to the Bishop his flock. Consequently, it is the Pope who confers the jurisdiction.

The real basis of this theory is the opinion that all jurisdiction was originally conferred by Christ upon St Peter; that it belongs exclusively to him and his successors; that the plenary jurisdiction of St Peter was transmitted, but not that of the other Apostles. The papal advocates in the Council of Trent frankly stated their anxiety to protect the papal power. If the Pope in conveying jurisdiction was only instrumental, then the plenitude

of power was not really his. But whatever the Bishops are, the Pope must be the source of all authority. It was even asserted that Bishops are superior to priests not by divine right, but by papal permission. The Pope, it was declared, had power to deprive, transfer, or depose the Bishops at will, as might seem to him expedient for the Universal or the local Church. So, at least, a Bishop said. We shall see this theory bearing fruits in France in the days of Napoleon. Another Bishop even proclaimed that our Lord baptized St Peter only among the Apostles, while Peter baptized the rest, and created them Bishops of the Church.

On the other side, the theory of supreme episcopal right, commission, and authority was firmly and widely maintained. Consecration, it was affirmed, conferred jurisdiction as well as orders. Indeed jurisdiction is essential to the episcopal function; and consecration cannot confer an inadequate mutilated power. In jurisdiction we should distinguish the capacity and its exercise. The capacity is bestowed direct by Christ in consecration; the particular sphere of its exercise is accidental and subordinate. Appeal was made to the Council of Constance in support of this. Accordingly, Bishops are Vicars of Christ. They are also successors of the Apostles. All the Apostles received jurisdiction direct from Christ. The Bishops are their true successors, therefore their right is divine. The divine right of the Pope can be rested on no other ground than on his succession to St Peter. By an equal reason the Bishops are successors of the Apostles. Christ did not only institute Peter and his successors, but also the Apostles and theirs. In the primitive Church, so Bishops argued at Trent, the papal theory did not exist. For Titus and Timothy were appointed by St Paul, and others by the other Apostles, without any authority from or reference to the Supreme Pontiff. Indeed the Keys of the Kingdom of Heaven were given to St Peter, but not to him alone.

Between these conflicting schools others endeavoured to mediate. A member of the Council thought it almost sacrilege to go on discussing the Pope's authority when they had no mandate so to do. Another pleaded that no discussion should be held on episcopal jurisdiction. The condemnation of either opinion would be the repudiation of many accredited teachers. Another deprecated controverted points. What, he exclaimed, will the heretics say when they hear that we, after fifteen hundred years, are enquiring by what right Bishops exist? These questions should be avoided

as encouraging heretics and scandalising Catholics. The proper theme for the Council's consideration was rather, How is the episcopal office to be rightly discharged? This is what the world expects the Council to decide. Thus he recalled them to practical reform. Vainly did the presiding Legate remind them that the Council was called to condemn heretics, not to discuss matters controverted among Catholics.

But party feeling was very strong. A Spanish Bishop ventured to observe that the Canon of Nicaea (4) on Episcopal consecration made no reference whatever to the Pope. This created an uproar. The Italian Bishops shouted, "Anathema, burn him, he is a heretic."

The meeting closed in indescribable confusion. When the subject was resumed, on the following day, the Legates expressed themselves firmly resolved to maintain the dignity of the Council, even if necessary by dissolving the Assembly. The Cardinal de Lorraine, head of the Bishops from France, supported the Legates. He is said to have observed that if such an insult had been offered to a French Bishop, he would have left the Council with all the French contingent and returned to France. Cardinal de Lorraine made no secret of his adherence to the principles of the French Church.

"I am a Gallican," he said in a letter to Rome, "brought up in the University of Paris, in which the authority of a General Council is esteemed superior to that of a Pope, and they who hold the contrary are condemned as heretics. In France the Council of Constance is throughout considered Ecumenical."^[93]

It is said that if the question had been pressed by the presiding Legates to a division, they could have obtained a majority. But they could not have obtained, on the disputed points, anything approaching unanimity. Accordingly, the controversy on the source of episcopal jurisdiction was left finally undetermined. So far as the Decisions of Trent are concerned there was nothing on this matter to prohibit retention of the ancient view.

There was an anxiety in Rome not to push things to antagonism and division. An historian of the Council says that the Pope advised the Legates that nothing should be defined without the Bishops' unanimous consent:^[94] a maxim to which constant appeal was made from the Age of Trent to that of the Vatican.^[95] The appeal was natural, for this maxim harmonised with

the principle that the ultimate decision in faith rested with the Collective Episcopate.

Since Spanish and French opposition in the Council of Trent frustrated any endorsement of Italian theories of jurisdiction, it is clear what would have been the result of any attempt to make decrees on papal authority. No further addition was made in this direction. Belief in the supreme authority of the Council in matters of faith was left, so far as Trent was concerned, exactly where it was before. It remained the conviction of the Church in France.

The correspondence between Rome and the Legates at Trent has never been published yet. Members of the Council of the Vatican asked permission to see it, but Theiner, librarian of the Vatican, was not allowed to show the documents. Lord Acton^[96] says that Theiner deemed the concealment prudent.

Whether that opinion is correct or not, and it has been disputed, what is certain is that if a comparison be made between the relation of Pope and Council at Trent and at the Vatican, a vast development of papal authority will be found in the later period, and a corresponding diminution of the independent action of the Collective Episcopate. It will be sufficient here to note that at Trent the claims of minorities were respected; that nothing was passed without moral unanimity; that the Bishops framed the regulations by which they were to be controlled; that no methods of procedure were imposed upon them from without; that the Roman Pontiff of that day made no attempt to force new dogmas on large and reluctant minorities. These comparisons were made within the Roman Church, when the later Assembly had shown its character.

^[93] Richerius, *Vindiciæ Gall.* p. 13.

^[94] *Pallavicini*, XIX. ii.

^[95] Cf. Bossuet, xxi. p. 24.

^[96] *Hist. Freedom*, p. 431.

CHAPTER VII

CARDINAL BELLARMINE

NOTHING can better illustrate the development of thought on the papal power after the Council of Trent than the theories of Cardinal Bellarmine. A nephew of one Pope and friend of another, a Jesuit, resident in Rome, a Cardinal in 1600, he strikingly represents the extreme tendencies of the Italian School. He put forth to the world in his volumes of *Controversies* a systematic and elaborated conception of supremacy and Infallibility certainly unsurpassed.

The supremacy of Peter is upheld on the ground that our Lord said to him in the Apostles' presence, "Feed my sheep." In this injunction all sheep must be included. And therefore the Apostles themselves are sheep whom Peter must feed. While the Apostles, it may be admitted, derive their jurisdiction direct from Christ, the Bishops receive it direct from the Pope. Confirmation of this principle is sought in the relation of Moses to the Elders, and also in the monarchical character of the Church's constitution. According to Bellarmine, it is essential to the monarchical idea that all authority reside in one, and from that one be communicated to others. The Bishops are not successors of the Apostles; since the latter were not ordinary but extraordinary and delegated pastors, and as such have no successors at all. From these principles the relation of the Collective Episcopate, or Ecumenical Council, to the Pope may be readily imagined. Existing theories as to Papal Infallibility are grouped by Bellarmine as four. First, that the Pope, even with an Ecumenical Council, can be a heretic and teach heresy, and has actually so done. This is the opinion of Lutheran and Calvinist. Secondly, that the Pope, if he speak apart from an Ecumenical Council, can be a heretic and teach heresy, and has actually done so. This is the Parisian view, held by Gerson and Pope Hadrian VI. Thirdly, that the Pope cannot possibly, under any circumstances, be a heretic nor teach heresy. For this opinion Bellarmine only quotes one writer (Pighius), of whom Bossuet observes that nobody endorses his absurdities. Fourthly, that

the Pope, whether he can be a heretic or not, cannot define anything heretical to be believed by the whole Church. This Bellarmine calls the most prevalent opinion of nearly all Catholics. He admits that various advocates of it interpolate various conditions of its exercise, such as consultation with his advisers, mature reflection, and so forth. But he thinks that they would deny that these conditions can ever be unfulfilled; on the ground that God who designs the end must also arrange the means.

Of these four opinions Bellarmine proceeds to pronounce the first heretical. The second he will not venture to term actually heretical, because its advocates are, so far, tolerated by the Church. This audacious statement should be read in the light of the entire previous history of Christendom. Yet Bellarmine holds it erroneous, and proximate to heresy; and that it might deservedly be declared heretical by a decision of the Church. The third opinion he pronounces probable, but not certain.

The last is most certain, and to be taught. He supports it by asserting that no appeal is ever permissible from a Pope to a General Council; that not only the Pope himself is inerrable in matters of faith, but even the particular Roman Church in Italy cannot err. This opinion at least is pious and most probable; although not so certain that the contrary can be called heretical. But, even with this, Bellarmine does not feel that his wonderful construction is yet secure. Accordingly he asserts that it is probable, and may be piously believed, not that the Pontiff cannot officially err, but even that as a particular individual he cannot be a heretic, or pertinaciously believe anything contrary to the faith. This appears to Bellarmine essential to protect the Pope's official Infallibility. For how, he asks, could a Pope, if inwardly heretical, strengthen his brethren in faith and teach the truth? No doubt the Almighty could extort a true confession from the heart of a heretic just as He put true words in the mouth of Balaam's ass. But, to Bellarmine's reflection, this procedure would be violent, and hardly in accord with that Providential Wisdom which sweetly disposeth all things.

After this elevation of papal authority to the highest height, there necessarily follows a corresponding depreciation of the value of the Collective Episcopate and its utterances in Council assembled. General Councils, before the Pope confirms their decisions, may err, unless the Fathers in defining follow the Pope's instructions. He is aware that the School of Paris, and all who maintain the supremacy of the Council over

the Pope, will reject this. The Parisian Doctors hold that a General Council cannot err even apart from papal confirmation. But if it could not err then it would be final; and if so, where would be space for papal confirmation? Accordingly Bellarmine could not possibly endorse their view. He knows that his opponents will retort: General Councils anathematise those who contradict; they do not restrain their anathemas until the Pope has confirmed them. Bellarmine answers: They must certainly mean that their anathemas are conditional on the Pope's endorsement!

What forces Bellarmine to these eccentricities is his opinion that no authority was given by Christ to the Universal Church but only to St Peter. Consequently, if the General Council represent the Universal Church, yet it cannot possess what the entire Body did not receive. To Bellarmine's view the Supreme Pontiff is simply and absolutely above the Universal Church, and above the General Council; so that no judgment on earth can be superior to his. If the objection be urged that on this theory the Church is left in case of trouble without a remedy: Bellarmine answers, No; there is the divine Protection. We may pray God to convert the Pope, or to take him away before he ruins the Church.

It is certainly one of the ironies of history that the volume of *Controversies*, in which these theories are contained, was placed on the Index by Pope Sixtus V. as deficient, in certain respects, in the regard which a Catholic owed to the Holy Father. In the curiously self-laudatory pages of Bellarmine's *Autobiography* there still survives his own comment on this act of papal authority. He informs us that in the year 1591 Gregory XIV. was reflecting what he ought to do with the Vulgate edited by Sixtus V. There were not wanting men of importance who held that the use of this edition ought to be publicly prohibited. But Bellarmine suggested, in the Pope's presence, that correction was better than prohibition. Thus the honour of Pope Sixtus would be saved, and the book produced in an emended form. He advised, therefore, a republication after correction, with a preface stating that in the first edition various errors, typographical and other, had, through haste, crept in. Thus, says Bellarmine, he did Pope Sixtus good in return for evil. For Sixtus placed Bellarmine's work on *Controversies* upon the Index of Prohibited Books, because it rejected the direct dominion of the Pope over the whole world. But, when Pope Sixtus

was dead, the Congregation of Sacred Rites ordered the prohibition of Bellarmine's work to be erased.^[97]

The theories of Roman theologians made great advances in the sixteenth century. But it is curious to note that some of the most extreme are yet considered inadequate and defective by papal writers since the Vatican Decrees. Torquemada was a theologian devoted to the enhancement of the Apostolic See.^[98] For him the plenitude of power existed in the Pope alone. Was it not written there shall be one fold and one shepherd? For him all the other Apostles derived their jurisdiction from St Peter. And, accordingly, all Bishops derive their jurisdiction immediately from the Pope, and not from Christ. But notwithstanding all this, Torquemada does not come up to Ultramontane requirements. The German infallibilist, Schwane, is not satisfied with him as an advocate of Papal Infallibility.

“Infallibility of the Pope,” says Schwane, “could not be passed over in silence by a papal theologian as eminent as Torquemada. Nevertheless, he has not realised this doctrine in all its purity.”^[99]

Torquemada, it appears, had such regard for papal freedom of will that he could not deny the possibility of its erroneous exercise, even in the discharge of the highest papal function. But while admitting that the Pope might err in an official utterance to the whole Church, he evaded the disastrous consequence to the doctrine of Infallibility by affirming that such a misuse of authority would constitute the Pope a heretic, and, as such, *ipso facto*, Pope no longer. Thus he secures the Papal Infallibility by maintaining the self-deposition of any Pope who teaches erroneously.

Schwane remarks acutely enough that Torquemada's defence of Papal Infallibility virtually places the supreme decision not in the Pope but in a General Council of the Church. For it manifestly tends to ascribe to General Councils the right to revise all papal dogmatic decrees, in order to ascertain whether they are heretical or not; whether they proceed from one who is really Pope, or from one who, having taught erroneously, is not Pope at all.

To avoid these dangerous tendencies Torquemada, according to Schwane, ought to have denied the possibility of the Pope's misuse of free will in his *ex cathedra* pronouncements; and this on the ground that the promises of Christ cannot fail to secure their own fulfilment, and must

accordingly override the metaphysical possibility of mistake. This theory of the unconditional character of Christ's promises, of the almost mechanical necessity of their realisation, irrespective of the human will and human compliance, constantly meets us in recent Ultramontane developments. Torquemada, however, knew nothing about all this, or did not see his way to accept such theories. There remain, therefore, grave discrepancies, according to recent Roman writers, between this papal theologian of the sixteenth century—papal though indeed he was,—and the doctrine as it shaped itself in the Vatican Decrees. This inadequacy of its defenders, as judged by the standard of the nineteenth century decision, is a not unimportant feature in the doctrine's development.

[97] Cf. Döllinger und Reusch, *Die Selbstbiographie des Cardinals Bellarmin*, p. 38, and notes pp. 106–111.

[98] Ghilardi, *De Plenitudine Potestatis*, R.P. p. 15.

[99] *Hist. Dogm.*, v. p. 377.

CHAPTER VIII

THE SORBONNE

DURING the seventeenth century Ultramontanism found its principal obstruction in the Church of France, its principal support in the Jesuit Society. The progress of the theory roughly corresponded with the vicissitudes of this powerful community. The League against the succession in France exchanged monarchical and Gallican sentiments for Republican and Ultramontane. The theories of political independence and ecclesiastical absolutism flourished for a time. Ultramontanism even controlled for a time the very stronghold of Gallican doctrine—the Sorbonne itself. But this cannot be rightly regarded as anything more than a transient politically affected phase. The Sorbonne returned to its ancient loyalties. It possessed no longer the same authority and weight as in the disastrous days of the great Schism; but it still imposed a powerful check on the theories of the Ultramontane. Its influence was often compromised, sometimes counterbalanced, by the Jesuit Society which, supported by an Italian Queen Regent during the minority of Louis XIII., was enabled to effect gradual encroachments upon the ancient University, by founding colleges and, ultimately, granting degrees, even in Paris itself.^[100] Cardinal Richelieu, rebuilder and lavish patron of the Sorbonne though he was, could, nevertheless, for political reasons, encourage the Jesuit foundations; on the pretext that rival educational establishments sharpened the wits of both. Thus the first half of the century witnessed the perpetual efforts of the Sorbonne to strengthen the theological principles of the French Church, and to exclude the Ultramontane, thwarted or weakened by the influence of the Jesuit exercised through the Palace. Jesuit confessors directed the Royal consciences, and made them inaccessible to the protests of the Sorbonne. Again and again theological discussions were suspended or suppressed by royal authority, at the secret instigation of this powerful community. A notable instance is found in the experiences of the celebrated Edmond Richer, the learned Syndic of the Sorbonne, in the opening years of the

seventeenth century. Richer had been in early youth a member of the League, and, as such, a Republican and an Ultramontane; but his matured reflections led him to embrace the historic principles of the Church of France, and to become a truceless foe of the Jesuits, and of the Ultramontane opinions with which they were at the time identified. In the year 1606 he distinguished himself by republishing the works of Chancellor Gerson. In 1611 the opposing School proposed for discussion at a Dominican Convent in Paris, before an illustrious assembly, including royal personages, the Papal Nuncio, and Cardinal du Perron, the following thesis:—(1) That the Roman Pontiff cannot err in faith and morals; (2) that the Council is in no case superior to the Pope.^[101] Richer, as Syndic of the Sorbonne, protested. The forbearance of the Gallicans was sorely tried by such contradictions to the principles of their fathers. Ultimately it was arranged that a member of the Sorbonne, Claudius Bertin, should advocate the Gallican side. Bertin began with the syllogism: Whatever contradicts an Ecumenical Council is heresy. Your thesis—the Council is in no case superior to the Pope—contradicts the Ecumenical Council of Constance, therefore it is heresy. At this the Papal Nuncio grew visibly indignant. Bertin's opponent mildly answered: "Do not say this assertion is heretical; it is enough to call it misleading, erroneous." He disclaimed any desire to offend the Faculty of Paris. He only desired to ascertain the truth. And where in all the world could this question be discussed if not within this most famous University? Here Richer, the Syndic, interposed. The Sorbonne had always held the Council of Constance as Ecumenical, and, accordingly, that its decision on the supremacy of the Council over the Pope was a matter of faith.

The discussion was resumed, but ultimately, at Cardinal du Perron's request, and evidently in the Ultramontane interests, brought to an abrupt conclusion. The Parliament of Paris followed this up with an injunction prohibiting the Dominicans from disputes on the Pope's Infallibility.

The Jesuits were so enraged by Richer's action that from that day forward they never gave him peace. They were powerful enough to secure his dismissal from office. But he was a person more easily dismissed than suppressed. He wrote a pamphlet on ecclesiastical and political power, to show that the Church is a monarchy, but its government an aristocracy; for neither the Pope nor the other Bishops can decide matters of importance

without the guidance of a Council. The infallible authority in matters of faith rests, he taught, with the Universal Council as representing the Universal Church. This work offended Cardinal du Perron, who could not see how proper regard for monarchy was consistent with the view that aristocracy was naturally the highest form of government.^[102] Meanwhile Richer retired contentedly into studious quietude, where he composed his great work on the Councils, published after his death. But his enemies could not let him rest. He says that he could not venture beyond the gates of the College lest the satellites of the Roman authorities should fall upon him.^[103] From the treatment measured out to him he sees that the Roman Curia is resolved to obliterate the ancient doctrine of the School of Paris, and to allow no man to speak of the true government of the Church, or the independence of the State, without branding him as a heretic or schismatic.^[104] It is said that Richer was forced by menaces to sign a recantation of his views of papal power. Whatever he signed, the independent statements of his own literary *Testament* remain to show his real convictions.

“I, Edmond Richer ... in the 53 year of my life ... seated in my library, sound in body and mind, write this latin codicil in the form of a Testament.”^[105]

He then appeals to his defence of the ancient principles in the Disputations of 1611; and recalls the persecutions he has undergone: how it was said that a vow to assassinate him would be most acceptable to God, or that if he were snared and sent to Rome he would soon find out whether the Pope possessed the temporal sword.^[106] Men do not realise, says Richer, how grievously these theories compromise the Apostolic See. For more than twenty years he has been beset by enemies. And yet they are the true principles of Church government, transmitted by the Fathers, restored in the Councils of Constance and Basle, which are being attacked through him.^[107] The example of Richer is intended as a warning to frighten the theologians of Paris from maintaining the doctrine of their fathers. Accordingly whatever his malicious opponents may contrive at this day, or may hereafter contrive against him, he prays that he may have the grace to forgive and the fortitude to resist. In this unhappy age in which truth is

diminished among the children of men he registers his emphatic rejection of the theory that the Pope is the absolute infallible ruler of the Church.^[108]

Undoubtedly this was the faith in which Richer died.^[109]

Another instance of the teaching of the French Church occurs in a book by Francis Veron, entitled *The Rule of Faith*, or a separation of those matters which are of Catholic faith from those that are not. Veron was Doctor of Theology in Paris, and died in 1646.^[110] He quotes the doctrine of Trent and Florence. Trent committed him to the recognition of the Roman Church as the Mother and Mistress of all Churches; to the belief that the Roman Pontiff is Peter's successor and Vicar of Christ; and to the duty of obedience to his commands. The Council of Florence described the Pope as Head of the whole Church, and as Father and Teacher of all Christians; and affirmed him to possess a plenary power, such as is recognised in the Acts of the Ecumenical Councils, and in the canons. So much, then, Veron acknowledges as of faith. But nothing beyond this is of faith, because the Church has asserted nothing more. He lays particular stress on the language of Florence, because Greek and Latin were therein met in conclave.

“Accordingly,” Veron’s conclusion is that, “it is not of faith that the Roman Pontiff, in his teaching, whether in a particular Council, or in a Provincial Synod, even if he address the Universal Church, or when, as they say, he speaks *ex cathedra*, supposing him to teach apart from a Universal Council, is the supreme judge of controversies, or is infallible; nor that what is so defined is of faith, unless the conviction of the Universal Church otherwise declare it.”^[111]

According to the doctrine of Trent it is the Church alone whose function it is to determine the true meaning and interpretation of Holy Scripture. No theologian hitherto, says Veron, not even Bellarmine himself, has ventured to assert that the Pope’s Infallibility is of faith.^[112] Bellarmine admits that the theory that the Pope, if he venture to define even as Pope apart from a General Council, may fall into heresy, was held by no less a personage than the theologian who afterwards became Pope Hadrian VI.^[113] Bellarmine admits also that this theory is not heretical, for its advocates are tolerated by the Church. If Bellarmine, nevertheless, labels this same theory proximate

to heresy, this is his individual view and in Veron's judgment unjustifiable. As to further discussion, Veron deprecates it. He writes as a Catholic teacher and not in a scholastic or speculative way.

“Since the Catholic Church teaches nothing concerning this matter, [of Papal Infallibility] neither need I.”^[114] What is true is that whatever issues from so high an authority is to be received with great regard.

^[100] Cf. Jourdain, *Hist. Univ. Paris*.

^[101] Richerius, *Vindiciæ Gall.*

^[102] Letter to Casaubon, *Les Ambassades et Negotiations*, p. 694.

^[103] Richer's *Testament*, p. 3.

^[104] Richerius, *Vindiciæ Doctrinæ Majorum*, p. 2.

^[105] *Ibid.* p. 11.

^[106] *Ibid.* p. 14.

^[107] Richerius, *Vindiciæ Doctrinæ Majorum*, p. 14.

^[108] *Ibid.* 16–17.

^[109] A.D. 1629.

^[110] Ed. Sebastian Brunner, 1857, p. 145.

^[111] Veron. *Regula Fidei*. Ed. Sebastian Brunner, 1857, p. 146.

^[112] *Ibid.* p. 147.

^[113] *Ibid.* p. 147.

^[114] *Ibid.* p. 148.

CHAPTER IX

BOSSUET

THE struggle between the Sorbonne and the Jesuits was no mere struggle between a theological school and a religious community. The universities held, in the theological controversies of those days, a position with which nothing modern exactly corresponds. They were exponents of the religious conceptions of the Church. They derived from it their principles and returned to it their inferences and suggestions. The Sorbonne was not an isolated school of independent theological speculators. It represented, generally speaking, the mind of the Church in France. Of course universities might utter conflicting decisions. But it is peculiarly true of the Sorbonne that it represented the indigenous as opposed to the imported theology of France. While the Ultramontane was Italian in origin, a foreign product, like the Jesuit, and under foreign control, the Sorbonne was typical of the traditions of the Church within the Kingdom. Its sentiments were endorsed by the Bishops. Political incidents occasioned the famous collective expression of the traditional convictions of the French Church in the Assembly of Clergy in 1682. That Assembly arose out of an unexpected collision between Louis XIV. and Pope Innocent XI., in a question of the relation between the Church and the State. The King already possessed over a portion of France the power, fully recognised at Rome, to appoint to vacant benefices and to be recipient of the revenues during a vacancy. But he now sought to make this privilege co-extensive with the realm. The Bishops acquiesced with the exception of two—Pavilion of Aleth, and Caulet of Pamiers. Pope Innocent took their view, and upheld them against their respective Metropolitans. Thereupon Louis XIV. summoned an Assembly of Bishops and of selected Priests who, without hesitation, yielded to the King's desires. The personage selected to preach the sermon at the opening of this Assembly was Bossuet, incomparably the most important in this stage of French theological thought.

The selection testifies to the general conviction. Bossuet was highly valued alike by the King and by the Bishops. But he had a most delicate and difficult task before him. He must preach in a manner, if that were possible, to conciliate the temporal power, the episcopal power, and the papal power at Rome. He must be true to the traditional convictions of the Gallican Church, and yet not alienate the Gallicans from the Papacy, nor, if possible, offend the Pope. He must balance the temporal and spiritual power in such a manner as to satisfy Innocent without alienating the King. And never did Bossuet exhibit greater courage and dexterity.^[115] In his famous sermon, which was on Unity, he described the primacy of St Peter, and the divine selection of the one to be the centre of Unity. He set the occupants of the Roman See very high, but he did not hesitate to speak of occasions when one or two of the Popes had not sustained with sufficient constancy, or had inadequately explained the doctrines of the Faith.^[116] He even mentioned the one whom a Universal Council had condemned. This would be painful to the School of Infallibility, but it was the accepted doctrine of Catholic France. But Bossuet's magnificent conception of twelve centuries of unity, and his strenuous appeal to do nothing by which that record might be broken, or that unity endangered, must have tended greatly to conciliate and set the tone for the subsequent discussions. So far as to his first task—the papal power.

He was no less strong on the power of the Episcopate. The jurisdiction bestowed on Peter was also bestowed by Christ upon the Twelve.^[117] He said the same thing to all the Apostles.^[118] Their Commission was also immediate, direct from Christ. "One cannot imagine a power better established nor a mission more immediate." "It was manifestly the intention of Jesus Christ to bestow primarily upon one that which He ultimately willed to bestow upon many."^[119] The relation of the Pope to the Episcopate is not that he is lord over the Bishops, but one of their number, as says St Bernard.^[120] The power of the Holy See has nothing above it, says Bossuet, except the entire Catholic Church.^[121] In the calamitous times when the Pope claimed the allegiance of Christendom, it was the Episcopate, urged the preacher, which terminated the Schism and restored the Pope. They must firmly maintain these principles which the Gallican Church had found in the traditions of the Universal Church; and which the

French Universities, particularly that of Paris, had taught with the full knowledge of the Roman See.

On the relation of the temporal to the spiritual power Bossuet said:—

“Woe to the Church when these two jurisdictions begin to regard each other with a jealous eye.^[122] Ministers of the Church and ministers of kings are both alike ministers of the King of kings, although diversely established. Why do they not remember that these functions are united, that to serve God is to serve the State, and to serve the State is to serve God? But authority is blind; authority ever aims at exalting itself, at extending itself; authority considers itself degraded when reminded of its limitations.”

The Assembly ordered this sermon to be printed. The King was satisfied with it. Bossuet had conciliated two of the three departments, the Crown and the Episcopate. It remained to be seen how the sermon would be regarded at Rome. Bossuet sent the sermon with an explanatory letter to a friendly Cardinal.

“I must tell your Eminence,” he wrote, “that I was forced to speak of the liberties of the Gallican Church. You will at once realise what that involved. I set before myself two things—the one, to do this without derogating from the true dignity of the Holy See; the other, to explain the Gallican principles as the Bishops understood them, and not as they are understood by the magistrates.”^[123]...

“The sensitive ears of Romans ought to be respected. And I have done so most readily. Three points might wound them, namely—the temporal independence of the royal power; episcopal jurisdiction received immediately from Jesus Christ; and the authority of the Councils.

“You are well aware that in France we speak plainly on these matters, and I have endeavoured so to speak that, without wronging the doctrine of the Gallican Church, I might at the same time avoid offending the majesty of Rome. More than this

cannot be expected of a Gallican Bishop whom circumstances compel to deal with points like these.”^[124]

Bossuet’s sermon, says his biographer, was received at Rome with approval, real or affected.^[125] The Assembly, however, was less successful. Subservient to the will of the temporal power, they made proposals which Rome rejected. But this antagonism between the Gallican Church and Rome led the Assembly to its reassertion of Gallican principles, in the four famous Articles of 1682. To Bossuet was ultimately entrusted the delicate task of formulating the Gallican belief as to the limits of the papal power. Bossuet, representing the Church of France, denied the doctrine of Papal Infallibility. He believed that permanence in the truth was promised to the Roman See as distinguished from its temporary occupant. He maintained that although the Pope himself might be in error, yet that error would not be inherent in the Roman See, and would be corrected by the Church in Council. Above the Pope was the Universal Church. If the Roman See were in error on the faith, it would be brought back to the truth by the other Churches. Rome would quickly perceive its error, and would never fall into heresy or schism. But he denied that Infallibility could be attributed to the occupant of the Roman See. This view was the traditional conviction of the Church of France. Accordingly, when the Assembly formulated its Declaration on the limits of papal power, it expressed itself by Bossuet’s aid in the four Articles to the following effect:—

1. That the Pope could not release subjects from obedience to the temporal power.^[126]
2. That the Decrees of Constance on the supreme authority of the Council remain in full force in Christendom.
3. That the independence of the Church of France must be maintained.
4. That the decisions of the Pope are not infallible.

“The Pope has the principal place in deciding questions of faith, and his decrees extend to every Church and all Churches; but, nevertheless, his judgment is not irreversible, until confirmed by the consent of the Church.”

Here, then, is the essential point on the subject of Infallibility. It resides in the Universal Church, and not in the occupant of a particular See. As to

this doctrine, says an able French historian, there was no real diversity of opinion in France. There existed indeed an Ultramontane party which, countenanced by certain powerful protectors, possessed a varying influence;^[127] but it never won the consent of the clergy in France, which at all times showed the strongest antipathy to Ultramontane ideas. The Declaration was signed by thirty-four Archbishops and Bishops of the Church of France. It experienced, says Bossuet's biographer, himself a Cardinal of the Roman Church, no opposition in the Kingdom.^[128] It did but reaffirm a doctrine which had been at all times dear to the University and theological Faculty of Paris.

But if this Declaration of the Assembly was congenial throughout France it was otherwise in Rome. "The Pope appointed a congregation to frame a censure of the propositions."^[129] Italian writers composed attacks upon them. One in particular was dedicated to Innocent XI., "Lord of Rome and of the World, only Keeper of the Keys of Heaven and Earth and Paradise, Infallible Oracle of the Faith." This provoked the comment of Arnould:

"I pity the Holy See for possessing such defenders. It is a terrible judgment of God upon the Church if Rome adopts such methods of defence against the Bishops of France."^[130]

Bossuet's correspondents in Rome sent him most unfavourable reports of the probable action of the Pope.

Bossuet expressed himself very freely on the situation in a letter to the Monastery of La Trappe:—

"The affairs of the Church are in an evil plight. The Pope openly threatens us with denunciations and even with new Decrees. Well-intentioned mediocrity in high places is a grave misfortune."^[131]

"Your letter," wrote Bossuet to another correspondent, "presents a picture of the present state of the Roman Court which positively alarms me. Does Bellarmine really hold the chief place there? Has he become their tradition? Where are we if this is the case, and if the Pope is disposed to condemn whatever that author condemns? Hitherto they have never ventured to do it. They have never made this attack on the

Council of Constance, nor on the Popes who have approved it. What shall we answer heretics when they confront us with this Council and its decrees, repeated at Basle with the express approval of Eugenius IV., and with all the other confirmatory acts of Rome? If Eugenius IV. did well in his authentic approval of these decrees, how can people attack them? And if he did wrong, what becomes, men will ask, of his Infallibility? Shall we have to elude these difficulties and escape the authority of these Decrees, and of so many others both ancient and modern, by the scholastic distinctions and miserable subtleties of Bellarmine? Must we assert with him and with Baronius that the Acts of the Sixth Council and the Letters of St Leo have been falsified? Will the Church, which has hitherto silenced heresy with solid reasons, have no better defence than these pitiful prevarications? May God preserve us from it.”^[132]

Happily, says Cardinal Bausset, feeling at Rome quieted down; and Innocent XI. was “providentially diverted from censuring the doctrine of France. He restricted himself to rewarding, with more generosity than judgment, the numerous writers who attacked the Assembly of 1682.”^[133] Not venturing to condemn the four Articles, he showed his displeasure by refusing Bulls to its members if nominated to Bishoprics. Louis XIV. retaliated by refusing to allow any Bishop to accept the papal Approval. This lasted through the pontificates of Innocent XI. and Alexander VIII. Innocent XII., says Cardinal Bausset, demanded and obtained letters of apology from the former deputies of the Assembly. They expressed their concern at his resentment, but in vague and general terms capable of various interpretations, and without any suggestion of abandoning their traditional convictions.

But when Clement XI. attempted, on the strength of these letters, to induce Louis XIV. to suppress the Assembly’s propositions, Louis replied that Innocent XII. understood that his wisdom lay in not attacking principles regarded in France as fundamental and primitive, and held unaltered by the French Church over many centuries. His Holiness, said the King, is too enlightened to declare heretical what the Church of France maintains. “Innocent XII. did not ask me to abandon them,” added Louis. “He knew that such a demand would be useless.” And there the matter

stayed. Clement XI. acquiesced, like his predecessors, in the independence of the Church in France from Ultramontane opinions.

The attack on the principles of the Church of France led Bossuet to write his greatest work—*The Defence of the Declaration*.^[134] Since the chief responsibility for producing the Declaration had fallen upon him, it became naturally his duty to defend it. From the year of the Assembly onward to the end of his life, some twenty years, he devoted an immensity of labour to its compilation. More than once proposals were made to publish, but reasons of State made it prudent not to offend the Pope, and the book never appeared during Bossuet's life. The MS. was left to Louis XIV., and in 1745 was printed. It is impossible in a limited space to give an adequate idea of the character of this monumental work. It is written in terse and vigorous Latin. It occupies two large 8vo. volumes of some 750 pages each. Suffice it to say that the most powerful refutation of Papal Infallibility ever published came from the pen of the most distinguished Bishop of the Church in France; from one who lived and died in communion with the Roman See. Authority never passed a censure on this work. Bossuet's *Defence* powerfully influenced belief in the Church in France. Many instances can be produced to show that it guided and taught the teachers of that Church down to the time of the Vatican Council itself. These volumes have proved the storehouse whence the most telling opposition to Ultramontanism has been derived.

Now the special interest is that this *Defence of the Gallican Declaration* was never condemned at Rome. Here is what Pope Benedict XIV., 1748, said about it:—

“In the time of our immediate predecessor, Clement XII., it was seriously debated whether this work ought not to be proscribed; but it was finally determined that no censure should be passed upon it. This decision was arrived at, not only out of regard for the author's memory, who in other respects so worthily served the cause of religion, but also out of just apprehension of provoking fresh dissertations and renewing the dispute.”^[135]

A striking testimony to the powerful effect of Bossuet's treatise when it first appeared is that of his learned opponent, Cardinal Orsi:—

“I have heard, not only at Rome, but also in many other places, a great many persons, distinguished alike for their character, learning, and ability, declare, after careful study of this work of Bossuet, that the Roman theologians had better abandon the defence of so hopeless a cause; that it would be nobler if they would confess it frankly, since they do not see what answer they can make with any prospect of success to the historical evidence which Bossuet has collected.”^[136]

Bossuet’s personal conviction on Infallibility was the doctrine of the fourth Article of the Assembly’s Declaration. He held that it requires the consent of the Church to make a papal decision on faith unalterable. He declared that whatever men may assert in theory, when it comes to practice, the final decision will inevitably depend on the consent of the Universal Church. This, says Cardinal Bausset, is exactly what occurs whenever the Ultramontanes are forced within their last entrenchments. Infallibility of the Pope ends by being only that of the Church.^[137]

Bossuet attached very little importance to objections about the practical inconvenience of Papal Fallibility.^[138] To his mind it was perfectly futile to argue that, if we must wait for the consent of the Church to a pontifical decree, we should be leaving the minds of the faithful in suspense. He considers that the true remedy is not to extend the papal power, but to exercise more faith in the Holy Spirit and the Catholic Church. It is no disparagement to the Pope if the Church be placed above him.^[139]

Similarly, the *à priori* argument that submission of the intellect must be due when the Pope defines a doctrine, otherwise faith would vacillate; and that such submissions can only be justified when the authority cannot err; leaves Bossuet unmoved, except to protest against the underlying assumption that unqualified submission is due.

Bossuet’s survey of history from the Apostolic Age to his own time, Scripture, Fathers, Councils, Theologians, confirmed him in the truth of the principles of the Church in France. The ultimate and therefore irreversible decision in faith depended on the Collective Episcopate, and on that only; as voicing the belief of the Universal Church.

“What benefit to the Church,” he exclaims in a striking passage, “can exist in that doubtful authority, which the Church has not yet affirmed, of a Pope’s *ex cathedra* decisions? We live in the seventeenth century of the Catholic Church, and not yet are orthodox and saintly men agreed about that Infallibility. To say nothing of the Councils of Constance and of Basle, saintly and learned men are opposed to it. And if many private individuals clamour greatly, and pour forth imprudent censures against them, yet neither the Catholic Church nor Rome itself passes any condemnation upon them. Three hundred years we have controverted it with impunity. Has the Church waited for peace and security down to this our age, until the seventeenth century is almost at an end? Plainly, then, the security of pious souls must rest in the consent of the Universal Church. It cannot be that they should acquiesce in the doubtful Infallibility of the Roman Pontiff.... A doubtful Infallibility is not that Infallibility which Christ bestowed. If He had granted it at all He would have revealed it to His Church from the very beginning. He would not have left it doubtful, inadequately revealed, nor useless for want of an indisputable tradition.”^[140]

What made the Pope’s advocacy of Ultramontane ideas additionally distressing to Bossuet and others was that in their presentation of Catholic Truth to Protestants no mention whatever had been made of Papal Infallibility as pertaining in any way to Catholic principles. In Bossuet’s famous *Exposition de la Doctrine Catholique*, written expressly to explain the fundamental Catholic Dogmas to men of other Communion, he had spoken of “the authority of the Holy See and of the Episcopate,” thus acknowledging a double power.^[141] He said that it was not necessary to speak of matters disputed in the theological schools because they formed no part in the Catholic Faith. And this Exposition was published with papal approbation.^[142] It had been singularly effective in commending the Roman Church to its opponents, and in gaining their submission. But if it was known that the Pope resented these principles, still more, if he openly ventured to condemn them as errors approximate to heresy, Protestant converts could hardly fail to retort: We submitted to the Church on the distinct assertion that no Catholic was required to believe either in the

Infallibility of the Pope or in his right to depose kings.^[143] In that case we have been misguided and deceived. It is, exclaimed thoughtful French Catholics looking across to England, precisely these doctrines which are the principal cause of the persecution of Catholics there.^[144]

The publication of Bossuet's great work in 1745 may have given considerable strength to Catholicism in France of an Anti-Roman type; but other treatises show that the clergy of France were being persistently trained in similar ideas. The theological principles inculcated with the authority of the Archbishop of Lyons in 1784 in the seminaries of his diocese include the following propositions: The Roman Pontiff even when speaking *ex cathedra*, in matters of faith and morals, can be deceived; Bishops possess jurisdiction direct from Christ and not from the Roman Pontiff; the authority of the Roman Pontiff is inferior to that of a General Council. The principles taught at the same period in the diocese of Rouen were similar.^[145]

^[115] Bossuet, t. xi. p. 588.

^[116] Bossuet, t. xi. p. 596.

^[117] *Ibid.* p. 599.

^[118] *Ibid.* p. 600.

^[119] *Ibid.* p. 600.

^[120] *Ibid.* p. 618.

^[121] *Ibid.* p. 620.

^[122] Bossuet, t. xi. p. 623.

^[123] *Ibid.* p. 291.

^[124] *Works*, vol. xi. p. 292.

^[125] Cardinal Bausset, *Hist. de Bossuet*, p. 136.

^[126] Jervis, *Hist. Ch. France*, ii. p. 50.

^[127] Guettée, xi. p. 85.

^[128] Bausset, ii. p. 188.

^[129] Jervis, *Gallican Ch.* ii. p. 52.

^[130] Guettée, xi. p. 87.

^[131] Bossuet, Letter 110, t. xxvi. p. 313.

^[132] Bossuet's letter to M. Dirois.

^[133] Bausset, *Hist. de Bossuet*, ii. p. 197.

- [134] Cf. Jervis, *Gallican Ch.* ii. p. 56.
- [135] Jervis, *Church of France*, ii. p. 59.
- [136] Bausset, ii. p. 427. Orsi, *De irref. R. P. jud.* Preface t. i. d.
- [137] *Ibid.* ii. p. 197.
- [138] Bossuet, i. p. 112.
- [139] *Ibid.* i. p. 113.
- [140] Bossuet, t. xxi. p. 129.
- [141] *Ibid.* vol. xiii. pp. 103, 104.
- [142] *Ibid.* p. 104.
- [143] Guettée, *Histoire de l'Eglise de France*, xi. p. 94.
- [144] *Ibid.* p. 95.
- [145] Sicard, *L'Ancien Clergé de France*, i. p. 425, n.

CHAPTER X

OPPOSITION AMONG ROMAN CATHOLICS IN ENGLAND

THE struggle of Catholic *versus* Ultramontane in the Roman Communion in England finds forcible expression in the famous letter of the distinguished Roman Catholic layman, Sir John Throgmorton, in 1790:—

“He laid stress,” says a Roman writer, “on the fact that ever since the day of Pius V.’s excommunication of Elizabeth, ‘the English Catholics have been divided into two parties. The “Papistic” party, on the one hand, upheld and maintained all the pretensions of the Court of Rome, and were supported by all the influence of that Court, sometimes by briefs from the Popes themselves.... The other party consisted and still consists of the descendants of the old Catholic families, and a respectable portion of the clergy who, true to the religion of their ancestors, have uniformly ... protested against the usurped authority of the Court of Rome.’ He denied that the original cause of the difference—the question whether or no the Pope had the power to depose sovereigns—represented adequately the distinction between the two parties. The deposing power was no longer maintained by any one; but the ‘Papistic’ party still remained, and taught the Infallibility of the Pope and urged all his claims. He called on English Catholics to dissociate themselves from this party and its teaching.”^[146]

The London Romanist clergy selected a Bishop of Catholic as opposed to Ultramontane convictions. Rome refused, however, to accept their selection, and the English Catholics submitted. Here is an illustration of the method by which the older principles were to be suppressed.^[147] Nevertheless the older principles remained. The Roman body in England continued to maintain its anti-Roman ideas. This appears incontestably in their appeal to Parliament for removal of their political disabilities, under

which they had suffered terribly since the days of Elizabeth. These political disabilities were the Nemesis of the unfortunate action of the Papacy against Queen Elizabeth, and of the theories on the relation between spiritual and temporal power advocated by Roman writers of that period. The penal laws against the Roman Communion in England were the product of fear, being in design defensive against political results of Roman teaching. However, in course of time, none too soon, nobler and juster counsels began to prevail, and the time approached when all the impartial desired the removal of restrictions and penalties which were formed on principles of brutality and retaliation happily growing obsolete. But to secure the removal of penal legislation, it was necessary for the Romanists in England to reassure the public opinion that they were not bound by theories from Rome irreconcilable with English loyalty.

When accordingly in the year 1788 a Committee of English Romanists was formed to appeal to Parliament for the removal of Roman disabilities,^[148] the petitioners declared that it was a duty which they owed to their country, as well as themselves, to protest in a formal and solemn manner against doctrines which constituted no part of their principles, religion, or belief.^[149] Among these they rejected the theory that excommunicated princes may be deposed or murdered by their subjects. They declared that no ecclesiastical power whatever can absolve subjects from allegiance to lawful temporal authority.^[150] They wrote: “We believe that no act that is in itself immoral or dishonest can ever be justified by or under colour that it is done either for the good of the Church or in obedience to any ecclesiastical power whatever.”^[151] And—what now particularly concerns us here—they said: “We acknowledge no Infallibility in the Pope.”

This protestation of the Roman Catholics of England brought about the passing of the Relief Act of 1791. The representative character of the document may be realised from the fact that it was signed by all the four Vicars Apostolic; that is by all the highest Roman authorities in England, by 240 priests; and in all by 1,523 members of the Anglo-Roman body, among whom most of the educated and influential laity were included. It would be interesting to ascertain what proportion the 240 priests bore to the total number of Roman clergy in this land. Accurate statistics are not easily obtained. The Committee of English Romanists claimed that the total

number of Roman priests in England did not exceed 260. Berington, in 1780, estimated the number as nearer 360, of whom 110 were ex-Jesuits. From these figures it would appear that, if the Jesuits are left out, nearly the whole body of Roman Clergy in England, including their four Bishops, committed themselves frankly to rejection of Papal Infallibility.^[152]

Dr Milner describes it, indeed, as “drawn up in ungrammatical language, with inconclusive reasoning and erroneous theology.”^[153] And a vicar apostolic who first signed it afterwards withdrew his signature.^[154] On the other hand, an influential section of the Communion placed the document in the British Museum, “that it may be preserved there as a lasting memorial of their political and moral integrity.”^[155]

The history of Irish Roman belief is similar. An Act for their relief was passed in 1793. It contains an oath which states that “it is not an article of the Catholic Faith, neither am I thereby required to believe or profess that the Pope is infallible.”^[156]

In an address to Protestants of the United Empire in 1813 by a Roman Catholic writer (Charles Butler), anti-Roman prejudice is reassured by the terms of the oath taken by Irish Roman Catholics:^[157] “In the oath taken by the Irish Roman Catholics they swear that ‘it is not an article of the Catholic faith, and that they are not thereby bound to believe or profess that the Pope is infallible.’”^[158]

No less unmistakable is the language of a Roman Catholic Bishop in England in 1822:—

“Bellarmine and some other divines, chiefly Italians, have believed the Pope infallible, when proposing *ex cathedra* an article of faith. But in England or Ireland I do not believe that any Catholic maintains the Infallibility of the Pope.”^[159]

The Pastoral Address of the Irish Bishops to their clergy and laity in 1826 declared that it is “not an article of the Catholic faith, neither are they thereby required to believe that the Pope is infallible.”^[160]

Accordingly, a Roman Catholic nobleman, Lord Clifford, writing to reassure the English peers on the Maynooth Endowment Bill, could say in

1845: “It is not an article of Catholic faith that the Pope is infallible even in matters of faith.”^[161]

There is not the slightest reason to doubt the sincerity of the Romanist statements. They were not misrepresenting their convictions to improve their circumstances. They genuinely believed these principles. They claimed as Catholics an independence from Romanising views.

When Dr Wiseman (afterwards Cardinal) was nominated by the Pope to the London District in 1847, nearly all the clergy, says Wilfred Ward, “were sufficiently imbued by the conservative and national spirit to be opposed to his energetic scheme of reform.”^[162] They viewed with distaste his “Romanising” proclivities. Trained in the College in Rome, having spent years under the Pope’s immediate direction, Wiseman returned to England bent on propagating that “papistic spirit” against which the older English Roman Catholics, as represented by Sir John Throgmorton, had so vigorously protested.^[163] The introduction of the Jesuit and other religious Orders was Wiseman’s work, and it was repugnant to the temper and prejudices of the old Romanist families in England. But Rome approved, and Wiseman persisted. Then came the re-establishment of the Roman Hierarchy in England, the elevation of Wiseman to the Cardinalate, and his return to England as Archbishop of Westminster. Then the Tractarian movement gave new life to the Anglican Church; but it also contributed new distinction and new strength to the Roman Communion. Converts like Faber threw themselves, with the convert’s proverbial intensity, into the most extreme of Roman devotions, legends, and principles; much to the amazement and disgust of the old-fashioned Romans, who found themselves regarded with coldness and indifference, as half-Catholic, at Rome, while the zealous converted extremists basked in the sunshine of Rome’s approval. There is no little irony in the situation. The Vicar Apostolic of the London district warned Newman on his conversion against “books of devotion of the Italian School.”^[164] Faber reproduced the most Italianised lives of the saints. Bishop Ullathorne of Birmingham, himself of old Roman family, considered these Italian compositions unsuited to this country. Newman, as Superior of the Oratory, wrote to Faber, describing them as “unsuited to England and unacceptable to Protestants.”^[165] Accordingly the publications ceased. But Wiseman’s exertions to promote Ultramontanism within the Roman Communion continued, and were most

successful. Here is a letter of approval written to the Cardinal from influential quarters in Rome:—

“I can say that you have been the instrument under God, to *Romanise* England.... You have been able to change the whole feeling of the rising clergy, and to instil into the laity what Roman principles they possess.”^[166]

But if Wiseman “changed the feeling of the rising clergy,” this was not done without desperate struggles on the part of the older clergy. Wiseman, whose insight into human nature was of the scantiest, chose as his coadjutor, with the right of succession, Bishop Errington. Errington belonged to the older school. The Chapter of Westminster agreed with him. Accordingly Wiseman found himself opposed by the Chapter, with the Coadjutor-Bishop as their leader. The contest which followed was, says Wilfred Ward, “the turning point in the controversy between the conservative policy and that of the new Ultramontanism.”^[167] It was no merely personal struggle, but a struggle of principles. On the other side, Wiseman pushed forward Manning, whom the Pope sent from Rome and placed as Provost over the entire Chapter of Westminster.

Into the details of the struggle we cannot go. But Errington and Manning fought for opposing principles. Manning, says Wilfred Ward, with his “fixed ideas and firm determination.”^[168] As to Errington: “iron determination and persistency were stamped on face and figure.” “Both men of strong will with utterly opposite ideals and aims.”^[169] Errington had none of the tactful discretion of the diplomatist in his constitution, and was no match for the subtlety of Manning. And ultimately, on Wiseman’s appeal to Rome, Errington was removed by the Pope from the position of Coadjutor, and lost his right of succession to the Archbishopric of Westminster. The main charge against him was that he was anti-Roman in sympathies.^[170] Great was the rejoicing among the Ultramontanes at this victory. The succession of Bishop Errington was their greatest fear.

“I cannot conceive a greater misfortune,” wrote a high authority from Rome to Cardinal Wiseman, “than your being followed by Dr Errington, who, I feel certain, if he ever become Archbishop of Westminster, will do all he can to undo what has

been done, and will be a constant source of annoyance to the Holy See.”^[171]

Father Faber wrote in similar strains:—

“If [Dr Errington] returns to Westminster as Archbishop, the Holy See will have to reckon that it will take fifty, if not a hundred, years to restore England to the pitch of Ultramontanism which she has now reached.”^[172]

On Wiseman’s death the older Catholic party made one more struggle for supremacy. The Chapter of Westminster, notwithstanding that Manning presided, longed for a Bishop of the older school. Accordingly, their then selected candidates were Bishop Errington, Bishop Grant, and Bishop Clifford. The insertion of Errington’s name was considered by the Pope as a personal insult. In the interests of their own aims it was certainly unwise; for it rendered the Pope disinclined to listen to any of the Chapter’s suggestions.^[173] As for Bishop Clifford, Manning denounced him in a private letter to Rome as a worldly Catholic, *i.e.* opposed to the Ultramontanes; and he sided against Infallibility afterwards in the Vatican Council. As for Bishop Grant, Manning wrote:—

“I cannot for a moment even fear that the Holy See would accept any one of these names. I wish,” added Manning, conscious of the critical nature of the struggle for the future of Ultramontanism in England, “I wish that the Holy Father would reserve the Archbishopric in perpetuity to the Holy See. For it is perfectly certain that whoever comes, it is a question of a change of policy. It is Tories out and Whigs in, with all the consequences.”^[174]

Manning’s prophetic instinct proved correct. Pius IX. paused, reflected, took advice, and ultimately, not however without considerable misgivings, set aside all three of the Chapter’s nominations, and on his own authority appointed Manning.^[175] Now Manning led the English Ultramontanes in the Council of the Vatican.

But the task of Romanising the English Catholics was no easy thing. The *literature* of the Roman Communion in England and Ireland during the eighteenth and early nineteenth century shows how thoroughly saturated

they were with Catholic as contrasted with Ultramontane convictions. It is difficult to obtain that literature in its genuine and original form to-day; for of course all works reprinted since 1870 have been altered into conformity with Vatican ideas. In some cases the process of reducing to conformity was begun at an earlier date. It is therefore with works printed before 1870 that we are now concerned.

1. For example, in the well-known Roman manual of theology by Berrington and Kirk, entitled the *Faith of Catholics*, confirmed by Scripture, and attested by the Fathers of the first five centuries—with St Vincent’s maxim on the title-page (“that which has been believed always everywhere,” etc.)—we find the following teaching on Infallibility:—

“It is no article of Catholic Faith to believe that the Pope is himself infallible, separated from the Church, even in expounding the Faith: by consequence, Papal definitions or decrees, in whatever form pronounced, taken exclusively from a General Council or acceptance of the Church, oblige no one under pain of heresy to an interior assent.”^[176]

This teaching, found in the edition of 1830, now disappears.

2. Delahogue was Professor in Dublin where his theological works were published in several volumes in 1829. The type of instruction then given in an Irish seminary to students of Roman theology may be understood from the fact that Delahogue asserts that the doctrine that the Roman Pontiff, even when he speaks *ex cathedra*, is possessed of the gift of inerrancy or is superior to General Councils may be denied without loss of faith or risk of heresy or schism.

To justify this position appeal is made among others to Cardinal Perron who, although himself a supporter of the doctrine of papal inerrancy, assured King James I. that the question was not a hindrance to Ecclesiastical Reunion; since whichever view his Majesty might adopt he would none the less on either side be recognised as Catholic.

Delahogue appealed also to the fact that no reference to Papal Infallibility occurs in the Creed of Pius IV. Bossuet’s famous exposition affirmed that matters disputed in the schools of theology, and invidiously brought forward by Calvinistic doctors, were no part of the Catholic Faith;

and Bossuet's Exposition was endorsed by a brief of Innocent XI. Delahogue also pointed out that inferences from the figurative comparison of the relation between the Pope and the Church to that between the human head and body must be drawn with discretion. The effect of decapitation upon the human body differs from that of the death of a Pope upon the Church. Indeed the latter is essentially the same in spite of a long interregnum, or a schism, or a doubtful succession of forty years. Similarly, it does not follow that an *ex cathedra* fallacious utterance would be the Church's ruin.

3. De Lisle, who was received into the Roman Communion at the age of fifteen, in 1825, was moulded in the Roman convictions as held in England at that date. Forty years later he recorded his faith in the following words:—

“We are far from claiming for the Papacy any separate Infallibility distinct from that which all Catholics are bound to believe in, as the prerogative of the *Universal Church*. Those who make so novel a claim must reconcile it with the grave facts of ecclesiastical history.... And we believe that with those facts undenied and not disproved it would be impossible for the Church to define any such theories to be articles of faith.”^[177]

The following year De Lisle repeated his convictions on Infallibility in a letter to Father Ryder, afterwards Superior of the Birmingham Oratory.

“I will tell you my own belief, as to that attribute of Holy Church, which a learned Bishop pronounced accurate and orthodox. First of all, I believe Infallibility to be a *conjunctive* and *collective* attribute of the *whole Catholic Church* according to the words of Holy Church in her Collect, ‘God by whose Spirit the whole body of the Church is governed and sanctified.’ In other words, the infallible assistance of the Holy Spirit is given to the whole Church in its collective capacity, to the Laity as well as the Clergy. To the latter especially in their collective capacity as the teachers. To the former as the recipients of that teaching, giving them an instinctive apprehension of what is or is not in conformity with the traditional teaching of the Church. Now in this view of the matter, no one, whether pastor or layman, has any *separate personal* gift of the infallible guidance

of the Holy Spirit, but it is given to all collectively in order to enable them *safely to keep* and *rightly to apprehend* the Deposit of Faith.... Now it follows from my view that all Catholics—from the Pope downwards to the meanest baptized layman—all are under the infallible guidance of the Holy Spirit, as long as all, in their respective positions, whether as Teachers or Believers, are acting and believing according to the unchangeable Deposit, for the preservation and right understanding of which the power of *binding and loosing* and of *feeding* the whole flock has been conferred upon the supreme Pastor.”^[178]

4. Milner’s *End of Religious Controversy* was written to explain the Roman tenets to Protestants and to remove misapprehensions.^[179]

“When any fresh controversy arises in the Church, the fundamental maxim of the Bishops and Popes to whom it belongs to decide upon it, is, not to consult their own private opinion or interpretation of Scripture but to enquire *what is and ever has been the doctrine of the Church* concerning it. Hence their cry is and ever has been on such occasions, as well in her Councils as out of them: *So we have received; so the Universal Church believes: let there be no new doctrine; none but what has been delivered down to us by Tradition.* The Infallibility, then, of our Church is not a power of telling all things past, present, and to come, such as Pagans ascribed to their oracles; but merely the aid of God’s Holy Spirit to enable her truly to decide what her faith is and has ever been, in such articles as have been made known to her by Scripture and tradition. This definition furnishes answer to divers other objections and questions.... The Church does not decide the controversy concerning the Conception of the Blessed Virgin, and several other disputed points, because she sees nothing absolutely clear and certain concerning them, either in the written or the unwritten word, and therefore leaves her children to form their own opinions concerning them. Finally his Lordship, with other controversialists, objects against the Infallibility of the Catholic Church, that its advocates are not agreed where to lodge this

prerogative, some ascribing it to the Pope, others to a General Council, or to the Bishops dispersed throughout the Church. True, schoolmen discuss some such points; but let me ask his Lordship whether he finds any Catholic who denies or doubts that a General Council, with the Pope at its head, or that the Pope himself, issuing a doctrinal decision which is received by the great body of Catholic Bishops, is secure from error? Most certainly not, and hence he may gather where all Catholics agree in lodging Infallibility.”

Milner’s view of Catholicism is that if we would know what is of faith, we must ask what is and ever has been the doctrine of the Church. A dogma cannot be something new. It must be what has been universally believed from the beginning. Tried by this test, he finds that the Immaculate Conception is an opinion, not a doctrine of the Church; that individuals are free to form their own opinion concerning it, because there was nothing absolutely clear and certain about it either in the written or the unwritten word; that Papal Infallibility was a matter of scholastic discussion, a theory of theologians, but that the Infallibility of the Church was a matter which no Catholic doubted.

5. Gallitzin’s rejection of Papal Infallibility is even more emphatic.

“Although I have plainly told the Protestant minister that the Infallibility of the Pope is no part of the Catholic Creed, a mere opinion of some divines, an article nowhere to be found in our professions of faith, in our creeds, in our catechisms, etc., yet the Protestant minister most ungenerously and uncandidly brings it forward, over and over again, as an article of the Catholic faith; and takes his opportunity from this forgery of his own to abuse the Catholic Church.”^[180]

6. Another exposition of the Roman faith for English-speaking people is the famous book called *Keenan’s Catechism*. It is entitled *Controversial Catechism, or Protestantism Refuted and Catholicism Established*. The edition of 1860 is described as the third edition, and in its seventeenth thousand. It bears the imprimatur of four Roman Bishops, two of them being Vicars Apostolic. In these approbations we are assured that “the sincere searcher after truth will here find a lucid path opened to conduct

him to its sanctuary; while the believer will be hereby instructed and confirmed in his faith.” From 1846 to 1860 it was being largely circulated throughout England, Scotland, and Ireland.

The book contains the following question and answer:—

“(Q.) Must not Catholics believe the Pope in himself to be infallible?

(A.) This is a Protestant invention: it is no article of the Catholic faith: no decision of his can oblige under pain of heresy, unless it be received and enforced by the teaching body, that is by the bishops of the Church.”

Keenan’s Catechism has since 1870 appeared with alterations. The new edition is, as the preface justly remarks, “more than a mere reprint.” As issued in 1896, it rightly styles itself a “revised edition.” The question and answer just quoted have of course now disappeared. They are replaced by a series of ten enquiries, with answers giving exactly the contrary doctrine. The first of these runs as follows:—

“(Q.) What do Catholics believe concerning the Infallibility of the Pope?

(A.) That the visible Head of the Church on earth received from Christ the same prerogative of Infallibility which we have shown above to be necessary to and belong to the Church by divine institution.”^[181]

Thus what was formerly denounced as a Protestant invention is now affirmed as a Catholic truth.

The earlier revisers of *Keenan’s Catechism* contented themselves with quiet substitution of the new doctrine for the old without further explanation. But the later revisers have felt that something more was necessary to justify the change. Accordingly they inserted the following:—

“(Q.) But some Catholics before the Vatican Council denied the Infallibility of the Pope, which was also formerly impugned in this very Catechism.

(A.) Yes; but they did so under the usual reservation—‘in so far as they then could grasp the mind of the Church, and subject

to her future definitions’—thus *implicitly* accepting the dogma; had they been prepared to maintain their own opinion contumaciously in such case they would have been Catholics only in name.”

That is to say, that teaching endorsed by Catholic Bishops is delivered under the reservation that the opposite may be true; that this is the usual reservation, applicable therefore to all Episcopal teaching; that no certainty exists in the Roman Communion whether instruction now being given as Catholic may not be upset and reversed by some future definition; (in which case what is its authoritative value and its relation to truth?) and that the Roman Bishops who endorsed Keenan’s first edition implicitly accepted the dogma which they explicitly denied. I am most anxious not to exaggerate. But this seems an intellectual and a moral confusion. There is something wrong with a cause which requires such a defence. But this is not all. For the revised edition goes on to enquire, “Were there any other dogmas defined by the Church which had been controverted before decision?” This is answered in the affirmative. “Nearly every definition of dogma by the Church had been preceded by a period of controversy, in which theologians ranked themselves on different sides.” Then the question is asked:—

“(Q.) Can you name any Controversies on fundamental dogma on which the Church pronounced in the same way as she did on Papal Infallibility at the Vatican Council?

(A.) Yes. The Divinity of Christ was not formally defined till the first Council of Nicæa (325).”

Some other instances having been given, we then reach the Question—

“(Q.) What do you conclude from these observations?

(A.) That the definition of the Infallibility of the Pope as a dogma of primitive Christian Revelation has historically run a course similar to the definition of many other fundamental articles of the Catholic Faith.”

The implications of this assertion are worth considering. A parallel is drawn between the attitude of Catholics towards the two doctrines of Papal Infallibility and of the Divinity of Jesus Christ. They have historically, it is said, run a similar course. Now we ask just this: Were those Bishops who

endorsed *Keenan's Catechism* Catholics or not? There is only one possible reply: Yes, they were. They lived and died in the Communion of the Roman Church. It was then possible to be a Catholic before 1870 and yet deny this doctrine of Papal Infallibility. But was it ever possible to be a Catholic while denying the other doctrine, the Divinity of Jesus Christ? There is only one answer that can be given. Assuredly it was not. Explicit denial of the Divinity of our Lord must indisputably *ipso facto* exclude from Catholicity, and must have had this effect at any stage in the development of Christendom. Consequently the parallel between the course which these two doctrines have historically pursued is simply misleading and untrue. Indeed the assertion grievously misrepresents the evidence. A real parallel would require that as the doctrine of Papal Infallibility was disputed by Roman Catholics for many hundreds of years, and openly described as a mere opinion of the Schools which might be taken or left without detriment to Catholicity—indeed controversially deprecated as an invention of opponents, ungenerously and uncandidly ascribed to the Catholic Church, while its acceptance and rejection were both tolerated by the Church itself—similar experience awaited the doctrine of the Divinity of Christ. But not one iota of this holds good with the Divinity of Christ. Our Lord's Divinity was never disputed by Catholics, never openly described as a mere opinion of the schools; its rejection never was or could be tolerated by the Church for a single hour. No doubt there were imperfect expressions in the ante-Nicene period, but there was no silence on this doctrine in the primitive Church. The Arian was not an implicit Catholic, inwardly prepared to accept what he outwardly denied. Nor would he have been grateful for this explanation of his attitude. He never was a Catholic at all. Moreover, if the character of the two doctrines be considered, it is inevitable to ask whether the doctrine of Papal Infallibility is fundamental in the Christian Faith. If it be fundamental after the Church has defined it, it was fundamental before the definition. A doctrine does not become fundamental through the Church's definition, but through its own intrinsic character. It therefore remains unaccounted for that a fundamental of the Christian Faith should be described as a Protestant invention, and such description sanctioned by Catholic Bishops, and tolerated by Rome.

It is really incredible that a critically or historically trained intellect could venture on so daring and unhistoric a parallel. Such uncritical defence not only fails to secure its design, but suggests an insecurity in the Church's

belief in the Divinity of her Lord. Such defence is necessitated by the school which is constrained to condemn what it previously taught, and to teach what it once condemned; but the necessity for such defence betrays the character of the doctrine which requires it.

The historical evidence, which might be considerably increased, shows that English Romanists in general did not hold Papal Infallibility even as a private opinion; that, on the contrary, they maintained principles by which that opinion is excluded; that they believed in the Infallibility of the Church, but placed that Infallibility in the Collective Episcopate whether assembled or dispersed.

7. Even in the great College of Maynooth itself an Irish Roman Catholic Professor could publish as late as 1861 such words as these:—

“That the Universal Church is infallible in its belief and profession of faith, that the body of pastors is infallible in teaching, are two dogmas of Catholic faith. That the Infallibility of the Chief Pontiff is a revealed truth, and therefore definable, as of Catholic faith, is to me personally perfectly clear. Nevertheless, since it belongs to the Church alone to determine what is essential to belief, and since that dogma has never yet been in that manner proposed to be believed, they who genuinely hold the contrary are by no means or only in the least degree (unless indeed some other ground be shown) to be considered alien from the Catholic Faith.”^[182]

Here we have striking indications of a change. The Ultramontane influence is recognised, although not submitted to; Papal Infallibility is acknowledged as a private opinion of the teacher, but the contrary opinion is, with reserve, recognised to be legitimate. This utterance from Maynooth becomes more intelligible when it is remembered that Cardinal Cullen, trained in Rome and nominated Primate of Ireland by Pius IX., was now presiding over that Communion in Dublin. Cullen, says Ollivier, responded admirably to the confidence which Pius IX. placed in him.^[183]

“The Romanised Cullen,” says another, “whom the Pope forced as Primate on the Irish Bishops, with the same view as he imposed Manning on the English Bishops, is of course an Infallibilist.”^[184]

Journalism in England took no unimportant part in the struggle between Catholic and Ultramontane. That most paradoxical extremist, the convert Ward, was appointed by Wiseman in 1862 editor of the *Dublin Review*.^[185] Ward's ideal in his Roman days was spiritual dictatorship of the most absolute character.^[186] He said he wanted pontifical decrees every morning for breakfast with his newspaper. And Manning encouraged him. Manning shut his eyes to Ward's exaggerations and rejoiced in his uncompromising tone.

“What we need,” he wrote, “is incisive assertion of the loftiest truths. I am persuaded that boldness is prudence, and that our danger lies in half truths.”^[187]

So blessed and sanctioned, Ward went straight ahead. The Ultramontanism of the *Dublin Review* must have been gall and bitterness to the old-fashioned English Romanist.

While Ward and the *Dublin Review*, supported by Manning, pushed papal absolutism to the furthest extremes, Lord Acton and the series of journals with which he was connected, such as the *Rambler* and the short-lived but brilliant *Home and Foreign Review*, recalled the Catholic mind to the facts of History. Abbot Gasquet's estimate of the *Dublin Review* and the *Rambler* is significant.

“The *Dublin Review* and the *Rambler* were conducted upon lines wholly divergent. In historical matters the policy of the *Dublin Review* appears to have been to avoid as far as possible facing unpleasant facts in the past, and to explain away, if it could not directly deny, the existence of blots in the ecclesiastical annals of the older centuries. The *Rambler*, on the other hand, held the view that the Church had nothing to lose and much to gain by meeting facts as they were.”^[188]

The refusal to face the facts, the resolve to manipulate them in the interests of edification, was characteristic of an extensive controversial school of which the *Dublin Review* was a vigorous and extreme exponent. It was done deliberately, on principle, prompted by a profound distrust of history. Lord Acton's criticisms^[189] on this uncritical method of advancing truth are inimitable.

“A particular suspicion rested on history, because, as the study of facts, it was less amenable to authority and less controlled by interest than philosophical speculation. In consequence partly of the denial of historical certainty, and partly of the fear of it, the historical study of dogma in its original sources was abandoned, and the dialectical systematic treatment preferred.”^[190]

As to the treatment of History: “First, it was held, the interests of religion, which are opposed to the study of history, require that precautions should be taken to make it innocuous where it cannot be quite suppressed. If it is lawful to conceal facts or statements, it is equally right to take out their sting when they must be brought forward. It is not truth, but error, which is suppressed by this process, the object of which is to prevent a false impression being made on the minds of men. For the effect of those facts or statements is to prejudice men against the Church, and to lead them to false conclusions concerning her nature. Whatever tends to weaken this adverse impression contributes really to baffle a falsehood and sustain the cause of truth. The statement, however true in its own subordinate place, will only seem to mislead in a higher order of truth, where the consequences may be fatal to the conscience and happiness of those who hear it without any qualification. Words, moreover, often convey to the uninstructed mind ideas contrary to their real significance, and the interpretation of facts is yet more delusive.... For the object is not the discovery of objective truth, but the production of a right belief in a particular mind.... It is the duty of the son to cover the shame of his father; and the Catholic owes it to the Church to defend her against every adverse fact as he would defend the honour of his mother. He will not coldly examine the value of testimony, or concede any point because it is hard to meet, or assist with unbiassed mind in the discovery of truth before he learns what its bearing may be. Assured that nothing injurious to the Church can be true, he will combat whatever bears an unfavourable semblance with every attainable artifice and weapon.”^[191]

An Anglican writer has given us a terse expression of the same idea: The Deity, we are told, cannot alter the past. But the ecclesiastical historian can and does.^[192]

With all the instinct of self-preservation, the Ultramontane mistrusted and resented the historical School. Cardinal Wiseman wrote in a Pastoral^[193] a severe denunciation of the journal which Acton edited. To the Cardinal, the *Home and Foreign Review* seemed characterised by “the absence for years of all reserve and reverence in its treatment of persons or of things deemed sacred.” He wrote with great severity on what appeared to him its “habitual preference of uncatholic to Catholic instincts, tendencies, and motives.”

Acton^[194] admitted in his reply that “a very formidable mass of ecclesiastical authority and popular feeling was united against certain principles or opinions which, whether rightly or wrongly, are attributed to us.” He then proceeded to give an account of the principles which ought to govern the attitude of Catholics towards modern discoveries.

“A political law or a scientific truth may be perilous to the morals or the faith of individuals, but it cannot on this ground be resisted by the Church. It may at times be a duty of the State to protect freedom of conscience, yet this freedom may be a temptation to apostasy. A discovery may be made in science which will shake the faith of thousands, yet religion cannot refute it or object to it. The difference in this respect between a true and a false religion is, that one judges all things by the standard of their truth, the other by the touchstone of its own interests.”^[195]

And this led Acton to pronounce a severe criticism on methods of defence prevalent in the Roman Catholic Church of the day. He said that in reaction from the unscrupulous attacks of the eighteenth century, a school of apologists had arisen dominated by the opinion that nothing said against the Church could be true. Their only object was defence. “They were often careless in statement, rhetorical and illogical in argument, too positive to be critical and too confident to be precise.” “In this school,” he continues, “the present generation of Catholics was educated.” And he complains that “the very qualities which we condemn in our opponents, as the natural defences

of error, and the significant emblems of a bad cause, came to taint both our literature and our policy.” Meanwhile, learning had passed on beyond the vision of such apologists, and the apologists have, so far as effectiveness is concerned, collapsed before it.

“Investigations have become so impersonal, so colourless, so free from the prepossessions which distort truth, from predetermined aims and foregone conclusions, that their results can only be met by investigations in which the same methods are yet more completely and conscientiously applied.”^[196]

Resort to suppressive methods is, Acton was profoundly persuaded, suicidal as well as immoral. It argues either a timid faith which fears the light, or a false morality which would do evil that good might come. “How often have Catholics involved themselves in hopeless contradiction, sacrificed principle to opportunity, adapted their theories to their interest, and staggered the world’s reliance on their sincerity by subterfuges which entangle the Church in the shifting sands of party warfare, instead of establishing her cause on the solid rock of principles!”^[197]

This noble appeal was unfortunately denounced by Bishop Ullathorne of Birmingham in a Pastoral wholly devoted to its refutation. What particularly disturbed the Bishop’s mind was the distinction which Acton drew between a true and a false religion: that one judged all things by the standard of their truth, the other by the touchstone of its own interests. It appeared to Ullathorne^[198] that

“to say that the Church cannot refute or object to a discovery which will shake the faith of thousands; meaning thereby to deny her right to examine that discovery after her own methods, and by the union of science with faith in her theology, to ascertain whether and how far that discovery be true, ... is to deny to the Church her mission to prove all things, and to hold fast that which is good. It is to deny her the mission of teaching to avoid oppositions of science falsely so called, and of protecting those thousands of souls from having their faith shaken by the erroneous deductions which men of science are too apt to draw from those real discoveries which can never conflict with faith.”

Thus was Acton misunderstood. And Bishop Ullathorne concluded by condemning the journal as “containing propositions which are respectively subversive of the faith, heretical, approaching to heresy, erroneous, derogatory to the teaching of the Church, and offensive to pious ears.”^[199]

Notwithstanding this severe rebuke Acton continued to persevere.

The suppression of Lord Acton’s brilliant but short-lived *Home and Foreign Review* illustrates the restraints imposed upon an independent historian by the necessity of submission to the opinions of Roman Congregations, such as that of the Index. It was in the year 1863, when his periodical was some four years old, that Pius IX. issued a Brief to the Archbishop of Munich in which he affirmed that

“it is not enough for learned Catholics to receive and venerate the dogmas of the Church, but there is also need that they should submit themselves to the doctrinal decisions of the pontifical congregations.”

This Papal Brief made no reference to Lord Acton or to the *Home and Foreign Review*, but it vitally affected the principles upon which that periodical had been throughout its short existence of four years conducted. For its principles were these:—

“To reconcile freedom of enquiry with implicit faith, and to discountenance what is untenable and unreal, without forgetting the tenderness due to the weak, or the reverence rightly claimed for what is sacred. Submitting without reserve to infallible authority, it will encourage a habit of manly investigation on subjects of scientific interest.”

This means a claim for freedom in the province of opinion, and a right to the fearless assertion of historic truth. But how was it possible to reconcile that freedom with the literary decisions of such a Congregation as that of the Index? Consequently Lord Acton wrote a signed article in the *Review*, bearing the significant title, “Conflicts with Rome.” It is written with admirable self-command and dignity, with the frankest confession of loyalty to truth from whatever sources derived, and under a solemn sense of the impossibility of reconciling the encroachment of Roman Authority with the independence essential to historic science. In a powerful sketch of the

case of Lamennais, he shows how the extreme assertion of unlimited authority easily led by reaction to total loss of faith; and how the disparagement of human reason in the supposed interests of authority really undermines the foundation upon which all things human—that authority itself included—must necessarily rest. On the other side he draws a striking picture of the general attitude of Roman authority toward modern thought. He says, that in dealing with literature—

“the paramount consideration of Rome had been the fear of scandal. Historical investigations, if they offered perilous occasion to unprepared and unstable minds, were suppressed”—upon which he remarks that “the true limits of legitimate authority are one thing, and the area which authority may find it expedient to attempt to occupy, is another. The interests of the Church are not necessarily identical with those of the ecclesiastical government. One of the great instruments for preventing historical scrutiny had long been the Index of Prohibited Books, which was accordingly directed, not against falsehood only, but particularly against certain departments of truth. Through it an effort had been made to keep the knowledge of ecclesiastical history from the faithful, and to give currency to a fabulous and fictitious picture of the progress and action of the Church. The means would have been found quite inadequate to the end, if it had not been for the fact that, while society was absorbed by controversy, knowledge was only valued so far as it served a controversial purpose. Every party in those days virtually had its own prohibitive Index, to brand all inconvenient truths with the note of falsehood. No party cared for knowledge that could not be made available for argument.”

This suppression of uncongenial fact was less possible in the German Universities, where the Roman Catholic teacher was placed amidst perfect freedom of enquiry, and where “the system of secrecy or accommodation was rendered impossible by the competition of knowledge in which the most thorough exposition of the truth was sure of the victory.” The teacher in this environment “was obliged often to draw attention to books lacking the Catholic spirit but indispensable to the deeper student.” The condition of things in Italy and in Germany was widely different.

“While in Rome it was still held that the truths of Science need not be told if, in the judgment of Roman theologians, they were of a nature to offend faith, in Germany Catholics vied with Protestants in publishing matter without being diverted by the consideration whether it might serve or injure their cause in controversy, or whether it was adverse or favourable to the views which it was the object of the Index to protect.”

Yet for a while Rome had tolerated many things. “Publications were suffered to pass unnoted in Germany, which would have been immediately censured if they had come forth beyond the Alps or the Rhine.” German philosophers were indeed denounced at Rome, but German historians escaped censure. The reason was, according to Lord Acton, plain:—

“The philosopher cannot claim the same exemption as the historian. God’s handwriting exists in history independently of the Church, and no ecclesiastical exigence can alter a fact. The divine lesson has been read, and it is the historian’s duty to copy it faithfully and without ulterior views.”

But this toleration of independence in the realm of facts was now abruptly terminated by authority. The Pope’s letter to the Archbishop of Munich affirmed the view that Catholic writers are not bound only by those decisions of the Infallible Church which regard articles of faith. They must also submit to the theological decisions of the Roman congregations, and to the opinions which are commonly received in the schools; and it is wrong, though not heretical, to reject those decisions or opinions.

In a word, therefore, the Brief affirms that the common opinions and explanations of Catholic divines ought not to yield to the progress of secular science, and that the course of theological knowledge ought to be controlled by the decrees of the Index. Confronted with this Declaration of Authority, Lord Acton professed himself resolved “to interpret the words as they were really meant, and not to elude their consequence by subtle distinctions, to profess adoption of maxims which no man who holds the principles of the *Review* can accept in their intended signification.” In this Brief—“It is the design of the Holy See not, of course, to deny the distinction between dogma and opinion, ... but to reduce the practical recognition of it among Catholics to the smallest possible limits.”

Consequently, the question arose, what future was possible for the *Home and Foreign Review*? Continued existence on unaltered principles meant reiteration of principles denounced at Rome.

“The periodical reiteration of rejected propositions would amount to insult and defiance, and would probably provoke more definite measures; and thus the result would be to commit authority yet more irrevocably to an opinion which might otherwise take no deep root, and might yield ultimately to the influence of time.”

That this change of mind on the part of authority would be anything else than the far-off outcome of a process indefinitely slow, Lord Acton did not for a moment suppose. He acknowledged that the line taken by Pius IX. expressed the general sentiment of the large majority of Catholics of the age. And in Lord Acton’s view of the case, if new truth is to gain recognition from authority, it

“must first pervade the members in order that it may reach the head. While the general sentiment of Catholics is unaltered, the course of the Holy See remains unaltered too. As soon as that sentiment is modified, Rome sympathises with the change. The ecclesiastical government, based upon the public opinion of the Church, and acting through it, cannot separate itself from the mass of the faithful, and keep pace with the progress of the instructed minority. It follows slowly and warily, and sometimes begins by resisting and denouncing what in the end it thoroughly adopts.... The slow, silent, indirect action of public opinion bears the Holy See along, without any demoralising conflict or dishonourable capitulation. This action it belongs essentially to the graver scientific literature to direct.”

Meantime, Lord Acton’s lot is cast in the period when truth is resisted and denounced. Hitherto forbearance has been extended to the minority. But this is the case no longer. “The adversaries of the Roman theory have been challenged with the summons to submit.”

“In these circumstances, there are two courses which it is impossible to take. It would be wrong to abandon principles which have been well considered and are sincerely held, and it

would also be wrong to assail the authority which contradicts them. The principles have not ceased to be true, nor the authority to be legitimate, because the two are in contradiction.”

Accordingly, Lord Acton’s practical solution is as follows:—

“Warned, therefore, by the language of the Brief, I will not provoke ecclesiastical authority to a more explicit repudiation of doctrines which are necessary to secure its influence upon the advance of modern science.... I will sacrifice the existence of the *Review* to the defence of its principles, in order that I may continue the obedience which is due to legitimate ecclesiastical authority with an equally conscientious maintenance of the rightful and necessary liberty of thought.”

From that date accordingly the *Home and Foreign Review* ceased to exist. The expiration of a periodical may be an exceedingly small incident in literary activity, but the principles involved in this incident are of primary importance. Lord Acton’s indomitable belief in the ultimate prevalence of historical truth, when the present tyranny of ignorance should be overpast, is worthy of all regard. The dignified surrender, coupled with frank reassertion of unaltered conviction, is most significant. He bows to an authority which has transgressed its limits, and which rejects to-day what it must of necessity at length believe. His theory that the truth must pervade and possess the members in order that it may reach the head, must have sounded strangely in Italian ears. A silence explicitly self-imposed, lest authority, if further provoked, should commit itself irrevocably to positions fatal to its own best interests, is impressive and pathetic; but certainly it suggests thoughts on the limits of authority incompatible with Ultramontane assumptions. While this subsiding into silence would prevent the irretrievable mischief of imprudent authoritative declarations, it would, at the same time, delay the enlightenment of the ignorant majority, and so delay the enlightenment of the head. Worse still, such silence, if widespread, must disable the Church from meeting the needs of modern thought, and from coping with, still more from guiding, the educated world. Wherever the system of secrecy and accommodation is rendered impossible, by the competition of knowledge in which the most thorough exposition of the truth is sure of the victory, there such methods as those advocated in the Brief, or practised in submission to its dictation, must be

fatal to the Church's wider influence. We may reverence the individual self-suppression, but nothing can be more profoundly discouraging than the fatal conflict of authority with historic truth. Even Lord Acton's faith could only hope that authority might ultimately acknowledge the principles upon whose suppression it was for the present actively engaged. Thus the Church, in his view, was committed to a fruitless conflict with truths to which it must at last surrender. It was destined evermore to oppose all truth for which the ignorance of the majority precluded recognition; to silence its prophets and hereafter adorn their sepulchres; to denounce as injurious what it would one day embrace as true; if, indeed, the slowly increasing enlightenment of the general body of the devout shall ultimately remove the prejudices of the head. Certainly the prospect was scarcely one to cheer. It shows impressively the tremendous strain which the encroachment of authority over the province of opinion placed upon the faith of its noblest sons.

Bishop Ullathorne viewed the successive collapse of Acton's journals with a natural satisfaction.

"The unsound taint," he wrote, "was brought to England by certain young laymen, pupils of Dr Döllinger or others associated with him, and exhibited itself in the later numbers of the *Rambler* after it passed into their hands, in the *Home and Foreign Review*, the *North British Review*, and the *Chronicle*. But the Catholics of this country repelled the poison, and these publications dropped rapidly one after another into their grave."^[200]

Meanwhile, on the other side, Ward's ambition was to demonstrate "how extensive is the intellectual captivity imposed by God on every loyal Catholic."^[201] And there is no possibility to doubt which of the two schools was congenial to Roman authority. For the editor of the *Dublin Review* was rewarded with expressions of papal approval, while Lord Acton's literary ventures were one after another brought to untimely ends.^[202] But the thing that flourished, the work upon whose eccentricities and extravagances Roman authority looked with favour, was the Apologetic of Ward in the *Dublin Review*. Utterly unhistorical as it assuredly was, more Ultramontane than Rome itself, carrying recent development to unprecedented excess, and

exhibiting exactly those characteristics of wilful blindness to uncongenial facts which roused so justly Acton's moral indignation, Ward's Essays were nevertheless the approved and sanctioned type of Roman doctrine and Roman defence offered for the edification and guidance of Roman Catholics in this land. There is something exceedingly tragic in the suppression of Acton's plea for sincerity and moral rectitude, coupled with the encouragement given to the reckless and painfully superficial utterances of the *Dublin Review*.

The English Romanists as a body were scared by Ward's extravagance. And to none were his methods more repugnant than they were to John Henry Newman. By a singular grace, Newman escaped the convert's proverbial temptation—that of carrying new beliefs to all possible extremes. He had affinities with the *Dublin Review* and with Lord Acton's Journals. But he was keenly conscious of the defects of both. He thought the one lacking in regard for authority, the other in reverence for fact. He was very far from identifying himself with either.

When Ward attempted to enlist Newman in his Infallibility campaign, Newman's characteristic sincerity did not attempt to conceal the repugnance with which he viewed the proposal.

“As to writing a volume on the Pope's Infallibility it never so much as entered into my thought. I am a controversialist, not a theologian, and I should have nothing to say about it. I have ever thought it likely to be true, never thought it certain. I think, too, its definition inexpedient and unlikely; but I should have no difficulty in accepting it, were it made. And I don't think my reason will ever go forward or backward in the matter.”^[203]

But Newman despaired of inducing his fellow Romanists to attend to history.

“Nothing would be better,” he wrote, “than a historical review. But who would bear it? Unless one doctored all one's facts one would be thought a bad Catholic. The truth is, there is a keen conflict going on just now between two parties—one in the Church, one out of it; and at such seasons extreme views alone are in favour, and a man who is not extravagant is thought treacherous. I sometimes think of King Lear's daughters, and

consider that they, after all, may be found the truest who are in speech more measured.”^[204]

Hence it was that Ward’s vehement and exaggerated Ultramontanistism drew down upon him one of the severest rebukes which Newman perhaps ever wrote. He told Ward that it was wholly uncatholic in spirit, and was constituting a church within the Church. Ward comically observed that after such a letter he must take a double dose of chloral if he meant to sleep.

Newman also wrote a reassuring letter to Pusey, expressing his belief that there was no fear of a decree of Papal Infallibility, except in so limited a form as practically to leave things as they were.^[205] But when the Vatican Council was already met, and the probabilities that the dominant party might succeed in reducing to fixity what had hitherto been a theological opinion, at the most, became more and more convincing, Newman wrote to his Bishop in a very different and very anxious strain:—

“Why should an insolent, aggressive faction be allowed to make the heart of the just sad, whom the Lord hath not made sorrowful? I pray those early doctors of the Church whose intercession would decide the matter (Augustine, Ambrose, and Jerome; Athanasius, Chrysostom, and Basil) to avert this great calamity. If it is God’s will that the Pope’s Infallibility be defined, then it is God’s will to throw back the times and moments of the triumph which He has destined for His kingdom, and I shall feel that I have but to bow my head to His inscrutable Providence.”^[206]

This memorable sentence, the most memorable of any from the Roman Communion in England, was written in the full confidence of privacy to his own Diocesan, Ullathorne, Roman Bishop of Birmingham. Somehow it came to light, and appeared in the public press. The publication, never explained, has been called a culpable indiscretion.^[207] But whatever it be called, it assuredly represents the writer’s most profound conviction, uttered with perfect frankness. Here, as to his Father in Christ, he reveals his soul. Trusted and confided in as he was by individuals on either side within the Roman body; by Ward and Faber on the one hand, and by Lord Acton on the other; profoundly intimate with modern thought and religious

conceptions beyond the Roman pale; he anticipates disastrous consequences to the Church, and to the world, if the Infallibility theory be decreed.

Bishop Ullathorne^[208] would undoubtedly receive this confidence with perfect sympathy. For, although a believer of the doctrine, he had himself, as a student, been taught the opposite at Downside. Indeed, his own fidelity to Ultramontane ideas was so challenged that he thought it advisable to seek a special interview with the Pope, and assure him, at the time of the Vatican Decrees. But, naturally, Newman's letter not only produced a great sensation when it appeared in the public press; it also deepened the distrust with which the partisans of Infallibility regarded him. We can well understand how one who wrote with so manifest an anxiety to stand by the historic past, and to avoid extremes, was regarded with suspicion from Rome by pronounced and uncompromising Ultramontanes.

As always in great movements, so with the doctrine of Papal Infallibility, much depended on commanding personalities. And no figure in the conflict of 1870 is more conspicuous than that of Archbishop Manning. It was not for his learning or intellectual depth or piety that he held so remarkable a place in promoting Ultramontane opinions. But there is no doubt that, whether outside the Council or within, he arrested universal attention. No man was more completely identified with the doctrine than he; and identified with it in its extremest form. No paradox alarmed him; he shrank from no inference, however strange. Bellarmine would have been proud of him as in many ways a worthy successor to his own *à priori* methods. It is impossible to mistake the temperament which produced the two famous Pastorals launched by Manning for the instruction of English Romanists in 1867 and 1869.

He has already, and this is very significant, formulated the doctrine practically in the same phrases in which it appeared in the Vatican Decree: "Declarations of the Head of the Church apart from the Episcopate are infallible."^[209] "Judgments *ex cathedra* are, in their essence, judgments of the Pontiff apart from the episcopal body, whether congregated or dispersed."^[210]

This doctrine, he is certain, the Church has always believed and taught. History awakens no doubts, creates no problems, to Manning's mind. Everywhere he contemplates, both exercised and admitted, papal inerrancy.

His theory is that the stages of the doctrine have been three: simple belief, analysis, definition. In the first period, belief in the Church's and the Pope's inerrancy pervaded all the world. Thus he thinks that the condemnation of Pelagianism by Innocent I. (418) was regarded as infallible from the first moment of its promulgation. As for Honorius, there is not the slightest reason for misgivings: "heretical he could not be." We have his letters. They prove his Catholicity. The papal acts of the primitive ages imply infallibility, according to Manning, "and in almost all cases explicitly declare it."^[211] The exercise of authority is everywhere to him Infallibility. Thus the Archbishop presented the English Romanist with a sketch of the first ages pervaded by a calm, unchallenged faith in the Pope's Infallibility.

The second period in the doctrine's progress is that of analysis and contention. And here Manning pours unqualified contempt on the Gallican view. Gallicanism was Manning's peculiar and special abomination.

"Gallicanism," he said, "is rationalism; that which the Gospel cast out; that which grew up again in mediæval Christendom. Gallicanism is no more than a transient and modern opinion which arose in France, without warrant or antecedent, in the ancient theological schools of the great French Church; a royal theology, as suddenly developed and as parenthetical as the Thirty-nine Articles; affirmed only by a small number out of the numerous Episcopate of France....

"To this may be added, that the name of Bossuet escaped censure only out of indulgence, by reason of his good services to the Church: and that even the lawfulness of giving absolution to those who defend the Gallican Articles has been gravely questioned."^[212]

In Manning's view of history, Gallicanism was a disease engendered by the corruptions of the old French Monarchy.

The third period in the progress of Infallibility is the period of definition. This is certain to come. It is merely a question of time.

Thus, according to Manning, the doctrine of Papal Infallibility is no more of an innovation than the doctrine of our Lord's Divinity at Nicæa. It

is true that he is conscious of a possible objection lurking in suspicious minds.

“If any one shall answer that these evidences do not prove the Infallibility of the Pope speaking *ex cathedra*, they will lose their labour.

“I adduce them,” he continues, “to prove the immemorial and universal practice of the Church in having recourse to the Apostolic See as the last and certain witness and judge of the Divine tradition of faith.”

But Manning’s real interests were not in endeavours to ascertain what history declares. The sole duty of the believer was absolute submission to the authority of the existing Church, irrespective of past teachings. The assumption that what is taught to-day corresponds with what always has been, was made, and must not be challenged. Hence the famous identification of history with heresy, for which Manning made himself responsible. His assurance of the doctrine is so unassailable that he can scarcely tolerate the enquiry, Is it true?

“The question is not,” he writes, “whether the doctrine be true, which cannot be doubted; or definable, which is not open to doubt; but whether such a definition be opportune, that is, timely and prudent.”^[213]

Or again, more emphatically still if possible—

“With the handful of Catholics who do not believe the Infallibility of the Vicar of Jesus Christ, speaking *ex cathedra*, we will not now occupy ourselves. But the opinion of those who believe the doctrine to be true, but its definition to be inopportune deserves full and considerate examination.”

That the doctrine is opportune, said Manning, followed at once from the fact that it was true. God has revealed it. “Can it be permitted to us to think that what He has thought it opportune to reveal, it is not opportune for us to declare?” If it be said that many revealed truths are not defined, Manning answers, Yes, but “this revealed truth has been denied.” “If the Infallibility of the visible Head of the Church had never been denied, it might not have been necessary to define it now.” Thus the prospect of a coming definition

is held *in terrorem* over the heads of any who do not silently acquiesce in the doctrine being taught. Manning could scarcely ignore the fact that this denial of Infallibility was no new thing in the Roman Church. His answer to this is equally significant.

“We are told by objectors that the denial is far more ancient and widespread: that only makes the definition all the more necessary.”^[214] “In England, some Catholics are stunned and frightened by the pretentious assumption of patristic learning and historical criticism of anonymous writers, until they doubt, or shrink in false shame from believing a truth for which their fathers died.”^[215]

One would like to know how this sounded to the old Catholic families of England, to Bishops such as Errington or Clifford, to those whose fathers had assured the English Government on oath that Papal Infallibility formed no part of the faith of Catholics.

Manning indeed saw a host of practical reasons why the inerrancy doctrine should be decreed: because this truth has been denied; because, if not decreed, the error will henceforward appear to be tolerated, or at least left in impunity; because this denial of what Manning called “the traditional belief of the Church” was an organised opposition to the prerogatives of the Holy See; “because it is needed to place the Pontifical Acts of the last 300 years, both in declaring the truth, as in the dogma of the Immaculate Conception, and in condemning errors, as in the long series of propositions condemned in ... Jansen and others, beyond cavil or question”; because it was openly said that the pastors of the Church are not unanimous, therefore “it is of the highest moment to expose and extinguish this false allegation, so boldly and invidiously made by heretics and schismatics of every name.”

The dogma was necessary also to justify the believer’s attitude toward the Pope. Faith, argued Manning, requires the Infallibility of the teacher of truth. If the teacher be fallible, our certainty cannot be Divine. If the Pope be fallible, we cannot be certain that the doctrines propounded by him—the Immaculate Conception, for instance—are of faith. “The treatise of Divine Faith is therefore incomplete so long as the Infallibility of the proponent is not fully defined.”

Thus a theoretical system requires completion which nothing but this dogma can give; for which, therefore, this dogma must be created. Moreover, Manning scorns what he calls “the incoherence of admitting a supremacy and denying its infallible action.” We have here a reminiscence of De Maistre. There is the same theorising tendency. Two dominant ideas are found throughout. The one, that the doctrine is required to secure the completion of an *à priori* view. The other, that it will be practically a singularly useful asset. Therefore we must have it. It is not the theologian, it is the ecclesiastical statesman who speaks in this. The centralisation of power, concentrated in one supreme individual, easily accessible, prompt to reply, was Manning’s ideal. He contrasted it with the slow, deliberate method of Universal Assemblies. Errors would have time to spread, with fearful rapidity, before this heavy machinery could be brought effectively into operation. Statesmen would frustrate its assembling. If the Pope be personally infallible, apart from the Episcopate, “why,” asks Manning quite naturally,

“why is he bound to take a means which demands an Ecumenical Council, or a world-wide and protracted interrogation, with all the delays and uncertainties of correspondence, when, by the Divine order, a certain means in the Apostolic See is always at hand?”

Assertion—vigorous, uncompromising, sweeping—was not only the bent of Manning’s disposition; it was also cultivated on principle. What the English people wanted, according to the Archbishop of Westminster, was neither compromise nor accommodation. “Downright truth, boldly and broadly stated, like the ring of true metal, wins their confidence.” When Gladstone described him as “the oracle,” Manning replied, “He shall not find me ambiguous.” Thus he prided himself on the quality of aggressive speech. Among his favourite phrases is the term—“it is certain.” Six times in one page, applied to all manner of things—historical interpretations, future probabilities, indiscriminately. No shade of distinction exists. There might be no such thing conceivable as hesitation in the universe. He seems to grow, if possible, increasingly sharp, incisive, uncompromising, as his words speed on.

“The Ultramontane opinion is simply this, that the Pontiff, speaking *ex cathedra* on faith or morals, is infallible. In this

there are no shades or moderations. It is simply aye or no.”

Of qualifications, of restrictions, nothing is said. It is all sweepingly universal. Yet with all his heart, he says, he desires to find a mode of conciliation—“but not a *via media* which is the essential method of falsehood.” Of the philosophic temper, the balancing of opposing truths, the holding truths unreconciled, through faith in their ultimate yet hitherto undiscovered synthesis, there is not a shadow in these amazing Pastorals.

Nothing can surpass the confidence with which Manning expressed his ideas of the work which the Council would effect.

“It is certain that upon a multitude of minds who are wavering and doubtful ... the voice of a General Council will have great power. The Council of Trent,” he tells us, “fixed the epoch after which Protestantism never spread. The next General Council will probably date the period of its dissolution.”^[216]

Not less singular, especially when read in the light of Manning’s incessant polemical correspondence on the doctrine, is the picture which he has drawn of the state of the Roman Church in this crisis.

There is universal excitement, he says, in the outer world, caused by the assembling of the Council at Rome; “not, indeed, within the unity of the Catholic Church, where all is calm in the strength of quiet and of confidence, but outside in the political and religious world”—the calm of the *Dublin Review*, for instance, and the passionate rhetoric of Ward.

Manning further predicts that if this doctrine were defined, it would be at once received throughout the world with “universal joy and unanimity.” Nothing can prove more clearly than these words how completely the theory with which he was identified fired his imagination, and warped his judgment.

Manning entirely failed to carry the English Romanists with him. The English Bishops at Rome elected Grant, not Manning, as their candidate for the Commission of Faith. And the Archbishop was adopted by the Italians. He complained of his English colleagues, that “of those who ought to have defended Infallibility not one spoke. The laity were averse and impatient. They would not read.”^[217] Some, however, did read, among them Lord Acton, who characterised those Pastorals as “elaborate absurdities.” They

were read also by De Lisle, who was amazed at Manning's theory on the case of Honorius.

“Archbishop Manning denies that Honorius fell into heresy, but in denying this he appears to me to injure the Catholic cause, for he denies history, and what is worse, sets himself up against a General Council which is universally received, and which in this very particular was solemnly confirmed by Pope Leo II., Honorius's next successor but one.”[\[218\]](#)

Most significant is the contrast of type between Manning and Newman within the Communion of Rome.

“Manning,” says Thureau Dangin, “like other converts in the ardour of their new faith, and in reaction against the Protestant spirit from which he had escaped, considered that he could not go too far in conceptions designated ‘Ultramontane.’ The personal attractiveness of Pius IX., who manifested a fatherly confidence in him, the authority which thus accrued to him in the government of the Church, the storm of controversy before and after the Vatican Council—all confirmed him in this attitude. He was more concerned to extend Infallibility than to determine its limits. He seemed to make it a duty of conscience and a point of honour to offend the English Catholics by presenting in uncompromising terms precisely those features of Italian doctrine which scandalised them most. He was well aware of his unpopularity, and consoled himself with an application of the text, If I pleased men I should not be the servant of Christ.”

However, Manning pleased men, at least in Rome, where the larger sympathies of Newman were most distasteful, and where a hardy official went so far as to describe him as more Anglican than the Anglicans, and the most dangerous man in England.

Meanwhile Manning is found denouncing the English Jesuits to Rome as sympathisers with a watered version of Catholicism. Thus the Roman Catholics in England were being thoroughly schooled in Ultramontanism, and the Jesuits themselves Romanised by a convert from another Church.

The conclusions to which our investigations lead are: that the Roman Communion in England during the eighteenth and nineteenth centuries was Catholic in sentiment as opposed to Ultramontane; that the process of change was wrought by Italian influence, imposing Italianised Bishops upon a reluctant community, and by the suppression of the organs of independent thought, especially those which did not revise the facts of history in the interests of edification; that this conversion of the Roman body to Ultramontane ideas necessitated a rewriting of the English Roman literature, which was done on a very extensive scale, and constantly without any acknowledgment of the changes introduced into the author's opinions; that this process of infiltration was vigorously resisted, and continued incomplete down to the Council of 1870, in which Irish and English Bishops openly opposed the theories of papal prerogatives which their Italianised rulers had laboured to force upon them.

[146] Quoted in W. Ward's *Life of Wiseman*, i. p. 513.

[147] Quoted in W. Ward's *Life of Wiseman*, i. p. 515.

[148] See Butler, *Historical Memoirs of the English Catholics*, vol. ii. p. 115ff.

[149] See Butler, *Historical Memoirs of the English Catholics*, vol. ii. p. 117.

[150] *Ibid.* p. 118.

[151] *Ibid.* p. 119.

[152] Bernard Ward, *Dawn of the Catholic Revival*, i. p. 151.

[153] Cf. Husenbeth's *Life of Milner*, p. 23.

[154] *Ibid.* p. 24.

[155] Cf. Gladstone, *Vaticanism*, p. 47.

[156] *Ibid.* p. 48.

[157] Gladstone, *Vaticanism*, p. 218.

[158] *Ibid.* p. 230.

[159] Bishop Baine's *Defence*, quoted in Gladstone, *Vaticanism*, p. 48.

[160] Gladstone, *Vatican Decrees*, vol. xliii. ed. 1875.

[161] *Letters to the Earl of Winchelsea*, p. 15.

[162] *Life of Wiseman*, i. p. 515.

[163] *Ibid.* p. 512.

[164] *Life of Wiseman*, ii. p. 221.

[165] *Ibid.* p. 223.

- [166] 1859.
- [167] *Life of Wiseman*, ii. p. 321.
- [168] *Ibid.* ii. p. 265.
- [169] *Ibid.* p. 254.
- [170] *Ibid.* p. 332.
- [171] *Life of Wiseman*, p. 331.
- [172] *Ibid.* p. 370.
- [173] *Life of Manning*, ii. p. 206.
- [174] *Ibid.*
- [175] 1865.
- [176] Page 165.
- [177] Ambrose Lisle Philipps, *Union Review*, May 1866, p. 95.
- [178] 1867. De Lisle, *Life*, ii. pp. 36, 37.
- [179] Milner, *End of Religious Controversy*, ed. 2, 1819, p. 150.
- [180] Gallitzin, *Defence of Catholic Principles*. See *Papal Infallibility*, by a Roman Catholic layman, 1876, p. 16.
- [181] Page 111.
- [182] Murray, *Tractatus de Ecclesia Christ.* ii. (1), p. 171.
- [183] Ollivier, *L'Eglise et L'Etat*, ii. p. 9.
- [184] *Quirinus*, p. 290.
- [185] Thureau Dangin, ii. p. 336.
- [186] *Ibid.* p. 343.
- [187] *Ibid.*
- [188] Gasquet, *Lord Acton and his Circle*, p. xxxix.
- [189] "Ultramontanism," *Home and Foreign Review*, iii. p. 173, 1863.
- [190] "Ultramontanism," *Home and Foreign Review*, p. 175.
- [191] *Ibid.* p. 177.
- [192] Inge, *Truth and Falsehood in Religion*, p. 41.
- [193] Cf. Bishop Ullathorne. Letter on the *Rambler*, 1862, p. 3.
- [194] Acton, *History of Freedom*, p. 446.
- [195] *Ibid.* p. 449.
- [196] Acton, *History of Freedom*, p. 452.
- [197] Acton, *History of Freedom*, p. 454.
- [198] *Pastoral* (1862), p. 9.
- [199] *Ibid.* p. 42. A.D. 1862.

- [200] *Expostulation*, p. 5.
- [201] *Essays on the Church's Doctrinal Authority*, pp. 20, 34.
- [202] Cf. *Church Times*, 26th July 1907.
- [203] 1866, Thureau Dangin, iii. p. 111; Purcell, *Manning*, ii. p. 321.
- [204] See *Guardian* article, 6th June 1906, from *the Month* of January 1903.
- [205] *Life of Pusey*, iv. p. 128.
- [206] *Standard*, 7th April 1870; Salmon, *Infallibility*, p. 22; Thureau Dangin, iii. p. 124.
- [207] Thureau Dangin, iii. p. 124.
- [208] *Autobiography*, p. 41. Cf. Purcell, *Manning*, ii. p. 439.
- [209] *Pastoral* (1867), p. 23.
- [210] *Ibid.* (1869), p. 142.
- [211] *Pastoral* (1867), p. 40.
- [212] *Ibid.* p. 41.
- [213] *Pastoral* (1867), p. 119.
- [214] *Pastoral* (1867), p. 40.
- [215] *Ibid.* p. 41.
- [216] *Pastoral* (1867), p. 90.
- [217] Purcell, ii. p. 454.
- [218] *Life of De Lisle*, ii. p. 73.

CHAPTER XI

ULTRAMONTANISM IN FRANCE

1. A POWERFUL if unintentional contribution to Ultramontanism was Napoleon's reconstruction of the French Episcopate.

The nineteenth century found the Church of France in a desperate condition. Overthrown by the Revolution, and deprived of its possessions and its sanctuaries, many of its Royalist Bishops were refugees in England from a form of government which they abhorred; and the Pope himself (Pius VI.) died, a captive of the Revolution, in French territory (1799).^[219] But with the new century Napoleon rose to power. He saw that, in spite of the dominant Atheism, France was Catholic at heart; and resolved upon a restoration of the Catholic Church. Accordingly he sided with the Papacy. But since the exiled prelates were notoriously hostile to the Revolution, being zealous adherents of the old Monarchy, he was convinced that their readmission would provoke social disorder and irreconcilable strife. On this ground he required Pope Pius VII. to make a clean sweep of the entire French Episcopate, either by their resignation or their deprivation.^[220] This was to be followed by a complete reconstruction of the dioceses, and reappointment to the newly-constituted Sees. Fifty diocesan Bishops were henceforward to exist, together with twelve Archbishops, while more than half the ancient Gallican Episcopate was to be entirely swept away. Against this revolutionary proposal Pius VII. protested, but he protested in vain. The master of France was inexorable, and Pius was compelled to yield. Cardinal Consalvi,^[221] the Papal Secretary, says that he vainly urged that the deposition of one hundred French Bishops without condemnation was unprecedented in the annals of Christendom, that nothing could be more ruinous to the famous Gallican liberties. But the iron will of Napoleon broke through all remonstrances, and the Pope was compelled to require the French Bishops to place their resignation in his hands.^[222]

Some complied. Some delayed and temporised. Others refused. The refugees in England replied that, holding their episcopal commission from the Holy Spirit, who had constituted them rulers in the Church of God, they could not submit to the Pope's requirements.^[223] Nevertheless, their existence was ignored, and the combined power of Pius VII. and Napoleon Bonaparte carried this ecclesiastical revolution into effect.

Napoleon reserved to himself the right of appointment to the newly constituted Sees.^[224] This unprecedented act of supreme authority^[225] was, of course, altogether distinct from Infallibility; but it formed a precedent for almost limitless submission, and promoted a spirit of resignation to authority, which afterwards exhibited itself in the province of dogmatic truth, and contributed indirectly not a little to the passing of the Vatican Decree. It also shook the whole constitution of the Church of France. Its effect on Gallican ideas was naturally great.

The French Minister Ollivier goes so far as to maintain that the Roman Court, in spite of its persistent efforts, would only have secured uncertain advantage if the French Revolution had not come to its aid.^[226]

But still down to 1870 the French Government retained in its control the right of nominating the Bishops. And this right it exercised independently of the papal desires. Pronounced Gallicans were elevated to the Episcopate in spite of Pius IX.'s objections. At times, when his concurrence was delayed, pressure was instantly brought to bear from France. And that pressure it was not prudent to resist; for at that period France was the protector of the Papacy.

It is sometimes said that the old Gallicanism perished in the French Revolution. This is misleading. The Church and the Monarchy had stood together, and the overthrow of the one broke the power of the other. In the altered circumstances the papal claim over monarchs became practically impossible. It was never denied at Rome, but it was not asserted. It was left discreetly in the background, and consequently the old Gallican political protest became meaningless. But the old spiritual principles were re-affirmed in France in 1820 by Cardinal de la Luzerne with not less vigour and frankness than in the days of Bossuet.

The independence of the temporal power from papal authority, says Cardinal Luzerne,^[227] is a question which he does not intend to discuss. Not because he has the slightest doubt upon the subject; on the contrary, the complete independence of the temporal power is of all the Gallican maxims that to which he is personally most strongly attached. He deplores from the depth of his heart that the Popes ever asserted the opposite principle. Their pretensions have been disastrous to the Catholic Church, and particularly so to the Holy See. But his reason for not discussing the subject is that the Gallican principle finds hardly any opponents even in Italy. Since Italian writers do not attack it there is no need to defend.

But on the question of Papal Infallibility he feels constrained to express his strong adhesion to the Gallican doctrine.^[228] The partisans of Infallibility affirm that when the Pope, taking the necessary precautions, speaks officially, he is infallible, and his decisions are unalterable laws for all the Church. That is the Ultramontane opinion. We, on the contrary, says Cardinal Luzerne, do not believe the Holy Father to be infallible. We believe that when he acts as Pope his decisions ought to be respected; but his dogmatic decrees, however worthy of regard, are not infallible, and only exact an outward submission, but not an inward assent until they are endorsed by the acceptance of the Universal Church. Papal decisions have weight—some more, some less. They are not equal in authority, and none of them are infallible. The Ultramontane system, that the Pope is infallible when he speaks officially, sins against the truth in the essential point of novelty.^[229] Gallicanism, if it had a political side, was essentially ecclesiastical and spiritual. Its political interest was to protect the rights and claims of a national Church. It regarded the Church of each people as a definite entity, although of course merged in the unity of the Universal Church. But this was not the fundamental principle of the Gallican idea. The heart and centre of their contention lay in the rights of the Collective Episcopate, as contrasted with the claims of the Papacy. And the whole of the struggle which issued in the Vatican Assembly of 1870 was a struggle between these two conceptions of spiritual authority.

The extent to which the old Gallican principles prevailed in France of the early nineteenth century may be gathered from Bergier's Theological Dictionary, which was the French popular encyclopedia of theology, and obtained a great circulation.

“Infallibilist—The name sometimes given to those who maintain that the Pope is infallible,—that is to say, that when he addresses to the entire Church a dogmatic decree, a decision on a point of doctrine, it cannot happen that this decision should be false or subject to mistake. This is the ordinary opinion of Ultramontane theologians.”^[230]

Then after summarising Bossuet’s teaching, the article concludes that, since it is an essential function of the pastors of the Church to witness to the universal faith, the witness of the sovereign Pontiff taken by itself cannot produce the same degree of moral certitude which results from a very considerable number of concurrent witnesses. As head of the Universal Church, the sovereign Pontiff is undoubtedly well informed as to the general belief and is its principal witness; but his witness, united to that of a vast multitude of Bishops, possesses quite a different force than when it is alone.

2. There were the Ultramontane writers in France, who contributed vastly to the propagation of Roman ideas.

One of the pioneers of Ultramontane development was Joseph de Maistre. Connected for some time in the first half of the nineteenth century with the Court of St Petersburg, he had all the instincts of the diplomatist; and his religious ideal was to see modern Christian society under the absolute control of the political papal dictatorship of the Middle Ages. Manning once ventured the remark that Gratry was no theologian. It has been said with far more accuracy that De Maistre was neither an historian nor a theologian, but rather one who transferred to the province of ecclesiastical control the principles and methods of diplomatic procedure. He was a man of remarkable vigour and pertinacity; a man of logic in his way, pushing relentlessly to extreme conclusions on the basis of a brilliant assumption; audacious in his assertions, and confident with an unsurpassed serenity.

The movements of modern thought, the aspirations towards larger freedom, were to De Maistre thoroughly repugnant.

“The audacious race of Japhet,” he writes, “has never ceased to advance towards what it describes as liberty; that is, towards a state in which the governed is governed as little as possible, and is always on guard against its masters.”

Such was his attitude towards European progress and development. This was written in 1844, and may doubtless be partly explained by the time; but this was the spirit in which he approached the doctrine of papal authority. And the method in which he attempted to advance the Ultramontane opinions may be gathered from such examples as the following.

If the Gallican School set the Council above the Pope, as the final judge in matters of faith, De Maistre entirely depreciates the significance of Ecumenical Councils. His estimate of their value as compared with his valuation of the Papacy is almost contemptuous. Councils are, in his view, periodical or intermittent exhibitions of sovereignty. They are extremely rare, purely accidental, without any regularity of recurrence; easier to assemble in primitive days when the extent of Christendom was comparatively small. But in modern times an Ecumenical Council is a mere chimera. It would take five or six years to arrange. If the objection is made, Why were all these Councils held if the decision of the Pope sufficed? De Maistre adopts for his reply the following—“Don’t ask me; ask the Greek Emperors, who would have these Councils assembled, and who convoked them and demanded the consent of the Popes, and raised all this useless fracas in the Church.” De Maistre goes further still. Quoting the opinion of Hume on the Council of Trent, that “it is the only General Council which has been held in an age truly learned and inquisitive,” and “that no one expects to see another General Council until the decay of learning and the progress of ignorance shall again fit mankind for these great impostures”; he calmly observes that while in its spirit this is a “reflexion brutale,” yet in its substance it is worthy of consideration. Hume is right to this extent: that “the more the world becomes enlightened the less it will think of holding a General Council.” The world, he adds, has become too great for General Councils, which appear better adapted for the youth of Christianity. He admits that a Council may, indeed, be serviceable, and that perhaps the Council of Trent did what only a Council could do. But he is so exceedingly jealous of its possible interference with the absolute sovereignty of the Pope that he can find no more than this in its favour; except to conclude this

portion of his remarks with a curiously incongruous protestation of his perfect orthodoxy on the subject of General Councils. Thus De Maistre's Ultramontane proclivities completely blinded him to the true nature of this form of Catholic self-expression. We should not gather from his depreciative words that the Spirit of God had anything to do with the Councils of Christendom. It is singular, moreover, that a leader of modern Extremist views should have written in this strain only twenty-six years before the Vatican Council.

De Maistre's treatment of the case of Honorius forms a most curious psychological study. The condemnation of Honorius by a General Council was to the Gallican School a conclusive proof that the Church which so expressed itself knew nothing of Ultramontane opinions on Papal Infallibility. De Maistre has a theory which we believe is entirely his own. He draws from imagination an account of what Honorius might, from an Ultramontane standpoint, be expected to have said if he had been living at the time, and had entered into the deliberations of the Council which condemned him. Here is the speech which Honorius, it appears, ought to have made:—

“My brothers, God has undoubtedly abandoned you, since you dare to judge the Head of the Church who is established to pass judgment upon you. I have no need of your assembling to condemn Monothelitism. What can you say that I have not said already? My decisions are sufficient for the Church. I dissolve this Council by withdrawing from it.”

De Maistre could scarcely forget that the successor of Honorius, who on his theory ought to have made some protest against the Council's audacious treatment of their predecessor, omitted to make any. This is met with the remark that if certain successors of Honorius do not appear to have roused themselves against “the Hellenisms of Constantinople,” their silence only proves their humility and their prudence, and has no dogmatic weight. The facts meanwhile continue what they are. The fact that the successors of Honorius for centuries went on reiterating his condemnation is not mentioned by De Maistre. But, as he truly says, the facts meanwhile continue what they are. Yet he implies that they do not. For he then suggests that perhaps the Acts of the Sixth Council have been falsified. The possibility of such dishonesty in ancient times is illustrated from the letters

of Cicero. The application is then delicately left for the reader to make. As for the author, “Quant à moi, je n’ai pas le temps de me livrer à l’examen de cette question superflue.”

De Maistre’s argument for Papal Infallibility is a political argument pure and simple. All true government in human society is monarchy. And the ultimate decision in the political order must be regarded as an infallible decision. The sovereign power cannot permit the laws to be called in question. What sovereignty is in the political order, the same is infallibility in the spiritual. We only demand, therefore, for the Church the same prerogative of finality which we demand for the State.^[231]

Readers of Mozley on *Development* will remember his crushing reply to this transparent sophism.

“It is indeed absurd,” writes Mozley, “to expect that the mind should be satisfied with it, because what the mind wants is to believe what is true; and this argument does not touch the question of truth or error in the doctrines themselves decided on by this ultimate authority. It tells us the fact that they are decided on, and no more. It views the Church simply as a polity, and professes to apply the same principles to it which belong to other polities; and, wholly omitting its prophetic office of teaching truth, makes it impose its dogmas on us on the same principle on which the State imposes Acts of Parliament.”^[232]

This contribution to Ultramontanism received a criticism, also from the Roman Bishop Maret, just on the eve of the Vatican Council.

“These weaknesses,” says Maret, “of an able mind may remind us that the true seat of sovereignty and infallibility in the Church is not to be reached by logic but by appeal to Scripture and Tradition. Joseph de Maistre has not recognised this necessity. If he had not been a partisan dominated by a pre-conceived theory based on insecure foundations, he would have realised that a writer’s first duty was to make a careful study of the General Councils, if he would understand the Church’s constitution. And this he has most inadequately done.”^[233]

Here then, said a contemporary French critic,^[234] we have the doctrine of infallible authority humanised and rationalised. But the contradiction is too gross to permit this solution of the problem to be taken literally. The *tour de force* is too puerile. We decline to believe that De Maistre was altogether duped by it. It is impossible that he could not have seen the huge abyss which separates Infallibility, as the Church understands it, from civil sovereignty and final judicial appeal. The former not only demands submission, but assent, belief. The second only imposes respect and exterior obedience, without involving any interior conviction or belief; without preventing discussion, contradiction, and reversal by subsequent legislation.

The ability of De Maistre is everywhere acknowledged. But he is a crowning illustration of error by excess. He is afflicted, as the same critic said, with the malady of logical intemperance. He is a victim of his own love of paradox. His passionate, masterful desire to push everything to the most extreme conclusions lands one on the brink of an intellectual abyss frightful to contemplate. He escapes with acrobatic agility where in all reason he ought to fall, and would fall, if his passion did not sustain him; where certainly calmer men must fall.^[235]

In addition to De Maistre, there was Lamennais—a philosopher rather than a theologian; clever, acute, impassioned, rhetorical; a sort of French Tertullian. In profound mistrust of human reason, he threw himself with emotional violence into the work of exalting authority as the one refuge and salvation against error. Unbalanced and extreme in all he did, he ended in an equally violent reaction against the very authority which he had laboured to exalt. But the moral of the change was lost upon his countrymen. Scandalised by his apostasy, they clung to his earlier ideals, and continued to maintain what the master had forsaken. He lived in discredit and died in distress, after mournfully witnessing the wide extension of an Extremist school, which he had devoted his best years to create, but was totally unable to restrain.

3. A third important factor was the *political pressure* exerted by the French Government upon the Church. The influence of Napoleon promoted

the very last thing he desired, “for a Church, pinched, policed, and bullied by the State, was inevitably thrown back upon the support of the Papacy.”^[236]

From this despotic treatment at home the Church naturally turned its eyes towards Rome. Rome, with its troubles and misfortunes, grew more dear. A whole school of deeply religious and saintly men arose in France, filled with enthusiastic devotion to the See of Peter. Lacordaire—whether defending the cause of religious education, or submitting himself to an adverse decision from Rome when his master Lamennais broke away, or re-establishing the order of Dominicans in France, or advocating the papal authority in the Cathedral at Paris—produced an immense effect in enlisting the sympathies of men with Rome. The gifted Montalembert,—eloquent, imaginative, threw the weight of his power and high position into the papal cause, and became among laymen recognised leader of Roman interests. The great Bishop Dupanloup, warmest-hearted of men, impulsively gave the movement an indiscriminating blessing, and brought upon himself numerous expressions of papal gratitude.

None of these were far-sighted men; none of them realised in the least the ultimate drift of the authority they so powerfully advanced. Lacordaire died before the question of Infallibility came within the council chamber of the Church; but Montalembert and Dupanloup alike beheld the prospect with consternation, and expressed their vehement disapproval.

4. Another element which is said to have contributed to make the French priests as a body largely Ultramontane was the despotic power of the French Episcopate. Probably no Bishops in Christendom were such autocrats as the French. The account given by the French statesman Ollivier, which is confirmed from other sources, represents the ordinary priest as subjected to a virtual slavery. If the despotic power of the French Bishops over their priests was to some extent moderated by piety, yet anxiety to maintain their authority constantly issued in acts of pitiless severity. The greater portion of the French priests were dismissible at will, without judicial process, or adequate opportunity for self-defence. Ollivier

considers the causes of dismissal to have been frequently quite insufficient. One Bishop alone removed one hundred and fifty priests in a single month, and the State declined to interfere. Under these circumstances the Pope intervened. He took the part of the priests against the Bishop, and asserted the right of the inferior clergy to appeal to himself. From that moment, says Ollivier, Ultramontanism, hitherto forlorn enough, pervaded the mass of the priesthood. Down-trodden by a Gallican Episcopate, the priest hastened to proclaim the infallibility of a Pope by whom his own superiors might be the more effectively controlled. Ultramontanism grew to be a passion in the clerical world. And this movement from beneath affected the Episcopate. Either they were driven on by the force of the stream, or left stranded without the general sympathy. Ollivier says that whereas, in the past, men spoke of Gallican independence, it became a commonplace of Vaticanism to speak of French docility.^[237]

5. Another impressive step in the direction of Papal Infallibility was taken in 1854 by Pius IX. when he declared the theory that the Blessed Virgin Mary was immaculately conceived to be a dogma of the Church. This theory—rejected by St Bernard and by St Thomas, “a thesis of a theological school of the Middle Ages,” opposed by the Dominican order—was pronounced by Pius, on his sole authority, not with the concurrence of a Council of Christendom, to be of faith. And to this decree the entire Roman Communion submitted. No such act had occurred in the Church before. And although this act could bear constructions not involving Infallibility, for the Gallican might ascribe its validity to the tacit consent of the Church, yet it powerfully promoted the Infallibility view; and it was constantly appealed to as a practical exercise of infallible authority and a justification for the Vatican Decrees of 1870.

Thus, if the doctrine of the Infallibility of the Church as opposed to that of the Pope was formerly the prevalent belief in France, as the independence of the Church of France diminished, the authority of Rome increased. The pressure of episcopal authority over the priests led the latter to magnify the distant authority of the Pope as a balance to local control; and while the Bishops resented, the priests desired an increase of papal

power. Meanwhile the Roman See, wherever practicable, filled places of influence with Ultramontanes. The whole weight of the Jesuit teaching was thrown unitedly, persistently, and with tremendous force, in all these schools into the scale of Infallibility.

[219] Jervis, iii. p. 323.

[220] *Ibid.*

[221] Consalvi, *Mémoires*, i. p. 345.

[222] Jervis, p. 363.

[223] *Ibid.* p. 373.

[224] *Ibid.* p. 362.

[225] Lord Acton calls it “the most arbitrary act ever done by a Pope.”—*Hist. Freedom*, p. 323.

[226] Ollivier, i. p. 280.

[227] *Works* (Migne’s ed.), ii. 14.

[228] *Works*, ii. p. 37.

[229] *Ibid.* p. 38.

[230] Bergier, *Dictionnaire de Théologie* (1850).

[231] *Du Pape*, p. 20.

[232] Mozley, *Essay on Development*, p. 126.

[233] Maret, ii. p. 313.

[234] *Revue des deux Mondes* (1858), p. 643.

[235] *Revue des deux Mondes* (1858), p. 630. Cf. Lenormant’s opinion of Joseph de Maistre: “Il avait plus de talent que de science, et surtout de bon sens, et pour ma part, je ne me rangerai jamais parmi ses disciples.”—*Les Origines de l’Histoire*, i. p. 67, *n*.

[236] Cf. Cambridge Modern History. *French Revolution*, ix. p. 771.

[237] Ollivier, i. p. 300. See also the anonymous pamphlet, “Pourquoi le Clergé Français est Ultramontane” (1879).

CHAPTER XII

DARBOY, DUPANLOUP, MARET, GRATRY, AND MONTALEMBERT

THE Archbishop of Paris in 1870 was Mgr. Darboy. The records of his See had been recently a series of ghastly tragedies. His immediate predecessors were Quélen, Affre, Sibour, and Cardinal Morlot. Only the last had died a natural death. Affre was shot on the barricades, and Sibour assassinated by one of his own priests. Darboy himself was destined to be added to the same terrible list. He was shot in prison during the Commune in 1871. His religious sympathies were the reverse of Ultramontane.

“By his early theological training, by mental tendencies, and not less by the traditions of the Diocese and See of Paris, Mgr. Darboy,” says a biographer, “was devoted to the ancient principles of the Church of France.”^[238]

Darboy strove to maintain the ancient rights and authority of the Episcopate, and made no secret of his repugnance to—nay, he openly rejected—the theory that the Roman Pontiff possessed direct and immediate authority over every separate diocese. And, while he was a strong supporter of the Pope’s temporal power, he held to the time-honoured principle, that no papal document could be published in France without State permission. His great position and remarkable gifts of caution and self-control made him a power to be reckoned with, whether in France or at Rome. In the Vatican he was disliked and feared, as one of the strongest obstructors to Ultramontane conceptions. Napoleon III., who appointed him Archbishop, requested Pius IX. to raise him to the Cardinalate. The Pope would neither refuse nor consent. But he gave expression to his disgust in a private letter^[239] to Darboy, rebuking him in the severest terms for holding opinions injurious to the papal authority. Darboy replied, with dignity and self-control, that he had no desire to offend. But he gave no suggestion of any change of mind. “I avoid argument,” he wrote, “because I do not desire to argue with a superior on the basis of a letter containing inaccurate

statements of fact, and imparting to me words which I have not spoken.” This was in the autumn of 1865.

In the June of 1867 the Archbishop went to Rome in order to bring about an understanding. Shortly after his arrival he had an audience with the Pope. The audience began with a long and awkward silence, interrupted at length by Darboy, who observed that he was ready to hear the Pope’s orders, unless the Pope preferred that the Archbishop should speak first. Pius then requested Darboy to speak, which he did, explaining at considerable length the position of things in his diocese. Pius expressed himself contented; and Darboy returned to Paris, where he gave an account of this interview to his assembled clergy, to whom he was closely united both in opinion and sympathy.

However, the incident was by no means closed. In August 1868 the Pope’s letter of 1865 appeared in a Canadian newspaper, and was shortly copied and circulated all over France. The effect of the publication of one of the severest rebukes which a modern Bishop has received from Rome was naturally injurious to the Archbishop’s authority. Darboy expostulated with Cardinal Antonelli. His explanations to the Pope, he said, appeared sufficient, if not complete. At any rate, no further allusion to the subject had been made in subsequent correspondence with the Holy See. Darboy had left Rome with the impression that an understanding was secured, or the subject set aside. And behold, suddenly the letter of 1865 had been drawn out of its privacy and thrown into full publicity. Now, since the letter was highly unfavourable, it was clear that the publication was not his doing. The act did not look like courage, and had all the drawbacks of indelicacy.

Antonelli replied diplomatically that the incident was very regrettable, especially since the motives prompting this exposure could hardly be described as they deserve. But, while concurring in the Archbishop’s condemnation of the act, he was bound to add that the Pope was innocent of it and in no way responsible. Darboy considered this to be an extremely unsatisfactory evasion, and wrote again, indicating that suspicion attached to certain officials. Antonelli answered that the officials entrusted with correspondence at Rome were above suspicion. He admitted, however, that the Nuncio at Paris received a copy of the letter, with permission to show it to the French Minister of Worship in case of necessity. It was not, however, likely that he had availed himself of this permission, or that he had been so

indiscreet as to publish it. Antonelli suggested that possibly the perpetrator was an ecclesiastic resident in Paris; but how a copy of the Pontifical letter could have been secured, he was unable to explain.

Expostulations from the French Government failed in eliciting any less unsatisfactory reply. Vague suspicions and unproved possibilities were all that the Archbishop received. No real apology was ever given; no attempt made to repair the mischief done. But sincere relations of mutual confidence between the Archbishop and the Holy See were made from that time forward exceedingly difficult. It appears that Manning was commissioned at Rome to intervene. He visited Paris in the autumn of 1868, and assured Darboy of the Pope's "paternal sentiments" towards him. He suggested that a conciliatory overture from the Archbishop would be well received at Rome. Darboy declined. After Napoleon's advocacy of his claims to the Cardinalate any such step would seem nothing better than the promptings of self-interest. Thus the Archbishop reserved unimpaired his freedom of expression. Before leaving Paris, to attend the Vatican Council, he gave utterance to his convictions once again, in a pastoral letter to his Diocese. ^[240] Dealing with disquieting anticipations of coming dogmas; new articles, likely to be imposed on Catholics, which hitherto no man had been required to believe; assertions that the minority would be treated as an opposition, and speedily suppressed; Darboy seized the opportunity of reaffirming the ancient principles:—

“If the Ecumenical Council orders explicit belief in matters hitherto open to denial without charge of heresy, it must be because these matters were already certain and generally acknowledged. For in these questions, Bishops are witnesses who testify, not authors who discover. The conditions essential to an article of faith are: that it be revealed by God; and that it be contained in the Deposit which the Christian centuries have faithfully guarded and transmitted one to another without alteration. Now it is incredible that five or six hundred Bishops will affirm in the face of the world that they have found in the convictions of their respective Churches that which is not there. If, then, they propose in Council truths to be believed, it is because these truths already exist in the evidence of Tradition,

and in the common instructions of Theology; and thus that they are not something new.”

What Darboy meant by these guarded words, and what his clergy understood him to mean, is beyond dispute. The theory of Papal Infallibility was not contained in the traditions of the Diocese and See of Paris. The contrary theory had prevailed. The Archbishop went to Rome with a full intention of saying so—and he said it.

When Darboy arrived in Rome, he was speedily admitted to an audience with the Pope. He was one of the few to whom this privilege was given. The Pope had decided not to give special audiences before the Council assembled. But the Archbishop of Paris could not well be left out. The very security and existence of the Council depended, humanly speaking, entirely on the goodwill of France. Accordingly the Archbishop of Paris had to be received. It was a difficult interview. Darboy complained of the publicity given to the letter of 1865, which, being confidential, ought never to have been yielded to general curiosity, by persons surrounding the Pope. Moreover, the letter contained inaccuracies and errors. The Archbishop said that he had refrained from a public defence, partly from reluctance to correct the assertions of his spiritual chief, partly because such defence would be open to misconstruction as prompted by personal ambition.

The Pope, who thoroughly appreciated the allusion in these last words, replied sympathetically; adding that he would not henceforth believe any accusation against the Archbishop. He also expressed his gratitude for the security which the Imperial protection afforded him.

2. Dupanloup, Bishop of Orleans, was in the year 1868 at the height of his reputation. No warmer advocate of papal rights existed in France. In youthful fervour he had written a thesis on behalf of Infallibility, a theory, however, which he had long since abandoned in favour of the French traditional view. That which more than anything else had confirmed this reversion to history was the issue of the Syllabus of 1864, which was to his mind a republication of obsolete mediævalism, most unsuited to the requirements of modern thought. For Dupanloup was in keen sympathy with modern ideas; and this example of the possible exercise of unlimited authority discouraged and alarmed him, as indeed it did most of the leaders of the Church in France. With this disconcerting fact before their eyes,

nothing could be further from their desires than to extend an authority already so imprudently exerted. Distrust of infallible pretensions, decided preference for the older Gallican theory, accordingly, widely prevailed.

Dupanloup had no suspicion that the Vatican Council would determine the doctrine of Papal Infallibility. He was able, so late as 1868, to write to the clergy of his diocese a glowing, re-assuring letter on the coming assembly. It is an affectionate pastoral utterance, whose logical cohesion must not be too closely inspected. He is persuaded that all is well, and he says so in various forms. He assures his clergy that, according to Catholic principles, Bishops united in council with the Pope “decide questions as witnesses of the faith of their Churches, as judges by Divine right.” He is convinced that this traditional principle will be maintained. Catholics have no cause to fear. A Council is a sublime union of authority with liberty. This will be illustrated in the coming events in Rome. He appeals with impassioned eagerness to the separated Eastern Churches, and to the Protestant communities, to seize this golden occasion for unity. In his glowing vision the Council is invested with all the graces of considerateness and caution: it becomes the means of re-uniting Christendom—a work of pacification and of light.

The condition of the Church in France at the time when the assembling of the Vatican Council was proclaimed may be partly ascertained from some extremely important and trustworthy sources.^[241] Cardinal Antonelli sent a circular to the Nuncios in December 1868, asking for periodical reports on the attitude of Governments towards the Council; on the conduct of Bishops relative to the same; on the general bearing of non-Catholics; on the opinions of the Press, books and pamphlets issued upon the subject; and on the desires and requirements of each country. The Apostolic Nuncio in Paris induced four ecclesiastics privately to undertake this task, and a careful and elaborate memoir was the result. The report states that the section of the Press commonly called Ultramontane, such as the *Monde* and the *Univers*, wrote on the Council daily, but offended many by their general tone and the length to which they went.

The French clergy are described as pious and reciting their breviaries, but in education poor. As to the general condition in France, Catholics are divided into two classes: Catholics pure and simple, and liberal Catholics. These latter are the object of preference to the Government. They fear that

the Council will proclaim the dogmatic Infallibility of the Pope. The assertion circulates that if the Pope is declared infallible it will be necessary to change the language of the Creed from "I believe in the Church" to "I believe in the Pope." But the great majority of Catholics submit by anticipation to whatever the Council may proclaim. They admire the courageous convocation of the Council in such stormy, revolutionary times. They do not conceal from themselves that the Sovereign Pontiff, by a sentiment of august reserve, may not desire to take the initiative in a matter affecting him so personally. But they hope that the Fathers of the coming Council will define it by acclamation. This report was sent privately by the Paris Nuncio to Cardinal Antonelli in Rome. To the astonishment of its four compilers, it appeared, substantially, shortly after, in the pages of the *Civiltà Cattolica*, the more or less official Roman journal under Jesuit influence. This discovery that they were being merely utilised as reporters for an Italian magazine, and that their confidential communications were published in print, under the heading "Correspondence from France," so disgusted the compilers that the Nuncio had to tell Antonelli that they declined to continue. They feared, not unnaturally, that recognition of authorship in France might lead to serious results for themselves. This article led to an able French reply,^[242] which accused the Roman publishers of having printed exclusively in the interests of the Ultramontanes, and of eliminating everything adverse to the designs of a certain party in the Church. They had issued in this Italian magazine an Ultramontane manifesto by no means concurrent with the material of the original report. The article in the *Civiltà Cattolica* does not, said the critic, report what actually exists in France, but what Rome desires to find existing. France and its Government are persuaded that the opinion of sole Papal Infallibility is not accepted by the vast majority of French clergy, whether priests or bishops; and they have the right to hope that the Church in council assembled will have the wisdom to avoid the theme.

But this pronouncement of the Italian journal filled Dupanloup with consternation. The high position of the journal was beyond dispute. The vast distinction between its definite and extravagant utterances and the vague generalities of the Pope's own statement was equally obvious. And yet, situated as they were in Rome, could the editors have dared to publish such assertions if entirely destitute of official recognition? Dupanloup's grief was great. Yet for a time he was silent. Meanwhile a storm of

controversy broke out. Writings for and against Infallibility appeared in all directions.

The Ultramontane doctrine was defended by Dechamps, Archbishop of Mechlin, afterwards appointed by the Pope Primate of Belgium.^[243] The Belgian Episcopate was small but united; only six attended the Vatican deliberations. But they were altogether Ultramontane, being appointed direct from Rome. Dechamps defended the theory of Papal Infallibility chiefly on *à priori* grounds. He maintained that a doctrinal authority, Divinely established, *ought* to be infallible. Unless it makes this claim, such authority cannot be Divinely established. For that which may deceive us, or leave us in error, cannot be Divine. He endorsed the principle of De Maistre, that Infallibility is a necessary consequence of supremacy. One who pronounces absolute dogmatic decisions, and addresses them to all the faithful and the entire Catholic Episcopate, without requesting the consent, either direct or indirect, of the Episcopate, but rather commanding them to publish and carry out his decisions, forbidding them to infringe them, or rashly oppose them, under penalty of *de facto* excommunication, is personally infallible. Otherwise his dogmatic constitutions are a tyrannical usurpation of the rights of the Episcopate. And, since Dechamps does not admit the possibility of the latter alternative, he reaches quite satisfactorily his own conclusion.

Thus, to the Archbishop's mind, the Infallibility of the Holy See is an indisputable truth, based on revelation, contained in the written and traditional Word of God. It is inseparably bound up with truths which are of faith. Venturing into the department of history, the author believes that Pope Honorius miscalculated, through inability to foresee the results of his diplomatic endeavours, but committed no theological error. He insinuates a suspicion that the Greeks have falsified the Acts of the Sixth Council. They have so often done this sort of thing. During the first fourteen centuries the Infallibility of the Papal See was, according to Dechamps, never called in question. That Bishops opposed the Pope, he admits. But only those who sided with the Pope constituted the Church. The doctrine is, he assures his readers, incontestably Catholic. A man can be a heretic in the sight of God without being so in the sight of the Church. He is a heretic if he rejects a truth which he knows to be revealed although not defined. There is to Dechamps only one truth in all the Gospel affirmed with the same

superabundant clearness as Papal Infallibility, and that is the real presence in the Eucharist. Do not therefore let us hesitate to define this truth, which forms the basis of the Divine constitution of the Church—a truth which Scripture conclusively reveals, and which twenty centuries have glorified.

This treatise was highly commended at Rome. Pius himself congratulated Dechamps on the sagacity and erudition with which he had refuted the cavils of opponents.

3. Then Mgr. Maret, Bishop of Sura, published his book: probably the most measured, learned, and conciliatory statement of the ancient doctrine which the French Church had seen since the days of Bossuet.

Maret's two scholarly volumes were not written for the multitude. They could only appeal to the few. They form a long historical treatise on the relation between the Papacy and the Episcopate. History, as understood by Maret, shows in the Church a monarchy limited by an aristocracy: a Pope regulated by Bishops. The jurisdiction of the Episcopate is not derived from the Papacy but from Christ. Maret disclaims any intention of diminishing the real prerogatives of the Apostolic See.^[244] but he is bound to assert historic truth. History shows that there were Bishops in the early Church who did not derive their jurisdiction from St Peter. If Antioch can be traced to him, the Asiatic Churches are traced to St John. It can be proved that numerous Bishops have held their mission neither directly nor indirectly from the Roman See. Their institution is not by Divine right an exclusive papal prerogative.

Episcopal jurisdiction being direct from Christ, all Bishops assembled in council possess an equal right. The Infallibility of the Church is collective, not individual; not to be sought in the isolated utterances of the one, but in the concurrent testimony of the entire Episcopate. Bellarmine, the leading advocate of the opposite school, is implicated by his theory, according to Maret, in insoluble difficulties. For he admits that, for an utterance to become infallible, there are certain conditions to be fulfilled, such as serious and prolonged reflection and consultation with the Pope's advisers. If these were neglected the result would be insecure. But, conscious that this conditional Infallibility diminishes its worth, Bellarmine asserts that an ill-advised definition is impossible; since the Almighty, having willed the end, must also will the means. The precarious character of such *à priori*

constructions is to Maret sufficiently self-evident. The scriptural evidence points the other way. Our Lord, says Maret, did not cause His prayer to preserve St Peter from a lamentable defect of faith: for God respects man's freedom. At the most solemn hour in all time—that when the mystery of universal salvation was being accomplished—the chief of the Apostolic College denies his Master thrice. If he quickly recovered, wept bitterly, and grew deeper in love, the analogy would be, not the preservation of his successors from defects of faith, but their speedy recovery; that inconsistencies in papal decisions should be transient, and not permanently affect their loyalty to the truth. Whatever may be said about the letter of Honorius, what is absolutely certain is that he did not strengthen his brethren. Often in the Councils of the Church a papal utterance has been placed before the Bishops. If this utterance were in itself infallible, the only reasonable attitude would be passive obedience and blind submission. This is not the attitude of true judges, such as the Bishops have been traditionally regarded.

Maret complains that the doctrine that Infallibility resides in the Collective Episcopate is sometimes disparaged as Gallican; whereas it is by no means restricted to the Church of France, although it possesses there its principal exponents. Modern Ultramontanism is to Maret a lamentable phenomenon, greatly promoted by the ill-regulated influence of such extremists as Lamennais and Joseph de Maistre. It involves a treatment of history which but for *à priori* theories would be inconceivable.

In the midst of this increasing storm Dupanloup wrote, in reference to his former vision: “Ah! I had drawn an ideal of a Council full of charity, zeal, and love: and behold, all of a sudden appears a scene of lamentable disputes.” But still he published nothing until Manning's Pastoral appeared, and that provoked him to public protest. It was November 1869 when Dupanloup circulated his *Observations*, and into its pages he put his whole mind and heart.

It was natural, said the Bishop to his clergy, that filial piety should desire to adorn a father with all gifts and all prerogatives; but, congenial as these instincts were to filial piety, the definition of a dogma demanded other considerations than sentiment. Journalism, in the pages of the *Civiltà Cattolica*, had assumed the right to anticipate theological decisions; and declarations of faith in the personal and separate Infallibility of the Pope

were being elicited from the most simple-minded and unqualified. It was actually being taught—the reference is to Manning—that the Pope was infallible “apart from the episcopal body whether united or dispersed.” In reply to these extremists, Dupanloup did not reject the doctrine categorically: he confined himself to the assertion that its definition was inopportune. Yet he marshalled such an array of difficulties and objections as to imply much more than the inopportuneness of definition.

Dupanloup declares that he cannot believe that Pius IX. has assembled the Council to define his own Infallibility. This was never mentioned in the Pope’s address as one of the grounds for its convocation. The purpose, according to Pius IX., was to remedy the existing evils in the Church and in social life. Was it credible, asked Dupanloup, that in the midst of the many urgent problems here suggested and implied, a novel, unexpected, and profoundly complex and thorny question was to be thrown in the way, to ruin the prospects of unity, and to provide the world with scenes of a painfully discordant type? Doubtless, he continued, men would assure him that a principle was at stake:—

“A principle!” echoed Dupanloup; “even granting that were so, I answer, Is it then essential to the life of the Church that this principle should become a dogma of faith? How, then, explain the fact that the Church has lived for eighteen centuries without defining a principle essential to her existence? How explain the fact that she has formulated all her doctrine, produced her teachers, condemned all heresies, without this definition?”

Accordingly the Bishop denies that there can be any necessity. It is the Church which is infallible, he says, and the Infallibility of the Church has been to this hour sufficient for all religious needs. Dupanloup earnestly recalled the Ultramontanes to earlier principles which long prevailed in Christendom. The principle to be observed in defining doctrine is that given by Pius IV. to the Council of Trent: Let nothing be defined without unanimous consent. Dupanloup remembers well that when he was in Rome, in 1867, Pius IX., in discussing the projected Council, was most solicitous that subjects which might divide the Episcopate should not be brought before it. And in a recent reply to some English ministers as to terms of reunion, the Pope had spoken of papal supremacy, but not a word of Infallibility. If certain journalists still proclaim this theory and expect to

intimidate the Bishops into silence, Dupanloup's reply is, They neither know Pius IX. nor the Episcopate.

Dupanloup's transparent sincerity none will doubt. But in face of the facts at our disposal, it is singular that he was so little able to read the signs of the times, or to estimate the forces at the disposal of the Infallibilist party. It is clear that he proposed to go to Rome totally ignorant of the issues before him, frankly disbelieving that Infallibility would come within conciliar discussion. It is clear that whatever service he had rendered to the papal cause, he was not in the confidence of Pius IX. But that this doctrine was the deliberate aim for which the Council was gathered is probably now a settled conviction with serious students of history. It is simply incredible that so far-sighted a Curia as that of Rome was suddenly led by impulse to the formulation of a dogma most momentous yet quite unforeseen.

If Dupanloup pronounced the dogma of Papal Infallibility most inopportune, it was partly because he understood sympathetically the conditions of religious life outside the Roman Communion, and knew that nothing in the world could be less calculated to win. He wrote most forcibly on the futility of inviting, as the Pope had done, the Oriental Bishops of the separated Churches to attend a Council, while preparing to erect a higher barrier than ever against their reception. Could anything, he asks, be less persuasive than this? "There is already a division between us: we will make it an abyss. You already deny the Supremacy; we require you to accept the personal Infallibility!" Dupanloup is aware that certain recent converts ardently desire this doctrine. But he knows also Protestants desiring to become converts whom the doctrine will effectively repel.

But it is in reference to the difficulties which the dogma must create within the Communion accepting it that Dupanloup is, perhaps, most impressive.

1. He sees that grave difficulties must attend the attempt to distinguish papal utterances which are infallible from those which are not. What are the precise conditions of an utterance *ex cathedra*? It is generally assumed that all pontifical utterances have not this character. Does it depend upon external conditions, such as the person or body to whom it is directed, whether an individual, a local Communion, or the Universal Church? Is it subjected to internal conditions; and if so, what? Must the Pope reflect,

study, pray, take counsel; if so, with whom? Or need he merely speak? Must his utterance assume a written form, or will verbal message be enough? Is the Pope infallible if he addresses the whole Church but acts under intimidation? And if fear disqualifies infallible deliverance, does not also perverseness, imprudence, passion? Or will the partisans of Infallibility say that the Almighty allows the former, but miraculously prevents the latter? And will it be easy to determine what constitutes constraint?

2. Then again he sees historical difficulties in the way. The definition of Infallibility must be retrospective. If the Pope be decreed infallible now, it follows that he must have been equally infallible from the beginning. The same character must rest on all decisions across eighteen centuries complying with the conditions essential to its exercise. Is the Council to make the application of the principle to the past, and investigate this theological field of history. Dupanloup recoils from the prospect of such investigations; nor is he happy about their effect upon the doctrine itself. Augustine taught that, after the judgment of Rome, there remained the Council of the Universal Church. This affirms the principle that, after the decision of the Pope, the decision of the Church is essential to a definition of faith. And Dupanloup manifestly held the same.

3. But difficulties increase. The Infallibility of the individual seems inconsistent with the Divinely constituted function of the Episcopate as judge and witness to the Faith. The whole principle of the Christian centuries has been that the collective testimony of the Episcopate is the ultimate expression in matters of faith. Bishops, says Dupanloup, are judges as to what the faith really is. They have always decided in Councils as true judges. The very expressions affixed with their signatures prove it. “Ego judicans, ego definiens, subscripsi.” Such was the formula. Was—but when Dupanloup wrote these sentences he had not anticipated the introduction of a novel form at the Vatican Assembly. A change of theory is appropriately accompanied by a change of phrase. Meanwhile the Bishop pursues his argument. If Papal Infallibility is independent of the Episcopate, then the essential prerogative of the latter would be done away. What defining power is left for the Bishops to exert? They can give, we are told, their sentence in the form of a simple assent. But will they be free to give their assent or to withhold it? Not in the least. They will be under an obligation to assent. But no doctrine would depend on their assent. For, on the Ultramontane theory,

the Pope's decision would bind all consciences of itself, independently of all episcopal approbation. But in that case, how could it any longer be maintained, as it has been maintained hitherto, that Bishops are real judges as to what is of faith?

Dupanloup's protest and adverse criticism on the dogma of Infallibility were delivered, as may readily be believed, with profound distress, and prompted by nothing but a painful sense of duty. He says that he is well aware of the hostile constructions which will be placed upon his words, of the disloyalty with which he will be charged. Yet such accusations will be as untrue as they are unjust.

"I dare to say," he writes, "that the Church of France has given such proofs of its devotion to Rome as give it the right to be heard, and the right to be believed, when it speaks of its attachment to the Holy See."

And he brings his letter to a close with words of sanguine expectation, soon to be piteously refuted by experience.

"I am persuaded that as soon as I have touched that sacred land, and revered the tomb of the Apostles, I shall feel myself far from the battle in a region of peace, in a midst of an assembly controlled by a father and composed of brethren."

Dupanloup, says Quirinus in the well-known *Letters from Rome*—

"attacked the opportuneness with such a powerful array of testimonies in his famous Pastoral that every one saw clearly that the doctrine itself was involved, though he never entered in so many words on the theological question."^[245]

"If Dupanloup says that he does not discuss Infallibility but opportuneness," observes a shrewd critic^[246] writing against him from Rome, "yet two-thirds of the letter are directed against Infallibility itself; for if the errors ascribed to the Popes were historic, such a definition would not only be inopportune but false."

Why, then, it will be asked, did Dupanloup conduct his antagonism on the basis of opportuneness rather than on that of truth? It was simply

because the opponents of Papal Infallibility, the German Episcopate in particular, refused to commit themselves unanimously to the latter position. They knew, of course, that they were greatly in the minority, and they believed that they could secure a numerical strength on the basis of opportuneness, which they could not expect on that of explicit rejection. And in the first instance their impression was correct. The position served its purpose for several months. It drew adherents to the opposition. “It provided waverers with a comparatively innocent method of resistance.”^[247] It left an easy loophole for escape in case the pressure at Rome became too strong. It gave its advocates immunity from graver accusations, to which they would be liable if the doctrine were decreed. It would be safer afterwards to be able to plead, “I did not assert its falsity, I only thought it inopportune.”

But however much the plea of the inopportune might increase at the beginning the party’s numerical strength, it involved it ultimately and fundamentally in the most incurable weakness. The plea of inopportunism is in the long-run an untenable plea. As Quirinus says:—

“A minority may be invincible on the ground of dogma, but not on that of expediency. Everything can be ventured to oppose a false doctrine, but not to hinder an imprudent or premature definition of a truth.”^[248]

It laid them open to Manning’s retort, “When was it ever inopportune to proclaim the truth?” It was the acid of such criticism which dissolved the apparent unity of the opposition. For it challenged the minority to say outright whether they believed the doctrine or denied its truth. And to do the latter in Rome under such conditions was no easy thing. Here was the fatal weakness by which the opposition came to grief. We may wonder what might have been the course of events had the opposition taken the bolder and stronger line.

Dupanloup knew perfectly that the publication of these searching criticisms on the doctrine proposed involved nothing less than the sacrifice of his popularity among the entire Ultramontane section of his Church. That however he could bear with comparative equanimity. Popularity had come to him: he never sought it. But what distressed him greatly was that his action would sadden Pius IX. True that the Bishop expressly confined

himself to the question of opportunism, and that he pledged himself beforehand to accept the Council's decisions, whatever those decisions might be. Nevertheless, in his memorable words, "I go as a judge and a witness of the faith," he had formulated a conception of the episcopal function which was not only ancient and world-wide, but irreconcilable with the theory of Papal Infallibility.

It was Dupanloup's great desire to be supported by Newman's teaching and authority; and to be accompanied by him as his theologian at the Council in Rome. Newman, however, says Thureau Dangin,^[249] declined a proposal which he felt would displease Pius IX. But the Bishop had Newman's perfect sympathy. The clergy of the diocese sent him assurances of loyal devotedness. Montalembert wrote in fervid terms of admiration. And Gratry's famous incisive letters on the controversy added much to the intellectual support of Dupanloup's work.

Dupanloup's public declaration of opposition roused on every side the strongest emotions. Louis Veuillot, journalist, the extreme of Ultramontanes, editor of the *Univers*, declared this attack to be "most unexpected, and more important than any, owing to the position of its author."^[250] It was to his mind much more serious than the efforts of Döllinger. The Catholic Bishop had provided poisonous arguments for an infidel press. Dupanloup penned impulsively a vigorous and impassioned reply, in which he applied to the journalist the title given in the Apocalypse to Satan—the accuser of the brethren. He could have tolerated Veuillot's personalities, but not his doctrinal exaggerations. From dogmatic assertions of the crudest extremest kind, which had appeared in his pages during the previous year, the Bishop selected the following examples: Veuillot declared that Ecumenical Councils never had so much authority as the Decrees of the Holy See. Dupanloup asks whether that applies to the Nicene proclamation of the Divinity of Christ. Veuillot misinterpreted the text "Lo, I am with you always"—you collectively (for it is in the plural) into you singular—that is, "you, the Pope." He further declared that when the Pope thought God thought in him; that the Pope represented God on earth; that to the Pope applied the text, "This is my God and I will praise Him, my Father's God, and I will glorify Him." Veuillot further declared that God would stone the human race with the débris of the Vatican.

Whether one who perpetrated these eccentricities of doctrine and interpretation and prediction could be trusted as a qualified exponent of Catholic truth was to Dupanloup more than manifest. But nevertheless Veuillot was in France an accredited leader of the Ultramontanes, a fervid champion of Papal Infallibility.

Dupanloup's courageous attitude enlisted the devoted admiration of opponents of Papal Infallibility. No one testifies to this more forcibly than Montalembert. Montalembert—who curiously combined a profound belief in mediæval legend with the advanced opinions of the liberal politician, denying the Church's right to employ coercive measures, which Rome maintains, yet advocating vigorously the temporal claims of the Papacy—was a Catholic of the ancient type: the born antagonist of the modern Ultramontane, while yielding to none in devotion to the Roman See. But his admiration for Dupanloup's outspoken words was unbounded.

“No doubt,” wrote Montalembert, “you greatly admire the Bishop of Orleans, but you would admire him vastly more if you could realise the depth into which the French clergy has sunk. It exceeds anything which would have been considered possible in the days when I was young.... Of all the strange events which the history of the Church presents, I know none which equals or surpasses this rapid and complete transformation of Catholic France into a vestibule of the antechambers of the Vatican.”^[251]

4. To Dupanloup's support came Gratry, priest of the Oratory, member of the Academy, Professor of Moral Theology at the Sorbonne. Gratry is certainly one of the most attractive personalities of the period. A refined and beautiful character, tender and sympathetic; he combined, as a contemporary acknowledged,^[252] the imagination of a poet with the gifts of a metaphysician.

Gratry's famous letters attacked the Ultramontanes on the historical side. It is manifestly essential to the Infallibilist position that no solitary instance should be produced of a Pope officially defending heresy. Gratry therefore took the case of Honorius. “Heretical he cannot be,” said the Ultramontane, as represented by Manning. “And yet,” replies Gratry, “he was condemned as such by three Ecumenical Councils in succession.”

Here is the language of the first of these:—

Anathema to the heretic Cyrus.
Anathema to the heretic Honorius.
Anathema to the heretic Pyrrhus.

Two other Ecumenical Councils repeated this condemnation of Honorius. The solemn profession of faith recited by successive Popes for centuries on the day of their election repeated this condemnation. It was mentioned in all the Roman Breviaries until the sixteenth century. Then a significant change took place. The name of Honorius disappears. They have simply suppressed his condemnation. These things are now said otherwise, “for the sake of brevity”! The *Liber Diurnus* contained the papal profession of faith. “As Pope Honorius is condemned in the profession of faith of the new Pontiffs,” says Cardinal Bona, “it is better not to publish this work.” “That is to say,” exclaims Gratry, “behold a fact which overwhelms us. Let us prevent its being known.”

The maxim that truth may be suppressed in the interests of religion roused Gratry’s boundless indignation. Gratry himself had heard an Italian Prelate defend on this principle the condemnation of Galileo.

“Yes, undoubtedly,” said the Bishop, “Galileo was right, and his judges knew perhaps that he was right; that he had discovered the true laws of astronomy: but at that time this too dangerous truth would have scandalised the faithful. This is the reason they condemned him, and they did right.”

Gratry’s strenuous protest is worth recording:—

“Had then the Catholic religion—had the Word of God—need of this monstrous imposture in a solemn judgment? O ye men of little faith, of low minds, of miserable hearts, have not your cunning devices become the scandal of souls? The very day that the grand science of Nature dawned upon the world, you condemned it. Be not astonished if men, before pardoning you, expect of you a confession, penitence, profound contrition, and reparation for your fault.”

The omission from the Roman Prayer Book of historic facts acknowledged until the sixteenth century was, to Gratry’s mind, an equally miserable illustration of indefensible principles. “Never was there in history

a more audacious forgery, a more insolent suppression of the weightiest facts.” The systematic suppression of facts antagonistic to the Pope’s absolute sovereignty and separate Infallibility ought, urged Gratry, to prevent us from proclaiming before God and man theories supported by such a method.

“This was the reason that Dupanloup had spoken. From God he will receive his reward. And all those who, notwithstanding these arguments and these facts, are bold enough to go further and pronounce judgment in the dark, will have to render an account before the tribunal of God. Absolute certainty is here a necessity. For the smallest doubt here demands by Divine right the most rigorous forbearance.”

Louis Veuillot, the journalist, editor of *L’Univers*, criticised Gratry with an inimitable mixture of worldly wisdom, insolent banter, and pious resignation.^[253] He had fondly hoped that Gratry’s friends, either by piety or prudence, would have diverted him from an enterprise which could only issue in odium or ridicule. However, needs must that offences come. To deny Infallibility in presence of a Council met to proclaim the unvarying faith of the Church, to deny it by attacks on the Prayer Book, was a masterpiece among mistakes. Nobody ever accused Gratry of possessing any ecclesiastical learning or independent power. Loss of faith explains many things. Needs must that offences come. As to the contents of the book, it was *Janus réchauffé*. Gratry would never convince the human mind with his Protestant, Gallican, free-thinking ideas. Gratry is described as being as innocent as a new-born babe, as having studied nothing, read nothing, but passionately advocating what others have told him. And yet this innocence is surprising in an Academician, formerly of the Oratory, author of a book on logic. This innocent is, moreover, a priest. Strangers have brought him papers which say that his Mother has told him lies; and he takes them for angels and believes them. But Gratry is also a mathematician; and all mathematicians have some curious twist in the brain. Just as Laplace the mathematician had no need of the hypothesis of God in his world, so Gratry the mathematician has no need of the hypothesis of the Pope in his conception of the Church. Gratry ought to have submitted these angels who instructed him to the test of holy water. We know these angels of his. One of them is called *Janus*. That serpent has

deceived the dove. Gratry has taken Germanism for science—just as it came from Germany. Inaccurate mathematician! Incurable infancy!

So Veuillot railed and ridiculed. And Veuillot obtained letters of papal approval for his defence of the faith.

Gratry's four letters were read with avidity through France; they were circulated in Rome, and translated into English. Four editions appeared in a single year. They roused the keenest emotions on either side. They were denounced. They were applauded. Meantime the shrewd observer wondered what the end would be, should this controverted opinion become translated into the province of necessary belief.^[254] Episcopal condemnations were freely issued. The Archbishop of Mechlin descended to personalities, recommending Gratry to confine his attention to philosophy, and to cease to scandalise Christendom with erroneous ideas and outrages against the Holy See. Another Bishop wrote in terms which show how profoundly men's passions were stirred, that the Bishop of Orleans, secretly acting with an ability worthy of a better cause, had only too successfully roused both cultured and popular circles, disturbed the high regions of diplomacy, and attacked the hopes and convictions of the Catholic world. Döllinger, Maret, and Dupanloup were a triumvirate of agitators, to whom was now added that insulter of the Roman Church, the Abbé Gratry.^[255] The Oratory, anxious for its safety, repudiated all connection with its former associate.^[256] The unfortunate priest was the victim of the grossest attacks and suspicions. A few—but very few—ventured openly to support him. The Hungarian Prelate, Strossmayer,^[257] had the courage to strengthen him. Strossmayer had read Gratry's defence of Dupanloup with the greatest joy. Fervid indiscretion was bringing the gravest perils upon the Church, and the crisis called for the most energetic resistance. May Gratry go on and prosper! But such Episcopal encouragements were few.

On the other hand, the Bishop of Strasburg endeavoured to suppress the circulation in the usual mediæval way. He condemned the letters of Gratry as containing false propositions, scandalous, insulting to the Holy Roman Church, opening the way to errors already condemned, rash, and bordering upon heresy. He prohibited the reading, circulating, or possession of these letters either by clergy or faithful in his diocese.^[258]

5. Montalembert, ruined though he was in health by an incurable malady, was roused by this reticence among the men who secretly approved, and came to Gratry's support. "Since the strong do not support their own champion," said Montalembert, "the sick must needs rise from their beds and speak."^[259]

"I venture to say that you will not find ... in my ... speeches or writings a single word in conformity with the doctrines or pretensions of the Ultramontanes of the present day; and that for an excellent reason—which is, that nobody had thought of advocating them or raising them, during the period between my entrance into public life and the advent of the Second Empire. Never, thank Heaven, have I thought, said, or written anything favourable to the personal and separate Infallibility of the Pope such as men seek to impose upon us."^[260]

"How was it possible," wrote Montalembert, "to foresee in 1847 that the Liberalism of Pius IX., welcomed as it was by Liberals everywhere, would ever become the pontificate represented and embodied in such journals as the *Univers* and the *Civiltà*? Who could possibly anticipate the triumph of the theologian-advocates of absolute power; the novel Ultramontanism, which, began by destroying our liberties and traditional ideas, and closes by sacrificing justice and truth, reason and history, wholesale before the idol which they have enstated in the Vatican?"^[261]

If this word "idol" appears too strong, Montalembert would appeal to a letter written to him by Mgr. Sibour, Archbishop of Paris, in 1853.

"The new Ultramontane School," wrote Archbishop Sibour, "involves us in a double idolatry—an idolatry of the temporal power, and an idolatry of the spiritual. When, like myself, you made strong profession of Ultramontanism, you did not understand things so. We maintained the independence of the spiritual power against the exaggerated claims of the temporal. But we respected the constitution of the State and of the Church. We did not abolish all grades of power, all ranks, all reasonable discussion, all lawful resistance, all individuality, all freedom.

The Pope and the Emperor were not respectively the Church and the State.

“Undoubtedly there are occasions when the Pope can act independently of all regulations designed for ordinary procedure; occasions when his power is as extensive as the needs of the Church.... The older Ultramontanes were aware of this, but they did not convert an exception into a rule. The new Ultramontanes have pushed everything to extremes, and have argued extravagantly against all independence, whether in the State or in the Church.

“If such systems were not calculated to compromise the deepest interests of religion in the present, and still more in the future, one might silently despise them. But when one forecasts the evils which they will bring upon us, it is hard to be silent and to submit. You have, therefore, done well, sir, to condemn them.”

Montalembert's abandonment of the Ultramontanes is strikingly described by Ollivier, the head of the Government in France. According to Ollivier, what Montalembert sought in the Ultramontane propaganda was simply the removal of civil constraints and the liberty of the Church. But when men sought to impose upon him the Infallibilist doctrines of Joseph de Maistre, whose work he had commended without understanding, he found that he had unconsciously promoted the very opinions which he abhorred. The absolute monarchy of the Pope he simply disbelieved and rejected. Yet he saw the forces which he had inspired with enthusiastic devotion to the Papacy advancing the doctrine of Papal Infallibility. Therefore he gathered what strength remained, on his dying bed, in a final protest against any such decree. He was permitted to die before experiencing the necessity to submit—*Felix opportunitate mortis*. [\[262\]](#)

Pius IX.'s own estimate of Montalembert was very severe. He described him, after his death, as only half a Catholic, whose mortal enemy was pride.

The Italian historian of the Vatican Council, Cecconi, Archbishop of Florence, is more just. Cecconi says that those who knew the deeply Catholic sentiments of Montalembert, unfortunately entangled though they were with magnificent Utopias on liberty, will not credit him with

uncatholic extremes. He rendered to the Church most signal services. If he was sometimes deceived, this was due, not to want of intelligence, but of theological learning. When the alternative lay between liberty and religion, he did not hesitate. "I love liberty more than all the world," he said, "and religion more than liberty." When asked what he would do if Infallibility were defined, he answered without hesitation, "I should submit." "But how would you reconcile your ideas with such a definition?" "I should impose silence on my reasonings. If my difficulties remained, assuredly the good God does not order me to understand, but simply to submit, as I do to other dogmas." Such was an Italian estimate.^[263]

Dupanloup reached Rome. He found himself, preceded by a mass of hateful incriminations and ridiculous calumnies.^[264] He was said in English Roman papers to be in league with Napoleon against the Holy See.

Dupanloup's generous nature was profoundly wounded. To the clergy of the diocese who expressed their loyal sympathy with him, he replied:—

"You see a Bishop who, during a life already long, has given manifest proofs of his devotion to the Church and to the Holy See; but who, because one day in a momentous question he has said what he believed to be the true interest of religion and of the Papacy, becomes suddenly the object of all the insults and indignities against which you protest: so far has passion prevailed where it ought not to exist. But what does it matter? There are in life hours marked out for grave and painful duties."^[265]

Dupanloup's house in Rome became a centre of activity for the Bishops of the minority. He was the animating spirit of the French opposition, while Darboy, Archbishop of Paris, was the controlling influence.^[266] The French Episcopate possessed no unity, and quickly divided into two opposing parts. Endeavours were made to hold them together. But the two French Cardinals represented contrary opinions. Cardinal Mathieu, Archbishop of Besançon, was a member of the opposition. But his conduct manifested a lack of qualities essential to a leader. Cardinal Bonnechose, Archbishop of Rouen, on the contrary, was a decided Ultramontane. And Pius placed him on the important Committee of Suggestions. So the two Cardinals pulled different ways. When Cardinal Mathieu laboured to unite the Bishops of the French

Church, Cardinal Bonnechose adroitly consulted Antonelli, who, acting on the maxim “divide and conquer,” advised that the Pope was opposed to meetings of larger numbers than fifteen or twenty. Cardinal Mathieu consequently left Rome in disgust, and went to spend Christmas in Besançon. However, in spite of great discouragements, an international committee of the opposition Episcopate was formed, which materially strengthened their forces.

- [238] Guillermin, p. 124.
- [239] 26th October 1865.
- [240] *Eight Months at Rome*, Appendix, p. 268.
- [241] Cecconi, iii. p. 187.
- [242] By Emile Ollivier.
- [243] May 1869.
- [244] Maret, *Le Concile*, ii. p. 9.
- [245] *Letters from Rome*, p. 255.
- [246] Nardi in Cecconi, iv. p. 544.
- [247] *Letters from Rome*, p. 255.
- [248] Page 256.
- [249] *Correspondant*, 10th February 1906.
- [250] Cecconi, iv. p. 483.
- [251] Lord Acton, *Vatican Council*, p. 58.
- [252] Baunard, *Hist. Card. Pie*, p. 371.
- [253] Louis Veuillot, *Rome pendant le Concile*, p. 156.
- [254] Cf. Ollivier, ii. p. 57.
- [255] *Acta*, p. 1425.
- [256] *Acta*, p. 1382.
- [257] *Ibid.* p. 1383.
- [258] *Ibid.* p. 1393 (February 1870).
- [259] Ollivier, ii. p. 63.
- [260] Montalembert’s letter, *Acta Vatican Council*, p. 1358.
- [261] *Acta*, p. 1386 (February 1870).
- [262] Ollivier, i. p. 451.
- [263] Cecconi, ii. p. 445. Cf. Foisset, *C. de Montalembert*, p. 103.
- [264] Lagrange, iii. p. 152. Cf. *Tablet* (1869).

[265] *Ibid.* p. 153.

[266] Lagrange, iii. p. 156.

CHAPTER XIII

OPPOSITION IN GERMANY—DÖLLINGER

IGNATIUS VON DÖLLINGER became Professor at Munich in 1825. In a mixed University, where Protestant and Roman teachers addressed their students in close proximity, and Schelling taught Philosophy while Möhler lectured on Symbolism, and Klee on the Fathers, a knowledge of modern thought, an abandonment of obsolete methods, became natural and necessary among Roman Catholic advocates. The stricter Italian School looked with grave misgivings on these Liberal tendencies and looser ways. But circumstances rendered this larger freedom more or less inevitable. It is curious to reflect that Döllinger began life as an Ultramontane, under the influence of the works of that paradoxical extremist Joseph de Maistre; for whom Lord Acton professed a distant regard, coupled with a devout determination to exclude the contributions of the entire school from the pages of his journals. Döllinger's change from the Roman to the Catholic standpoint was the outcome of independent critical and historical study. Cold and critical by nature, essentially intellectual, he was endowed with enormous vigour and insatiable desire for learning. His intention was to write a history of the Papacy. He found the approaches choked with legend. "Many of these were harmless, others were devised for a purpose; and he fixed his attention more and more on those which were the work of design."^[267] The question raised by the mediæval fables of the Papacy became theologically of grave concern: "How far the persistent production of spurious matter had permanently affected the genuine constitution and theology of the Church?" From the fables, Döllinger advanced to the forged decretals. He studied "the long train of hierarchical fictions which had deceived men like Gregory VII., St Thomas Aquinas, and Cardinal Bellarmine."^[268] "And it was," says Acton, "the history of Church government which so profoundly altered his position." Existing ecclesiastical developments had to be tested by the past; their value disentangled from the fictitious elements which contributed to produce them. The famous Canon of St Vincent of Lerins, the appeal to

antiquity, universality, and consent, came to have increasing worth in Döllinger's mind. "He took the words of St Vincent," says Acton,^[269] "not merely for a flash of illumination, but for a scientific formula and guiding principle." At first insensibly, but more and more definitely, Döllinger diverged from the axioms of the Ultramontanes. Catholic he continued to be throughout, and to the very last; but historical knowledge seemed to him impossible to combine with the popular Roman theories of the day. Under his intellectual rule the Munich School acquired immense ascendancy. It became the recognised centre of ecclesiastical learning, Catholic yet critical. And, above his colleagues, Döllinger became the adviser of the Church in Germany.^[270] Montalembert attended lectures there, and Acton, rejected at Cambridge, found a home in Döllinger's house at Munich.

The theological principles of Ignatius von Döllinger could scarcely be in the year 1868 unknown in Rome. For five-and-forty years he had been a teacher in Ecclesiastical History, and his reputation was European. But he was not invited to take any part in the theological preparations for the Vatican Council. An Italian writer^[271] indeed assures us that

"in the number of those whom the Pope intended to invite was, contrary to the advice of some, the celebrated historian Döllinger.... But the Sovereign Pontiff was informed, on the authority of statements perhaps somewhat inexact, that Döllinger would refuse the invitation; and accordingly Pius IX. did not give effect to his intention."

The explanation is unconvincing and superfluous. The presence of Döllinger on a theological commission in Rome at the Pope's request is scarcely thinkable. There were few learned members of the Roman Communion whom Pius IX. would welcome less in Rome. But the minority earnestly desired his presence.^[272] Cardinal Schwarzenberg wrote to Antonelli that the consulting theologians selected for the preparatory commissions were not, so far as Germany was concerned, up to the necessary level. Doubtless their merits were considerable, but their learning was small. They were not qualified to do justice to the difficult problems which would have to be submitted to them. They were chosen, so far as the dogmatic section was concerned, exclusively from one School. The Universities of Munich, Bonn, Tübingen, Fribourg, included many eminent

men, who were, however, omitted, much to Schwarzenberg's astonishment. He noted in particular the absence of Hefele and Döllinger. But while Schwarzenberg wrote in this honest, impulsive way, Antonelli was in receipt of letters of another type from the Bavarian Nuncio, Meglia. According to the Nuncio, among the more hopeful and moderate German Professors was Dieringer of Bonn, who had been proposed for three bishoprics, including the Archiepiscopal See of Cologne. True, he had recently somewhat compromised his reputation by an attack on the Jesuit Kleutgen; but the Nuncio regarded this as a momentary aberration—the general opinion being that at fifty-six Dieringer was not likely to belie his past. To mix him with theologians in the Eternal City would place him more completely at the disposal of the Roman cause. Another promising person was the historian Hefele. True, that his *History of the Councils* contained some hazardous remarks; but the Nuncio evidently felt secure of him. “Now,” adds Meglia, “it is very noticeable that no member of the German party of *savants* has been invited to Rome, and the result is that they are in a great state of irritation. It would be, therefore, prudent to meet this by a careful selection from the more moderate among them.” As a result of this communication, Pius invited Dieringer, Hefele, and others: thus, the *Augsburg Gazette* observed, correcting the Italian monotony by an infusion of elements very necessary to give vitality. So Döllinger was left out. But he was by no means unoccupied. He was engaged in writing the five articles, criticising and condemning the Infallibility doctrine from an historical point of view, which appeared anonymously in March 1869 in the *Augsburg Gazette*. These articles attracted a great attention, and were regarded with profound disgust in Rome. In three months' time appeared the volume entitled *The Pope and the Council, by Janus*. *Janus*, as the preface assured the reader, was the production of several writers; but, as Friedrich^[273] tells us, under Döllinger's control. *Janus* was an expansion of the five articles in the *Augsburg Gazette*. The purpose of *Janus* was to demonstrate that, according to ancient Catholic principles, the chief exponent of the faith in Christendom was the Collective Episcopate; and therefore that the Council stood supreme above the Pope. Leo himself acknowledged that his treatise could not become a rule of faith until confirmed by the assent of the Episcopate. The process by which these principles were reversed is ascribed partly to the ever-increasing ascendancy of the papal power, to which in the long development of centuries many things contributed. The historical

evolution was not without protests and reactions, but forged documents, accepted by uncritical ages as correct, misled even such theologians as St Thomas.

Various influences tended to advance the conception of the Pope's Infallibility. There was the influence of the theologians after St Thomas, whose great authority seemed sufficient, but whose opinion was founded on fictitious documents. There was the influence of the Inquisition, which, wherever it was dominant, rendered instruction in the ancient conception impossible. There was the influence of the *Index*, which meant the suppression of criticism and the conversion of historical literature into partisan productions for the maintenance of Ultramontane opinions. The publication of certain books, such as the *Liber Diurnus*, containing historic statements impossible to reconcile with Papal Infallibility, was prevented, and impressions already printed were destroyed, confessedly because they could not be utilised in the controversial interests of the Italian theories. Alterations were made in the Breviary in the direction of Papal Infallibility. The fact that Pope Honorius had been condemned as a heretic by Councils was now left out. But more than many influences, the powerful Order of the Jesuits contributed to the advancement of the theory. It was congenial to their whole spirit. Accustomed to the principle of blind obedience; themselves exhorted and in turn exhorting others to the sacrifice of the intellect; they identified themselves with this doctrine, protected it, and promoted it with tremendous effect. Since the days of Bellarmine, their theologian, they gave it the benefit of their entire concurrence.

So then, according to *Janus*, through the co-operation of many foreign elements, the ancient principle is found completely reversed; and whereas in primitive centuries the Council, the Collective Episcopate, was the supreme exponent, in the later it was the Pope. This, says *Janus*, is no true development. It is rather a transformation. The verdict of History is against this doctrine entirely.

“For thirteen centuries an incomprehensible silence on this fundamental article reigned throughout the whole Church and her literature.”

“To prove the dogma of Papal Infallibility from Church History nothing less is required than a complete falsification of

it.”

The advocates of Papal Infallibility could not avoid the discussion of the serious problem which their theory entailed, namely, *under what conditions* is the Pope infallible? They found, says *Janus*, on closer inspection, papal decisions which contradicted the doctrines either of their predecessors or of the Church. *Janus* gives numerous instances. It became necessary, therefore, to specify some distinctive marks by which the product of Infallibility might be recognised. Accordingly, since the sixteenth century there grew up the famous view that papal judgments, when pronounced *ex cathedra*, were infallible. The remarks of *Janus* on this point ought to be given as far as may be in the writers’ words.

The writers acknowledge that “the distinction between a judgment pronounced *ex cathedra* and a merely occasional or casual utterance is a perfectly reasonable one,” not only in the case of a Pope, but in the case of any teacher. Every teacher will at times speak offhand, and at times speak officially and deliberately. “No reasonable man will pretend that the remarks made by a Pope in conversation are definitions of faith.” But beyond this the distinction has no meaning. Every official utterance of a Pope must be an *ex cathedra* utterance. When a Pope speaks publicly on a point of doctrine, he has spoken *ex cathedra*; for he was questioned as Pope, and has answered as Pope. To introduce other conditions, such as whether he is addressing an individual, or a local Communion, or the entire Church, is to make purely arbitrary distinctions which are really prompted by the existence of certain inconvenient papal decisions inconsistent with the theory of his Infallibility.

This question, “Which of the papal decisions are infallible?” is indeed momentous to the Roman churchman. The authors of *Janus* are profoundly disturbed, for instance, to know whether the doctrines of the Syllabus produced under Pius IX. in 1864 are or are not included among infallible utterances.

No one will now deny that it was an act of discretion on the part of the authors of this book to produce it under the veil of anonymity. They would allow no opportunity, so the readers were informed, of transferring the discussion from the sphere of objective and scientific investigation into the alien region of personal invective.

The sensation created by its appearance was very great. The *Dublin Review*,^[274] among other expressions, declared that the writers of *Janus* had excluded all possibility of mistake as to whether they were Catholics. They had “shown that they are just as much and just as little Catholics as are Dean Stanley and Professor Jowett.” “Janus is an openly anti-Catholic writer.” The *Dublin Review* laid it down that “the Ultramontane doctrine exhibits certainly most singular harmony with the whole past course of ecclesiastical history”; but it manifested considerable embarrassment in determining what papal utterances there were which were really issued *ex cathedra*. “There have undoubtedly been very many *ex cathedra* acts not formally addressed to the whole Church,” said the *Dublin Review*, but omitted to add by what characteristics infallible utterances might be known. Meanwhile *Janus* was called an almost incredible instance of controversial effrontery.

Döllinger’s Dublin critic affirmed that—

“in real truth, through the whole post-Nicene period, Pontifical dogmatic letters issued *ex cathedra* are no less undeniable and no less obtrusive matters of historical fact than are Ecumenical Councils themselves; they meet the student at every page.”

The *Dublin Review* forms a very low estimate of the intellectual power exhibited in *Janus*. According to that authority, it was “very difficult to suppose that so indubitably and extensively learned a man as Dr Döllinger can be mixed up with so poor and feeble a production.” These criticisms were followed by another article, entitled *Janus and False Brethren*. Here the reviewer fulminates against the writers of *Janus*.

“There are enemies and traitors in the camp. It is not from Protestants only, but from men kneeling at the same altars as himself that the Catholic has to dread the poisoning of his faith.”

“In number indubitably these false brethren constitute no more than a small and insignificant clique. But they are energetic, zealous, and restless; and though their intellectual power is sometimes absurdly overrated, they comprise one or two really able and learned men in their number.”

The general opinion at Rome was that the book was certainly composed by the Munich School, and the immense historical teaching pointed to one individual, known for his life-long familiarity with Papal history.^[275] Renewed efforts were made by opponents of Infallibility to induce Döllinger to reside during the Council in Rome. Cardinal Schwarzenberg did all that lay within his power. Strossmayer, one of the most eloquent members of the Council, declared that Döllinger's presence was urgently necessary. Maret, the learned author of the volumes defending a modified Gallican view, entreated Döllinger to overcome his reluctance and render this service to the Church. "Although without official place," wrote Maret, "your knowledge and advice would greatly influence a multitude of unenlightened and undecided minds." Bishop Dupanloup thought much the same.

Döllinger, however, thought otherwise. He came to the conclusion that he could be of more real service to the cause through the Press.^[276]

Döllinger's massive learning and extraordinary abilities constituted him naturally the leader in Germany against the Ultramontane proposals; but it must never be forgotten that he was only the leader. Behind him was a vast body of Bavarian and German approval. Meetings and protests and petitions against an Infallibility decree sprang up all over Germany.^[277] Munich, Coblenz, Berlin, and many other cities pleaded vigorously for the older convictions. A very serious anonymous protest^[278] circulated through the Bavarian Kingdom in May 1869. It solemnly emphasised the momentous character of the impending conflict. Two antagonistic principles were engaged in final strife for supremacy: on the one hand, Papal absolutism; on the other, the genuine Catholicism. The principles of the Syllabus declared that the Church had the right to resort to coercion, and possessed direct power even in temporal affairs. Liberty of conscience and liberty of the Press were denied to be human rights. Were these principles to be erected by Papal Infallibility into dogmas of faith? Was Christendom to witness the triumph of absolutism and a new Ultramontane confession?

An address^[279] was sent by the Catholics of Coblenz to the Bishop of Treves, dissociating themselves altogether from the doctrine of Papal Infallibility.

“A distinguished religious Order is concentrating all its forces upon this project. To be silent would imply approval. As Catholics, they feel constrained to protest to their Bishop that the ideas and hopes of this party, who call themselves the only true Catholics, are not and never can be theirs. The coming Council would do the Church great service if it would suppress the *Index* of prohibited books. To punish the errors of Catholic writers by placing their names on the *Index* is neither worthy of the spirit nor the dignity of the Church, and is hurtful to the real interests of the advancement of truth.”

This address from the Catholics of Coblenz drew from the dying Montalembert^[280] words of impassioned admiration. All his old eloquence and fire for a moment re-appeared. His end, he said, was near. He believed himself possessed of the impartiality which is the privilege of death. His body is already a ruin, but his spirit lives; and he turns with a thrill of joy to the Catholics of Coblenz. Their protest is sound from beginning to end. He could willingly endorse every line of it. His only sorrow is that a similar spirit does not animate the French; akin to that which filled them in the first half of the nineteenth century.

The Bavarian Foreign Minister, Prince Hohenlohe^[281] issued enquiries to the Faculties of Theology in the Bavarian Universities. The Professors were requested in particular to explain what criteria existed for the discernment of an infallible decree.

The Faculty of Wurtzburg replied^[282] that, so far as the faithful were concerned, it did not much matter whether a definition of faith were formulated by the Pope after consultation with the Bishops (as in 1854) or by an Assembly of Bishops directed by him. It is all the same to the individual believer. If one has to recognise a human authority in matters of faith, it is as easy to yield to the decision of one as to that of a thousand. Which of these two Christ had ordained, this Faculty did not discuss. They thought, however, that a kind of Infallibility existed in any court of final appeal, and must in a manner be possessed by the Pope. As to the signs

whereby an infallible decree might be distinguished from fallible utterances, various opinions of theologians were given. Some maintained that deep and exhaustive study of Scripture and Tradition was an essential preliminary. No decree could possess Infallibility unless addressed to the entire Church. They recognised that if the coming Council were to define Papal Infallibility, it would be necessary to make certain modifications in the Catechisms of the Church; but they did not consider that the necessary alterations would be very profound.

The Munich theologians^[283] replied in a very different strain. They said that no certain criticism was universally acknowledged whereby a decree which was infallible could be distinguished from those which were not. Twenty different opinions were held and disputed about it. If the Council at Rome undertakes a definition of Papal Infallibility, it had better determine also the nature and conditions of its exercise. Otherwise endless disputes and similar insecurity will remain. The Bavarian Catechisms spoke only of the Infallible Authority of the Church—that is, of the Pope, together with the entire Episcopate. There existed indeed a Jesuit Catechism, recently introduced into a number of dioceses, which affirmed that the authority of the Church is expressed either by the Pope or by a Council approved by him. But this modification was obviously designed to transfer the privilege of Infallibility entirely and exclusively to the Pope. Manifestly therefore a revolutionary alteration would have to be made in the diocesan Catechisms if Papal Infallibility were decreed.

That a doctrine contrary to Papal Infallibility was being taught as Catholic, under sanction of Episcopal Authority, in Germany in the first half of the nineteenth century is indisputable. Liebermann's theological writings were published in five volumes at Mainz. The third edition was in 1831. It was first published with the *imprimatur* of the Vicar-General of Mainz in 1819.

Liebermann was a distinguished personage in his day. He became Superior of the Seminary at Mainz and Canon of the Cathedral, afterwards Vicar-General of Strasburg. His *Institutiones Theologicæ*,^[284] became the standard work in many seminaries in France, Belgium, Germany and America.

Liebermann's doctrine is:—

“It is certain from the principles of the Catholic Faith that the supreme Pontiff has the chief place in determining controversies of Faith; and that his judgment, if the consent of the Church be added, is irreformable. But whether his judgment is infallible before the Church’s consent is a matter open to dispute among Catholics without detriment to their Catholicity.”^[285]

To this proposition Liebermann adds:—

“Although there are many saintly and learned men among Catholics, who in their regard for the See of Peter have taught or still are teaching that the Roman Pontiff when he speaks *ex cathedra* cannot err; yet there have always existed very many other theologians who have taught the opposite, and these the Church none the less considers to be pious and earnest defenders of the Faith. Therefore, this question is of the number of those which may be disputed without detriment to Catholicity.”

His conclusion is that:—

“accordingly the Infallibility of the Roman Pontiff cannot be urged against heretics, nor utilised to establish the Catholic Faith....^[286] Nor can it be adduced, even by those who are fully convinced of its truth, as a test principle. For nothing can be employed as a basis of divine Faith which is not in itself indisputable. Neither can that be made the rule of faith which itself forms no portion of the faith.”^[287]

The *Catechism of the Catholic Religion* by Krautheimer,^[288] approved by the Bishop of Mainz in 1845, contains the following question and answer:—

“Do we believe that, as a consequence of this primacy, the Pope is infallible and may decide as Christ Himself; as the non-Catholics allege?

“No. The Pope possesses in controversies of faith only a judicial decision which can only become an article of faith when the Church gives its concurrence.”

This and similarly worded books of instruction had been recently withdrawn in parts of Germany through Ultramontane influence, and replaced by a Jesuit Catechism.

Philip Neri Christmann was a Franciscan monk, and reader in Theology and Ecclesiastical History. His *Rule of Catholic Faith* was republished at Wurzburg in Bavaria, with the permission and approval of his ecclesiastical superiors in 1854. In this work on Dogmatic Theology he gives an exposition of the Infallibility of the Church, its nature and restrictions, without any reference to the Pope. At the close of the volume he gives a list of *Adiaphora*, or things indifferent, in which he observes that

“although the greatest reverence, obedience and submission be due to the Supreme Pontiff yet he is not favoured with the special privilege of inerrancy which was given by Christ our Lord only to the Church.”^[289]

Indeed, the majority of the faithful, and above all the Bishops and clergy, did not share in Germany the Ultramontane views.^[290] The theological faculties of Tübingen and Munich were firmly attached to the Episcopal conception, and thereby equally opposed to the autocratic Roman idea. Hefele at Tübingen had pronounced, as a historian, hardly less distinctly than Döllinger at Munich.

Before obeying the summons to attend the Vatican Council, an *Assembly of German Bishops* was held at *Fulda* (September 1869).^[291] Some twenty Bishops were present. There was Melchers, Archbishop of Cologne, who presided; there was Döllinger's Diocesan, Scherr, Archbishop of Munich, well acquainted with the historian's principles, and no more an Ultramontane than Döllinger himself; there was Ketteler, Bishop of Mainz, in whose diocese the recognised Catechism had for years instructed the faithful to reject Papal Infallibility, and who became one of the most persistent opponents of the doctrine to the very last in Rome, and in the Pope's own presence; there was Conrad Martin, afterwards an Infallibilist, but at present known as author of a widely disseminated handbook in which the doctrine was denied; and there was Hefele, Bishop elect of Rottenburg, whose *History of the Councils* told heavily against the Ultramontanes.

The German Episcopate was under no illusions as to the introduction of this doctrine into the coming deliberations in Rome. Accordingly they set

other subjects aside^[292] to discuss the question. It was declared that a question so momentous required the production of proofs from Tradition; proofs of such a kind as to satisfy fully the demands of criticism, while leaving opponents full liberty of speech. They proceeded to examine the opportuneness of any definition. On the one side it was declared that Councils hitherto had only passed decisions on questions of urgent necessity. Now the present subject presented no such necessity. There existed no danger, either to the purity of the Faith, or to the peace of the Church. Viewed relatively to the Oriental Churches, a definition would be altogether inopportune. Eastern Christians admit a primacy of honour, and might be induced to admit a primacy of jurisdiction. But they hold with such tenacity to the ancient traditions that it was hopeless to imagine they would ever assent to Papal Infallibility. The same consideration holds with reference to Protestants. And also for the Catholics of Germany the dogma would be dangerous.

On the other hand, a member of the Assembly urged that by many people the dogma was desired; that the opposition must not be exaggerated; that the number of German Catholics was relatively few; that the promulgation of the Immaculate Conception dogma already involved implicitly that of Papal Infallibility.^[293]

In the following discussion Bishop Hefele spoke with strongest emphasis.^[294] He had never believed in Papal Infallibility. He had studied the history of the Church for thirty years; but nothing could be found for Papal Infallibility in the ancient Church. It could not be rightly discussed as merely inopportune, for it simply was not true. These assertions were opposed. Eventually a petition was sent to the Pope, declaring the doctrine inopportune by a majority of fourteen Bishops out of nineteen.^[295] Then, as a curiously incongruous sequel to their own grave anxieties, the Bishops set themselves to the work of re-assuring the German Catholics in a Pastoral^[296] which declared that an Ecumenical Council would not impose a new dogma, a dogma not contained in Scripture and Apostolic Tradition; that they were confident that no obstacle would be placed either to the liberty or duration of discussion in the Council's deliberations. The Pastoral, said a contemporary writer^[297]—

“contains a promise, worded with all the distinctness that could be desired, that, so far as it depends on the votes of the German Bishops, the yoke of the new articles of faith shall not be laid on the German nation.”

When the King of Bavaria read the Pastoral, he congratulated the Bishops on the line adopted, and expressed a hope that a similar spirit would prevail in the approaching deliberations in Rome. ^[298]

On the other hand, a distinguished Prelate ^[299] compared the opponents of Infallibility to the possessed at Gadara; and described them as crying piteously, “What have we to do with thee, Vicar of Christ?” No one, he said, would be deprived of freedom of thought or expression in the coming Council. No conflict of opinions would be there; nor any parties, as in a political assembly.

Döllinger, as *Janus* shows, was the victim of no illusions as to the main purpose to which the Vatican Council would be directed. Whatever impressions might exist in France or elsewhere, the student of History did not misinterpret the steady direction of events, the persistent intention of the dominant influences in the Church. And, although permitted no official work among the theologian consultants of the Council, he placed at the disposal of the Bishops the conclusions of his historical learning, in his *Considerations respecting the question of Papal Infallibility*. ^[300]

Döllinger insisted that the principle by which the Church had been hitherto controlled in matters of faith was the principle of immutability. To demonstrate that a doctrine was not the conviction of the entire Church, that it was not logically included as an undeniable sequence in the original Deposit of Revealed Truth, was hitherto regarded as a conclusive demonstration that such doctrine could never be raised to the dignity of a dogma of the Church. Döllinger contended that on this principle the case for Papal Infallibility was already adversely determined. In the Eastern Church no voice had ever been heard to ascribe dogmatic Infallibility to the Pope. The doctrine did not arise within the West until the thirteenth century. It renders the history of Christendom for the first thousand years an incomprehensible enigma: for history exhibits Christendom toiling by painful, circuitous methods to secure what, if the Popes were infallible, might have been gained in the simplest way, from the utterances of a

solitary voice in Rome. Nor is it possible, argued Döllinger, to account for the transference of infallible authority from the Church to the Pope, as a process of legitimate development. The new theory is the negation of the old. The ancient doctrine was that the Divine guidance is given to the Church collectively. It is the Church, as a whole, which cannot fall away. But the Ultramontane theory reverses this. It asserts that Divine guidance is given not to the Church collectively, but to one individual person; that Infallibility is his alone—a prerogative in which the Collective Episcopate has no share; that from him alone the Church receives light and truth. This is not development. It is negation. Among the Scripture passages to which Infallibilists chiefly appealed was the exhortation to strengthen his brethren. But this is an exhortation, not a promise. “It is a violent perversion to turn an admonition to duty into a promise of the invariable fulfilment of that duty.” Still less can this exhortation be transferred as a promise to his successors, when it was only a personal admonition. It was, moreover, an exhortation which Peter himself did not invariably fulfil. Far from strengthening the Church at Antioch in the faith, he rather perplexed it by his dissimulation.

Döllinger contended that the historical growth of belief in the theory of Papal Infallibility was sufficiently instructive. When proposed to the Council of Trent, it was withdrawn by the legates who proposed it; because they recognised that a number of the Bishops disapproved it. Since that time the influence of the Jesuits and the Inquisition had steadily extended the theory, for they made the presentation of any other doctrine in books or teaching impossible in Italy, Spain, and Portugal. Every attempt to test the theory by historical criticism had been put upon the *Index* and suppressed, with the solitary exception of Bossuet and Cardinal de la Luzerne.

[267] Acton, *History of Freedom*, p. 418.

[268] *Ibid.* p. 420.

[269] *Ibid.* p. 388.

[270] Goyau, *L'Allemagne Religieuse*, ii. p. 89.

[271] Cecconi, ii. p. 329.

[272] *Ibid.* ii. p. 331.

[273] Friedrich, *Döllinger*, iii. p. 485.

[274] Vol. xiv. N.S. (1870), p. 194.

- [275] Friedrich, iii. p. 489.
- [276] Friedrich, iii. p. 518.
- [277] Documents in Cecconi, iii. p. 312 ff.
- [278] *Ibid.* p. 315.
- [279] *Ibid.* p. 326.
- [280] Documents in Cecconi, iii. p. 339.
- [281] *Memoirs*, i. p. 328.
- [282] Cecconi, iii. p. 479.
- [283] Cecconi, iii. p. 524.
- [284] Lichtenberger, *Encyclopédie des Sciences Religieuses*.
- [285] Liebermann, *Institutiones Theologicae*, ii. p. 540.
- [286] Page 542.
- [287] Page 543.
- [288] Page 87.
- [289] Chrismann, *Regula Fidei*, p. 319.
- [290] Ollivier, i. p. 424.
- [291] Cecconi, iv. p. 155.
- [292] Cecconi, ii. p. 459.
- [293] *Ibid.* iv. p. 160.
- [294] Friedrich, ii. p. 190.
- [295] Cecconi, ii. p. 462.
- [296] *Ibid.* iii. p. 372.
- [297] Quirinus, *Letters from Rome*, p. 36.
- [298] *Acta*, p. 1201.
- [299] *Acta*, p. 1296 (November 1869).
- [300] See *Declarations and Letters* (October 1869).

CHAPTER XIV

HOHENLOHE AND FRIEDRICH

IN April 1869 Prince Hohenlohe^[301] issued a circular, composed chiefly by Döllinger, to the Bavarian Legations, calling their attention to the certainty that Infallibility would be discussed, and the probability that it would be passed at the approaching Vatican Council; and requesting them to consult the various Governments in which they were located as to the advisability of some concerted action on the part of the European Powers. This step was taken on the ground that the Infallibility of the Pope goes far beyond the domain of purely religious questions, and has a highly political character; inasmuch as the power of the Papacy over all princes' and people's secular affairs would thereby be defined, and elevated into an article of faith.

The Austrian Government replied to the circular that it would be inconsistent for nations accepting the principles of religious liberty to offer a system of preventive and restrictive measures against a movement so deeply grounded in the constitution of the Church as the assembling of a General Council. It was scarcely to be supposed that Bishops of the Catholic world could fail to take with them to Rome an accurate acquaintance with the practical necessities of the age. Should the approaching Council invade the province of political affairs, it will then be time for the Governments to take such measures as the case may need. This chilling response made Prince Hohenlohe extremely indignant. He declared that he had never proposed preventive or restrictive measures, but asked what attitude the Governments proposed to adopt toward the Council. To delay until a decree was passed would leave the Government no power except to protest.

“We believe,” he wrote,^[302] “that we are not mistaken when we maintain that not one of the Austrian Bishops will attempt to oppose the proclamation of the dogma of Infallibility. In this dogma lies the future of Ultramontaniam; in it lies the kernel of

the absolutist organisation of the hierarchy. It is the crowning of the work for which the Ultramontane party has been striving for years; and no Bishop will dare to move a step in opposition to this aim. The hierarchy will come out of the Council stronger and more powerful, and begin the battle against modern civilization with renewed strength.”

Unsupported, however, by the Austrian and other Governments, the Bavarian could, of course, do nothing.

“The Bavarian Government,” wrote Hohenlohe,^[303] “has thereby, indeed, forfeited the sympathy of the Society of Jesus, if indeed it ever had it; but it has won the approval of all good Catholics who are not under the influence of that Society.”

Bismarck declared that the movement in Bavaria had resulted in increasing caution and conciliatoriness in Rome. Prince Hohenlohe was in intimate contact with Rome and its affairs through his brother the Cardinal, who fully concurred with his antipathy to things Ultramontane. Most instructive are the confidential utterances of the Cardinal to the statesman, lamenting the dominant influences on the eve of the Vatican Council.

“Perhaps the Holy Father is still deliberating,” writes the Cardinal in September 1869, about two months before the Council opened, “but I doubt it. With all my respect for the Supreme Head of the Church, my obedience will be put to a severe test. I trust that God will help me. I often ask myself, What shall I do in these storms?”

He feels himself isolated, and deliberately ignored by the ruling authorities. He writes that Döllinger could come to live with him in Rome. He will receive into his own house any trustworthy theologian to assist him while the Council proceeds. The Jesuits, he says, have raised the question of Infallibility as a standard.

“The Pope is charmed with the idea, without the least notion what the Jesuit party is saying and doing. Touched by their devotion, he in his blindness embraces the whole Order as the saviour of his honour in the (quite unnecessarily raised) question of his Infallibility.... The Infallibility question has thrown Pius

IX. so completely into the arms of the Jesuits, that of all his plans and ideas against them not a trace remains. The good fathers know that they can keep a firm hold on Pius IX. only if he is driven into a corner and *must* fly to them for help.”

It was arranged that Friedrich should go to Rome as Cardinal Hohenlohe’s theologian; but that he was to live at the Cardinal’s was to be kept profoundly secret. “He should give some other reason, such as that he wants to see Rome, or the like. You will understand that better than I can tell you,” says the Cardinal to his statesman-brother.^[304] Meanwhile Prince Hohenlohe was with Döllinger in Munich. He was there when Döllinger received an autograph letter from the King of Bavaria, praising his pamphlet against Infallibility. The Cardinal wrote again from Rome^[305] to say:—

“There will be many a sharp tussle, and I fear the Ultramontane party will have the majority. They are impudent and reckless, and though at the present moment the Pope is somewhat out of humour, owing to various manifestations, such as Dupanloup, etc., yet I think that at the crucial moment the impudent party will endeavour to outshout all the others.”^[306]

But the helplessness of the opposition is curiously illustrated in the same letter. Cardinal Schwarzenberg, a strong advocate of the minority, wanted greatly to get Döllinger to Rome; yet he could not decide to send for him as his theologian. Cardinal Hohenlohe wanted greatly to receive the German Bishops at his house every week, yet he could not make up his mind to do it. He is afraid the Pope would forbid them to assemble at his house. By February 1870 difficulties increased vastly. “The situation,” wrote Döllinger to Hohenlohe “becomes more grave and threatening.” It was just announced that the Archbishop of Munich intended to go over to the Infallibilists. Friedrich was by this time lodged with Cardinal Hohenlohe in Rome, who was “managing to keep him in spite of all enemies.”^[307] “Stupidity and fanaticism,” wrote the Cardinal, “are dancing a Tarantella together, accompanied by such discordant music that one can hardly see or hear.”

Friedrich is, of course, a violent partisan, and no more capable of historical impartiality than Veuillot or Manning. At the same time much may be ascertained from each. Friedrich kept a diary through the critical

months of the sessions in Rome, which he afterwards published. He had access to numerous distinguished personages. He exerted, in his characteristically German and professorial manner, no inconsiderable influence on the theology of his master. He met everybody in the Cardinal's rooms. Accustomed to the freedom of a German University, with unlimited access to literature of every kind, Friedrich finds himself in a city under mediæval restrictions. Modern theology of an anti-Infallibilist type could scarcely be obtained at all in Rome, nor could it be smuggled into the city through the post, nor printed in Rome, nor could it be found in the libraries to which Friedrich had access. Letters were opened in the post, or permanently detained, as the authorities chose. The police were ecclesiastical officials acting in the interests of the Ultramontanes. Dressel, a learned German, editor of an edition of the *Apostolic Fathers*, was visited in Rome by a police officer, and informed that he must leave the city for having written letters to the *Augsburg Gazette*, in collaboration with Professor Friedrich. Dressel protested that he had done nothing of the kind. The only answer was that such were his orders from the Vatican. Dressel appealed to Cardinal Hohenlohe; also, and more effectively, to the Prussian Ambassador, who made such emphatic moves that the papal police did not venture on any further steps against him.

Veillot, who was then in Rome, got the following criticisms on Cardinal Hohenlohe and Professor Friedrich published in his journal, *L'Univers*, which he edited in France.

“The Governor of the Eternal City, who is also head of the police has at length discovered the source of the indiscretions by which the secrets of the Council have been betrayed. Suspicion had long rested on Abbé Friedrich, whom Cardinal Hohenlohe brought from Bavaria as his theologian during the Council. The Abbé, in spite of protection from the Bavarian Legation, has been compelled to leave Rome, Cardinal Hohenlohe himself being anxious to dismiss an ecclesiastic who had betrayed his confidence. It was reported in Rome that the instigator of these deplorable disloyalties was Prince Hohenlohe, President of the Bavarian Government.”

Meanwhile Friedrich, neither expelled nor dismissed, was quietly residing in Rome and copying this extract into his diary, with the thoughtful

reflection: "I wonder what part I am destined to play in an Ultramontane history of the Vatican Council." Thus Friedrich heard and saw many things. He heard Bishop Hefele, on a visit to Cardinal Hohenlohe, say that for thirty years he had sought for evidence on Infallibility, and had never found it. To the same house Hefele returned another day with a copy of his pamphlet against Honorius. The chief value of the work to Friedrich's mind consisted in the fact that, as Bishop, Hefele did not repudiate German theology.

Friedrich's own line of action if the doctrine became decreed was perfectly clear. He had no intention of bowing before the storm, or of yielding an external acquiescence to that which he inwardly discredited. A criticism which appeared in the *Univers* indicated, in the plainest terms, the future alternatives awaiting the adherents of *Janus*, and indeed the opposition in general.

"Are they decided," asked Veuillot, "to remain Catholics after the Definition? If they say no, their Catholicity is already condemned. If yes, they are preparing for themselves an act of faith and obedience scarcely reasonable. For they now affirm that the doctrine is contrary to the facts of history. Will they believe that black is white because the Council says so, investing it with a power to convert the false into true?"

Friedrich agreed with Veuillot to this extent, that history cannot be reversed by a conciliar decision. But Friedrich did not attempt to conceal his conviction that the Vatican Council was not Ecumenical. The regulations imposed upon it, from without, by the papal power, infringed its freedom of action, and kept it at the mercy of the majority. To his mind there was little interest or importance in the speeches delivered in the Council, since the initiative and the moving power lay elsewhere. He wrote dissertations, for the Cardinal Hohenlohe's instruction, contrasting the principles of the earlier Councils with the modern regulations. He affirmed that, according to ancient precedent, the right of introducing subjects lay with the Council itself, and not with the Papal See; that the Council and not the Pope possessed the power to define. But he saw that his own career as Professor of Theology was at an end, if the Ultramontanes should succeed. To continue in his former capacity would be in that case to incur the

reproach: “You are a cowardly hypocrite, a liar; for you speak against what you know to be the witness of scientific history.”

We owe to Friedrich the following letter, in which an Oriental Bishop who had ventured to sign a protest in Rome against the Infallibilist theory, makes an abject recantation:—

“Most Holy Father,^[308] I entreat you to listen with condescension and benevolence to the humblest of your beloved sons and the humblest of Bishops, who ventures, prostrate before your feet, to address a few words to your Holiness. I confess that I signed my name to the Appeal which was presented to you, most clement Father, by certain Oriental Bishops, entreating you with all humility and reverence not to yield to a request signed by the majority of Bishops that the Vatican Council should be directed to define the Infallibility of the Roman Pontiff. I signed my name to the Appeal, chiefly on the ground of the difficulties which such a decree of such a kind might create among schismatics if misunderstood and misinterpreted; also on the ground of the difficulty in reconciling with such a definition the facts about Pope Honorius. But I had no other ground of objection than these. I was not actuated by any other human or less honourable motive; nor by party spirit; nor, as certain ill-disposed persons have maliciously insinuated, and which God forbid, by any hostile or disrespectful sentiment either toward yourself, most Holy Father, or towards the Apostolic Roman See, which is the fortress of truth and of religion, the immortal centre of our glory. Nevertheless, considering that certain newspapers have most unreasonably inferred from this Appeal that the Orientals were hostile towards the Roman Pontiff and the Holy See; considering also that other newspapers have made it an opportunity for advancing and strengthening the so-called Gallican views, identifying us with them, whereas we have never really had anything in common; whereas, both as teacher in theology and as Bishop, I have always held and taught the belief that the judgment of the Sovereign Pontiff, speaking *ex cathedra* as universal doctor by the institution of Jesus Christ, and as head of the Immaculate

Church, must be actually irreformable; having accordingly studied the subject more deeply and the consequences involved; having also made myself familiar with the replies to the exaggerated and blamable tracts of the priest Gratry, particularly the excellent and solid refutation recently composed by Father Ramière of the Society of Jesus; finally having had the good fortune to meet with a very ancient manuscript of a history composed by a Nestorian, containing a convincing exculpation of Pope Honorius from all error in faith: for these reasons and for other conscientious motives, I feel myself constrained to affirm, most Holy Father, not only that belief in the inerrancy of the Sovereign Pontiff when deciding *ex cathedra* in matters of faith and morals, is mine, and that I have always held it, but also that under the circumstances it appears to me reasonable, by no means dangerous—on the contrary, very advisable—that the Universal Council should dogmatically determine that the Infallibility or supreme authority exercised by the Sovereign Pontiff as universal doctor of the Church is of the institution of Christ, is founded in Holy Scripture and in Tradition, consequently that it is of faith. I declare it in the simplicity of my heart. This is demanded by truth and theological thought. This is demanded by the pure doctrine of the Roman Church. This by great good fortune I imbibed in my youth in its purest source, the Roman College of the Propaganda itself. This I have defended. It is demanded by the opposition of men of malignant intentions against the Holy See. It is demanded by the intolerable violence of the enemies of our religion and of the Holy Roman See. It is demanded by our love and our reverence for the Sovereign Pontiff and the Holy See. It is demanded by our honour. Finally it is demanded by the authority of many doctors, and, in the words of St Augustine, by the entire Catholic Church.”

Signed by the Chaldee Archbishop KHAYATH. [\[309\]](#)

March 1.

Friedrich continued to reside in Rome till the 13th of May. Some time before this he felt that his work was done. He was anxious to leave. “I

neither will nor can be any longer,” he wrote, “a witness in this place to the oppression of the Church.”

In a farewell visit to the Archbishop of Munich, Scherr congratulated Friedrich on his ability to return home, and expressed a wish that he could do the same. The Archbishop took the opportunity of sending a message to Döllinger, advising him to restrain his energies. The Bishops had done and were doing their duty. Scherr strongly impressed upon Friedrich the necessity of making his influence felt with Cardinal Hohenlohe. If only a Cardinal resident in Rome itself had but the courage to utter an emphatic *non placet* in the Council, the Bishops would be greatly strengthened to follow suit. Friedrich disowned the possession of any such influence as the Archbishop ascribed to him, but promised to report to the Cardinal the Archbishop’s desires. Friedrich left Rome with a strong foreboding that personal Infallibility would certainly be defined.

[301] *Memoirs*, i. p. 326.

[302] *Memoirs*, p. 338.

[303] *Ibid.* p. 356.

[304] *Memoirs*, p. 369.

[305] November 1869.

[306] *Ibid.* p. 375

[307] *Ibid.* ii. 3.

[308] From Friedrich’s *Tagebuch*.

[309] Friedrich, *Tagebuch*, p. 319.

CHAPTER XV

THE IMMEDIATE PREPARATIONS

WHEN Pius IX. had finally resolved on assembling a Council he proceeded without delay to the necessary preparations. These preparations may be classified as twofold: those within the Roman Communion, and those relating to other religious bodies.

1. The internal preparations were largely entrusted to a Commission of Cardinals, selected for that purpose. The Cardinals reported to the Pope upon the following points.

First came the important problem, to determine who were qualified for membership in a Council of the Church. The Episcopate, of course, without all doubt. But did this apply only to Bishops possessing diocesan jurisdiction, or did it include those who possessed no definite See? It was urged that the latter were just as really Bishops as the former, and that their omission might raise disputes on the Council's validity. It was accordingly decided that, with the Pope's approval, titular Bishops as well as diocesan were qualified for seats in the coming Assembly.

The case of Abbots and generals of religious Orders was considered next. If these did not possess episcopal authority, they possessed at least a real, a semi-episcopal jurisdiction; being themselves superiors over a considerable multitude, and also exempt from episcopal control. This quasi-episcopal position was considered by the Congregation to qualify them for admission to the Vatican Council. These decisions were of great significance, as they added, it is said, almost two hundred votes. [\[310\]](#)

Secondly, as to regulations for procedure, [\[311\]](#) the Cardinals asserted that the Pope alone had the right to introduce matters for discussion. Otherwise, argued the Cardinals, the Council would become a constitutional chamber. But a Council is only summoned to discuss what the Pope desires to have discussed; not to introduce their individual conceptions of what ought to be

done. If any reminiscences of the principles of Constance, Pisa, and Basle floated before the Cardinals' memories; if any distant echo of their predecessors' intention to reform the Church in its head and members haunted them; it was instantly condemned by the theory now introduced. By way of dispelling the possible objection that the Pope might omit important matters, the Cardinals observed that it is an unlikely thing, that it must be left to Providence, and that you cannot expect perfection in human affairs. Whatever, therefore, the Bishops desire to introduce for conciliar discussion, they must report it, not to the Council, but to the Pope or to his representative; and the Pope will determine whether its introduction is desirable or not. The Cardinals recommend that a Commission should be created for this purpose.

In the third place, it was thought desirable that four permanent Commissions should be formed: one on faith; one on discipline; one on religious orders; one on missions. It was suggested that two-thirds of the members should be chosen by the Bishops and one-third by the Pope. Pius, however, decided that the selection should be entirely left to the Bishops.

Another question creating no inconsiderable discussion was whether the Bishops should be required to pronounce a profession of faith. The problem was whether the dogma of the Immaculate Conception should be included. It was contained in no existing formula of faith. Some were adverse to its introduction. Others thought it impossible for the Council to ignore the existence of this dogma. Some again held that since the dogma had already been declared by the Pope, there could be no necessity to insert it in a Council's decree. For this reason it ought to be recited in the profession of faith. Nevertheless it was held wiser not to introduce it, for fear of producing upon the Bishops a bad impression. Accordingly it was decided to fall back on the Creed of the Council of Trent.

In the Commission a discussion was also held on the burning question of pontifical Infallibility. Two questions were raised: Was it definable? was it opportune? The former was answered in the affirmative. So was the latter, but with the proviso that it ought not to be proposed by the Holy See, except at the request of the Bishops. Accordingly no further mention was made of the subject in the Cardinal's report. Nevertheless they did not cease to study it.

2. The external preparation for the Council, beyond the limits of the Roman body, consisted in a series of letters and announcements to the other Churches of Christendom.

Three Papal letters were issued in reference to the Council's actual assembling.^[312]

First the Bull summoning the Bishops of the Roman Communion [29th June 1869], together with the Abbots, and all persons qualified either by right or privilege; requiring them, and exhorting them by their fidelity to the Roman See, and under the penalties appointed for disobedience, to attend at the Vatican on 8th December.

Was it accident or design which twice over introduced into this letter the famous phrase *majorem Dei gloriam*? Certainly it was not accident which omitted from the enumeration of the Council's uses and purposes all reference to the problem of pontifical Infallibility, and rested content with a general allusion to the wise ordering of those things which pertain to defining dogmas of faith.

A second letter^[313] was directed to the Bishops of the Oriental rite not in communion with the Apostolic See. In this letter a solicitude is expressed for all Christians everywhere; more especially for those Churches which were formerly united with the Apostolic See, but now by the machinations of the Author of all schisms are unhappily parted. The Oriental Bishops are entreated to come to this General Synod, as their fathers came to that of Florence—in order to be reunited to the Apostolic See, which is the centre of Catholic truth and unity.

Another letter^[314] was directed to all Protestants and other non-Catholics. They are aware that Pius has thought it desirable to summon all Catholic Bishops to a Council at Rome. He is confident that this will issue to the greater glory of God. He calls upon them to reconsider whether they are following the way presented by Christ. No community can form a part of the Catholic Church if visibly severed from Catholic unity. Such communities are destitute of that Divinely constituted authority which insures against variation and instability. Accordingly he exhorts and beseeches them to return to the one fold of Christ.

The replies of the Oriental Churches claim independence and equality. The Greek Patriarch at Constantinople declared that the Oriental Church would never consent to abandon the doctrine which it held from the Apostles, transmitted by the Holy Fathers, and the eight Ecumenical Councils. The Ecumenical Council is the supreme tribunal to which all Bishops, Patriarchs, and Popes are subjected.

The Armenian Patriarch criticised the Pope's action with severity; asserted that the principles of equality and apostolic brotherhood had not been observed by the Pope. The rank which the Canons ascribe to the Papal See only give him the right to address personal letters to the Bishops and Synods of the East, but not to impose upon them his will by encyclicals in the tone of a master. The Armenian Patriarch wrote to the Catholicos of Ecmiazin to say that "the Patriarch of the Roman Church—Pius IX." had sent a letter, announcing a Council. The Catholicos replied that the tone of the Pope's letter gave no hope that union would be realised: for it did not acknowledge the chief Pastors of the Eastern Church as equals in honour and dignity. And yet they are successors of the Apostles. They have received the same authority from the Holy Spirit as the Roman Patriarch.

The attitude of the German Protestants was uncompromising. The Nuncio in Bavaria wrote to Antonelli that the Germans regarded the invitation as an insult. There might be individual conversions, but certainly not a general return. The common opinion was: the Pope invites us graciously to put ourselves at the mercy of the Council; but the bird which has escaped rejoices in its liberty. There existed a vague, indeterminate desire for unity, but entire diversity as to the basis for its realisation; and the personal interest of the Pastors was against unity.

From Berlin came this criticism on the Pope's letter: "We hold it impossible to find in this letter the least indication of really conciliatory spirit on the basis of evangelical truth." The Protestants assembled at Worms declared that the principal cause of the divisions which they deplored was the spirit and action of the Jesuit Society. This Society which, according to their view, was the deadly foe of Protestantism, stifled all freedom of thought, and dominated the entire existing Roman Church. If the permanent union and well-being of Christendom was to be secured, hierarchical pretensions must be laid aside. Elsewhere the resolution was passed to ignore the Pope's invitation, as being merely a matter of form.

An American Presbyterian reply to the Pope's letter said, that while firmly convinced that the unity of the Church is the will of Christ, they felt it a duty to state the reasons why they cannot unite in the deliberations of the coming Council. It is not that they reject a single article of the Catholic Religion. They are no heretics. They accept the Apostles' Creed and the doctrinal decisions of the first six General Councils. But they cannot assent to the doctrines of the Council of Trent. The barrier which this Council has erected between them and Rome is insurmountable.

Certainly nothing was further from the Pope's intentions than to invite members or representatives of any other Communion to discussion. All he intended was to advise them to profit by this occasion, to submit and secure their eternal salvation. If, said Pius, they would only seek with all their hearts, they would easily lay aside their preconceived opinions, and return to their Father from whom they have so unhappily departed. He would receive them with paternal benevolence. And then, with a scarcely diplomatic allusion to the prodigal who had wasted his substance in riotous living, Pius declared he would rejoice to say, "These my sons were dead and are alive again; they were lost, and are found."^[315]

In the English Church opinion was divided as to the manner and spirit in which the Pope's letter should be met. Bishop Wordsworth of Lincoln^[316] replied in a Latin letter. He assumed that the English Church was included in the letter addressed to all Protestants; and accepted the title in the sense of protesting against errors contrary to the Catholic Faith. He resented the tone and temper of the Pope's appeal; the judgment implied on the validity of the English Episcopate; protested that we have never seceded from the Catholic Church, nor separated willingly even from the Church of Rome; criticised in particular the doctrine of the Immaculate Conception, as an instance of indisputable variation; and added certain unhappy exegetical remarks of an apocalyptic character on the relation between Rome and Babylon. This line of response probably represented no inconsiderable element at the period at which it was written.

On the other hand, a section existed in the English Church, keenly alive to its local deficiencies, and possessed with strong and enthusiastic aspirations for corporate reunion. In their opinion, faults of taste and assumptions due to Italian ignorance or other points of view, might well be overlooked, if not condoned, in the interests of what appeared to be a

genuine desire for unity. A resentful and criticising spirit seemed only calculated to frustrate all hope of better things. The magnificence of the coming Assembly, the grandeur of its scale, the regions it involved, the Churches it included, captivated their imaginations. Whatever might be the individual view of the relative position of the separated portions of the great Christian family, such a gathering as this must enlist their respect, their sympathy, and their prayers. They pleaded earnestly for corporate reunion. As the separation was corporate, so must the reconciliation be. They insisted as strenuously as any other members of the Anglican Communion on the impossibility under present circumstances of doing anything else than remain where they are. ^[317]

“You require us, for instance, to say—not formally indeed, but in effect—that we have no priest and no sacraments; whilst it is quite plain to us that our present Episcopate is in all respects the true and lineal descendant of the Apostolic Mission in this land. You require us to renounce communion with the Church of England on the ground that she is heretical; we, on the other hand, are convinced that there is nothing in her *authorised* teaching which you do not yourselves teach in your own pulpits and Catechisms. That she is actually separated from the centre of visible Catholic unity is a fact deplorable indeed, but too patent to be questioned; that she is wilfully, avowedly, and therefore guiltily schismatical we utterly deny; to say that we ourselves are schismatics is simply to give the lie to the most cherished longing of our hearts. No! we *must* remain where God has placed us, loyal to our own Communion and to our own Episcopate, loyal at the same time (in spirit) to yours: if we are not of the *body* of your Church, we belong at any rate to its *soul*.”

After this vigorous declaration of principles and loyalty the reunionist felt justified in confessing the defects within the Anglican Communion of which he was painfully conscious.

“Need we, after all, be so very angry at being classed with Protestants—if it be true that we have been so—when at least half our brother Churchmen rejoice at it, and are never tired of proclaiming to the world that we are a Protestant Church, a

creation of the sixteenth century, specially commissioned to wage war with the Papal anti-Christ to the end of time? Even regarding our Communion from the most favourable point of view, can we say that she has done very much during the centuries of her separation from the Holy See towards vindicating her Catholicity even in the Anglican sense of the word? Does she present herself to her Catholic brethren on the Continent in any very marked contrast to the Protestant sects?"

Thus there was at least in certain directions within the Anglican Communion a distinct readiness to respond to any overtures for unity. There was in addition a very wide-spread interest in the coming Council, not unmixed with curiosity and anxiety as to the steps which might be taken to bring the severed sections of Christendom nearer together.

By far the most penetrating and profound on the Anglican side was Dr Pusey. Perfectly clear and sure of his position, whole-hearted in his devotion to his own Communion, he insisted that the English Church must be treated collectively: as a portion of the Church Catholic, to be reunited; not as individuals, to be absorbed. He was in correspondence with the Bishop of Orleans and the Archbishop of Paris. With this aim he wrote his *Eirenicon*, *Is Healthful Reunion Impossible?* The Belgian Jesuit De Buck corresponded with Bishop Forbes of Brechin. The Jesuit Father

"was certain that at Rome there was no wish for Infallibility." He "maintained that every one at Rome was astonished to hear that the Anglican Bishops did not consider the command to attend the Council as addressed to them."^[318]

Attempts were made by Newman to induce Pusey to visit Rome; or at least to get up a big petition and present it to the Holy See;^[319] quietly observing at the same time that the sort of petition which he had in view "cuts off the subscribers to it from the existing Establishment;"^[320] Newman also suggested that no Anglican Bishops should go. Pusey replied by enquiring why should not Newman himself go to Rome for the Council. Dupanloup invited him as his theologian. But Newman declined, on the pretext that he was not a theologian, and would only be wasting his time in matters which he did not understand.^[321]

Not unnaturally, Pusey's penetrating criticism was:—

“If they invited any, it should be Bishops. Theologians go to accompany their Bishops. They have ignored our Bishops, and ask any of us whom they may ask informally, because they will deliberately withhold all acknowledgement of the slightest basis upon which we can treat as a Church.”^[322]

“I have no doubt,” Pusey added, “that the invitation to Rome is given in the hope that the imposing spectacle presented by the Council may bring about individual conversions of English Churchmen more or less learned or well known. But what can we expect when they invited the great Greek Church simply to submit? I expect nothing under the present Pope.”^[323]

“The difficulty of treating is this, that we have two entirely distinct objects: we, corporate reunion upon explanation of certain points where they have laid down a *minimum* and upon a large range beyond it; they, individual conversions or the absorption of us.”

Meanwhile, Pusey prepared an edition of Cardinal Torquemada's great work, against the doctrine of the Immaculate Conception, originally composed for use at the Council of Basle at the instigation of Pope Paul III. This edition Pusey dedicated to the Council about to be held in Rome. He sent copies to Rome for the Bishop of Orleans, and other members of the Council. These were returned from Rome with *refusé* written upon them.^[324] Pusey wrote to Newman to enquire what this meant. Newman answered that he was certain that the Bishop to whom the books were sent would not be guilty of such incivility; and suggested a suspicion that the Roman police would not pass a book with Pusey's name. This suspicion proved correct. Newman wrote again: “I had a very kind letter from Bishop Clifford, telling me that neither he nor the Bishop of Orleans had refused my book, and asking me to send it to him at Clifton.”^[325] But these despotic methods of government at the end of the nineteenth century were hardly conducive to the advancement of mutual understanding, or indeed to the interests of truth. The movements at Rome were watched by Pusey with ever-deepening sorrow:—

“Manning’s is a strange lot,” he wrote “with, I should have thought, but a very moderate share of learning, by throwing himself into the tide, to seem to be at the head of a movement which should revolutionise the Church. It is a mysterious lot, one which one would not like for oneself. The composition of the Congregation on Dogma has discouraged us. Those whom we should have had most confidence in, Mgrs. Dupanloup and Darboy, omitted, and Manning in it. It is utterly hopeless to send any propositions to a Congregation in which Manning should be a leading member. I am told that he has been impressing the Council, or at least important Bishops, with the idea that hundreds of thousands of the English would join the Roman Communion if the Infallibility were declared.”^[326]

Pusey’s biographers say that

“as the meetings of the Council went on, Pusey had really very little hope of any wise result.”^[327]

“In all later issues of his third *Eirenicon*, Pusey altered the title from ‘Is Healthful Reunion Possible?’ to a form which embodied his future attitude towards the Roman question —‘Healthful Reunion, as conceived possible before the Vatican Council.’”^[328]

^[310] Friedrich, *Döllinger*, iii. p. 206ff.

^[311] Cecconi, i. p. 165.

^[312] Cecconi, i. p. 379.

^[313] Cecconi, i. p. 387 (8th September 1868).

^[314] *Ibid.* p. 390 (13th September 1868).

^[315] Cecconi, ii. p. 304.

^[316] *Miscellanies Lit. and Religious*, i. p. 330, in Latin; transl. p. 344.

^[317] G. F. Cobb, *Few Words on Reunion* (1869), p. 6.

^[318] Liddon’s *Life of Pusey*, iv. p. 186.

^[319] Page 155.

^[320] Page 182.

^[321] Page 161.

[322] Page 180.

[323] Liddon's *Life of Pusey*, iv. p. 181.

[324] Page 190.

[325] Page 192.

[326] Liddon's *Life of Pusey*, iv. p. 189.

[327] Page 190.

[328] Page 193.

CHAPTER XVI

THE OPENING OF THE VATICAN COUNCIL

THE Council of the Vatican was opened on the Feast of the Immaculate Conception (8th December 1869).^[329] There was significance in the selection of the day. That very day, fifteen years before, Pius IX. had proclaimed a new dogma on the Virgin; and, as a fervid prelate assured him, he who had declared the Virgin immaculate was now to be proclaimed by her infallible. The Council was held in the South Transept of St Peter's, and at the opening service seven hundred and two members were present.^[330] So large an Assembly had never been held before. The proportions of the two opinions were roughly between four and five hundred Infallibilists and between one and two hundred opponents of the doctrine.

Meetings of the Council were of two kinds: the ordinary Congregations, at which none but members and officials were permitted to be present, while the proceedings were secret; the Public Sessions, at which the public were admitted, and the Decrees proclaimed. Of the former kind there were in all eighty-nine, of the latter four. Only two, however, of the Public Sessions declared matters decreed: for the first was entirely occupied with ceremonial, and at the second (6th January) no Decrees were ready; it was accordingly devoted to recitals of the Creed of the Council of Trent. The Pope was never present except at the four Public Sessions. He exerted his influence without compromising his dignity.

The secrecy of the proceedings was thoroughly in accordance with the Italian disposition. Every official and member of the Council was sworn to observe it. But the regulation proved ineffective, partly because the Pope himself released certain members of the majority from the necessity of its observance, and partly because the incessant discussions in unofficial assemblies of the Bishops could not easily escape publicity. Much information leaked out in various directions and appeared in print.

The influence of Pius IX. upon the Council was exercised partly through official documents. Three important papers^[331] were issued by him to the Council during its early period: The Constitution on Procedure (18th December 1869); on Election to the Papacy in case of a Vacancy (1st January 1870); on Absolving from Ecclesiastical Censures (15th January 1870). The significance of the last may be measured by the following description. Its effect was “to cancel episcopal encroachments on the Papal authority.”^[332] The second was intended to prevent any assertion of power by the Council in case the Pope might die.

But far the most important of these three Constitutions was that which regulated the Council’s procedure (*multiplices inter*). This remarkable document asserted that the right of proposing subjects for discussion belonged to the Papal See, but that the Pope nevertheless desired and exhorted the Bishops to give in their proposals to a Congregation appointed for that purpose. The value of the concession was qualified by the fact that the Congregation in question was selected entirely by the Pope, and was composed of Ultramontanes.

All the officers of the Council, including the five Presidents, were appointed by the Pope on his own authority; and their names were given in this Decree. The details of procedure were also therein defined. No Bishop was to leave without the Pope’s permission.

This certainly was a striking document. The French statesman, Ollivier, says that “its novelty, its boldness, its audacity is only realised when compared with the proceedings at Trent.”^[333] At Trent the Regulations were determined by the Bishops themselves.

When the Vatican Council began its work, several Bishops, including the Archbishop of Paris, attempted to protest against the restrictions imposed upon them; but the presiding Cardinal suppressed all objections with a declaration that the Pope had so ordained, and that his decisions could not be called in question. To this declaration the minority submitted. Thereby in effect they acknowledged the Pope’s power to determine the Regulations. This has been called “the first of the feeblenesses, or to speak more indulgently, the resignations of the minority.”^[334]

The actual product of the Vatican Council consists of two Dogmatic Constitutions known respectively by their opening words as the Constitution *Dei Filius* and the Constitution *Pastor Æternus*. Of these the former was proclaimed in the third Public Session, the latter in the fourth Public Session. The contents of the former are the doctrine of God, of Revelation, of Faith, and of the relation between Faith and Reason. The latter contains the Ultramontane theory of the Papacy, and especially the dogma of the Pope's Infallibility. It is with this last subject exclusively that we are concerned.

This subject of Papal Infallibility was not mentioned among the causes for which the Council was assembled, nor was it introduced into the discussion for the first three months. During that period the Bishops' attention was devoted to discussions on faith; the discipline of the clergy; the project of the compilation of a new Catechism, for universal use, in place of all local Catechisms in the Roman body. Matters such as these occupied the first twenty-eight Congregations. But progress was excessively slow: partly owing to the reluctance of the minority to proceed, under fear of what the future would produce, and under dislike of various extreme measures proposed to them. It seems clear that the Roman authorities had not anticipated so much persistent opposition. At the end of three months, minority-Bishops said with relief, "We have done nothing, and that is a great deal." The Dogmatic Constitution on faith was expected to be ready for the second Public Session on 6th January. But when the date arrived the doctrine was not ready. Consequently the entire Session was occupied by formal recitation of the Tridentine Creed.

In January 1870 the crisis became acute when Manning and other members of the Vatican Council presented the Pope with an Address, urging him to declare his own Infallibility.

Upon this Döllinger wrote his "Few Words" to the *Augsburg Gazette*. He pointed out with all possible emphasis the magnitude of the suggested revolution. He declared that Papal Infallibility had never been believed hitherto—believed, that is, with the faith due to a divine revelation. Between the faith due to a truth divinely revealed through the Church, and the acceptance of a theological theory, the difference is immense. Hitherto there had been conjectures, opinions, probabilities, even human certainty in individual minds as to Papal Infallibility; but never that divine faith which

is the response of the Catholic to the doctrine of the Church. Döllinger added that while the Infallibilists' Address spoke of the Pope being infallible when instructing the entire Church, it was historically clear that all papal utterances on doctrine during the first twelve hundred years were directed to individuals or local communities.

The effect of this urgent appeal to historic certainties was very considerable. Archbishop Scherr, Döllinger's diocesan, had a very uneasy time in consequence at the hands of the Jesuits and the majority in Rome. Although his personal conviction and sympathy were with the learned historian, he could not help a certain human self-pity, and he is said to have sighed, "What a comfort it would be if only Döllinger would expire!" But the vigorous old Professor seemed in no way likely to comply with the archiepiscopal wishes.

A further stage in Vatican procedure was reached when Pius IX. imposed upon the Council, on 22nd February 1870, a new series of Regulations which were designed to accelerate progress, and to drive things forward to their intended conclusion.

These *New Regulations* as to procedure were introduced into the Council without its consultation or consent. They were simply imposed upon the Council, from without; by the same authority which directed everything without personally appearing. The main features of the New Regulations are two. The first rule authorised the Presidents to control any individual speaker who in their opinion wandered from the point. Another rule gave the Presidents power, at the request of ten Fathers and with the approval of the majority, to close the discussion. This second Regulation involved tremendous possibilities. It placed the minority entirely at the mercy of the majority. It thereby determined a principle more momentous still—namely, that Decrees of Faith could be imposed on the Church by mere majority of votes. Hitherto the minority had taken refuge in the principle that no opinion could be elevated into a dogma of faith without the Council's moral unanimity. The existence of an opposition so extensive as between one hundred and two hundred Bishops rendered the Church secure on that theory from the imposition of the Ultramontane conception of papal prerogatives. But the New Regulations swept that plea of moral unanimity entirely away. Whatever was the intention of its propounders, its effect is clear; and that effect was disastrous to the men who clung to what they

regarded as the ancient truth. Naturally the depression of the minority was profound.

Döllinger wrote a very powerful criticism upon these New Regulations.^[335] He characterised the existing Roman Synod as the first in history in which instructions as to procedure had been imposed upon the Bishops without their co-operation or approval. The New Regulations concentrated all real power in the hands of the presiding Cardinals and the Commission of Suggestions, so that the Council itself, as opposed to these, had neither power nor will. Equally momentous was the fact that doctrine was to be determined by majorities. This was an intrusion of parliamentary forms into synodical procedure—with this tremendous difference: that whereas laws passed by majorities are subject to subsequent revision and recall, dogmatic resolutions are, if the Council be really ecumenical, irrevocable and valid for all future time. The Infallibilist majority would naturally accept the dogmatic proposals introduced by the Commission of Suggestions; for that Commission, which alone possessed the privilege of introducing doctrine into the Council, and of determining what amendments should be admitted, and the form which those amendments should take, consisted of the most pronounced advocates of Infallibility. And this decision by majorities was utterly alien to the traditional methods of Christendom. “For eighteen hundred years,” said Döllinger, “it has been held as a principle of the Church that decrees concerning faith and doctrine should be adopted by at least moral unanimity.” And this because Bishops at a Council are primarily witnesses to the faith which they and their Churches have received; secondly, judges to examine whether the conditions of universality, perpetuity, and consent are fulfilled by a given doctrine; whether it is really a universal doctrine of the whole Church, and a constituent portion of the original Deposit divinely intrusted to the Church’s keeping, and therefore a doctrine which every Christian must affirm. Consequently the judicial function of the episcopate cannot exclude the past. It extends across all history.

“A Council only makes dogmatic decrees on things already universally believed in the Church, as being testified by the Scriptures and by Tradition, or which are contained, as evident and clear deductions, in the principles which have been already believed and taught. Should, for example, the Infallibility of a

single individual be put in the place of the freedom from error of the whole Church, as formerly believed and taught, this would be no development nor explanation of what was hitherto implicitly believed, nor is it a deduction that follows with logical necessity, but simply the very opposite of the earlier doctrine, which thereby would be subverted.”

Döllinger contended further that all theologians agree that the ecumenical character of a Council depends, among other essential conditions, upon the possession of real freedom. Real freedom does not consist in mere immunity from physical force. Fear, ambition, avarice, as effectually destroy true freedom as bodily constraint. Moreover, urged Döllinger, even if a Council be ecumenical in its vocation, it does not follow that it is also ecumenical in its procedures or in its conclusions. “It is still necessary that the authority which stands ever above every Council—the testimony of the whole Church—should come forward and decide.”

This was Döllinger’s final protest before the decision.^[336] A Bishop of the majority replied by prohibiting theological students in his diocese from attending Döllinger’s lectures. Pius congratulated the Bishop on this action, and wished that others would follow his example; which however they declined to do. A war of pamphlets followed. Döllinger was attacked in a party newspaper as having by his recent writings placed himself outside the Catholic Church. Hötzl,^[337] a Franciscan lecturer on theology, afterwards Bishop of Augsburg, published a pamphlet entitled, “Is Döllinger a Heretic?” This was too much for the King of Bavaria. He expressed in a birthday letter the earnest hope that Döllinger might long be spared in undiminished mental and bodily powers to the service of religion and of learning. Hötzl’s imprudent act awakened so many demonstrations of sympathy and approval towards Döllinger that it was thought wise to transfer Hötzl to Rome.

It was impossible, of course, that these New Regulations, involving for the minority such tremendous possibilities, should be tamely acquiesced in without a protest. The protest came, partly in the form of written appeals to the Pope, and partly in speeches in the Congregation. One of the ablest orators in the Council, the brilliant Strossmayer, being called to order by the President, uttered against the Rules the following impassioned criticism:—

“I am persuaded that the perpetual and unmistakable rule of faith and tradition always was and always must remain that nothing could be passed without morally unanimous consent. A Council which ignored this rule, and attempted to define dogmas of faith and morals by a numerical majority, binding thereby the conscience of the Catholic world under penalties of eternal life and death, would, according to my most profound conviction, have transgressed its lawful bounds.”^[338]

As Strossmayer uttered the closing words the Council Chamber was filled with the wildest tumult, says Lord Acton, and the Session was broken up.^[339]

Written protests were sent to the Pope against the New Regulations by the minority, but no relief was given. What were they now to do? They had complained, on ground of conscience, that the freedom of the Council was impaired. This complaint affected the Council’s validity. Could they reasonably continue their work within it? On the other hand, no actual Decree was threatened as yet. Was it wise to withdraw before the repulsive doctrine was introduced? The instincts of caution prevailed over bolder and more resolute lines. The minority protested, but submitted.^[340]

^[329] *Acta*.

^[330] *Ibid*.

^[331] *Acta*.

^[332] Ollivier, i. p. 460.

^[333] Ollivier, i. p. 466.

^[334] *Ibid*. ii. pp. 21–23.

^[335] Reusch, *Declarations and Decrees*.

^[336] Friedrich, iii. p. 541.

^[337] *Ibid*. p. 543.

^[338] Lord Acton, *Vatican Council*, p. 92.

^[339] *Ibid*. p. 92.

^[340] Friedrich, iv. p. 764.

CHAPTER XVII

THE VATICAN DECISION

IF the actual subject of Infallibility had not yet entered the Council for discussion, it was anxiously or eagerly debated in every mind. As far back as the beginning of the year (28th January 1870), a petition^[341] under the instigation of Archbishop Manning was sent to the Commission on Faith, entreating that the doctrine of Infallibility might be brought before the Council. This petition for a Decree on Papal Infallibility was based upon the following grounds. It was, they said, opportune and necessary, because, according to the universal and constant tradition of the Church, papal decrees of doctrine could not be reformed; because some who gloried in the name of Catholic were presuming to teach that deferential submission to papal authority was sufficient; that one might acquiesce in silence without inward mental consent, or might at any rate accord a merely provisional assent until the Church itself endorsed or modified the decree in question. This independence was, they considered, injurious and subversive of authority. Prevalent disputes made definition a positive necessity. If the Vatican Council, thus challenged, neglected to testify to Catholic Faith, the Catholic world would fall into uncertainty, and the heretical world would rejoice. Various local synods, moreover, had already passed resolutions for Papal Infallibility.

Petitions were also issued on the other side. Copies of a circular had reached them requesting the definition of Papal Infallibility. Accordingly they are constrained to address the Pope. This is not a time in which the rights of the Apostolic See are questioned by Catholics, and it is undesirable to add to the doctrines of the Council of Trent. The difficulties which the writings of the Fathers, and the genuine documents and facts of history suggest to many minds, on the subject of Infallibility, preclude the definition of this doctrine as a truth divinely revealed, until the difficulties have been removed. They implore the Pope not to impose such discussions upon them.^[342]

This was in January. Nothing was immediately done. But *on the 6th of March* a notice was sent to the members individually, informing them that, in response to the appeal of many Bishops, the Pope had consented to the introduction of Papal Infallibility into the Council. They were accordingly requested to send in their written remarks within ten days.

Accordingly written criticisms were sent in to the Commission on Faith. And it is to this fact that we owe a large portion of our knowledge of the actual argument employed by Infallibilists by the minority in the Council. For their criticisms were condensed and printed for distribution among the members, and copies of this have survived the Council.^[343] This is all the more important since the proceedings of the Council were nominally secret, and no official report of the speeches was ever given to the world, and the actual minutes are buried in the Vatican archives. A Jesuit German writer^[344] on the Council has had access to these, and has given extracts and accounts of them; but no complete account has ever yet appeared. Meanwhile great value must attach to the printed criticisms of the doctrine. These, as was natural, are chiefly the work of the opposition. Some one hundred and thirty-nine Bishops replied, of whom nearly one hundred were against the decree. Its advocates contented themselves with general expressions of approval. The opposition to the proposed definition was begun by the criticisms of Cardinal Rauscher.

Rauscher said that the question was not whether the instructions of the Pope should be obeyed, but whether they must be received with the faith due to God. The salvation of souls and the honour of the Council demand that the greatest caution should be exercised before imposing this upon the faith of Christian people. He confessed himself, although prepared to defend what the Council might decree, unable to solve the difficulties which would arise. To those already persuaded conviction would not be difficult. But Bishops in Austria and Germany would have a difficult time. “The subterfuges employed by not a few theologians in the case of Honorius would only expose the writers to derision.” To propound such sophistries appears to him unworthy alike of the episcopal office and of the subject in question, which ought to be treated in the fear of God. Even prudence would prohibit the use of such artifices.^[345]

Bishop Ketteler, Bishop of Mainz, urged that according to the principle observed by the Fathers and sanctioned by Councils, dogmatic decrees should only be resorted to under imperative necessity. In many districts the doctrine of Papal Infallibility was almost or altogether unknown to the faithful. Were it decreed, many Catholics in this age of indifference would remain within the Church without believing it, to the grave detriment of Religion.

Bishop Hefele said that if the error of Gallicanism consisted in separating the Church from the Pope, the present proposal committed the converse error of separating the Pope from the Church. We Catholics can accept neither of these extreme positions. Moreover we have been told that the subject of Infallibility is the Church; we are now told that it is the Pope. But it is difficult to see how these two subjects can be united, unless the one renders the other superfluous, and indeed excludes it. The theory of Papal Infallibility seemed to him founded neither in Scripture nor in History. The letter of Leo to Flavian was not accepted by the fourth Ecumenical Council because it came from an infallible writer, but because it contained an apostolic doctrine; nor was it accepted until the doubts of certain Bishops had been removed.

Another Bishop declared that if such Infallibility were dogmatically defined, the result in his own diocese, where not a trace of Tradition upon the subject existed, would be grievous losses to the Church. Nor could he personally profess himself convinced of it.

Melchers, Archbishop of Cologne, was prepared to accept Papal Infallibility as his personal belief, but was unable to assent to its erection into a dogma; for he could see no necessity. The authority of the Holy See was never greater than in modern times. And it is neither customary nor expedient to impose new dogmatic decrees without necessity. The subject of Papal Infallibility in particular is a controverted subject. Many learned and orthodox persons considered its dogmatic definition impossible, owing to the serious difficulties presented by history and the writings of the Fathers: the facts showing that there had never been unanimity or universality of consent on this matter in Christendom. Nor was it easy to see how a definition could be composed which would not leave space for numerous uncertainties and controversies as to its meaning and application to past and future events. And, among men disposed to accept the opinion,

there were many destitute of that certainty of conviction which is an indispensable pre-requisite for imposing the doctrine, without grave moral injury, upon others as essential to be believed under penalty of eternal damnation. There was no hope of real unanimous consent; for it was impossible to deny that a large proportion of the Bishops was adverse to the definition. And hitherto in the Church of God it had never been the custom, nor is it lawful, to establish new dogmatic definitions without moral unanimity among the Bishops assembled in Council.

Another Bishop insisted emphatically that no consideration ought to move men to create an article of faith, except only a clear knowledge that God has revealed it, and that it is certainly contained in Scripture or Tradition. For a Bishop to vote this doctrine merely out of regard for the Holy See would be a mortal sin. There was no constant Tradition for Infallibility. On the contrary, the opposite opinion appears in numberless records. St Augustine is particularly clear, and seems to have had no conception whatever of the doctrine. Bossuet's *Exposition* could not possibly have been approved when the doctrine prevailed, for he only mentions the primacy.

Another, who protests his abhorrence of all endeavours to detract from the primacy of the Pope, was yet constrained to plead that nothing should be said in this Council either concerning the pre-eminence of the Roman Pontiff over the entire Church and General Council, or concerning his Infallibility.

Another Bishop protested that this ascription to the Pope of absolute or unconditional Infallibility, separate, *i.e.* independent of the consent of the Episcopate—personal, that is to say, uttered at will—is neither opportune nor lawful: not opportune, for it will involve souls and religion in innumerable difficulties; not lawful, because founded on no certain argument either of Scripture, or Tradition, or Councils; and because it would revolutionise the constitution which Christ has imposed upon His Church.

Next came a witness from the Irish Catholics. This Bishop said that although during the last thirty-one years before the Council assembled the doctrine of the Infallibility of the Roman Pontiff had been taught in the Irish schools, and he himself during fifteen years had inculcated it upon the

young ecclesiastics entrusted to his care; yet for two hundred years it had always been taught in the schools that the decrees of the Roman Pontiff were not irreformable, except with the consent, either expressed or tacit, of the Episcopate. Therefore this doctrine of personal Infallibility of Roman Pontiffs could not reach the people and sink into the minds of the faithful laity. Moreover, a denial of personal Infallibility had been publicly made when the Irish Bishops were interrogated by the English Government. Nor was any censure to this day ever uttered against the doctrine which prevailed in Ireland. The Irish Catechisms had always taught the Infallibility of the Church, meaning the Bishops or teaching body in agreement with the Pope.

Sixteen other Bishops joyfully accept the doctrine, and declare it supported by the entire Dominican Order. Twenty-five others did the same.

Another Bishop declared that the series of three texts commonly quoted on behalf of Papal Infallibility ("Thou art Peter..." "I have prayed for thee" ... "Feed My sheep") could not possibly prove that the authority to teach and the privilege of Infallibility were given exclusively to St Peter, for another series of texts exists in which the Apostles collectively with St Peter are made recipients of the same authority ("Go ye therefore ... teaching them ... I will pray the Father, and He will send you another Comforter ... Receive ye the Holy Ghost"). Who will dare to say that the Apostles and their successors received nothing in these words? Who does not see that all power was directly bestowed upon them all? Now, since the Bishops are successors of the Apostles, and receive direct from Christ a definite share in the government of the Church, it is impossible to allow that the entire and absolute authority and power to rule and teach, coupled with the privilege of Infallibility, belong to the Pope alone. Such power must reside in the Pope together with the Episcopate, as the successor of Peter and the Apostles. If the Pope possesses a principal portion of authority, yet it is essentially limited by the rights of the Episcopate, which are equally Divine. Thus it cannot be absolute. We hold it for certain, this Bishop continued, that by no argument from the first five centuries of the Church can the Infallibility of the Pope be established. The early centuries never recognised absolute infallible teaching power in the Pope alone; but in the entire Episcopate, of which he was the head. If nothing is definable which

does not conform to the test of universality from the beginning, how can Infallibility of the Pope ever become defined?

Another Bishop asserted that nothing more mischievous than this unfortunate proposition could be conceived; nothing more dangerous to the authority of the Church and the Holy See. It was not right to separate either the head from the body nor the body from the head in the discussion of this doctrine. Infallibility was a prerogative of the entire body of the Church. The difficulties which the doctrine of Papal Infallibility create were endless and almost insoluble. The consequences of a definition would be bad and dangerous. It was therefore to be hoped that the Pope will, of his own accord, set this cause of discord aside. Many of the Fathers of the Vatican Council were persuaded that such an example of humility and self-denial on the part of the Pope would really increase the authority of the Apostolic See, and render the name of Pius IX. glorious in the annals of the Church.

Another member of the Council—Bishop Clifford, one of the three candidates proposed by the Chapter for the Archbishopric of Westminster, and who therefore, if the will of the Roman Catholics in England had not been overruled by Pius IX., might have been in Manning's place—declared that the definition of this opinion as of faith would be the greatest hindrance to the conversion of Protestants and a stone of stumbling to many Catholics. What good it could produce he was unable to see. It would be especially disastrous in England; for at the time of the Catholic emancipation from civil disabilities the Bishops and theologians were publicly questioned by Parliament whether English Catholics believed that the Pope could impose definitions on faith and morals apart from the consent, either tacit or express, of the Church. All the Bishops, among them the predecessor of the present Archbishop of Dublin, together with the theologians, replied that Catholics did not maintain this doctrine. This statement was entered in the Parliamentary Acts. On the strength of these assertions, Parliament admitted the English Catholics to civil liberty. How will Protestants believe that Catholics are loyal to their honour and good faith if they see them acquiring political advantage by professing that Papal Infallibility is no part of the Catholic religion, and afterwards, when those advantages are secured, departing from their public profession and asserting the contrary?

Bishop Purcell, an American Bishop, was of opinion that a definition of Papal Infallibility would be not only inopportune but also dangerous. It would, if passed, effectually frustrate conversions in the United States. Bishops in controversy with Protestants will be unable to refute them: for Protestants will say, "Hitherto this doctrine was, so you asserted, an optional opinion in the Church; now you declare it to be a dogma of the faith. Either therefore your former assertion was untrue, or the doctrine of the Church has suffered variation. In which case, what becomes of your objection to Protestant variations?"

Another Bishop, on the contrary, maintained that the definition was not only opportune, but also necessary, in order to deepen reverence for highest authority, and to suppress the systematic rebellion which is very widely spread. He desires that a Canon should be formulated to anathematise all who hold the opposite view.

Another Bishop declared that he could see no necessity for any definition. If there were, eighteen centuries would not have elapsed without one or other of the Councils defining it. Nor could he see the least utility. They who will not hear the Church certainly will not hear the Pope. In the present discussion now raging evil influences daily increase. There were many facts of history better buried in oblivion, which this discussion proclaims abroad. So much for the opportuneness of the dogma. What if the doctrine itself be without secure foundation? Quite recently the Bishop had vowed never to interpret Holy Scripture except in accordance with the unanimous consent of the Fathers. Now, previously to the Council, he had always interpreted the text "I have prayed for thee" in the sense of Papal Infallibility. But having begun to examine for himself, for the purposes of the Council, he finds that nearly all the extracts from the earlier Fathers given in theological manuals in behalf of Infallibility (as in the works of St Alphonso, Perrone, and others) are either inaccurate, or derived from forgeries. What the extracts from the early Fathers prove is primacy. They do not prove Infallibility.

Conciliar definitions, says another Bishop, ought not to be imposed by superior numerical force, but by intellectual persuasion. In the Council of Trent so great was the deference accorded to the minority that a decision was postponed for several years because thirty-seven of the Fathers declined to concur with the opinion of the majority.

Another Bishop affirmed that in his view a definition of Infallibility would be the suicide of the Church. Quite recently, certain Anglicans, who six months ago came over to Catholic unity, returned at once to Anglicanism, on reading the Archbishop of Westminster's imprudent Pastoral.

Bishop Kenrick made a very lengthy and elaborate protest. He appealed to Augustine's defence of Cyprian's opposition to Pope Stephen. Augustine manifestly was ignorant of pontifical Infallibility, otherwise he could not possibly have argued as he did. The oft-quoted phrase, "Peter has spoken by Leo," signified nothing more when originally uttered by the Bishops at Chalcedon than that Leo's doctrine agreed with their own convictions. In the Sixth Council at Constantinople, the Archbishop of Constantinople, in reference to the Letters of Pope Agatho, asked for copies to compare with the traditional testimonies of that Patriarchate; after which he would give his reply. Accordingly the Archbishop compared the papal letters; and, finding that their contents harmonised with the Eastern teaching, accepted them. Moreover, supreme papal authority does not include Infallibility. Kenrick considered great differences to exist between the dogma of Immaculate Conception and that of pontifical Infallibility. The latter invades the rights of the Episcopate, and imposes upon the faithful the necessity of believing that Roman Bishops have never erred in matters of faith, a statement which indisputable facts of history appear to refute; and also of believing that Roman Bishops will never err in future, which indeed we hope, but are unable to believe as a certainty of the faith. The rule to be followed is, that no innovation should be accepted in the Church; that nothing should be required of the faithful, except that which has been believed always everywhere and by all.

When the ten days' interval was passed, and the Council resumed its work, there was manifested on the part of the authorities a decided hesitation. This was due not to the protests of the minority, or to any force in their numbers or their arguments. It was the outcome of political rather than ecclesiastical causes. For Italy aspired to become a consolidated kingdom, with its capital at Rome. The entire mediæval inheritance of the Papacy, the States of the Church, could not be held by any force at the Pope's disposal; and might, but for external protection, be at any moment swept away. That protection was provided by France. French soldiers

guarded the city, kept the Italians out, and rendered the continuance of the Council possible. The armed intervention of France was described by the Archbishop of Paris^[346] as a necessary expedient but not a permanent solution. It provided a temporary security, during which the Vatican Council was held. It is impossible not to admire the sagacity which seized the occasion. A little later, and it could not have been done. But security depended on French goodwill.

“If any one dreams,” said Antonelli, “that there exists for us any human help, except the forces of France, he must be blind.”^[347]

But France at this critical moment showed signs of uneasiness. It felt that its protection was being utilised for the promotion of theories which it strongly disliked.^[348] Count Daru, head of the French Ministry, sent an emphatic protest to Rome, in which he declared that the adoption of Ultramontane theories could not but alienate from Catholicism many whom it would be a duty to win. The Holy See was making the relation between the Church and the State more difficult and strained. In particular, the work of the French Ministry was thereby made exceedingly difficult. They would soon have to discuss in the Chamber the presence of French troops in papal territory. How can their presence be justified if the Pope rejects the principles of liberty which are essential to the very existence of modern Governments? The writer confesses that he was personally placed in a position most discouraging to a devoted adherent of the Roman cause. Public opinion in France was already amazed to find the Council imprisoned within the limits of a programme which invaded the freedom of the Bishops. Nothing could be more opposed to the ancient rules of the Church. Never had the Holy See hitherto restricted, or rather suppressed, the lawful independence which Councils have always possessed in forming their own Congregations and choosing their own officials and regulating their own procedure. The history of these great Assemblies offers no precedent for the forms imposed to-day; and we have only too much reason to say that deliberations so arranged and conducted will only result in resolutions not to the real interest of the Church.^[349]

We can well understand that the receipt of such a letter, from such a source, caused great uneasiness in the Papal Court. No wonder if, at the critical moment, when everything seemed in their grasp, they yet hesitated

and delayed. The question to be determined at Rome was, What did this manifesto mean? Was this present attitude serious? a prelude to actions more serious still?^[350] No wonder if Pius temporised, and diverted the attention of his Council for the moment to other themes. So the subject of faith was reintroduced. However, on 11th April, a telegram was received in Rome: "Daru resigned. Ollivier succeeds him. Council free." That is to say, of course, free from a papal point of view.

The fact was, that although Napoleon III. had no desire to promote the extension of papal power, yet in the weakness of the monarchy and increasingly republican tendencies of France, he could not afford to offend the Ultramontanes. He was therefore compelled by a cruel irony to protect the Pope, and enable him to reach the summit of absolute power. Withdrawal from Rome while its Episcopate was assembled would be a declaration of hostility to Catholicism upon which France dared not venture.^[351] Accordingly, the political obstruction being now removed, the Presiding Legate informed the Council that many Bishops had petitioned the Pope to forego the consideration of all other subjects, and to proceed at once to the discussion of Papal Infallibility; and to these petitions the Pope had assented.

To realise the situation fully it is now necessary to fix attention on a select and powerful body at work behind the Council—the famous Commission of Suggestions. This was a select Committee of twenty-five, including Cardinals, Patriarchs, Archbishops, all appointed by the Pope; their momentous function being to receive and criticise all suggestions of subjects upon which the Council might deliberate. Nothing could enter the Council at all until endorsed by this Commission.

It was pointed out by Infallibilists that the members of the Commission of Suggestions represented all portions of the Catholic world: to which the minority replied that whatever the geographical distribution, all opinions were excluded except one. This was not exactly accurate. But within the chosen twenty-five were such advanced Ultramontanes as Cullen, Archbishop of Dublin; Spalding, Archbishop of Baltimore; Manning, Archbishop of Westminster; Dechamp, Archbishop of Mechlin; Conrad Martin, Bishop of Paderborn; Valerga of Jerusalem; Cardinals de Angelis and Bonnechese; to say nothing of Antonelli.

An important member of the Commission of Suggestions was Guibert, Archbishop of Tours. When consulted by Pius IX. on the desirability of a Council, he had confined himself in his reply to practical affairs. There is a studious and, says his biographer,^[352] deliberate silence on the theme of Pontifical Infallibility. The theory was his personal belief. He thought that, were it otherwise, the Church would be inadequately furnished for arresting heresies, since General Councils are intermittent and occasional. “But whether it is opportune to make a dogma of this truth—that,” he wrote in 1870, “is by no means clear to me.” At the same time he added that he would not have the least repugnance to subscribe to such a decree. Accordingly Guibert, who was thoroughly understood in Rome and highly valued, was nominated member of the Commission of Suggestions.

Guibert himself gave the following interesting account^[353] of their deliberations at the critical hour when the subject of Infallibility was brought before them. The Congregation met in a chamber of the Vatican under the papal apartments. Cardinal Patrizzi presided. Guibert, as one of the senior Archbishops, was placed next to the Cardinals.

“The time had come for the famous question of Infallibility to be submitted to the Congregation for proposals. Its decision was anxiously expected. The Pope himself had given orders that he should be informed of our decision immediately afterwards.

“Cardinal Patrizzi, after opening the subject, proceeded to interrogate, according to custom, the prelates of the least distinguished rank. They had mostly prepared their reply, and before voting delivered a thesis on the authority of Holy Scripture, the Fathers, etc. These discourses were pronounced or read in Latin. When my turn came, not being accustomed to write much, I had no prepared discourse, and being unused to talk in Latin, should have had great difficulty in giving exact expression to my thoughts in that language. I could, indeed, have given my vote in Latin, but I desired to preface it with some statements by way of explanation. I therefore begged the presiding Cardinal to allow me to speak in French, which was a language familiar to all the Congregation, and which would greatly facilitate my explanations. The Cardinal willingly consented, and, I may add that many of my colleagues, being in

the same predicament, afterwards followed my example. They seemed to attach some importance to what I was about to say. I was far from desiring to oppose the definition for which people yearned. I was by no means in with the opposition, but I had never manifested enthusiasm for it as many others did.

“I began with the profession of faith in the Pope’s Infallibility. I affirmed that this belief had been mine throughout my life. I had been taught it in childhood, and as a student I was admitted into a society where this belief was held without reserve. I had taught it myself as Superior of the Seminary of Ajaccio. In short, I never had the least doubt about the doctrine, and I was inclined to defend it in every way. But the question before them now was whether it was opportune for the Council to discuss its dogmatic definition. If this question had been raised some years before I should have asked that no discussion should be held.... I hold that it would not have been opportune to discuss the subject some years ago. It would have been even dangerous, for it would have needlessly disturbed the minds of men, and have exposed to challenge an authority which more than any other should remain above discussion. But things are different to-day. The subject has taken possession of the public Press, and violent passions have been roused by its discussion. Deplorable divisions have been encouraged. The faithful are everywhere disturbed. Even Governments are uneasy; and, with various motives, concern themselves with this important matter. Things have come to such a pass that it is essential to bring the discussion to an end. We are no longer free to keep silence. Peace will only be restored by a definition of that which Catholics have believed to the present day. We must therefore treat the subject; and, I would add, must decide in the affirmative. For otherwise, in the face of existing circumstances, if this subject be not discussed, serious harm will be done to the faithful. Governments will not have the respect they should for the Holy See, and the authority of the Pope will be depreciated.

“While I was delivering my speech,” adds Guibert, in a most significant conclusion to this account, “I was watching Cardinal

Antonelli, who was seated opposite. And I saw him give indications of approval each time I emphasised my opinions. My discourse produced a considerable effect upon my colleagues. It seemed to be new light, assisting and strengthening those who were irresolute on the proper course to pursue. Prelates who spoke after me did me the honour to base themselves upon the reasons I had propounded, and the conclusion of our meeting was that the subject should be laid before the Council.

“As soon as our deliberations were ended, the Cardinals went to the Pope and reported to him all the incidents. They said that, thanks to the Archbishop of Tours, a favourable vote had been obtained. The Holy Father expressed his keen satisfaction.”^[354]

Such was Guibert’s important share in promoting the great result. If his health gave way in Rome and compelled him to leave before the issue was determined, he could well be spared, for he had done his work. It was appropriate that so influential a mover in the Congregation of Proposals should afterwards be selected for the Archbishopric of Paris, and the rank of Cardinal.

But to whom should the task be intrusted of introducing the great subject into the Council itself? There was a personage singularly fitted for this difficult work. One of the most active spirits in Rome was Mgr. Pie, Bishop of Poitiers. His antecedents were, from a curialist standpoint, irreproachable. He was, says his Ultramontane biographer, “very Roman.” Already he had laboured to propagate the distinctive Roman doctrines in five provincial Councils in France; had taught the Infallibilist opinion twenty years; had suggested suitable theologians of the proper school for preliminary service in Rome. The Bishop of Poitiers had impressed upon his clergy his theory of the relation of Mary to the Councils of the Church. The Council of Jerusalem, he informed them, was “honoured with her presence,” and she had never been absent from the Council Chambers since. He suggested as a fruitful subject for spiritual reflection, “Mary and the Councils.” The Vatican Assembly deserved better than any to be associated with her name, for was it not opened on the Festival of her Immaculate Conception? Mgr. Pie had known perfectly well at least a year that Pontifical Infallibility was bound to come up for discussion in the Vatican deliberations. While still residing in his own episcopal city, his Roman

correspondents had informed him that the preliminary Commission in Rome was entirely agreed on the definability and opportuneness of the doctrine. And he himself had publicly repudiated the notion that Papal Infallibility depended for its completeness upon at least the tacit consent of the Episcopate. That the Bishop's own silence and that of his colleagues conferred upon Peter's doctrinal utterances a value not obtainable from Christ's promise, and from the help of the Spirit, was to Mgr. Pie unthinkable. And he administered a public rebuke to Bishop Maret, the learned advocate of the opposite view, through the medium of a sermon on the text, "the servant of God must be teachable."^[355] The superb confidence of Mgr. Pie greatly impressed the statesman Ollivier,^[356] who said that there was nothing like it on the other side.

Mgr. Maret replied to the sermon, and the preacher issued a rejoinder.^[357] But the strength of the Bishop of Poitiers did not lie in argument. He had no learning to measure with that of Maret. He was given to rhetorical and fervid declamation; whereas Maret was measured, historical, deliberate. Bishop Pie accordingly escaped from further discussion in a letter to his clergy, in which he registered a resolution not to allude again to the recent work of a prelate whose character he admired, but whose errors he lamented. Refutation was, he maintained, superfluous, since Maret only repeated his mistakes; and in fact answers to the work were appearing daily. At the same time Bishop Pie cannot resist asserting that the work of Bishop Maret deserves all theological censures short of formal heresy. To which he adds a prediction, fully justified by events, that Maret would abandon his errors and submit himself to the judgment of the Church.

Already in Rome this "advocate of Roman doctrines in their extremest form"^[358] had acted consistently with these antecedents. He had been long since cordially received by the Pope, and warmly commended for his diocesan utterances. The special honour had been his of selection to the important Commission on Faith by almost the highest number of votes. Already he had preached in Rome, and told his hearers that they had sown much and reaped little, since two or three false lights had misguided men and disturbed the vision even of the wise. Nevertheless he bade them be of good courage. For two or three new definitions of principle would make their children more powerful for good than they themselves had ever been.

It is true that the diocese of Poitiers was by no means free from tendencies of the opposite school. The Bishop received from Catholics of his own flock letters filled with objections against these Roman doctrines with which for twenty years he had indefatigably laboured to feed them. Accordingly, for a while, he steered a diplomatic course between the opposing extremes. When the majority presented a petition, asking the Pope to introduce forthwith the question of Pontifical Infallibility into the Council's discussions, Mgr. Pie was not to be found among the petitioners. There were reasons for this precaution. The immediate introduction of the theme would violate the logical development of thought. For certainly the Church itself should be considered before the subject of the Pope. While, therefore, the Bishop of Poitiers was widely remote from sympathy with those who desired the doctrine's indefinite postponement and ultimate suppression, he fully sympathised with the desire to set the doctrine in its logical place. He thought it would be stronger there than it possibly could be if torn out of its context, and arbitrarily and disconnectedly introduced. Hence he did not explicitly associate himself at first with this urgency movement of the majority. He shared their belief but not their impatience.

However, tactful and sagacious as ever, and keenly alive to the direction in which the stream of popularity flowed with increasing volume, Mgr. Pie was much too prudent to oppose a lengthy reluctance to the wishes of his intimate partisans. His conversion to the view, that so urgent a matter required immediate treatment, was shortly announced. He adopted the vulgar reproach against the minority: "what they labelled inopportune they have rendered inevitable." He identified himself with the irritating assertion that the responsibility for the definition was due to its opponents. Of that, he said, he had not the slightest doubt. He was now to influence the Council itself. To whom could the task of introducing the pontifical claims into the Council be better intrusted than to him? An Infallibilist who had not signed the petition for Infallibility would be more calculated to disarm opposition. The Bishop's friends in France were enchanted. An episcopal colleague just returning from Lourdes wrote to him enthusiastically in terms redolent of the ardent piety of that place: "The Pope has said to Mary, You are immaculate. And now Mary answers the Pope, And you are infallible."

The Bishop of Poitiers set about his speech. He walked with Pius IX. himself in the gardens of the Vatican. He spent much time in serious

discussion with the Jesuit theologians Schrader and Franzelin. Such were the influences at work upon his imagination. It was a delicate task, as his Ultramontane biographer justly observes, to introduce such a subject before an Assembly so divided. To do it to the satisfaction of the opposing extremes was of course impossible. The speech of an hour and five minutes, in which this great theory was launched upon the Council, received the sharpest criticism of learned Germany, and the warmest congratulations of the majority and the presiding Cardinals. On the following day the Pope himself alighted from his carriage to meet the orator, and expressed the liveliest satisfaction. “*Bene scripsisti de me,*” said Pius IX.—an allusion, observes the biographer, to the words which our Lord was reported to have spoken to St Thomas Aquinas, in commendation of his theological labours. In course of time the orator was raised to the Cardinalate.

Nothing can better reveal the effect of this announcement on the minority than the terms in which the Archbishop of Paris denounced it in a letter to Cardinal Antonelli,^[359] the Papal Secretary of State.

“This discussion of Papal Infallibility before all the other questions which must necessarily precede it, this reversal of the proper and regular procedure of the Council, this impulsive haste in a subject of the utmost delicacy, which by its very nature required deliberation and calm—all this,” said the Archbishop, “was not only illogical, absurd, incredible, but it plainly betrayed before the world a resolve to coerce the Council, and was, to describe it correctly, utterly inconsistent with the freedom of the Bishops. To persist in this design would be nothing less than a scandal before the whole world. Those who advocate such excesses are plainly blind to considerations of prudence. There is such a thing as a justice and public good faith which cannot be wounded with impunity.

“I say from the depth of inner conviction,” exclaimed the Archbishop,^[360] that if decrees are passed by such methods as these, occasion will be given for the gravest suspicions as to the validity and freedom of the Vatican Council.

“That decrees *can* be passed this way is indisputable,” he added. “You can do anything by force of numbers against reason

and against right. But there is the sequel to be considered. It is then that troubles will arise for yourselves and for the Church.”

Now the writer of this fervid denunciation was conspicuous for acuteness, tact, reserve, discretion, self-control. What it meant for such a nature to speak this way may be imagined. Nothing can better show the intense strain on the feelings of the minority than the fire and passion in this utterance of one of the coldest of their number.

The Archbishop’s warning produced no practical effect.

A French pamphlet,^[361] entitled “The Freedom of the Council and Infallibility,” said to be the work of the Archbishop of Paris, gives an extremely powerful description of the situation in Rome, from the minority standpoint, on the 1st of June. Only fifty copies were printed, and it was intended exclusively for circulation among the Cardinals.

“Wide-spread complaints exist,” says the writer, “that the Council is not free. This is momentous, for it affects its ecumenicity. Some indeed assure us that all is well since the Pope is free. This is not the Catholic conviction, and will only satisfy one side. It is useless to bid us observe a respectful silence. The integrity of history must be secured against party spirit. Moreover we have now reached the second period of the Council’s activities.

“From the very beginning Papal Infallibility has been the main affair. To-day it has become the only interest. The time for concealment is past. The Council has only been assembled for this end. And now the Pope has postponed all other considerations and proceeds to throw this doctrine suddenly and irregularly into their midst. This is an amazing act of sovereign authority, a sort of *coup d’état*. Nevertheless, it has been throughout the aim, although the secret aim, of the Assembly at the Vatican. The majority declares the doctrine to be urgently necessary. But why this urgency? A question which without peril to the Church has waited eighteen hundred years might possibly

still afford to wait, at least for months. Precipitation, urgency, are unbecoming in a problem demanding above all things the calm gravity, deliberateness, freedom, which alone befit representatives of an eternal Church. The probability of an interruption of the Council before anything is decreed is a miserable subterfuge. Is it really believed that the majority is accidental and could not be counted upon again?

“What appears to us most serious in this *coup d'état* is not so much the disordering of the Council's regular work, as the proof thereby displayed of an arbitrary and absolute will, determined to override everything in order to secure an end long since designed although long concealed.

“Certainly those who urge the Holy Father to such extremes take upon themselves a most tremendous responsibility. Considering the circumstances (especially the doubts already raised as to the Council's freedom), under which they have demanded and secured an exercise of supreme authority, placing so many venerable Bishops in the dilemma of a struggle with the Pope or with their own consciences, we cannot refrain from the enquiry, What future do they expect will await this assembly of the Vatican?

“The Council has now resumed its labours under new Regulations. Undoubtedly these will facilitate rapidity. But the aim of a Council is not rapidity, but truth. If the speed is increased, it is at the price of the freedom of the Bishops; at the price of real deliberation; of the dignity and security of the Church. The new Regulations on Procedure had provoked a protest from one hundred Bishops of the minority: they feel themselves burdened by intolerable restrictions. They find themselves completely under the control of the Presidents, of the Commissions, of the majority. And behind all these there is the perpetual intervention of the Pope himself. The Presidents control absolutely the order of the day, the length of the Sessions, the regularity of meetings, the intervals for the study of documents. The Council, under such dominion, has no life of its own, and no power of initiative. It has no liberty. Is there,”

asks the writer, “any deliberative assembly in Europe or America similarly restricted? And yet the necessity of freedom is more imperative here than in any assembly in the world, considering the eternal interests here involved.

“The minority feel themselves still more crippled by the power of numbers. There exists a majority and a minority; unequal in numerical strength, but far more equal considering the Churches which they represent. The composition of this majority raises serious thoughts. The Council includes, besides diocesan Bishops, whose right alone is indisputable, Bishops with no diocese; Vicars Apostolic, dependent on Rome and removable at will; Cardinals who are not Bishops and some not even priests; superiors of religious Orders.” According to the author, the proportion whose right of membership was uncertain amounted to 195. “Moreover the preponderance of Italian influence is shown in the fact that it is represented by 276 Bishops, while all the rest of Europe has only 265. A considerable proportion of Bishops are being maintained by the Pope, which increases the difficulties of real independence.

“If it be said that decision by majorities is the method of all deliberative assemblies, the answer is, that this is not true of a Universal Council of the Church; least of all can it be permissible with an Assembly so constituted as that of the Vatican. Creation of dogmas by such a method is impossible. It has never been done in the Church. And, accordingly, the protest of a hundred Bishops declares that moral unanimity alone can determine dogmatic questions. So serious they declare is this matter that unless their protest against the New Regulations be attended to, and that without delay, their consciences will be burdened with intolerable difficulties. A hundred Bishops say this. And they have secured no reply whatever. The perplexities resulting from this treatment may be well imagined. Certainly the function of an Episcopal minority in a Council is no sinecure. Some desired at once to withdraw altogether. Others, and these the more numerous, were reluctant to take this final

step. Which of the two was the wiser course the future will show.”

The author complains still further of pressure exerted from without; of ordinary priests encouraged by Roman influences to make declarations in favour of Infallibility against their Bishops—a sort of novel Presbyterianism in which the Bishop’s testimony to the faith is superseded by a section of his clergy. More serious still is the personal intervention of the Pope. A powerful moral pressure is brought to bear upon the Bishops by Pius IX. Bellarmine wrote a courageous letter to Clement VIII., counselling him not to influence the assembled theologians with the weight of his personal opinions, nor to bestow his favours and coveted distinctions exclusively upon those who thought as he did, but to leave all men in these serious discussions to the unimpeded expression of his own belief. Certainly Pius IX. had met with other advisers, and Bellarmine has no equivalent in the Vatican of to-day. Semi-official papers ascribed to the Pope a sentiment of dignified reserve on the question of his Infallibility. But, as a fact, every movement in that direction has received papal blessings and encouragement. An astonishing number of briefs has been issued from the secretariat of latin letters. Each tract in favour of Infallibility is commended. Thus the subject before the Council is prejudged, and the minority bishops themselves indirectly attacked.

The author’s conclusion is that the character of the Council is seriously compromised, and its freedom more than questionable.

The general discussion ^[362] of Infallibility began on the 13th of May, and continued to the 3rd of June. No less than sixty-four Bishops desired to speak upon it. Their names are known, but their speeches, with few exceptions, are only known in fragments. They all exist of course in the shorthand reports stored in the Vatican archives, but they have not yet appeared. This remains for a future historian. Meanwhile, we know fairly well what Manning said, and we have in full the speech of the Archbishop of Paris.

The Archbishop of Paris discussed three points: the introduction, the contents, and the results of this proposed decree. Two facts might show whether its introduction into the Council was in accordance with the principles and dignity of such an Assembly.

One fact was, that while Papal Infallibility was obviously the real object for which the Vatican Council was assembled (as indeed the creation of a new dogma is the most momentous act a Council can perform), nevertheless this momentous subject was never mentioned in the official documents. And this omission was natural. For the Catholic world had no desire for a settlement of the question; nor was there any real ground for meddling with what had hitherto always been a subject of free enquiry among theologians.

The second fact was the introduction of the subject into the Council completely out of its logical and natural order. It was not logical to begin the doctrine on the Church with a definition on the Papacy; for the Infallibility of the Church must clearly be considered prior to that of the Pope.

So far as to its introduction. As to its subject matter: the substance of the formula before the Council contained ambiguous expressions, and was full of difficulty. Under what conditions is this Infallibility supposed to be exercised? By what external signs can we rest assured that the Pope is discharging the office of supreme teacher of Christendom? Is the consent of the Episcopate required or not? If it is, then men are fighting a shadow, for this is the doctrine universally received; if it is not required, then they are introducing an unheard-of and intolerable innovation. But when a formula free from ambiguities has been discovered, then two conditions must be fulfilled: First, the formula, when discovered, must be proved by solid arguments from Scripture, from the Fathers, from the Councils. It must be shown that no important historic incidents conflict with it, that no papal act refutes it. The Archbishop referred to the Council of Constance as an example in which the statement that "every lawfully convoked Ecumenical Council representing the Church derives its authority immediately from Christ, and every one, the Pope included, is subject to it in matters of faith," was unanimously decreed. The Italian School, of course, would deny the ecumenical character of this decree. "That," says the Archbishop of Paris, "I do not admit." Moreover, in any case it would show the common opinion of the Bishops. All these questions, urged Darboy, would have to be considered and weighed. Until the necessary proofs are forthcoming nothing can rightfully be done. There is no peril in delay. But to impose irrevocably on the consciences of the faithful a decree with precipitation,

and without absolute certainty, would be the gravest peril that can be conceived.

As to the practical results of such a decree the Archbishop observed that Papal Infallibility was offered as a means for strengthening authority and unity in the Church. But it must be remembered that the ideal of authority in Christendom is not that which our imagination or our reason represents as most desirable; but that which Christ has established and our fathers maintained to this day. It is not our function to reconstruct the Church after our taste, or to alter the conditions of divine ordaining. Now the Church has never been without its essential elements. But it has never had a definition of Papal Infallibility. Such definition cannot therefore be essential. Nor have men the right to argue that the Church's unity would be firmer if authority were stronger. An institution may be ruined by over-pressure. Excessive concentration may paralyse its functions rather than perfect them.

Then, again, the remedy for the evils of the world is not to be found in Papal Infallibility. This doctrine will not draw to the Church the alienated majority; nor give the Church its rightful place of influence among the nations. The world is sick and perishing, not for want of knowing the truth, but for want of love for it. If it reject the truth now when presented by the collective testimony of the Church, it will not any the more accept it because affirmed by one infallible voice. And what is the value of a proclamation if it is not received? of an anathema where the formulating authority is not acknowledged?

The Archbishop evidently spoke with constraint. His measured, diplomatic utterances suggest the firmness and caution of one desirous not unnecessarily to offend yet resolute to speak his mind. He told the Council that he had delivered his conscience, so far as was allowed him; that if he were to say all he would outrun the limits of discretion. He concluded by proposing, first, to postpone the scheme as having been introduced in a manner unworthy of the Council; secondly, to reconsider more carefully the nature and limits of Infallibility; and, finally, to set aside the subject altogether as fraught with dangerous results to Christendom.

The Congregations were occupied with daily lengthy speeches for and against the doctrine of Infallibility from 13th May to 3rd June. On 3rd June the Presidents produced a petition signed by many Bishops, requesting that

the debate might be closed. The Council was accordingly invited to express its opinion, and the large majority decided that the time for closure was come. Thus again the minority were defeated.

Little more remained to be done. The special discussion followed. But the matter was approaching its close. The minority grew more spiritless and anxious for self-protection. The intense heat of the Roman summer told fearfully on the health of Bishops accustomed to northern climes. Appeals to the Pope for adjournment until autumn were rejected. The futility of protracted discussion became convincingly clear to the minority no less than to the majority.^[363] A desperate attempt was made by some French Bishops (Dupanloup and the Archbishop of Paris) to induce the Emperor Napoleon to request the Pope, in the name of humanity and reason, to prorogue the Council until October. But before the reply could arrive the minority abandoned the struggle.^[364]

Many Bishops resigned their turn to speak. A movement for closure arose, instigated chiefly by Manning: at first resisted, the minority gradually acquiesced.

Ultimately, amid general approval, the presiding Cardinal declared the discussion closed. On the 13th of July the proposition of Papal Infallibility was put to the vote.^[365] The President announced that 601 Fathers had voted. Of these 451 were in favour, 88 against, and 62 favourable conditionally.^[366]

The Legates further announced that the conditional votes would be taken into consideration, and reported upon in the next Congregation. Ninety-one Bishops also abstained from voting, although in Rome at the time.^[367] When the members re-assembled on Saturday, 16th July, a report was made on the conditional votes and the amendments; but so far from anything being done to conciliate the minority, the wording of the decree was made somewhat more uncompromising than before. To the definition voted on the 13th, that the decrees of the Roman Pontiff were irreformable of themselves, it was now added “and not by consent of the Church,” thus emphasising still more strongly that the dogmatic authority of the Papacy was independent of the entire Episcopate.^[368] After this stupendous achievement the Presidents informed the Bishops that, although the Council

was not prorogued, a general permission was granted them to return to their dioceses until 11th November (St Martin's Day).^[369]

The final Public Session at which the Pope proposed to convert the formula into dogma of faith was fixed for Monday, 18th July. There was for the minority certainly no time to lose. They made one last attempt.^[370] On the Saturday evening a deputation of the opposition, including two Cardinals and the Archbishops of Paris and Milan, went to the Vatican and sought an audience with the Pope. After waiting an hour, they were admitted at nine o'clock.^[371] The Archbishop of Paris was their representative. In his own name, and in that of his associates, he declared his submission to the doctrine of Infallibility, but requested the insertion of the phrase, "relying on the testimony of the Churches." This phrase would have acknowledged that the witness of the Church and of the Episcopate was essential to any doctrine which claimed to be part of the Catholic faith.^[372] It would have made the dogma much less difficult to many members of the Roman Church. It would have relieved the strange and incredible isolation in which the new formula had placed the Pope—as apart from, independent of, the universal consciousness of Christendom. It would have suggested that the Pope represented and voiced the collective conviction of the Church, on whose testimony he was relying. But this was not the Ultramontane idea. And there is no occasion for surprise if Pius IX. rejected it. One more appeal was made to him. Ketteler,^[373] Bishop of Mainz, threw himself on his knees before the Pope, and with his eyes full of tears implored Pius to make some concession which would restore peace to the Church and to the Episcopate. It is a striking scene. Two conceptions of the Church are embodied in these two men: in Pius, the modern Ultramontane conception of absolute authority centralised and condensed in one individual; in his suppliant, the ancient Cyprianic conception of authority residing in the Collective Episcopate. In the attitude of the two men, the historian may see the old vainly pleading with the new for permission to exist; lifelong believers reduced to self-contradiction as the price of permission to remain. It was this scene which provoked a Roman contemporary^[374] to say:—

“Pius is firm and immovable, smooth and hard as marble, infinitely self-satisfied, merciless and ignorant, without any

understanding of the mental conditions and needs of mankind, without any notion of the character of foreign nations, but as credulous as a nun.”

Frustrated in that last appeal, the deputation returned to their party. A meeting was held very late on the Saturday night.^[375] What should the minority do? The bolder spirits proposed that they should attend the Public Session, and openly repeat their rejection of the doctrine. But the bolder spirits were few. Many shrank from such resolute action. They held it inconsistent with respect for the Pope to pronounce a public protest in his presence at the final Session when the doctrine would be proclaimed. They had misgivings as to the number who had the courage for such a stand. Diminishing numbers added point to this misgiving. Many Bishops had already left the city, others were going. Was it prudent to appear in protest shorn of their real numerical strength? Moreover, there were personal anxieties and fears. What if in the Public Session their protest was overruled? The determination of the majority to decree the dogma at any cost was now beyond dispute. Illusion was impossible. The formidable anathema attached to the decree might in another forty-eight hours apply to themselves. They were very uneasy in the papal precincts. They would infinitely prefer to take refuge in the safety of their own cathedral cities, far away from the entanglements, oppressive atmosphere, moral as well as physical, in Rome. Consequently caution prevailed. They composed a letter to the Pope, the last of their many futile protestations, couched in terms of deference, but registering their continued allegiance to their ancient principles. And by Sunday evening most of the seventy Bishops, representatives of some of the most illustrious Sees in Christendom, had left the city, and hastened away beyond the territorial dominions of Rome.

The last letter of the defeated minority called the Pope’s attention to the number of disapproving prelates.^[376] To the eighty-eight who voted in the negative must be added the sixty-two others who expressed themselves dissatisfied; and, beyond these, another seventy who absented themselves, although present in Rome, and others still who had already left the city. The large element of disapproval would be obvious to the Pope, and also to the world. Since the hour when they recorded their vote against the doctrine, nothing had happened to change their opinion: on the contrary, much to strengthen it. Accordingly they now renew and endorse their declaration.

Under these circumstances they have resolved to absent themselves from the Public Session of the 18th; their reverence for the Holy See not permitting them to proceed to an open refusal of a doctrine by which the Pope was personally affected. They would therefore leave the city and return to their dioceses with expressions of unaltered faith and obedience.

Among the signatures to this letter are the names of Cardinal Schwarzenberg; Darboy, Archbishop of Paris; Scherr, Archbishop of Munich; Kenrick, Archbishop of St Louis; Strossmayer, Bishop of Sirmium; Bishop Maret, Bishop Clifford of Clifton, Bishop Dupanloup, Bishop Hefele. ^[377]

This final letter of disapproval, which sixty of the Bishops signed, was of course technically valueless. All speeches, protests, and letters count for nothing compared with the actual formal decision. If any protest were to have validity, it must be made precisely where the minority had not the courage to make it—in the Council at the final Session; to frustrate the impending decree. Yet, if it is strictly true that the dogma was passed with practical unanimity of all present, on the value of that unanimity opinions will legitimately differ.

The conduct of the minority has been not unnaturally severely criticised. They grew feeble, says Ollivier, ^[378] the head of the French ministry, just in proportion as actions ought to have taken the place of words. Their arguments in their last consultation were weakness itself. Not to renew their protest in the Public Session was virtually to cancel the protest already made. It insured for the decree just that unanimity which its advocates desired, and which its opponents knew that it did not possess. It was a confession that they dared not utter Yes or No. ^[379]

Before Dupanloup left the city he sent the Pope a letter ^[380] suggesting one last expedient for averting the evils which a decree of Infallibility would involve. Let the Pope personally decline to confirm the decree. Let him say in the Public Session that he thankfully recognises the remarkable tribute to the prerogatives of his See, in the votes of so numerous an assembly of Bishops; nevertheless, considering the circumstances, and after mature reflection, he believes it more in accordance with apostolic wisdom and prudence to withhold his definite approval until a less disturbed and more propitious time. Dupanloup assured the Pope that this manœuvre

would solve the problem, release men unexpectedly at the last moment from incalculable misfortunes, astonish the world, and win universal reverence and admiration. This singular epistle terminated with a promise to preserve inviolable silence on the advice which he ventured to give.

The night passed. Early on the morning of the eventful 18th of July, Dupanloup's reflections were interrupted by a sudden exclamation from his travelling companion, Archbishop Haynald, who sat at the opposite corner of the carriage. "Monseigneur," said Haynald, "we have made a great mistake." Dupanloup had no heart for further discussion. He made a sign that he wished to say his Office. Archbishop Haynald was right. If, as Dupanloup told the clergy, Bishops united in council with the Pope "decide questions as witnesses of the faith of their Churches, as judges by divine right"^[381] it would seem to be not only their right, but their very awful duty and inalienable responsibility to allow no sentiment of respect for the office of another to silence their convictions and frustrate their decisions. Thus it is true that the minority melted away, and that the ultimate proclamation was made with practical unanimity; but this was due to a regard for sentiment which was, under the circumstances, wholly out of place. The Bishop who told his diocese that the definition of such prerogatives demanded other considerations than sentiment or filial piety, could not consistently withdraw his testimony to the faith of the Church just in the most critical moment that ever awaited him.

Meanwhile in Rome the final declaration was made. In the presence of his faithful majority, in the midst of one of the fiercest storms ever known to break across the city, accompanied by thunder and lightning, while rain poured in through the broken glass of the roof close to the spot where the Pope was standing, Pius IX. read in the darkness, by the aid of a candle, the momentous affirmation of his own Infallibility. Various explained by friend and foe, the storm and the darkness are by the one compared to the solemn legislation on Sinai; by the other to tokens of divine displeasure and approaching desolation. But whatever constructions were placed upon the circumstance, the dogma decreed indisputably declared that—

"The Definition affirms that the Roman Pontiff, when he speaks *ex cathedra*—that is, when in discharge of the office of Pastor and Doctor of all Christians, by virtue of his supreme Apostolic Authority, he defines a doctrine regarding faith or

morals to be held by the Universal Church, by the divine assistance promised to him in Blessed Peter—is possessed of that Infallibility with which the Divine Redeemer willed that His Church should be endowed for defining doctrine regarding faith and morals. And that, therefore, such definitions of the Roman Pontiff are irreformable of themselves and not from the consent of the Church.”^[382]

For a few more meetings the diminished Council lingered on.^[383] The eighty-seventh Congregation was held on 13th August, when the total of Bishops present was reduced to 136. Two further Sessions were held on 23rd August and 1st of September, when the numbers dwindled still further to 127 and 104. But for all real purposes the Council met no more after the fourth Public Session and the proclamation of Infallibility.

^[341] *Acta*, p. 923.

^[342] *Acta*, p. 944.

^[343] Friedrich, *Documenta*.

^[344] Granderath.

^[345] Friedrich, *Documenta*.

^[346] Guillermin, *Darboy*, p. 206.

^[347] Bourgeois et Clermont, *Rome et Napoleon*, iii. p. 322 (1907).

^[348] Ollivier, ii. p. 89.

^[349] Ollivier, ii. p. 90.

^[350] *Ibid.* ii. p. 245.

^[351] Ollivier, i. p. 391.

^[352] Follenay, *Vie de Cardinal Guibert*, ii. p. 421.

^[353] *Ibid.* p. 423.

^[354] Follenay, *Vie de Cardinal Guibert*, ii. p. 426.

^[355] *Acta*, p. 1263.

^[356] Ollivier, i. p. 411.

^[357] *Acta*, p. 1277.

^[358] Ollivier, i. p. 415.

^[359] Quirinus, p. 854.

^[360] *Ibid.* p. 856.

^[361] Friedrich, *Documenta*.

- [362] *Acta*; Ollivier, ii. p. 279.
- [363] Ollivier, ii. p. 329.
- [364] *Acta*, p. 756.
- [365] *Acta*, p. 758.
- [366] *Ibid.* p. 760.
- [367] Quirinus, p. 778.
- [368] Ollivier, ii. p. 337.
- [369] *Acta*.
- [370] Ollivier, ii. p. 341.
- [371] Quirinus, p. 800.
- [372] Ollivier, ii. p. 341.
- [373] *Ibid.* ii. p. 342; Quirinus, p. 801.
- [374] Quirinus, p. 802.
- [375] Ollivier, ii. p. 343.
- [376] *Acta*, p. 994.
- [377] *Ibid.* p. 995.
- [378] Ollivier, ii. p. 341.
- [379] *Ibid.* p. 343.
- [380] *Acta*, p. 993.
- [381] *Letter to his Clergy* (1868), p. 11.
- [382] See Manning's *Pastoral* (1870): *The Vatican Council and its Definition*, p. 57.
- [383] *Acta*, p. 763.

CHAPTER XVIII

THE MINORITY AFTER THE VATICAN DECREE

THE 18th of July 1870 is from any point of view one of the most critical days in the history of the Papacy. It is the transition from old Catholicism into new. It is the consummation of a theory of spiritual authority; the centralising and condensing of all power in one individual. It is not in the least the necessary or the logical conclusion of the principle of authority: for the expression of authority, either through the Collective Episcopate or through reception by the Universal Church, is just as consistent and just as logical; and has the additional advantage of corresponding with the primitive facts of Christian history.

The 18th of July was also a momentous date in the annals of the Roman temporal power. On the very next day began the Franco-Prussian War. From that date onwards the tragedy of conflict precluded any meeting of German and French Bishops in Council at Rome. The Council was necessarily interrupted, its resumption indefinitely postponed. The disaster to France meant the recalling of the French troops from Rome. Then followed the capture of the city by United Italy, and the establishment of the Italian Throne at the gates of the Vatican. The temporal power of the Papacy vanished like a dream, and Pius IX. considered himself a prisoner within the Vatican precincts. The canon of the Castle of St Angelo announced the entry of King Humbert, and various convents and palaces were seized and confiscated for secular departments and imperial uses.

A curious Italian comment on the opposition in the French Episcopate may be found in the diary of Cardinal Pitra, a learned member of the Benedictine Order, resident during the Council in Rome. Cardinal Pitra was librarian of the Vatican, and placed himself in that capacity at the disposal of the Bishops. If he kept aloof from the intrigues of every kind which, says his biographer, were then so numerous, he kept a careful diary of the events in which he displays himself as a decided Ultramontane. He even adopted

the paradox that the passing of the new decree would diminish rather than increase the abyss between the Eastern Churches and Rome. But Pitra's comments after the French retreat illustrates contemporary feeling. He thought that the Franco-German War, which immediately broke out, was providentially designed to prevent concerted action between the Bishops of these two countries. When the Italians entered Rome one of their first acts was to destroy the villa where Dupanloup during the Council had resided. This was, according to Pitra, because Providence desired to efface the reminders of opposition. Pitra traced the course of the war, and noted how the soldiers advanced through Metz, Rheims, Paris, and Orleans—all Gallican cities; whereas they did not reach Besançon, Dijon, and Marseilles—all Ultramontane Episcopates. "We are here," murmurs the Cardinal, "witnesses to the preliminaries of the Judgment Day."

Cecconi, Archbishop of Florence, who collected many documents concerned with the struggle, relates that Pius IX. used to distinguish three periods of the Council: the preparations; the assemblies; the conclusion. Of these, the first period was Satanic, the second Human, the third Divine. [\[384\]](#)

But before a minority Bishop could assent to the new Decree, there were questions to be faced and answered; questions which he must answer in his own behalf, and which also he was certain to find assailing him, whether from his Clergy or Laity, who like himself had hitherto deprecated the doctrine or disbelieved it. There was the question, perhaps, first of all, Is this Council ecumenical? Is it a true exponent of the Universal Church? There are Councils of many kinds, with varying degrees of authority, legitimately responded to with varying degrees of respect. Is this Council of the highest kind—that which possesses a real and absolute finality? This question was widely debated within the Roman body. It was said by high authorities in the Roman Communion that the Vatican Council did not fulfil the conditions of freedom essential to the creation of a dogma of the faith. Many writers of the period assert this; some in the most impassioned terms. Hefele emphatically declared it. Some affirmed that moral unanimity was essential to representation of the Universal Church. Such unanimity, it was notorious, the vote for Infallibility did not possess. Accordingly there was no rush of the defeated Bishops into immediate acquiescence. On the contrary, there was suspense, uncertainty, delay. Individual isolated Bishops

took no decided steps. They waited to see what others would do, what time would produce, what thought and reflection might suggest.

Fessler, indeed, late Secretary of the Vatican Assembly, assured them that their course was clear. He drew a sketch of the conduct which he considered would be ideal for a perplexed Bishop under these trying circumstances.

“If even up to ... the last General Congregation before the Solemn Session a Bishop is not satisfied as to all his difficulties, or if he thinks it better that the decision should not yet be pronounced on such and such a doctrine, he may, in the interval between the last General Congregation and the Solemn Session, acquire a full conviction on the subject by discoursing with other theologians, by study of the subject and by prayer, and may thus overcome his last difficulties, and see that it is well that the definition should be made.”

This portion of Fessler’s advice was not much use since it appeared subsequently to the final Session. Whether the advice to “acquire a full conviction” in the interval between the last General Congregation and the Solemn Session would have been very valuable, may be judged from the fact that the interval for “discourse with other theologians,” “study and prayer,” was two days. The subsequent struggles will show what the minority Bishops thought of acquiring a full conviction in two days.

Should, however, the best use of the interval prove unavailing, Fessler’s advice was as follows:—

“Nay, even if he cannot attain this full conviction and insight into the matter by any exertion of his own, he will wait for the decision of the Council with a calm trust in God, without himself taking part in it, because up to this point he lacks the necessary certainty of conviction. When, however, the Council by its decision puts an end to the matter, then at length his Catholic conscience tells him plainly what he must now think, and what he must now do; for it is then that the Catholic Bishop, whom hitherto unsolved difficulties have kept from participation in the Public Session, and from the solemn voting, says: ‘Now it is undoubtedly certain that this doctrine is revealed by God, and

is therefore a portion of the Catholic faith, and therefore I accept it on faith, and must now proclaim it to my clergy and people as a doctrine of the Catholic Church. The difficulties which hitherto made it hard for me to give my consent, and to the perfect solution of which I have not even yet attained, *must* be capable of a solution; and so I shall honestly busy myself with all the powers of my soul to find their solution for myself, and for those whose instruction God has confided to my care.”

Fessler omits all recognition of the possibility that men if placed in a dilemma between Authority and History may choose the latter. The effect of the Decree on many Bishops was not in the least to compel the confession, ‘Now it is undoubtedly certain that this doctrine is revealed’: rather it was to awaken the criticism, now it is profoundly uncertain whether this Council is ecumenical.

Such is Fessler’s advice to Bishops who doubted the truth of the doctrine. To those who only considered its definition inopportune his counsel was:—

“Those Bishops who in the last General Congregation voted with the *non placets*, only because they really thought it was not a good thing, not necessary, not for the benefit of souls in countries well known to them, and who for this reason abstained from taking part in this decision, may after the solemn decision, if they think it advisable, represent to the faithful of their dioceses the position which they previously adopted towards the doctrine, in order that their conduct may not be misunderstood. But they must now themselves unhesitatingly accept the doctrine which has been decided, and make it known to their people in its true and proper bearings, without reserve, and in such a manner that the injurious effects which they themselves apprehended may be as much as possible obviated and removed; for it is not permitted to the Bishop, as the divinely-appointed teacher of the clergy and people, to be silent about or to withhold a doctrine of the Faith revealed by God, because he apprehends or thinks that some may take offence at it. Nay, rather it is his business so prudently to bring it about in the declaration of that doctrine, that its true sense and import may hereafter be clearly

represented, all erroneous misrepresentations of it be excluded, the reasons for the decision of the doctrine brought out plainly, and all objections to it zealously met and answered.”^[385]

No one gave greater weight to the obvious difficulties which the methods employed at Rome had created for the Decree, no one formulated them with more simplicity and frankness than Dr Newman. His letters showed how he laboured to suggest plausible grounds for assent to the new Decree, while leaving the ecumenical character of the Council for future solution. And, remembering that these letters were addressed to the believers and not to the outer world, nothing can show more strikingly than the arguments which Dr Newman employs, the profound perplexity into which many Romanists were thrown.

In a letter^[386] written six days after the Decree was passed he says:—

“I saw the new Definition yesterday, and am pleased at its moderation—that is, if the doctrine is to be defined at all. The terms are vague and comprehensive; and personally I have no difficulty in admitting it. The question is, Does it come to me with the authority of an Ecumenical Council?

“Now the *primâ facie* argument is in favour of its having that authority. The Council was legitimately called; it was more largely attended than any Council before it....

“Were it not then for certain circumstances under which the Council made the definition, I should receive that definition at once.

“Even as it is, if I were called upon to profess it, I should be unable, considering it came from the Holy Father and the competent local authorities, at once to refuse to do so. On the other hand, it cannot be denied that there are reasons for a Catholic, till better informed, to suspend his judgment on its validity.

“We all know that ever since the opening of the Council there has been a strenuous opposition to the definition of the doctrine; and that, at the time when it was actually passed, more than eighty Fathers absented themselves from the Council, and would

have nothing to do with its act. But if the fact be so, that the Fathers were not unanimous, is the definition valid? This depends upon the question whether unanimity at least moral is or is not necessary for its validity? As at present advised I think it is....

“Certainly Pius IV. lays great stress on the unanimity of the Fathers in the Council of Trent.... Far different has been the case now—though the Council is not yet finished. But if I must now at once decide what to think of it, I should consider that all turned on what the dissentient Bishops now do.

“If they separate and go home without acting as a body, if they act only individually or as individuals, and each in his own way, then I should not recognise in their opposition to the majority that force, firmness, and unity of view, which creates a real case of want of moral unanimity in the Council....”

But it is impossible not to feel that dogmas which men are recommended to accept on such extenuating pleas, dogmas whose irregularity is acknowledged so long as their validity is saved, dogmas which depend for their acceptance on the melting away of the episcopal minority, were evidently straining the faith of Catholics almost to breaking point, or they would never have been defended in such a manner. Here is nothing of the devout thankfulness for fuller enlightenment, or the triumph of truth; nothing of the glad recognition of a decision guided by the Holy Ghost. Newman could never have treated the Nicene Council as he did the Vatican. Behind these endeavours, to prevent secession or schism, lies Newman’s recorded conviction in his letter to Ullathorne.

Newman’s theory that the ecumenical character of the Council might be ascertained from its ultimate acceptance, that acquiescence on the part of the defeated minority would atone for any irregularities in the passing of the Decree, by no means carried conviction to many of the perplexed. The nature of the doctrine decreed seemed to exclude this kind of defence. For if the utterances of the Pope are infallible of themselves, and not from the consent of the Episcopate, it is difficult to base that Infallibility upon episcopal consent. Instead of waiting to see what the Episcopate might do it would appear more appropriate to consider what the Pope had done. And in

another letter written within the same anxious month this is precisely the view which Newman takes. [\[387\]](#)

“I have been thinking over the subject which just now gives you and me, with thousands of others, who care for religion, so much concern.

“First, till better advised, nothing shall make me say that a mere majority in a Council, as opposed to a moral unanimity, in itself creates an obligation to receive its dogmatic Decrees. This is a point of history and precedent, and, of course, on further examination I may find myself wrong in the view which I take of history and precedent; but I do not, cannot see, that a majority in the present Council can of itself *rule* its own sufficiency without such external testimony.

“But there are other means by which I can be brought under the obligation of receiving a doctrine as a dogma.”

And he proceeds to enumerate uninterrupted tradition, Scripture inference, etc. And then he propounds the theory that “the fact of a legitimate Superior having defined it, may be an obligation in conscience to receive it with an internal assent.... In this case I do not receive it on the word of the Council, but on the Pope’s self-assertion.”

This he supports by an appeal to the historic authority which the Pope has actually exercised, and to

“the consideration that our merciful Lord would not care so little for His elect people, the multitude of the faithful, as to allow their visible Head and such a large number of Bishops to lead them into error; and an error so serious, if an error.”

No one can fail to be impressed with Newman’s painful consciousness of the Council’s indefensible irregularities; with his refusal to acknowledge a powerful majority as equivalent to moral unanimity; with his desire to see if the dogma cannot be accepted on other grounds than the Council’s authority, and in particular on the Pope’s self-assertion. All this would, of course, be absolutely unconvincing to any adherent of the ancient conception that the supreme authority is not to be found in the Pope’s self-assertion, but in the Collective Episcopate. But it manifests profound

misgivings about the Vatican Council and its methods. The thought that the merciful Lord would not permit His people to be led into error on so serious a subject depends for its value on the solemn question, whether the gifts of God are in any way conditional. If the transmission of grace depends upon conformity to conditions so also does the transmission of truth. If human co-operation is necessary to the achievement of human enlightenment, then the neglect of compliance with these conditions, the refusal of that co-operation, will be attended with serious losses which the merciful Lord must not be expected to prevent. The graver the misgivings created by the coercive methods of the Vatican majority, the more urgent becomes the enquiry, whether their refusal to comply with the true conditions of conciliar freedom would not be punished by the nemesis of a misleading Decree. Newman's misgivings on the Council's integrity cancel his appeal to the thought of the mercifulness of our Lord. This, at any rate, is what many within the Roman Communion undoubtedly felt. They did not believe in the rightfulness of expecting Providence to nullify the perverseness and self-will of an overwhelming majority.

Subtle, attractive, bearing in every line of it the distinctive impress of his wonderful personality, Newman's defence is remarkable rather as a *tour de force* than for argumentative solidity. Newman's personal assent to the dogma was indisputably complete. He said, indeed, all that it was possible to say. But even his brilliant genius could scarcely efface the effect of his own letter written to Bishop Ullathorne before the dogma was passed.

"Moreover," he wrote, "a letter of mine became public property. That letter ... was one of the most confidential I ever wrote in my life. I wrote it to my own Bishop under a deep sense of the responsibility I should incur were I not to speak out to him my whole mind. I put the matter from me when I had said my say, and kept no proper copy of the letter. To my dismay I saw it in the public prints: to this day I do not know, nor suspect, how it got there. I cannot withdraw it, for I never put it forward, so it will remain on the columns of newspapers whether I will or not; but I withdraw it as far as I can by declaring that it was never meant for the public eye."

Certainly it needed no assurance from the writer to convince us that this letter was not designed for publicity. It is equally impossible not to feel that

in that letter we have the writer's mind in its full expression. The very fact that it was never meant for the public eye means that it was written without that caution and restraint imposed by watchful critics and extremist partisans always ready to pounce upon Newman and denounce him as a minimiser at Rome. Thus we have his frankest declaration here. And that declaration was much too frank to be convenient. It naturally hampered him now that the doctrine was decreed. A certain inconsistency was required of him, and is reflected in his letters. Before the Council decreed he wrote^[388] of the disputed doctrine, "I have ever thought it likely to be true; never thought it certain." After the decision he wrote:^[389] "For myself, ever since I was a Catholic, I have held the Pope's Infallibility as a matter of theological opinion; at least I see nothing in the definition which necessarily contradicts Scripture, Tradition, or History." Before the decision he wrote: "If it is God's will that the Pope's Infallibility be defined, then it is God's will to throw back the times and moments of the triumph which He has destined for His kingdom." After the decision he wrote: "For myself I did not call it inopportune, for times and seasons are known to God alone ... nor in accepting as a dogma what I had ever held as a truth, could I be doing violence to any theological view or conclusion of my own."^[390] No one will scrutinise too closely, or make exacting demands of rigorous self-identity, in letters written in the strain of so vast a change as that which the new Decree had wrought. Yet the various statements are part of the evidence to the effect produced, by the doctrine, upon the gifted mind then straining all its efforts to reassure the unsettled and retain them in the fold.

The second great question to be answered was, Does the Infallibility Dogma accord with History? Upon this subject Roman writers were greatly divided. Some asserted boldly that Papal Infallibility had always been held in the Church. Manning stated this in its extremest form. The doctrine had always been of divine faith. Newman was quite unable to accept this view, and supported Gladstone in rejecting it.

"Newman," says Ambrose De Lisle, in a letter to Gladstone, "considers your reply to Archbishop Manning's contention that Papal Infallibility was always held as a dogma of divine faith complete, and that you are triumphant in your denial of it—but, he adds, that is nothing to me. I conclude," says De Lisle,^[391] "because he deduces it, and holds that the Church has deduced it

in these latter days out of the three texts he quotes in his letter to the Duke of Norfolk.”

According to this view then of Newman, Papal Infallibility was not to be sought in history. It would not be found in the age, for instance, of the Fathers—an age which Newman knew profoundly. It has slowly dawned upon the self-consciousness of the Church, and come to be realised that it possessed this organ of infallible utterance. Thus the necessity for squaring the Vatican Decree with History was entirely dispensed with. The principle of development was utilised to facilitate its acceptance and explain the apparent anomalies.

The Pope said Newman is “heir by default” to the ecumenical hierarchy of the fourth century. What was then ascribed to all the Bishops is now ascribed exclusively to him. Precisely so. But by what right? Newman does not say. The possibility of development in excess, a perverse development, is not discussed.

Thus the new Decree was, according to Newman, if De Lisle rightly interprets him, a deduction from three texts, of which the chief undoubtedly was, “I have prayed for thee that thy faith fail not.” No perpetual unvarying tradition could be claimed for it. But the Church makes inferences from Scripture, and comes to realise, what once it did not realise, that the Roman Pontiff is infallible.

Newman’s theory of the relation of Papal Infallibility to History greatly perplexed some whom it was designed to help.

“I confess that would not satisfy me,” wrote De Lisle....^[392]
“I am far from going to all lengths with the Archbishop (Manning) yet ... I hold ... that Papal Infallibility restricted as it is by the Vatican Definition, was always a part of Divine Revelation.... I maintain that it was always believed by the orthodox....”

Newman once wrote: “Whether the minute facts of history will bear me out in this view I leave to others to determine.” This distressed a student of history such as Lord Acton. “Döllinger,” said Acton, “would have feared to adopt a view for its own sake, without knowing how it would be borne out by the minute facts of history.”^[393]

There were able and learned members of the Roman Communion to whom it was impossible to take refuge in Newman's theory, that this was a case of legitimate development. The Catholic consciousness of early ages presented a theory out of which Papal Infallibility could never legitimately grow. For the primitive conception was the negative, they held, of such a view. The primitive theory, as the Councils of the Church made plain, placed the final authority in the Collective Episcopate. The transference of this authority from the entire body to one individual was to them no true development at all, but a dislocation in the Church's original constitution. It really meant requiring one organ to discharge the functions of another; depriving the original organ of what had hitherto constituted its essential function. And this alteration or reversal of functions was beyond the legitimate power of any authority to make. It was indeed admitted to be a claim of vital character. Pius IX. declared the doctrine to be the very essence and basis of Catholicity. Strange, men thought, that this essence and basis had remained unrealised for many centuries in the Church's consciousness. And when it was said, in reply, that practically the Pope had exercised this Infallibility, and that its exercise had met with a practical recognition and acceptance, Roman writers answered at once, "No; this is not true." Undoubtedly the papal discussions have been accepted and believed. But hitherto there has always been space for belief that their validity depended not on their own inherent weight, but on the consent of the Church.

Professor Schulte, for instance, declared that though a Catholic born and bred, he had never believed in Papal Infallibility; nor could he find any authority for the July Decree either in Scripture, or in the Fathers, or in any other source of historical information.

Fessler endeavoured to crush this resistance by labelling it private judgment. He says of Schulte that he "refuses to accept the definition *de fide* of an Ecumenical Council; he cares nothing for the authority of the living teaching Church; only for what he thinks he finds in Scripture, in the Fathers, and in other genuine ancient sources. This is the way to forsake the Catholic Church altogether. Every one is to follow his own guidance, his own private judgment."^[394]

Expressed in such a form it seems a *reductio ad absurdum*. Surely the individual may be mistaken? And in the multitude of counsellors there is

wisdom. Professor This on one side, the Episcopate on the other: can we doubt which to follow? Why then should not the professor make a sacrifice of his intellect? Because if you destroy a man's confidence in his historic judgment in one instance, you ruin its validity in all others. Now, since it is by such a judgment that Christianity itself is accepted, to bid a man disparage his own judgment of history, is to undermine the very basis of his religion.

Men found themselves, therefore, placed by the Decree in a very terrible dilemma. An ecumenical decision must be true. But history appears to refute it. To accept the decision is to contradict the fact of history. To accept history is to reject authority. That was the difficulty. But no man can without grievous loss abandon what appears to him the truth. Others endeavour to reconcile Catholics to the new Decree by extenuating the greatness of the change. Bishop Ullathorne informed his people that "the Pope always wielded this Infallibility, and all men knew this to be the fact. What practical change, then, has the definition made?"^[395] Yet the same writer could urge^[396] that the character of the age, and the opposition within the Church, "rendered it all the more important that the Pope should be armed with that full strength." It was then a great practical change. And this is what many Romans felt. There was something naïve in the simplicity with which Ullathorne wrote:^[397] "The Infallibility leaves all things as before, excepting that now it is a term of communion." Leaves all things as before! except that formerly men could disbelieve it and openly deny it, while now it is a term of communion, and to disbelieve is to be cast out. Ullathorne clearly found it beyond his power to give any satisfaction to the intelligence of his people. It amounted to a demand of blind assent to the hitherto discredited.

It remains to trace the attitude of the minority toward the new Decree. As a whole they give the impression of having been crushed, almost stunned. The dreamlike rapidity of the movements during these last six months; the sudden forcible erection of a hitherto controvertible and controverted opinion into an essential element of the Eternal Faith; the consequent intellectual and moral reversions demanded of them, left them in a state of complete disorganisation and confusion. Their collective inability in Rome to resist in the final Public Session; their opinion that such resistance would be incompatible with the respect due to the papal office, form conclusive

evidence beforehand of their inability to continue a permanent resistance when isolated in their different dioceses. The individual Bishop was a lesser power than the Bishops assembled. He was separated in his diocese from the support of like minded prelates. And, if released from the immediate pressure of papal influence, he was incapacitated for anything like concerted action. As Bishop, he lived and spoke alone. Communication was difficult owing to war. International Meetings were impossible. Meanwhile the solitary Bishop was beset by all the local influences which the Nuncios, and Jesuits and other religious orders, knew so thoroughly well how to wield. Rome, it has been said, disbelieved in the capacity of the opposition to stand firm; and Rome had calculated with profound insight and accuracy.

Several fugitive Bishops took the precaution before they left Rome of sending a letter of submission^[398] to the coming Decree.

The Archbishop of Cologne explained to the Pope that having given a qualified vote on 13th July he cannot conscientiously vote Yes on 18th July. Accordingly, with great distress, and out of reverence for the Pope, he will avail himself of the permission to depart: adding that he submits himself to what the Council is about to decree.

The Archbishop of Maintz wrote a similar apology. To oppose, in the Public Session, was repugnant to his feelings: nothing, therefore, remained but to depart; except to add that he submitted himself to the Council's Decree, just as if he had remained to vote approval.

Before submission to the new dogma, the question was discussed, What constitutes promulgation of a Decree? Such discussion was quite in keeping with precedent. The Decrees of Trent had been discussed before they were admitted into the Church of France. Was any collective acceptance necessary, before the dogma could become obligatory upon the consciences of the faithful? True that Infallibility had been passed at Rome; but the Vatican Council was not closed—it was only adjourned. Did the decisions of a Council become obligations until the Council itself had finished its work? Questions of this character were argued at considerable length in the hope of some loophole or relief. They were, however, promptly crushed by a letter from the watchful Antonelli^[399] to the Brussel's Nuncio to the effect that the Decree was *ipso facto* binding on the Catholic world, and needed no further publication. This cut away the hope to which some Bishops

clung, that they would not be required to take open action in cases where they knew acceptance of the doctrine to be morally impossible.

I. AMONG THE FRENCH ROMANISTS

1. The Archbishop of Paris voted,^[400] consistently with his entire attitude, against the doctrine of Papal Infallibility, on the critical day, 13th July. In the interview on Saturday 16th, he prefaced his expostulations with a promise to submit; but he also resolved to absent himself from the Public Session, and wrote to the Pope to say that he should not be present. On Sunday the 17th he saw the Pope again, and said farewell. No allusion was made to the events of the morrow, or to the Council's voting. Pius confined himself to benevolent generalities, on the devotion of the Archbishop and clergy of Paris to the interests of the Church and of the Holy See.^[401] The Pope and the Archbishop corresponded subsequently; but they never met again. Darboy left Rome when the Session was held, and returned home to his diocese. There he found everything in confusion, for the war against Prussia was declared. But he assembled his clergy at once, and commended them for refusing to be swayed by rumours which were necessarily unreliable, since those who spoke about the Council were not its members, while those who were its members had not the right to speak.^[402] If there had been diversities of opinion in the Council on certain questions, these diversities were concerned less with the intrinsic value of the questions than with the losses or gains which their discussion might involve. With these, and similar generalities, he dismissed them. Further discussion and conference was prevented by the Franco-Prussian War, but it is clear that Darboy took no steps whatever to coerce his priests into explicit confession of the new decree or to enquire into their individual convictions.

But it was evident that Rome was more than discontented with the Archbishop's indifference. It was desired that he should renew his assurances of personal belief, and exhibit some interest in the conversion of the reluctant. In February 1871 Bishop Maret wrote to the Archbishop of Paris^[403] to say that he had sent in his own submission in the previous November.

“I am glad to hear it,” replied the Archbishop. “As for myself, separated from the world for five months by the siege of Paris, I

have been unable to ascertain what was happening, or to correspond with my colleagues or with Rome. I have therefore done nothing; although I have given no one the right to doubt my opinions. Indeed the Pope knows them. He has my letter of 18th July. It was not so much the basis of the Decree as the question of its opportuneness which made us hesitate. All the world knows this; and, for my own part, I said it in full Council. It seems, therefore, to me superfluous to affirm to-day that I accept the Decree. It would be even misleading; for it would give grounds to the suggestion that I withheld my adherence to the present time—which is false. Still, if the Holy Father wishes, for the sake of people in general, that such a declaration should be made, it is a formality to which I will unhesitatingly yield.”^[404]

The Archbishop found it prudent to take this course. In March 1871, he sent to the Pope a statement of sincere assent to the Decree.^[405] He said that the War had prevented correspondence hitherto, and that his declaration might seem superfluous. But, as he hears that the Pope desires it, he hastens to gratify the wish. It was chiefly the question of opportuneness—he does not say entirely—which had prompted his opposition.

Pius IX. replied—but none too effusively. The Archbishop had been for years mistrusted and disliked in Rome, for the independence of his actions, his determination to govern his diocese himself, and his rejection of ultramontane convictions. It was scarcely to be expected that cordiality could exist in the very moment of his defeat. And his submission even now, was to say the least, somewhat curt. It stated the fact: no less, but no more. It is not the letter a man could write who believed himself to be the privileged recipient of a precious revelation of God’s truth. It was the bare submission to a dictate which could not be avoided except by expulsion. The Pope replied that he was consoled by the Archbishop’s sincere assent to the dogmatic definition of the Ecumenical Council of the Vatican. He trusts that the Archbishop will hasten to propound to his people what he professes himself to believe. With this, the Pope sends his apostolic benediction. Newman once accused Pusey of discharging an olive branch from a catapult; Pius IX. seems here to illustrate the art of conveying a rebuke through the instrumentality of a blessing. It is one of the ironies of this story

that the letter was never received.^[406] These were the days of the Commune. The brave Archbishop, after exhibiting the most striking fortitude, was shot in prison. He never had the opportunity to read, or act upon, the Pope's advice. To his place, but not to his principles, succeeded Archbishop Guibert, who had so greatly assisted the aims of Pius IX. by recommending, in the Select Committee of Proposals, that the new doctrine should be introduced with the Council's deliberations. So the old order changed.

2. Dupanloup,^[407] Bishop of Orleans, voted against the doctrine on the 13th of July, and left for his diocese rather than be present at the Public Session when the dogma was decreed. He wrote a letter of submission on 18th February 1871. He says that he has been prevented from writing by the Franco-Prussian War. Hearing that His Holiness desires to know his attitude to the constitution of 18th July, he wishes to say that he has no difficulty in the matter.

“I only wrote and spoke,” he says, “against the opportuneness of the definition. As to the doctrine I always held it not only in my heart, but in public writings.... I have no difficulty in again declaring my adhesion; only too happy if I can thereby offer Your Holiness any comfort in the midst of his heavy trials.”

Since his return from Rome he has written to his diocese that the conflicts of the Church are not like those of the world.

These assertions of Dupanloup as to his unvarying faith may possibly explain why a distinguished fellow-countryman and head of the French Government^[408] could describe him in such terms as these: “everything about him indicates the irresistible dominion of impressions. So convinced is he of being in the right that he fails to be accurate to his demonstrations. He is a most imperious advocate of liberty, and always under the influence of preconceptions.”

3. Gratry may be taken next: Gratry—whose famous four letters had focussed in brilliant light the difficulties, the contradictions, the adverse facts, the ignorant methods, the falsified documents. Men wondered what steps the former priest of the Oratory would now take; now that the thing that he feared had come to pass, and the incredible was decreed. Gratry had endured much mental agony. “His own peace would certainly have been

better insured,” says his biographer,^[409] “had he not been interrupted in that later contemplative study of Christian philosophy by which he hoped to do somewhat to make his fellowmen less unhappy, less unfit. But he was urged as a matter of conscience to enter the turmoil of polemical strife, a strife more cruel to one who retained his childlike simplicity, his love of truth, and his boundless charity, to the last hour of life.”

Gratry was very ill of the malady which killed him; and it was not until November 1871, that he wrote^[410] (evidently questioned by Guibert, the new Archbishop of Paris):

“Had I not been very ill and unable to write a letter I should have long since sent you my congratulations. I desire at least to-day, my lord, to say simply what it appears to me there was no necessity to say, namely that, like all my brethren in the priesthood, I accept the decrees of the Vatican Council. I cancel everything contrary to the decrees which I may have written on this subject before the decision.”^[411]

The Archbishop sent a kindly reply to the effect that he had never doubted Gratry’s docility.

“By such noble and generous examples we harmonise our conduct with our convictions, and prove to the world that we are sincere in maintaining that the light of faith is superior to that of our feeble and vacillating reason.”

But how about the facts of history? Gratry effaced his interpretation; but he could not cancel the facts. How abandon his former convictions? That is precisely what Gratry’s colleagues required him to explain. An explanation, therefore, he attempted to give. To those who reproved him for accepting without reservation the Council’s decrees, he explains that, before the Decision, he argued in accordance with his conscience and his right; since the Decision, he had not said a word.

“Since the Decision, and immediately after it, I had two interviews with my Archbishop, Mgr. Darboy.^[412] We were agreed both in words and in faith. He granted me my position in the Church of Paris, and my office of Professor of Theology at the Sorbonne. I was therefore at unity with my Bishop. That was

obvious. It continued for nearly a year. Therefore, strictly speaking, no one has any right to question me; not even Mgr. Darboy's successor. To require of me a public declaration would seem like revising the acts of his glorious predecessor and martyr for the faith. It is for this last reason most of all that those among my friends who urged me most to publish some declaration surprised and saddened me. I have constantly answered them that I have nothing to say, and nothing to write upon this subject."

But, on reflecting that there was no necessity to cling tenaciously to strict rights, if an assurance would remove his brethren's anxiety, Gratry wrote to his new Archbishop a letter of submission. That, he says, was easy. What would not have been easy was to say:—

"I have been a member and a soldier of the Catholic Church for half a century, but now comes an Ecumenical Council which I do not acknowledge. I therefore separate from its Communion. To contradict, at a single stroke, all my life, and deny all my deepest convictions—do you blame me for not doing that?"

If they object that this was not an Ecumenical Council since it was not free, Gratry replies that he is unable to deny its validity, and therefore he must submit to its decisions. Then, Gratry asks himself, what the great historic luminaries of the Church of France, Fénelon and Bossuet, would have done under the circumstances. Had Montalembert survived, he would certainly have submitted, as his own words prove: resolved, come what may, and cost what it may, never to transgress the inviolable limits of unity. But what of Gratry's letters? Strongly worded remonstrances had reached him on this. How could he cancel his letters and their unanswerable demonstrations? how contradict himself? how overthrow truths which he has firmly established, and re-establish the falsehoods which he has overthrown? To this difficult enquiry Gratry's answer was:—

"I mean to overthrow none of the truths which I may have established in these letters. I mean to restore no falsehood therein denounced. But I admit that these letters may contain mistakes; and that it is those mistakes which I mean to efface."

A distinguished Bishop, strongly opposed to the contents of the letters, had been advising him that he could maintain a considerable portion of his letters. All that was necessary was to cancel what contradicted the Decree.

Is it too much to say that this explanation is shorn of all the reasoning force and historic cogency of the famous letters? If words have any meaning, Gratry's entire conception of Honorius, and the attitude of the Councils towards him, left no room for the Vatican Dogma. The explanation reveals nothing so plainly as profound intellectual perplexity.

Gratry also wrote an explanatory letter to M. Legouvé, a colleague in the French Academy.

"I opposed inspired Infallibility; the Council's decree has rejected inspired Infallibility. I opposed personal Infallibility; the Decree affirms official Infallibility. Some writers of the School which I consider exaggerated did not wish for Infallibility *ex cathedra*, which seemed to them too narrow a restriction: the Decree affirms Infallibility *ex cathedra*. I almost feared a scientific Infallibility, a political and governmental Infallibility: but the Decree only affirms doctrinal Infallibility, in matters of faith and morals.

"All this does not mean that I made no mistakes in my opposition. Doubtless I have made mistakes, both on this subject and on others; but as soon as I recognise my error I cancel it, without feeling thereby humiliated."

This letter was not printed until 1907. And it appears that Gratry wrote still further explanations which have not been published yet. A recently printed letter of Charles Perraud contains the following important postscript:—

"Father Gratry bids me say that he has just finished a little work in which he explains his reasons and above all the limits of his submission to the Council's decree. He had already given a summary of these explanations in a letter to M. Legouvé (who unhappily will not agree to publish it, I cannot imagine why). I was not with Father Gratry when he sent his letter to the Archbishop of Paris. I regret exceedingly that he began with

that, whereas he ought to have begun by publishing the writing which I have recently been reading. It contains definitions and distinctions of very great significance, especially in a matter where every shade of meaning has its distinctive worth. They are altogether mistaken who suppose that Father Gratry has treated with contempt the historic evidence. God give him time to say on this matter all that I know he desires to say.”

But this document, without which the complete story of Gratry’s submission cannot be told, has never been permitted to see the light. For whatever reason, Adolphe Perraud, Gratry’s literary executor and biographer, withheld it from history.

But Gratry did not long survive the passing of the new Decree. “And,” says his biographer, “most assuredly the trials of this period shortened his days.”^[413]

II. AMONG ENGLISH SPEAKING ROMANISTS

Archbishop Kenrick of St Louis represented opposition in the American Church. During the Council he had warmly supported Dupanloup against American Ultramontanes.

“Many among us,” he wrote,^[414] “believe that Ecclesiastical history, the history of the Popes, the history of the Councils, and the Tradition of the Church, are not in harmony with the new doctrine. Therefore we think it most inopportune to define as a dogma of faith an opinion which seems to us a novelty in the Church, destitute of solid foundation in Scripture and Tradition, and contradicted by indisputable evidence.”

In his speech which the closure of June prevented from being delivered, but which he printed^[415] and circulated, he was more emphatic still.

“I dare to affirm that the opinion as expressed in the Schema is not a doctrine of the faith, and never can become such by any definition even of a Council.”

On the 13th of July Archbishop Kenrick voted in the negative, signed the protest of the 17th, and with the body of the opposition fled away. Having

thus registered his informal and useless protest he accepted the new Decree. This surrender provoked a letter from Lord Acton asking the Archbishop for the grounds of his submission. History has preserved the pages of Kenrick's reply.^[416] He said that "sufficient time seems to have elapsed to allow the Catholic world to decide whether or not the decree of the Council was to be accepted." The greater number of the Bishops, some to the Archbishop's surprise, had already yielded assent. As for himself—

"I could not defend the Council or its action; but I always professed that the acceptance of either by the Church would supply its deficiency. I accordingly made up my mind to submit to what appeared inevitable, unless I were prepared to separate myself at least in the judgment of most Catholics from the Church."

His act of submission "was one of pure obedience, and was not grounded on the removal of my motives of opposition to the decrees, as referred to in my speech, and set forth in my pamphlets." He hears from Rome that the Pope requires him to retract his pamphlets. "This I shall not do, no matter what the consequences may be."

For intellectual justification in this submission Kenrick appealed to Newman's theory of Development. If it justified Newman in becoming a Catholic, "I thought that it might justify me in remaining one." To this the Archbishop added the following memorable sentence:—

"Notwithstanding my submission, I shall never teach the doctrine of Papal Infallibility so as to *argue* from Scripture or Tradition in its support, and shall leave to others to explain its compatibility with the facts of Ecclesiastical history to which I referred in my reply. As long as I may be permitted to remain in my present station I shall confine myself to administrative functions, which I can do the more easily without attracting attention, as for some few years past I have seldom preached."

His whole experience, he says, has taught him that there can be no liberty in any future sessions of the Council; and this is warning enough to Bishops that they must not handle roughly the delicate matters on which they have to decide.

The records of intellectual servitude present few more painful documents than this. Whether one regards the doctrine, the Archbishop, or the facts of history, such an attitude bristles with intellectual if not moral inconsistencies. He thinks acceptance by the Church will redeem the doctrine from conciliar defects: but the essence of the doctrine is Infallibility apart from the Church's consent. As Bishop he is a witness to the Faith: yet he observes in silence, and registers one by one the submission of other Bishops. He accepts what he will not proclaim, and cannot defend. Meanwhile, the facts of history continue, as before, demonstrably irreconcilable with the New Decree. The sole virtue by which everything else is supposed to be redeemed is the virtue of submission. Theories such as this can only exist as a dark background to enhance the moral and spiritual superiority of sincere unbelief and genuine schism; or to warn for ever against the disastrous consequences which follow such exercises of authority as that which produced the Vatican Decree.

III. AN ITALIAN INSTANCE

Cardinal Hohenlohe

The "Memoirs" of Prince Hohenlohe include numerous confidential letters from his brother, Cardinal Hohenlohe, who was resident in Rome during the Council of the Vatican. The Cardinal had no sympathy whatever with the attempt to elevate the theory into a dogma of the Faith.

His repugnance to the proceedings at the Vatican took also a practical shape. "I go as little as possible to the Meetings of the Council," he wrote; adding a private wish that the Jesuits might stick fast in the morass of their operations. Their activities, however, increased. On the eve of the great Decision, Cardinal Hohenlohe wrote the following remarkable words:—

"To-day is to take place the sitting in which the Pope will proclaim the doctrine of Infallibility. The Bishops of the minority are leaving; some of them went yesterday evening, among others the Archbishop of Munich; others go away to-night. They will not be present at the sitting, and have sent in a protest. I am not very well, and I, too, am not going to the sitting. This morning I wrote a few lines to Cardinal Schwarzenberg, which I here transcribe, of course in the strictest

confidence, because they make clear my sentiments.... ‘If on the question of Infallibility I declare myself entirely in agreement with Cardoni^[417] I would yet have voted *non placet*, since the question is not opportune, and was not treated *conciliariter*, and I will have neither part nor lot in the guilt of this unhappy measure, which has caused so many souls to stumble in the faith. But further, the Council is no longer a Council. We may admit that it was convened *legaliter*, but from the moment when the *methodus* was imposed upon us, the *conciliar* composition of this unhappy assembly was at an end.’

“So much for my letter to Cardinal Schwarzenberg. It is sad enough that one has to speak so, but I am pierced in the innermost depths of my soul with such intense pain, that I could hardly bear it if I had not the consolation of the Holy Mass.”

Cardinal Hohenlohe says that he had been taught to believe that papal decisions *ex cathedra* were infallible. What is clear is that the Council contributed nothing to a belief which he held as a theological opinion, and not as a dogma of faith. A letter from the Pope’s private secretary expressed regret at his absence from the Decision on 18th July. Hohenlohe replied that he had always believed in Infallibility.

Quoting this reply, in a letter to his brother, the Cardinal added, confidentially:—

“There is nothing here about the Council and dogmatic constitution, nor did I even write that to the Pope, but only to Mgr. Cenni (the private secretary), without in the least instructing him to communicate it to his Holiness. So long as I am unconvinced of the validity of the Council, so long can I do no more, since I shall yet have to give an account before God, and I would not get into an unpleasant situation there.”

Prince Hohenlohe was not less discouraged than the Cardinal. What particularly grieved him was the lack of moral courage in the German Bishops. To others and to himself it seemed a

“disgraceful apostasy of the German Bishops, seeing that after they had pledged themselves, before their departure from Rome,

to decide nothing about the Dogma of Infallibility without previously taking council together, they should nevertheless have submitted individually.

“When one views the moral ruin, the complete lack of honour among the Bishops, one shudders at the influence which the Jesuitical element in the Church can exert on human nature.”

It is natural to enquire what overt action the advocates of these views and its sympathisers in the Roman body would adopt. The excommunication of Döllinger roused still further feeling; and an important meeting of political opponents of things ultramontane was held in Berlin. There was among them a strong desire for action of some kind, and for emphatic opposition. But Prince Hohenlohe disapproved.

“I demonstrated,” he says, “that it was necessary above all things for us to remain in the Catholic Church. So long as we had no Bishops, no clergy, and no congregations, but only a number of cultured laymen, we could not talk of an old Catholic Church. It was a case of waiting till the Pope should die, and then there was hope of a better spirit in the Catholic Church. If we left the Church—and this might be the result of any serious step—the Catholic Church would lose so many reasonable men to no purpose.” It was therefore decided to remain quiet. “I do not think,” Prince Hohenlohe wrote, “that the agitation will produce any great results. Interest in the person and fate of Döllinger, for it is nothing more, does not make a reformation. Interest in dogmatic subtleties no longer exists.”

The Prince recorded his personal convictions in the following memorandum:—

“I am of opinion that the Concilium Vaticanum of 1869–1870 is in no way ecumenical, and that the time will come when the Infallibility of the Pope proclaimed therein will be pronounced heresy. But as the Bishops collectively and almost all the clergy have accepted the doctrine set forth, he who denies the doctrine must secede from the Catholic Church.... I have, therefore, refrained from expressing my opinion openly, especially as I believe that the Old Catholic Community cannot remain where it

now stands, but will be driven further.... So far as I am concerned, I wish the Catholic Church to reform herself. That can and will be done only with the co-operation of her Bishops. This co-operation will not take place until the moment has come for the assembling of a really Ecumenical Council. Even if this is an empty hope, it in no case alters my present opinion. In this case the Catholic Church is doomed to fall, and then other forms of religion will be constituted, which we need not now discuss. In the meantime I have this hope, and therefore am waiting. Hence I remain a member of the Church, without going over to the Ultramontanes.”

IV. IN GERMANY

1. Hefele, Bishop of Rottenburg, formerly Professor of Theology in the University of Tübingen, and learned, perhaps above any man then living, in the Councils of the Church, was held in high reputation for his history of the Councils, which is still the best modern authority on the subject. He was well known as the reverse of ultramontane. Twelve years before the Vatican Council assembled he stated the facts about Pope Honorius in such a manner as to show that history absolutely forbade the ascription to a Pope of the attribute of Infallibility.

Being consecrated Bishop at the end of 1869 he had a place in the Vatican Assembly, where he was most active in opposition. Just in the critical hour of the Infallibility debate he published (in April, 1870) at Naples, since Papal regulations prevented its publication in Rome, a forcible pamphlet on the case of Pope Honorius, and his treatment by the Sixth General Council. Hefele now declared that Honorius “set aside the distinctively orthodox technical term for the two wills, human and Divine, in Christ; sanctioned the distinctively technical term of the Monothelite heresy; and commended this double error to the acceptance of the faithful.” Further, he maintained that the sixth Ecumenical Council had claimed the right to pass judgment on this authoritative Papal decision, and to pass anathema upon the Pope as a teacher of heresy. Finally, he maintained that from the fifth to the eleventh century each Pope in his consecration oath had made a declaration which involved two things: first, that a Council can

condemn a Pope for heresy, and secondly, that Honorius was rightly so condemned for having supported an error by his decree on faith.

This emphatic rejection of Infallibility was circulated among the members of the Council in Rome, with intention to prevent the doctrine from being decreed.

Hefele also wrote from Rome to Döllinger, complaining that the majority interfered with the minority's freedom of speech; that the Pope's personal interventions and criticisms on the minority made their independent action exceedingly difficult; that these experiences were diminishing the courage, if not the numbers, of the opposition; that it was difficult to know what movement to take when a halter was round your neck; that hardly anybody dared openly to say what their ultimate intentions were; that the majority meanwhile confidently assured them that the Pope would settle everything, and that then the alternative would be submission or excommunication.

On the 13th of July Hefele voted in the negative. On the 17th he signed the protest and then returned to his diocese without waiting for the Public Session. In a letter to Döllinger he attempted to justify this. He said that from the number of negative votes on the 13th of July he had hoped that many Bishops would remain for a final protest in the Public Session of the 18th. But in the general exodus this hope evaporated. He acknowledged that the written protest sent to the Pope was weak, because destitute of formal validity. It could not possibly avert the public definition of the Decree. As for himself he feels that his duty is clear. He has been in consultation with his Chapter and his Theological Faculty. He cannot accept the new dogma, as it stands, without the necessary limitations. He knows that Rome may suspend him, and excommunicate him. Meantime he has been urging upon another Bishop that disbelief in the Council's validity is not heretical. His own line consists in quiescence, so long as Rome does not actively intervene. What else to do he does not know in the least. At any rate to hold as Divinely revealed what is not true is for him simply impossible (September 1870). He can no more conceal from himself in Rottenburg, than he could in Rome, that the new dogma is destitute of any true rational, Scriptural, or traditional foundations. It is injurious to the Church in incalculable ways. The Church has suffered no severer and deadlier wound of modern times than that inflicted on the 18th of July. Yet he can see no

way of escape. He writes repeatedly to Döllinger; complains that Dupanloup persists in asking questions, but will not say what he intends to do. Meanwhile, Hefele is being worried and baited on every side. Appeals pour in from France and America, urging submission. He is certain that a schism would have no chance. The world is too indifferent, and the opposition too dispersed. There is nothing for it but submission, or exclusion. On the other hand, it is to him indisputably clear that the final session of the Vatican Council had no ecumenical character. Romanism and Jesuitism have altered the nature of the Catholic Church. Hefele's letters become still more piteous. His troubles are increasing. His own diocese is turning against him. He had not believed it possible that the dogma could so pervade his diocese. Even his oldest friends are turning against him. Rome also is improving the occasion. He is refused the usual faculties, so that people in all parts of the diocese cannot get married, and the local clergy are utilising this to set the people against him. What on earth is he to do? He gives way to lamentations. The position of a deprived and excommunicated Bishop is to him abhorrent—one he could hardly tolerate. At an earlier stage it was open to him to resign, and gladly would he lay down an office which has made him such an oppressed and unhappy man. He must resign or yield.

Which of the two it will ultimately be it is not by this time difficult to predict. Hefele can see no glimmer of hope in any distant development. It is not to be expected that the Constitution *Pastor Eternus* will be revoked by a future Pope, or the fourth session of the Vatican Council pronounced invalid. The utmost that can be looked for is a further explanation. By this time he is the only German Bishop who has not published the Constitution. He cannot adequately express his grief that Döllinger should see no escape from suspension or excommunication. Is there no compromise with the Archbishop possible? He utters wild and useless laments over the Synod of German Bishops at Fulda. Oh, what might not have been done in Germany if only the Bishops at Fulda had stood firm! Yet he took no steps against them. Then he ends with deploring Döllinger's own impending fate. To think that Döllinger, so long the champion of the Catholic Church and its interests, the first of the German theologians, should be suspended or excommunicated; and that by an Archbishop who has not done a thousandth part of the service that Döllinger had done! That is terrible! The conclusion

was now quite plain. Döllinger's replies were useless, and Hefele proceeded to publish the Vatican Decree.

It remained, and this was more difficult, to revise the case of Honorius in the light of the new dogma. In the second edition of his "History of the Councils," Hefele observes:

"We always were of the opinion that Honorius was quite orthodox in thought, but, especially in his first letter, he has unhappily expressed himself in a Monothelite fashion." This opinion he still retained, "even if ... as a result of repeated new investigation of this subject, and having regard to what others have more recently written in defence of Pope Honorius, I now modify or abandon many details of my earlier statements, or in particular, form a milder judgment of the first letter of Honorius."

Still, even now, his historic sense constrains him to speak of the "the unhappy sentence, 'accordingly we acknowledge one will of our Lord Jesus Christ,' which taken literally is quite Monothelite." Still he is constrained to say, "Honorius ought to have answered." And as for the Monothelites themselves, "the fact that the Pope gave utterance to this their primary proposition must have given essential assistance to their cause."

2. Melchers, Archbishop of Cologne, professed himself in the Council ready to accept the dogma as a personal belief; but he accumulated many arguments to show the extreme unwisdom of enforcing it upon the Church, especially in the existing state of sharply-divided opinion. On the critical 13th of July he gave a conditional vote. His own subsequent compliance was, therefore, comparatively easy. It was entirely another matter to restore unity to his diocese.^[418] Back in his diocese he called the German Bishops together at Fulda. Only nine arrived, but they agreed to take measures to impose the doctrine upon the recalcitrant. It became the Archbishop's function to reduce to submission the Theological Faculty of Bonn, among others the distinguished professors, Langen and Reusch.

3. The interview between the Archbishop of Cologne and Professor Reusch has been recorded.

The Archbishop told the Professor that the highest authority had spoken, and submission was his duty. The Professor replied that his convictions would not allow it. The Archbishop retorted that he laid too much stress on his convictions. Reusch replied that he dared not go against them. The Archbishop restated the duty of submission to authority; the Professor said that he could only leave his convictions to the judgment of God.

But, persisted the Archbishop, the Council was free and ecumenical, and the definition unquestionably valid. He acknowledged that he had himself implored the Pope not to allow the discussion to begin; but the majority thought otherwise. And, added the Archbishop, with a happy inspiration, you know that the doctrine has been recently taught in the Catechism of this diocese. Until now, replied Reusch, the opposite doctrine has been taught in all the schools, in a book bearing the episcopal *imprimatur*. The Archbishop could only reply that the book would be altered now, and that its author had already conformed. But, objected the Professor, if the opposite has been taught up to the 18th of last July, it cannot be a heresy.

The Archbishop could only enquire whether the Professor would make any concession of any kind. He said he would avoid contradiction, and study further. The Archbishop pointed out that Rome would never be satisfied with that. Do you wish, he asked, to die without the Sacraments? The interview was adjourned, and then resumed, but fruitlessly. The Archbishop recommended him to go into retreat. The Professor doubted whether this could alter facts of history. His reward was excommunication.

Reusch's reflections on the interview with his Archbishop show what resistance cost him. "How painful it was, he wrote, although I continued calm and the Archbishop always friendly, you can well imagine. But I formed a gloomier opinion of his narrow-mindedness than ever before." Melcher's insistence on the duty of unlimited intellectual submission left, so far as Reusch could see, no room for reason. It provoked the criticism that the Archbishop would credit four Persons to the Trinity if a papal constitution demanded it. But for himself, Reusch wrote in terms almost of despair. That he might no longer pursue his mission as a teacher was hard enough. That he might no more discharge his priestly functions, nor obtain absolution and communion was terrible. But yet he would be more unhappy still if these had been obtained at the price of assenting to the dogma. And Reusch uttered his grief in the words of Ecclesiastes:—

“Wherefore I praised the dead which are already dead more than the living which are yet alive. Yea, better is he than both they, which hath not yet been, who hath not seen the evil work that is done under the sun.”

There remained, however, a work for Reusch to do. He found within the old Catholic communion a freedom to retain unaltered the faith which, up to that year, he had taught within the communion of Rome.

4. The fate of Langen, Theological Professor of Bonn, was somewhat similar to that of Reusch. When asked for his assent to the new Decree, Langen contended that the University statutes secured him his office conditionally on assent to the decisions of Trent; and that no alteration of these conditions could be made without approval of the Government. The Archbishop overruled this contention, and Langen declined to submit. Like Reusch, he was excommunicated. Langen has left behind him a history of the Roman See, and an extremely learned and exhaustive history of interpretation of the Scripture-texts usually adduced in behalf of the papal claims. Both these works display that Langen could not accept the new definition without falsifying the facts of history.

5. Another German rejection of the doctrine is that of Dr Hasenclever.^[419]

“With countless other companions in faith I find myself reduced by the Papal Decree of 18th July 1870 to the alternative of either denying against my conscience the ancient faith as I received it, and on the basis of which I have remained for five and twenty years in the Catholic Church, or of placing myself in hopeless antagonism to a justly revered authority through refusal to submit.”

Undoubtedly the principle is true that when the Church has once spoken all uncertainty is taken away; but no less undoubted is the principle that where a contradiction exists, a manifest deviation from tradition, it is impossible that it is the Church which has spoken. It is impossible, he says, for him to bring into harmony the new teaching on the Pope’s Infallibility with the Catholic Faith taught him by the Tridentine and Roman Catechism.

The constitution of the Church, he argued, differs from that of a State, for while the latter may assume at various periods a democratic, an aristocratic, a monarchical form—the former must maintain its self-identity. This principle of identity and continuity is, he acknowledges, recognised in the Anglican Church which, while uncertain of the validity of its claims, he admits, is thereby distinguished from the Protestant types. But his sympathies are with the principle that the constitution of the Church cannot change its form. He is as opposed to a spiritual dictatorship as to Protestantism itself. Is it possible that the conception of supreme authority in the Church which has held good for eighteen hundred years, is no longer decisive? So men enquired in amazement when the news of the schemes of the Roman Curia began to circulate. That some reforms should be necessary was natural enough; but that a radical change must be made in the constitution of the supreme teaching body—this was incredible even to many of the blindest followers of the Curia. The Church has never exhibited a trace of uncertainty on the method of securing finality in a question of faith. It has been through the Collective Episcopate united with its chief. In the Collective Episcopate as representative of Christendom at large, the Church has acknowledged the apostolic teaching office, the witness to its faith, the judge of error. The mission of a Universal Council is to give collective testimony to the faith of the Fathers. This collective testimony might be voiced through the Holy See, but it is impossible to discover in Revelation a basis for the theory that the collective testimony is not valid until the Holy See endorses it. The ancient principle is to rest in the testimony of all churches:—

“Ecumenical Councils,” says Alzog, speaking of the early centuries, “the real representatives of the Catholic spirit, were in these ages of burning controversy the decisive authority, the supreme tribunal which ended all dogmatic disputes. And,” adds Hasenclever, “it was exactly when this principle became challenged by another that the risk of schism appeared.”

Moreover, a mathematical formula may illustrate the effect of the papal claim on the Episcopate. If $a+b=a$ then $b=0$; or, at any rate, is a practically negligible quantity.

Hasenclever complains that he can nowhere obtain a direct response to the question, How is it that innumerable treatises and works of all kinds

approved by the Church have hitherto affirmed that Papal Infallibility is no part of the Catholic Faith? What particularly scandalised him was the sudden condemnation, by placing on the Index, books which have been for a considerable period accepted authorities within the Church. He failed to see that to bestow sanction publicly upon a treatise, and afterwards to pronounce it heretical, was consistent with the maintenance of an unchanged faith. Moreover, if Papal Infallibility had been the traditional principle, the entire history of the Church must have presented a very different appearance from what it does. Where, he asks, is any faith in an infallible Pope exhibited in the Church during the Arian struggles? Certainly the Bishops of the Sixth Ecumenical Council conducted matters on somewhat different lines from those suggested to us by infallibilists to-day. They treated the Pope Honorius just as they would have treated any other heretic. And his successors did the same. The infallibilist falls into Scylla if he escapes Charybdis. When entreated to make a sacrifice of his intellect to this demand of the Vatican Decree, Hasenclever can only reply that such sacrifice paralyses the innermost depths of personal existence. To him it is nothing less than a suicidal suppression of that characteristic which raises us into resemblance to God. Those who cannot bring themselves to this abandonment of their human dignity will be constrained to say, in spite of all the seductions of superficial and sophistic reasonings, that the doctrine of the personal infallibility of the Pope stands in irreconcilable contradiction with the actual faith of the Catholic Church; and, accordingly, it is impossible that a real Ecumenical Council should have decreed it.

6. But these were minor incidents. The religious attention of Germany centred on Döllinger at Munich. On 17th July Archbishop Scherr of Munich left Rome with the minority. On the 18th the new dogma was proclaimed. On the 19th Archbishop Scherr was back in Munich again. On the 21st the Theological Faculty, headed by Döllinger, met him. Scherr's criticisms of the Roman procedure, says Döllinger's German biographer, Friedrich, confirmed them in the views of the Council which they had already taken. But, said Scherr, Rome has spoken. There was nothing for it but submission. The Theological Faculty were totally unprepared for the Archbishop's surrender. Upon Döllinger it created the most painful impression. He knew that the Archbishop's convictions, better judgments, sympathies, were all on the other side; and that, like the other Bishops of the minority, he had abandoned the Council because he could neither bring

himself to acquiesce silently in the proclamation of what he deprecated, nor summon courage to protest for what he had hitherto believed. The feebleness of the Archbishop's excuses, the frank condemnation pronounced by him on the methods by which the result had been secured, only set in stronger light the incongruity of his submission. Naturally they served to confirm Döllinger still more in his opinion of the absence of real freedom in the Council Chamber at St Peter's.

Dr Liddon, who was in Munich on 29th July, gave the following account of Döllinger some ten days after the passing of the Decree:—

“A large amount of our conversation, of course, turned on the Council and the Definition; and he speaks with the most entire unreserve. He says that the great danger now is lest the Bishops of the minority, being separated from each other, and exposed to the powerful influences which can be brought to bear on them, should gradually acquiesce. Nothing would be worse for the cause of the Church in Germany than the spectacle of such submission to a purely external and not really competent authority (he dwells much on the scheme *de concilio*, as completely destroying the freedom, and so the authority, of the Council), with a notorious absence of any internal assent. The Archbishop of Munich is very anxious. He told Dr Döllinger that the deputation which went to the Pope, begging him to spare the Church, nearly carried its point.”

It is clear from this and other sources that the Archbishop of Munich, if left to himself, had no desire to proceed to extremities with the opponents of the Decree. But Döllinger fully realised, ever since the first mention of Infallibility as a subject for decision, that excommunication lay before him if the Decree was passed. Archbishop Scherr found himself reluctantly driven to the painful task of imposing on the theologians a reversal of belief similar to that which he had himself undergone. Rome was determined that the Munich stronghold of the minority should be brought into line with the new Decree. The Archbishop was made the instrument for effecting this. He wrote a letter to the Munich Faculty of Theology, in which he said that harassing doubts widely prevailed as to the attitude which the Theological Faculty meant to adopt toward the Vatican Council. It was his duty as Archbishop to set these doubts at rest. As for himself, he frankly owned

that, during the deliberation at Rome, he gave utterance to his own opinion with all the positiveness of a conviction attained after mature consideration. "But," he added, "I never intended to retain this conviction of mine if the decision should turn out differently." Accordingly he invites the Theological Faculty to follow suit. The faculty, as a body, complied. But neither Friedrich nor Döllinger. The Archbishop waited two months. Then he wrote entreating Döllinger to conform. To this Döllinger replied that assent to the recent Decree would require him to refute his lifelong historical teaching. He would have to declare that his doctrine hitherto was false and perverted. In the face of his public declarations no one would believe in the sincerity of his submission. All the world would consider the transition a hypocritical instance of convictions denied from fear and personal interest. In the terribly painful situation into which recent events had brought him, Döllinger asked for further delay. This was granted, but, of course, to no purpose. Just in this hour of critical suspense, when the decisive step must be taken, came the piteous appeal from Hefele. Was no compromise with the Archbishop possible? That Döllinger, the first of German theologians, should be suspended or even excommunicated; and that by an Archbishop who had not done a thousandth part of the service Döllinger had rendered to the Church! This was terrible. Hefele's letter gave Döllinger what he calls the first completely sleepless night in his life. But it could not alter his convictions. Döllinger sent his answer in to the Archbishop. He took his definite and final stand on the ancient principles. He could do no other. Döllinger said, in his reply, that the Jesuits, in advancing their scheme of papal absolutism, assured their adherents and disciples, and convinced many, even Bishops, that the noblest Christian heroism consists in the sacrifice of the intellect, and in surrendering one's mental judgment and self-acquired knowledge and power of discernment to an infallible papal *magisterium* as the only sure source of religious knowledge. This, in his opinion, was to elevate mental sloth to the dignity of a meritorious sacrifice, and to renounce the rights and the claims of history.

The question of Papal Infallibility was an historical question, which must be tested by historical investigation; by the patient scrutiny of facts in the centuries past. If this doctrine were true, it would assuredly be not merely one truth among many, but the actual foundation of the rest. How could the basal principle have been obscured through centuries?

“We are still,” wrote Döllinger to the Archbishop, “waiting the explanation how it is that, until 1,830 years had passed, the Church did not formulate into an article of faith a doctrine which the Pope, in a letter addressed to your Grace, calls the very foundation principle of Catholic faith and doctrine? How has it been possible that for centuries the Popes have overlooked the denial of this fundamental article of faith by whole countries and in whole theological schools? And was there a unity of the Church when there was a difference in the very fundamentals of belief? And—may I further add—how is it then that your Grace yourself resisted so long and so persistently the proclamation of this dogma? You answer, because it was not opportune. But can it ever be ‘inopportune’ to give believers the key to the whole building of faith, to proclaim the fundamental article on which all others depend? Are we not now all standing before a dizzy abyss which opened itself before our eyes on the 18th July?” Döllinger concluded with a deliberate and emphatic rejection of the new Decree: “As a Christian, as a theologian, as a historian, as a citizen, I cannot accept this doctrine.”

Döllinger’s biographer assures us that this reply to the Archbishop of Munich brought Döllinger hundreds of letters, telegrams, addresses from Germany, Austria, and Italy, in congratulation for his firmness and strength. The Archbishop was in great perplexity. He sent a telegram to Rome asking what his next move should be. Antonelli replied promptly and curtly that the whole affair was exclusively within the Archbishop’s jurisdiction. This cut off all delay and all retreat. Archbishop Scherr was thus driven forward from Rome, and reluctantly forced to take the final step. A protest signed by forty-three Catholic professors against episcopal tyranny was naturally without effect. So also was an appeal with many thousands of signatures. Theological students in Munich diocese were now forbidden to attend his lectures; and he was informed that although the Archbishop could not prevent his lecturing, yet he could only continue to do so in open opposition to his Bishop. This was followed a fortnight later by his formal excommunication, in which his biographer, Friedrich, was included.^[420]

The exasperation at Munich is shown in a strongly worded protest^[421] issued at Whitsuntide 1871, in which the signatories declare themselves

confirmed in refusing the Vatican Decree by the duty, which neither Popes nor Bishops can dispute, of abiding in loyalty to the ancient faith even though an angel should teach them otherwise. It has been hitherto no doctrine of the Church, no part of Catholic faith, that every Christian possesses in the Pope an absolute overlord and master, to whom he is directly and immediately subjected, and whose decisions in faith and morals he is bound under penalty of eternal damnation to obey. It is notoriously no part of the teaching of the Church hitherto that the gift of Infallibility is entrusted to one individual. Peter speaks unmistakably to us in Scriptures through his deeds and his words and his letters; but all these breathe a totally different spirit from that of papal absolutism. The German minority Bishops show their bewilderment in their Pastoral letters. For none of them can induce themselves to follow Manning and the Jesuits in interpreting the Decrees in their natural obvious meaning. Moreover, the undersigned deplored that the Bishops are not ashamed to answer the conscientious outcry of their own dioceses with invectives against reason and learning. In previous centuries, when Bishops resorted to excluding a man from the Church, they did so on the ground of the novelty and untraditional character of his teaching. It was reserved for the present generation to see, what eighteen centuries have never beheld, a man condemned and excluded precisely because he clings to a doctrine which his fathers in the Church have taught him; refuses to change his faith as a cloak might be exchanged. That an unjust excommunication can only injure its inflictors—not the individual upon whom it is inflicted—is the universal teaching of the Fathers. Such excommunications are as invalid and ineffective as they are unjust. They cannot deprive the believer of the means of grace, nor a priest of his right to dispense them.

Such was the strain in which the Munich protest was written. Among the signatures which follow are those of Döllinger, Lord Acton, and Reinkens, afterwards Bishop of the Old Catholic Communion. The German Catholics, whom the Decree of Infallibility had excluded, gathered to form the Old Catholic Community.

Döllinger confesses that he had no hope whatever that under the next or one of the next Popes any important or essential change would be made for the better, since the order of the Jesuits formed the soul and sovereign of the whole Roman Church. Formerly there were counterbalancing influences:

powerful religious orders, full of vitality, correcting the tendencies of the followers of Loyola. But these had become either powerless shadows, or satellites of the Jesuit dominating body.

“The tendency of events since 1870 was shown,” said Döllinger, “in the solemn proclamation of Liguori as Doctor of the Church:—

“A man whose false morals, perverse worship of the Virgin, constant use of the grossest fables and forgeries, make his writings a storehouse of errors and falsehoods. In the whole range of Church history I do not know a single example of such a terrible and pernicious confusion.”

The public papers repeatedly announced Dr Döllinger’s reconciliation with the Roman Communion. On one occasion he replied:—

“This is now the fourteenth time that my submission has been announced by Ultramontane papers; and it will often occur again. Rest assured that I shall not dishonour my old age with a lie before God and man.”

Ten years after the Vatican Decision, Döllinger received a pathetic, imploring appeal from a lady of high social position, entreating him to rescue himself from the everlasting destruction which his exclusion would entail, and to have mercy on his own unhappy soul.

Döllinger’s answer is memorable:—

“I am now in my eighty-first year, and was a public teacher of theology for forty-seven years, during which long period no censure, nor even a challenge that I should defend myself, or make a better explanation, has ever reached me from ecclesiastical dignitaries, either at home or abroad. I had *never* taught the new Articles of Faith advanced by Pius IX. and his Council.... Then came the fatal year, 1870.... It was in vain that I begged them to let me remain by the faith and confession to which I had hitherto been faithful without blame and without contradiction. Yesterday still orthodox, I was to-day a heretic worthy of excommunication; not because I had changed my teaching, but because others had considered it advisable to

undertake the alteration, and to make opinions into Articles of Faith.”

But why not make a sacrifice of his intellect:—

“Because,” says Döllinger, “if I did so in a question which is for the historical eye perfectly clear and unambiguous, there would then be no longer for me any such thing as historical truth and certainty; I should then have to suppose that my whole life long I had been in a world of dizzy illusion, and that in historical matters I am altogether incapable of distinguishing truth from fable and falsehood.”

But this would undermine his whole confidence in historic fact, and thereby shatter the foundation of his religion. For it is on historic facts that Christianity itself reposes. Prior to the historic problem of the Papacy is the historic problem of the Apostolic times. “I must first be convinced that the principal events narrated in the Gospels and the Acts of the Apostles are essentially true and inviolable.” And to destroy confidence in historic judgment in one case is to ruin its validity in all others.

Archbishop Scherr was succeeded in the diocese of Munich in 1878 by Von Steichele, a former pupil of Döllinger, and attached to him by feelings of the deepest veneration. Von Steichele made overtures for Döllinger’s reconciliation with the Papacy. He wrote in 1879 a delightful letter:—

“With the thankfulness of a pupil to a venerable teacher; with the respect of a disciple for the honoured bearer of the richest knowledge; with the love of an anxious Bishop for the brother who unhappily is not yet at one with him in things of highest moment.”

Döllinger sent a frank but decided reply. Return was impossible. He said that his excommunication had been unjust, his treatment unexampled in the history of the Church. The mediæval theory of excommunication rendered the individual liable to bodily harm. It would appear that this theory was not obsolete; for the chief of the police had warned him to be on his guard, as they had knowledge that an act of violence was plotted against him. Friedrich says elsewhere that the house in which he and Döllinger lived, was specially protected by the police for a year after the excommunication.

These dangers, said Döllinger, were long since past. But he could not enter again into relationship with the authors of these actions. He had long ago challenged his former colleagues to know how they reconciled acceptance of the Vatican expositions with their conscience and their knowledge of the facts:—

“The answer was always an evasive one, or an embarrassed shrug of the shoulder. They said that this was a question of detail, which the individual priest or layman did not need to enter into. Or they said that the very essence and merit of believing consisted precisely in giving oneself up blindly and implicitly to the powers that be, and in leaving it to them to settle any contradictions that might exist. I do not need to tell you what an impression deplorable subterfuges of this kind have made upon me.”

This was Döllinger’s final attitude toward the Roman Communion up to the last moment of consciousness on earth. He never by any act of will deviated from testimony to the Church’s traditional Faith, in which the theory of Papal Infallibility was not included. To the end of his days he held that this theory could not possibly be reconciled with the broad facts of Christian history.

V. LORD ACTON’S SUBMISSION

The new decree was profoundly uncongenial to the mind of Lord Acton. He had already expressed his sense that recent developments of papal authority were inconsistent with the earlier principles of Christendom, and disastrous alike to freedom of investigation, and to the real interests of the Church. Manning’s theories on papal sovereignty were a trial to Lord Acton’s historical intellect. Manning simply reproduced the mediæval exaggerations of temporal power which had done incalculable mischief ever since Boniface VIII. endorsed them in his struggle with France.

“You are certainly not too severe on Manning’s elaborate absurdities,” wrote Lord Acton;^[422] “I had no idea he had gone so far.... It is impossible to exaggerate the danger of such

doctrines as his. I wish you would take the line of Catholic indignation a little.”

While the Council sat, Lord Acton was in Rome, where popular opinion ascribed the Articles in the *Augsburg Gazette* to his instrumentality. “People do not venture to proceed against Acton,” wrote Gregorovius,^[423] “but it is known that he writes, and that he pays highly for the materials that are supplied him.”

Archbishop Manning had positive knowledge that Lord Acton was in constant communication with Mr Gladstone, supplying him with information hostile to the Council; “poisoning his mind,” as Archbishop Manning phrases it, against Papal Infallibility and the Pope’s friends and supporters. Lord Acton, as a friend and disciple of Dr Döllinger, had great influence with the German Bishops, who, for the most part belonged to the Opposition; and was also on confidential terms with Mgr. Darboy, Archbishop of Paris, and with the Bishop of Orleans, and had not a little to do with bringing into closer union the Bishops of France and Germany. He was also active in furnishing the Opposition with Dr Döllinger and Professor Friedrich’s historical criticisms of the Papacy. Lord Acton, as Manning knew well,^[424] did more than any other man, except the Bishop of Orleans, in exciting public feeling, especially in Germany and England, against the Vatican Council.

When, therefore, the Vatican Decree was passed and the process of reducing objectors to uniformity began, it was scarcely probable that Lord Acton would be left unchallenged. Nor did he continue silent. He published a sketch of the history of the Vatican Council^[425] which, while confined strictly to facts, must have been supremely distasteful to the victorious side. When he said that Pius was bound up with the Jesuits; made them a channel for his influence and became himself an instrument of their designs; when he gave illustrations of authority overriding history, and the unscrupulous suppression of uncongenial facts; when he quoted at length Montalembert’s emphatic letter on the transformation of Catholic France into an anti-chamber of the Vatican—he was recording what was calculated to advance the other side. Yet, of course, the registration of adverse facts is a different province from personal belief.

But Acton went so far as to describe the Infallibility doctrine as independent of reason or history.

“The sentiment,” he wrote,^[426] “on which Infallibility is founded could not be reached by argument, the weapon of human reason; but resided in conclusions transcending evidence, and was the inaccessible postulate rather than the demonstrable consequence of a system of religious faith.” The opponents were, according to Acton, “baffled and perplexed by the serene vitality of a view which was impervious to proof....

“No appeal to revelation or tradition, to reason or conscience, appeared to have any bearing whatever on the issue.”

This persistent attempt to render authority independent of evidence was, if especially prominent in the Infallibility disputes, a deeply seated and long existing disease. It pervaded the theological school then dominant in Rome, but it had, according to Acton, exerted its baneful influence over the Roman Church for centuries. The Jesuit theologian, Petavius, in the seventeenth century supported existing authority at the expense of the past.

“According to Petavius, the general belief of Catholics at a given time is the word of God, and of higher authority than all antiquity and all the Fathers. Scripture may be silent, and tradition contradictory, but the Church is independent of both. Any doctrine which Catholic divines commonly assert, without proof, to be revealed, must be taken as revealed.... In this way, after Scripture had been subjugated, tradition itself was deposed; and the constant belief of the past yielded to the general conviction of the present. And as antiquity had given way to universality, universality made way for authority.”

Thus in Acton’s view the dominant school in the Roman Church were resolved that “authority must conquer history.” He went so far as to say that:—

“Almost every writer who really served Catholicism fell sooner or later under the disgrace or the suspicion of Rome.” Also that “the division between the Roman and the Catholic

elements in the Church made it hopeless to mediate between them.”

Acton’s description of the Vatican Assembly itself could only leave one conclusion as to its methods and impartiality, on the reader’s mind. He records how the Bishops on arriving in Rome, were “received with the assurance that nobody had dreamt of defining Infallibility, or that, if the idea had been entertained at all, it had been abandoned.” He records the Pope’s assurance that “he would sanction no proposition that could sow dissension among the Bishops.” He asserts that the freedom of the Bishops was taken away by the regulations of the Bull *Multiplices inter* imposed upon them without their consent, and with refusal even to allow their protests to be uttered. He says that many Bishops were “bewildered and dispirited,” by the character of these Regulations. He says:—

“It was certain that any real attempt that might be made to prevent the definition could be overwhelmed by the preponderance of those Bishops whom the modern constitution of the Church places in dependence on Rome.”

He reveals his sympathies in the strongest way by pouring out his moral indignation on the minority Bishops for their weakness.

“They showed no sense of their mission to renovate Catholicism....

“They were content to leave things as they were, to gain nothing if they lost nothing, to renounce all premature striving for reform if they could succeed in avoiding a doctrine which they were as unwilling to discuss as to define.”

The contemplation of all this causes Acton to write:—

“The Church had less to fear from the violence of the majority than from the inertness of their opponents. No proclamation of false doctrines could be so great a disaster as the weakness of faith which would prove that the power of recovering the vital force of Catholicism was extinct in the Episcopate.”

And then Acton traces the gradual tightening of the cords as the feeble and unhappy minority are more and more overcome. The new Regulations

determined that decrees should be carried by majority. They could not be accepted by the minority without virtual admission that the Pope must be infallible. For

“If the act of a majority of Bishops in the Council, possibly not representing a majority in the Church, is infallible, it derives its Infallibility from the Pope.”

“But it was a point which Rome could not surrender without giving up its whole position. To wait for unanimity was to wait for ever, and to admit that a minority could prevent or nullify the dogmatic action of the Papacy was to renounce Infallibility. No alternative remained to the opposing Bishops but to break up the Council.”

This was exactly where their courage failed them. They protested, but submitted. And here comes Acton’s judgment on their submission:—

“They might conceivably contrive to bind and limit dogmatic Infallibility with conditions so stringent as to evade many of the objections taken from the examples of history; but in requiring submission to Papal Decrees on matters not Articles of Faith, they were approving that of which they knew the character, they were confirming without let or question a power they saw in daily exercise, they were investing with new authority the existing Bulls, and giving unqualified sanction to the Inquisition and the Index, to the murder of heretics and the deposing of kings. They approved what they were called on to reform, and solemnly blessed with their lips what their hearts knew to be accursed.”

The effect of this moral feebleness on the Roman authorities was, says Acton, that

“the Court of Rome became thenceforth reckless in its scorn of the opposition, and proceeded in the belief that there was no protest they would not forget, no principle they would not betray, rather than defy the Pope in his wrath. It was at once determined to bring on the discussion of Infallibility.”

Lord Acton's objections to the Infallibility school were clearly of a triple character. In relation to History: it betrayed a resolve to instate Authority independently of proof. It was the product of indifference to fact. "The serene vitality of a view impervious to proof," could only shock and distress a profound veneration for the actual. To those who build on facts such disregard for evidence must appear as building without foundation. In relation to method: if the origin of the doctrine was insecure, no less unsatisfactory was the method by which it was decreed. Acton's description makes the Decree the product of cowardly weakness on the one side, and unscrupulous coercion on the other. The spiritual value of the result obtained might be measured by the immorality of the means employed. It could not, it did not, enlist his loyalty or command his reverence. In relation to results: plainly Acton did not believe that the limitless exaltation of Authority was beneficial, or that it could lead to anything but results disastrous to the real interests of the Church. The severity of his judgment on the minority, for investing with new Authority the Papal Decree, was born of a deep conviction that already, on countless occasions, that Authority had proved excessive, injurious to the advance of truth, and the freedom of the individual. It is probably quite correct that Acton's objections were more on the moral and political or social side than on the strictly theological. But his sharp distinction between the Catholic and the Roman elements within the Church is really a distinction in dogmatic principles. And nothing can exceed his loathing for principles commonly known as Ultramontane. Acton and Manning stand at the opposite poles in their anticipations of the results of the dogma of Infallibility.

But Lord Acton went far beyond all this. He wrote a letter^[427] to a German Bishop reproaching the minority with inconsistency in discontinuing their opposition after the Infallibility Decree was published. In this letter he gives the actual language of the leaders of the minority, and concludes—

"The Council is thus judged by the lips of its most able members. They describe it as a conspiracy against truth and rights. They declare that the new dogmas were neither taught by the Apostles nor believed of the Fathers."

This letter was described by the *Dublin Review*^[428] as "an open and decisive revolt against the Church."

Yet it does not appear that the writer was challenged to express his adherence to the new Decree. But Lord Acton's letters during this period are yet to be published. Abbot Gasquet^[429] omits all the critical years from 1869–1874. Lord Acton, however, did not ultimately escape unchallenged. He was not in Manning's Diocese or we may feel fairly certain that the Archbishop of Westminster would have pounced upon him.

Meantime Mr Gladstone argued that the Vatican Decrees involved political consequences adverse to modern freedom.^[430] The Church's power to employ coercion was asserted by the Syllabus, and acknowledged by Newman.^[431] Now that such consequences could be drawn from the Vatican Decrees Lord Acton did not dream of denying.^[432] Gladstone's argument could not be met by denial. And, of course, the whole sympathies of Acton's mind were with Gladstone so far as repudiation of the use of coercive force in religion is concerned. Nothing in the world roused Acton's moral indignation more than Inquisition and Liguori's ethics. He admitted with characteristic sincerity that "Gladstone had not darkened the dark side of the question." All he could answer was that it does not follow that inferences which *can* be drawn *will* actually be made. He held that "the Council did not so directly deal with these matters as to exclude a Catholic explanation." The Council had not so acted "that no authentic gloss or explanation could ever put those perilous consequences definitely out of the way." This was certainly a curious defence of an Ecumenical Decree. It does not exclude a Catholic explanation. But this was all he could say. He could not even say what that true explanation was; for on that ground his own authorities might reject him. "I could not take my stand, for good or evil, as an interpreter of the Decrees, without risk of authoritative contradiction." This attitude, says Acton, "was no attack on the Council, although it was an attack on Ultramontanism."^[433]

But Lord Acton proceeded to defend the Council in the *Times* newspaper^[434] from Mr Gladstone's inferences.

"I affirmed that the apprehension of civil danger from the Vatican Council overlooks the infinite subtlety and inconsistency with which men practically elude the yoke of official uniformity in matters of opinion."

And, as an illustration of this infinite subtlety in eluding authority, he quoted the example of Archbishop Fénelon, who “while earning admiration for his humility under censure [by the Pope] had retained his former views unchanged.” Fénelon wrote:—^[435]

“I accept this Brief ... simply absolutely and without shadow of reserve. God forbid that I should ever be remembered except as a pastor who believed it his duty to be more docile than the humblest of his sheep, and who placed no limit to his submission.”

Three weeks later Fénelon wrote to a friend:—

“I acknowledge no uncertainty either as to the correctness of my opinions throughout or as to the orthodoxy of the doctrine which I have maintained... Unless competent persons rouse themselves in Rome the faith is in great danger.”

It was no more than natural, after such public letters, that Lord Acton should be called in question by the authorities of his Communion. It was asserted in the Roman Church that he did not believe the Vatican Decrees. Manning wrote to enquire what construction he placed upon them in order that the minds of the multitude might be reassured. A curious and very instructive correspondence^[436] ensued. Lord Acton took advice as to the answer he should give.

“The great question is,” he wrote privately to a friend, “whether I ought to say that I *submit* to the acts of this as of other Councils, without difficulty or examination (meaning that I feel no need of harmonising and reconciling what the Church herself has not yet had time to reconcile and to harmonise), or ought not the word *submit* to be avoided, as easily misunderstood.”

After further reflection Lord Acton proposed to say:—

“I do not reject—which is all the Council requires under its extreme sanctions. As the Bishops who are my guides have accepted the decrees, so have I. They are a law to me as much as those at Trent, not from any private interpretation, but from the authority from which they come. The difficulties about

reconciling them with tradition, which seem so strong to others, do not disturb me a layman, whose business it is not to explain theological questions, and who leaves that to his betters.^[437]

“Manning ... says he must leave the thing in the hands of the Pope, as everybody tells him I don’t believe the Vatican Council. He means, it seems to me, that he simply asks Rome to excommunicate me—a thing really almost without example and incredible in the case of a man who has not attacked the Council, who declares that he has not, and that the Council is his law, though private interpretations are not, whose Diocesan has, after enquiry, pronounced him exempt from all anathema.”^[438]

Against Lord Acton no further action was taken. The disastrous effect of the excommunication of Döllinger may have made Authority cautious in the exercise of this deadly weapon. Acton indeed submitted; but Manning’s misgivings seem more than justified. It is difficult to define the sense in which Acton became a believer in the new Decree. “He remained all his life,” says Bryce,^[439] “a faithful member of the Roman Communion, while adhering to the views which he advocated in 1870.”

It is quite true that Acton was not an Anglican; he was still less a Protestant. He never joined the old Catholic movement, and is said to have dissuaded his friends from taking that course. But it is certain that he was never an Ultramontane. The distinction he drew between Catholic and Roman elements in the Church helps to explain his own position. He was a Catholic as opposed to the modern Roman type.

If, as Pius IX. asserted, Catholic and Ultramontane are synonymous, then Acton’s position was precarious. But their identity is what he persistently and firmly denied. He considered Ultramontanism as an unhappy and mischievous influence perverting truths and ignoring history, speculative in its origin, and injurious in its results. He was well aware, his historic insight made it clearer to him than to many, that the school he resented was a long-standing disease; that its presence could be traced for centuries, if in a less pronounced and virulent form than to-day. But the long-standing nature of the disease did not shake his faith in the certainty of a remedy, and a removal sooner or later. He did not, it has been well said, identify the long-lived with the eternal.

Sooner or later then, Ultramontanism, according to Acton's views, was destined to pass away. It was no more than a temporary, if protracted, disease from which the Church must at length recover. Meanwhile, therefore, he held to his post, accepting the present discomfiture in the hope of better days; waiting until this tyranny be overpast. He had no thought of departure. The Roman Communion was the Church of his birth and of his devotional affinities. He spoke of it reverentially as "the Church whose communion is dearer to me than life."^[440] He would never have left it of his own accord. But, while wholly identified with the ancient Catholic conceptions, he absolutely repudiated the principles of the Ultramontane. By what process he retained his place while Döllinger was exiled seems not altogether clear. Acton felt acutely the possibility that, like Döllinger, he also might be cast out.

Whether wisdom or prudence or diplomacy refrained from him and let him alone, there at any rate he lived and died. But the legitimacy or consistency of his position was the theme of a fierce and bitter controversy in the Roman journals after he was dead.

So the great struggle in the Roman Communion between the episcopal and the papal conceptions of Authority, the collective and the individual, came to an end. Every Bishop of the minority submitted. This is a magnificent tribute to the power of Rome. It held its defeated Episcopate in unbroken unity. Only the old Catholic movement created an independent community. But when the motives are considered which induced the minority to yield, the strongest principle appears to be the maintenance of external unity. The abler minds resisted, after the Decree was known, so long as resistance was possible. Only when the presence of threatened excommunication drew them to an ultimate decision, the Bishops submitted, with what grace they could, to a Decree which they dared no longer resist. But the submission is, even then, cautious, reluctant, and reserved. In some instances it is yielded in a tone of curtness or asperity. In other instances, with comments and explanations, in private letters, wholly inconsistent with genuine faith. It is difficult to find in a single minority submission the joyous devotion which is surely due to a heaven-sent revelation of eternal truth. They do not accept the doctrine as a blessed enlightenment, but rather as a heavy burden to which they are unwillingly obliged to coerce their priests. They do not appear like men whose intensity

of conviction enables them to say:—"It seemed good to the Holy Ghost and to us." They would infinitely sooner ask no questions, if Rome would only let them. They are driven to excommunicate others, much against their will, for continuing to hold what they themselves had taught them, and were, until recently, inwardly persuaded was true. It is a painful and unattractive sight. In the frankness of confidential utterances after the event they owned with manifest sincerity that they did not believe the Decision valid, nor the Doctrine part of the Historic Faith. But, being forced by Authority to choose between submission and excommunication, they mostly preferred submission. The choice is intelligible. They loved the Church. Taught to regard its limits as practically identical with those of the Kingdom of Heaven—yet certain that history contradicted what they were now required to believe, they were placed in the terrible dilemma of loyalty to reason against religious interest, or to religious interest against their reason. The issue was solemn whichever side they chose. But the prior question which the alternative raises is this: "What is the spiritual value of an Absolute Authority which inflicted such an awful dilemma upon its own devoted sons?"

[384] Baunard, *Histoire du Cardinal Pie*, p. 353.

[385] Fessler, *True and False Infallibility*, p. 21.

[386] See Letter to Duke of Norfolk, pp. 96, 97, 98, 99.

[387] See Letter to Duke of Norfolk, p. 98.

[388] Thureau Dangin, Letter to Ward, iii. p. 119.

[389] Letter to Duke of Norfolk, p. 99.

[390] Letter to Duke of Norfolk, p. 17.

[391] *Life of De Lisle*, ii. p. 48.

[392] *Life of De Lisle*, ii. p. 48.

[393] *History of Freedom*, p. 408.

[394] Fessler, p. 24.

[395] *Döllingerites*, p. 14.

[396] *Expostulation*, p. 50.

[397] *Döllingerites*, p. 15.

[398] *Acta*, p. 993.

[399] 11th August. Ollivier, ii. p. 375; Schulte, p. 108.

[400] Acton, p. 997.

- [401] Guillermin, p. 254.
- [402] Foulon, p. 469; Guillermin, p. 257.
- [403] Guillermin, p. 259.
- [404] Guillermin, p. 259.
- [405] *Acta*, p. 997.
- [406] Foulon, p. 505.
- [407] Acton, p. 999.
- [408] Ollivier, i. p. 443.
- [409] Adolphe Perraud, *Le P. Gratry ses Derniers jours, son Testament Spirituel* (1872), p. 43.
- [410] *Acta*, p. 1405.
- [411] *Acta*, p. 1405.
- [412] Guillermin, *Vie de Mgr. Darboy*, p. 261.
- [413] Perraud, p. 44.
- [414] *Acta*, p. 1375, 2nd May 1870.
- [415] Friedrich's *Documenta*, p. 210.
- [416] Schulte, *Der Altkatholicismus*, p. 267.
- [417] An advocate of the infallibilist theory.
- [418] See pp. 241, 242.
- [419] 1872.
- [420] 17th April 1871. See *Declarations*, p. 113.
- [421] Von Schulte, *Der Altkatholicismus*, pp. 16–22.
- [422] *Lord Acton and his Circle*, pp. 211, 212, 215.
- [423] *Roman Journals*, p. 356.
- [424] Purcell's *Manning*, ii. p. 434.
- [425] Acton, *Vatican Council*. München (1871).
- [426] *History of Freedom*, pp. 512, 513.
- [427] *Sendschreiben an einen Deutschen Bischof* (September 1870).
- [428] N.S. vol. xvi. (1871), p. 212.
- [429] *Lord Acton and his Circle*.
- [430] *Vaticanism*, p. 77.
- [431] *Ibid.* p. 77.
- [432] Gasquet, *Lord Acton and his Circle*, p. 366.
- [433] Gasquet, *Lord Acton and his Circle*, p. 366.
- [434] 24th November 1874.

[435] *Pastoral* (1699).

[436] *Lord Acton and his Circle*, pp. 359, 360, 364.

[437] *Ibid.* p. 364.

[438] *Ibid.* p. 368.

[439] *Biographical Studies*, pp. 385, 386.

[440] Letter to the *Times*.

CHAPTER XIX

THE INFALLIBILITY DOCTRINE

It is essential to the completeness of our exposition that we should analyse the doctrine itself which the Vatican Council decreed. The Vatican affirmation is that, under certain circumstances, the Pope is infallible, or divinely protected from error in his official utterances on faith and morals to the whole Church. We will omit for the present the limitations and confine our attention solely to the Council's statement that the Pope's Infallibility is "that with which God was pleased to endow His Church." Thus Papal Infallibility is considered co-extensive with the Church's Infallibility.

But what is Infallibility? It does not imply the granting of a new revelation. It is concerned with the exposition of a revelation already given. It is not equivalent to Inspiration, such as the Apostles possessed. It is merely "assistance by which its possessor is not permitted to err whether in the use of the means for investigating revealed truth or in proposing truth for human acceptance."^[441] It is, according to Newman,^[442] simply an external guardianship, keeping its recipient off from error: "as a man's guardian angel, without enabling him to walk, might, on a night journey, keep him from pitfalls in his way." It is a guardianship saving its recipient "from the effects of his inherent infirmities, from any chance of extravagance, or confusion of thought."

Any serious study of Infallibility must realise that the question is only part of a vastly larger subject, namely, the relation of the human will to the Divine. To describe Infallibility as "an assistance by which the Church is not permitted to err, whether in the use of the means for investigating revealed truth, or in proposing truth to man's acceptance"^[443] is to assume a theory of divine coercion which awakens some of the profoundest psychological and dogmatic problems. It has well been said that "two conditions are required for an authoritative decision: the use of natural means, and a special Providence directing that use. If the former condition

be absent, the latter is simply impossible.”^[444] But what is constantly forgotten in discussions on Infallibility is this conditional nature of all divine assistance. It is constantly assumed that the divine assistance will overrule, even in the absence of compliance with what are acknowledged to be duties on the part of the recipient. There is an obvious simplicity, there seems an edifying piety, in saying that this endowment is an assistance by which the recipient is “not permitted to err.” But this deliverance from error cannot be independent of the recipient’s will, and irrespective of his receptivity.

Suppose, for instance, Infallibility to be located in a Council. It cannot act independently of certain conditions. It might be thwarted by fear or external constraint. Nor are merely external conditions alone essential. There must be inward freedom to preserve its own normal course. Many Roman Catholics complained that the Vatican Council was so seriously hampered, by regulations imposed upon it from without, that conciliar freedom was thereby made impossible. The overruling of a large minority by force of numbers simply shook the faith of many devoted sons of the Roman Church. They experienced the greatest difficulty, almost insuperable, in crediting its Infallibility. Yet, from their point of view, the Council was legitimate in its inception, and in its constitution ecumenical. Now, if a Council, with such beginnings, can nevertheless suggest these misgivings to Roman minds, may not similar misgivings arise over a papal utterance?

Suppose then Infallibility located in a single individual: he must comply with certain conditions. Are those conditions purely external, concerned alone with outward formalities? Or do they include moral qualities and inward state? What is the authority in revelation for the assertion that a divine assistance so completely overrules a personality that he is “not permitted to err.” The illustration of the guardian angel preventing a fall is an illustration of external coercion, in which the will of the guided has no share. He is simply upheld in spite of himself. Is this the case with the Pope in the exercise of his Infallibility? Is the Pope’s capacity to discharge so awful a function absolutely independent of his moral and spiritual state? Is there a suspension of the liability to self-will? Does the personal equation go for nothing? Is it really credible that any other person placed where Pius was would have said the same? Do the antecedents, the temperament, the

mental furniture, in no way affect the utterance? Grant as large a margin as we may to the action and control of this “Divine Assistance,” yet still beyond that margin must be a residuum where the human individuality comes into play, and shares in producing the final result. Hence a possibility must always exist, and it cannot be evaded, that, in a given instance, notwithstanding compliance with external formalities, the inward essential conditions were not fulfilled; and consequently the result was not infallible. Do what you will, it is impossible in human affairs to avoid this element of insecurity, unless the human instrument be reduced to a mere mechanism upon which the Spirit plays as it pleases.

I

What then is the Infallibility of the Church? This is precisely what the Council assumes as known, and does not explain. The Infallibility of the Church has never been authoritatively defined. It has been treated, of course, by theologians, but never formulated by the Church. Hence the minority in the Vatican Council pleaded that this subject should first be discussed: as indeed the logical order appeared to demand.

All doctrine on the Church’s Infallibility will vary according as its basis is purely *à priori* and theoretical, or historical. These are the two methods which distinguish all Christian thinking. We may start from the ideal, and infer that this is what the Almighty must have created, or we may begin with the actual, and draw our principles from the facts.

Now the prevalent method in modern Roman theology is the theoretical as contrasted with the critical and historical. This method is not confined to certain extremists. It saturates the theological writings through and through. Starting with an ideal of the divine purposes, it is assumed that the Almighty must have constituted the Church in a certain way; that He must have endowed it with certain prerogatives and certain authorities and certain safeguards and certain supremacies; because those prerogatives and so forth are, in the writer’s ideal view, necessary to the Church’s achievement of certain ends. Then with this ideal already in possession, controlling the imagination, and determining the mind what it is to discover, advance is made to the actual, to Scripture and to History; with the result that these are found to confirm anticipations—not it is true without

difficulties, nor without feats of agility to the bystanders simply amazing, but yet to the complete satisfaction of the writer's mind. Nevertheless, the result is blindness to historical reality. No one has expressed this better than F. Ryder writing against an extremist in 1867, but in words which accurately describes a conviction widely prevalent in the Roman obedience.

“It is notorious that in some minds the craving for ideal completeness is so strong as to overpower from time to time their sense of truth, and under the influence of this craving, without any conscious dishonesty, they are unable to read either in the past or present world of experience anything but what, according to their preconceived notions, should be. Such minds, as we might expect, have a strong instinctive dislike for historical studies.”^[445]

If instead of theoretical inferences from an ideal, we take the critical and historic way, very different conclusions may be reached as to Infallibility. If the promises of Christ, “Lo, I am with you always,” “He shall guide you into all truth,” are interpreted in the absence of Roman preconceptions, it is evident that they do not necessarily commit our Lord to the Ultramontane conclusions. They may mean, they appear to mean, something quite other than that. Indeed these Ultramontane conceptions appear to be not derived from but read into them. At any rate what Infallibility exists in Christendom should be ascertained from the facts of Christian history. An existence of well-nigh two thousand years must certainly yield a safer basis for inferences, as to the contents of the promises of Christ, than an *à priori* theory of things which seems to us ideal.

The Infallibility of the Church is commonly asserted by Roman writers to be twofold. It is distinguished as active and passive: corresponding to the familiar division between the Church as teacher, and the Church as taught. Active Infallibility is the prerogative of teaching without liability to mislead. Passive Infallibility is the advantage of being taught without liability to be misled. Thus for all practical purposes the Infallibility of the Church would mean the Infallibility of the Episcopate. The laity being reduced to a position of mere receptivity, having no active share in the maintenance and perpetuation of Tradition.

Whether this conception is philosophic or historical is alike open to serious doubt. In the first place, the Church is an organism, a totality, which cannot be, except in theory, severed into merely active and merely passive parts. After all, there is such a thing as the collective Christian consciousness—the mind of the Church, which overrides all barriers of practical convenience, such as the distinction between teacher and taught. If history be regarded, it is impossible to doubt that the laity has been no mere passive recipient, but largely a controller of forms of devotion; and forms of devotion are, after all, expressions of the rule of faith. The control which the laity had exercised over doctrines and creeds and formulas of truth is historically indisputable. Instances are recorded when it is said that the heart of the people was truer than the lips of the priests.

II

The Infallibility of the Episcopate has been variously asserted and denied by Roman theologians since the Vatican Decree. Schwane,^[446] for instance, asserts that the Episcopate assembled in Council possesses no greater authority than when it is dispersed. Individually they are not infallible, nor are they so collectively. Hurter,^[447] on the contrary, maintains the opposite view. The Episcopate is the recipient of Infallibility. The Bishops are heirs to this Apostolic prerogative because they are the Apostles' legitimate successors. By the consent of all antiquity, Bishops are successors of the Apostles. As St Jerome says: "Bishops occupy among us the Apostles' place." Accordingly, Hurter maintains that the Episcopate is infallible not only when assembled in Council but also when dispersed; if it teach anything unanimously as of faith.

This doctrine he bases first on the promises of Christ, which apply equally to the Episcopate in either condition. Secondly, on the belief of Antiquity, which regarded a doctrine as heretical if conflicting with the unanimous consent of the dispersed Episcopate. Many heresies were condemned, without assembling an Ecumenical Council, simply by the unanimity of the Bishops. Thirdly, the doctrine is confirmed by the improbabilities which would follow the other view. For unless the dispersed Episcopate be infallible it would follow that it has hardly ever exercised its prerogative, since Ecumenical Councils are very rare. Moreover, were it

only infallible when assembled, its prerogative would depend for its exercise on permission from the secular powers; which might, and actually did, prevent their assembling. Hurter, therefore, teaches the Infallibility of the Episcopate whether collected or dispersed.

It certainly must be allowed that Hurter's view is far more helpful to the papal doctrine than Schwane's depreciation of the Episcopate. For, if the Episcopate possesses no Infallibility what becomes of that Infallibility wherewith, according to the Vatican statement, Christ has endowed His Church, and with which the prerogative of the Pope is compared and equalised? It is, of course, no function of ours to adjust conflicting Roman estimates of episcopal power. But it is of the greatest interest to all reflective Christian minds to compare the teachings of to-day with the conceptions of antiquity.

The doctrine of the Infallibility of the Episcopate, when unanimous, means, if strictly analysed, that each particular Church is summed up and represented in its chief pastor, who voices the collective consciousness of his people, and bears witness to the Tradition which he has inherited and is transmitting. The testimony of the entire Episcopate when unanimous would naturally represent the Church's mind. The Infallibility of the Episcopate could in the nature of the case only exist on condition of their unanimity. It could not hold in conflicting testimonies to contrary traditions. Hence the ancient conviction that the dogmatic decisions of an Ecumenical Council must of necessity be morally unanimous, otherwise they could not claim ecumenicity. Few Roman writers of last century have enforced this more strongly than Dr Newman. After the Vatican Decree he wrote:—

“First, till better advised, nothing shall make me say that a mere majority in a Council, as opposed to a moral unanimity in itself, creates an obligation to receive its dogmatic decrees.”^[448]

Newman, however, lived to be informed that the notion of moral unanimity was a piece of Gallicanism.^[449]

The prevalent Roman theory of to-day is that the decision in General Councils does not depend on the majority of votes, but always on that part which sides with the Pope. It has been considered possible that all the Bishops united in Council without the Pope might be deceived, and fall into

erroneous doctrine. He would then exercise his function of strengthening his brethren in the faith.

The Roman doctrine is that the Infallibility of Councils does not depend upon the subsequent consent and acceptance by the Church. Now many Councils and Assemblies of Bishops have been held in Christendom. Some are infallible, and some are not. How can we distinguish the Ecumenical Infallible Council from assemblies which do not possess this great prerogative? Does it depend upon the presence of the entire Episcopate? Manifestly not. Several of the Councils acknowledged as Ecumenical or Universal consisted of a comparatively small proportion of the entire Episcopate. To this and similar enquiries the modern Ultramontane returns the answer that the character of a Council depends neither on its numbers, nor its majorities, nor its acceptance by the Church; but simply and solely on its endorsement by the Pope.

Now, given the existing condition of Roman developments, the absolutism of their monarchical system, the practical utility of this answer is undeniable. But its assumptions are obvious. It assumes the identity of the Roman Communion and the Catholic Church. It excludes all the Oriental Churches. Beyond all this is its absolutely unhistoric character. It is impossible with regard for history to claim that the ecumenical character of the first four Councils rest on papal consent and approval. The ancient test of a Council's ecumenical and irreversible character was certainly acceptance by the entire Episcopate. The fragment of the Episcopate which happened to assemble in any particular place could not of itself give complete representation to the consciousness of the Universal Church. The endorsement or approval of the Roman Bishop unquestionably added great weight; but was certainly not regarded as a substitute for the authority which a Council acquired from universal endorsement by the entire Episcopate. Until this acceptance was secured, the ecumenical infallible character of a Council must, of necessity, remain uncertain. For the Supreme Council is the Episcopate. And until the entire Episcopate has given its assent, the Council has not become a supreme expression of the mind of Christendom. This, of course, is what the modern Ultramontanes would not admit. It would not agree with the modern condensation and embodiment of all authority in a single individual Bishop at Rome. But it is

the doctrine of antiquity, and it is that maintained by all the Oriental Churches.

The substitution of papal endorsement for episcopal unanimity as the test of an Ecumenical Council can only be termed a tremendous revolution in the constitution of the Catholic Church.

III

The Infallibility of the Pope is no mere isolated dogma, separable from a system without detriment to the remainder: it is the final conclusion and crown of a theory of absolute authority; the completion of a whole process of centralisation of power in the hands and control of a monarchy. It is significant to note that the three theories which assign Infallibility to the Church, to the Episcopate, to the Pope, are respectively democratic, aristocratic, monarchical. The Roman instinct, the Imperial tendency, has shown itself in grasping, with an undeniable tenacity and grandeur of conception, the monarchical view. The whole drift of Roman development for centuries had been towards centralisation. Power after power became gradually appropriated and placed under the exclusive control of the central rule. Often this was done with the full consent, even at the instigation of the ruled. It was at times prompted by their loyalty and devotion. At other times it was reluctantly yielded to an authority which men had not the power to resist. Out of all this accumulation of prerogatives a speculative theory of primacy naturally grew. Texts were quoted in defence, but they are not really the basis: nor is it possible by any rigorous interpretation to derive the theory out of them. No mind which was a stranger to the historic Roman evolution could arrive at the Ultramontane conclusions. We may take exposition of the giving of the keys of the Kingdom of Heaven as an example. And we quote it more especially because Hurter's compendium is the seminarist's guide *par excellence*. In its theories thousands of the Roman priesthood have been, and are being trained. The keys of the kingdom, says Hurter, signify authority; full authority in the matter which the keys concern. The keys of a city, consigned to a victor, symbolise absolute control of what is therein. The keys of a house, entrusted to a servant by the master, make him the dispenser to all within the house. The keys bestowed on Peter signify the full power of jurisdiction over the

Universal Church. For He who bestows them possesses all power in heaven and earth. And “whatsoever” signifies power supreme, independent, universal, unlimited. Now mankind may be bound in three respects: law, sin, and penalty. Consequently this “whatsoever” must be a promise of plenary power of three kinds: legislative, power to bind; judicial, power in regard to sin; coercive, power to punish. Now such a primacy as this, urges Hurter,^[450] not unnaturally, requires Infallibility. If the Roman Pontiff possesses authority it is in order to secure unity in the truth. If so, he ought to possess the means to that end. He ought to have the power to require not only external deference but internal assent to his teaching. Unless he has this authority he cannot prevent disagreement. For where there is no obligation to assent there is permission to disagree. Moreover, he must have authority universal over every individual. Otherwise how can he maintain the Church in unity? Now to do all this he ought to be infallible. He cannot require internal assent to his teachings unless he is. He cannot discharge the functions which Hurter assigns him without it. He must possess an absolute final irreversible power to define and demand the submission of conscience, and this entirely independently of the Church’s consent.

So the mighty fabric becomes theoretically complete. The actual concentration of power at Rome requires to be justified. To justify it there must be added the further endowment of Infallibility. He ought to have it, therefore he has. Can anything better illustrate the craving after systematic completeness than this the marvellous construction of an ideal of absolute authority, for which the attribute of Infallibility appears logically necessary, to make the stupendous system quite complete?

The relation of the Pope’s Infallibility to that of the entire Episcopate has been left by the Vatican Decision in great confusion. It may, of course, be said that time has not yet elapsed sufficient to allow a proper readjustment of various truths. It appears to be still acknowledged that all antiquity is committed to belief in the Infallibility of the entire Episcopate, whether assembled or dispersed. It appears to be also affirmed that the Pope alone is infallible whatever the Bishops may think. If the Pope’s authority can render the minority infallible, what becomes of the Infallibility of the entire Episcopate?

The question which Newman puts in the mouths of the Irish Bishops of 1826 is greatly to the point:—

“How,” they would ask, “can it ever come to pass that a majority of our order should find it their duty to relinquish their prime prerogative, and to make the Church take the shape of a pure monarchy?”^[451]

The real effect of the Vatican Decree upon the entire Episcopate is to deprive them of their prime prerogative. The Collective Episcopate is not for the modern Roman the ultimate voice of the Church. But for the ancients, for the contemporaries of St Vincent of Lerins, for instance, this is exactly what it was. The fierceness of the struggle in the Vatican was due to a consciousness that it was a struggle for existence between two antagonistic conceptions of ecclesiastical authority—the episcopal and the papal. The victory of absolute monarchy has reduced the Episcopate to a shadow of its primitive self. The entire Episcopate of the Roman obedience may indeed now be assembled as listeners to the one infallible voice; but their prime prerogative has been transferred to another, and lost to themselves. The Vatican Decree indeed maintains the paradox that exclusive papal authority enhances that of the Bishops; and, without conscious irony, appeals to the language of Gregory the Great: “Then am I truly honoured when others are not denied the honour due to them.” But Gregory said this when repudiating a title which would have exalted him above his fellow Bishops. Pius IX. repeated it precisely when asserting a prerogative which exalts him to a height of unapproachable isolation. Henceforth the submissive Episcopate will accept what the lonely voice affirms. They will add to his Infallibility the lustre of their deference and obedience. But they will add nothing whatever to the intrinsic character of his decision. For, according to the new Decree, he is infallible independently of the Bishops and in spite of them. They may add, as it has been admirably said, a certain pomp and solemnity to the papal definitions, but they can in no wise affect their validity. “They are but as the assistants at High Mass, who contribute in no way to the essence of the sacrifice or sacrament.”^[452]

When Papal Infallibility is considered in relation to the Church at large it is obvious that it presents a wholly different object for their contemplation. Infallibility viewed as residing in an entire Community, or as expressed by the entire Episcopate of the Catholic Church, makes an utterly different impression on the believing mind. There is a certain vagueness, an almost

impersonal character, in a distributed Infallibility, quite different from that embodied in a single individual. This has been admirably expressed by Father Ryder in a passage, which although published three years before the Vatican Council, has not lost its force and applicability.

“Theologians,” wrote Father Ryder,^[453] “would not be anxious to add the same qualifications when speaking of the Church’s Infallibility” [*i.e.*, as when speaking of that of the Pope] “for the obvious reason that though as Ultramontanes they might hold that as regards pronouncements *de fide*, the Pope was on an equality with the Church in Council, they had no idea of denying that the Church possesses an Infallibility, not merely when she puts on her robes of prophecy but inherent in her very vital action, which the Pope by himself does not; that as Perrone says ... clearly speaking of the Church dispersed, she is our infallible guide *viva voce et praxi*, which the Pope is not; that the human authority of the Church, founded on numbers, holiness, wisdom, etc., being infinitely greater than the human authority of a Pope, who need be neither wise nor holy; the Church might settle without provoking doubt, and still less opposition, a number of border questions, which the Pope could not. The Ultramontane theologians had narrowed the base, so to speak, of ecclesiastical authority; they had made it centre in an individual, subject to numberless accidents of individual temper and circumstance; and therefore it was of vital importance that they should distinguish sharply the Divine from the human element, the objects as to which they claimed for the Pope certain Infallibility, from those as to which they could not prove that he was not fallible. They had to meet numberless historical objections, plausible at least, grounded upon the apparent mispronouncements of Popes in *materiâ fidei*, and they dared not undertake the defence of more than it was necessary for their position to defend, or than they could defend satisfactorily.”^[454]

This passage draws out with remarkable force the distinction between the Infallibility of an institution and that of an individual. It raises the question whether the two can ever really be entirely identical in scope. It therefore suggests that uncertainties attend upon the Vatican statement of

their equivalency. Can the Infallibility of a world-wide Communion be the same as that embodied in a single individual? Certainly in any case the impression created upon the devout by the one cannot be the same as that created by the other. Men will inevitably expect and demand from an individual Infallibility what they will never dream of acquiring from a collective.

- [441] Hurter, *Compendium Theol. Dogm.* i. p. 283.
- [442] Letter to the Duke of Norfolk, p. 117.
- [443] Hurter, i. p. 283.
- [444] *Nineteenth Century* (May 1901), p. 742.
- [445] Ryder, *Idealism in Theology*, p. 5.
- [446] *Hist. Dogm.* v. p. 461.
- [447] *Compendium*, i. p. 271ff.
- [448] Letter to the Duke of Norfolk, p. 98.
- [449] Postscript, p. 151.
- [450] Hurter, i. p. 348.
- [451] Letter to the Duke of Norfolk, p. 13.
- [452] Lord Halifax, *Nineteenth Century* (May 1901), p. 741.
- [453] *Idealism in Theology*.
- [454] *Idealism in Theology*, p. 31.

CHAPTER XX

WHERE ARE THE INFALLIBLE DECISIONS?

NEARLY forty years have elapsed since the recognition of the Infallibility of the head of that vast Communion. The dogma was pushed through admittedly to enable authority to meet by the rapidity of its decisions the speed of modern life. Authority, however, with admirable discretion, has not once availed itself of its newly decreed prerogative within the last fifty years. Since Pius IX. expired, authority has spoken many times; but never once on the levels of unalterable decree. Certainly this development of history is very different from the future, as the advocates of 1870 pictured it. The practical utility of the new Decree has been, if any, purely retrospective, historic. It applies, according to the Roman theologians, to utterances prior to that decision, not since. What the future may produce it is impossible to say. Whether a long series of supreme irreversible pronouncements are yet to issue, or whether the supreme prerogative will be kept in abeyance is a speculative enquiry of the greatest interest.

It has been the function of Roman writers, since the passing of the Vatican Decree, to apply the definition as a test to the papal utterances of nineteen hundred years, in order to ascertain which of those utterances comply with its requirements, which of those are infallible, and which are not. The prerogative must, of course, if true to-day be true of all the Christian centuries. Infallibility must be co-extensive with the existence of the Papacy. Consequently the papal utterances of all history must be sifted and classified in accordance with the Vatican Definition. It remains therefore for us to ascertain from Roman writers the outcome of their research, and to learn from them upon what precise occasions they consider that a Pope has complied with the conditions necessary to give his pronouncement this supreme unalterable authority.

The conditions required to make a papal utterance infallible are variously described. Bishop Fessler, who as Secretary of the Vatican Council, may be presumed, as being the Pope's selection, to have understood the papal mind, and whose position indisputably afforded him peculiar, if not unique, advantages, has laid it down that the tests of an infallible papal utterance are two. The first is that the subject-matter must be a doctrine of faith or morals; the second, that the Pope must express his intention, by virtue of his supreme teaching power, of declaring this particular doctrine a component part of the truth necessary to salvation revealed by God, and as such to be held by the whole Church. This was Secretary Fessler's declaration^[455] almost immediately after the Decision, and published expressly to reassure and conciliate the alarmed and offended.

More usually in recent Roman theological works the conditions are somewhat more elaborately analysed as being four in number.

1. First, as concerns the utterer. He must speak as Pope, and not as a theologian. That is he must exercise his supreme authority over Christians.

2. Secondly, as to the substance of the utterance. It must be a doctrine of faith or morals.

3. Thirdly, concerning the form of the utterance. It must not be merely advice or warning, but dogmatic definition. It must definitely intend to terminate a controversy, and to pronounce a final sentence upon it.

4. Finally, as to the recipients. While it need not necessarily be addressed to all believers, and may indeed be directed to a single individual, yet it must be virtually intended for every member of the Universal Church; because it is defining something essential to be believed.

These four restrictions which appear to be generally acknowledged more or less by Roman writers, are obviously very powerful sifters of papal decrees. They exclude wholesale entire classes of papal utterances from possessing any sort of claim to the supreme authority.

Thus, for example, one theologian says:—

“Neither in conversation, nor in discussion, nor in interpreting Scripture or the Fathers, nor in consulting, nor in

giving his reasons for the point which he has defined, nor in answering letters, nor in private deliberations, supposing he is setting forth his own opinion, is the Pope infallible.”^[456]

Fessler himself excludes from the range of Infallibility: papal actions in general, for actions are not utterances; all that the Popes have said in daily life; books of which they may be the authors; ordinary letters; utterances of Popes either to individuals or to the whole Church, even in their solemn rescripts, made by virtue of their supreme power of jurisdiction in issuing disciplinary laws or judicial decrees. None of these, according to Bishop Fessler, are dogmatic papal definitions or utterances of infallible authority.^[457]

Newman appears to have thought that Fessler’s tendency was to underrate the Vatican Decree.

“Theological language,” wrote Newman, “like legal, is scientific, and cannot be understood without the knowledge of long precedent and tradition, nor without the comments of theologians. Such comments time alone can give us. Even now Bishop Fessler has toned down the newspaper interpretations (Catholic and Protestant) of the words of the Council, without any hint from the Council itself to sanction him in doing so.”^[458]

Newman, however, did not apparently consider Fessler’s statements just quoted as a case of underestimation, for in the following year he himself gave a similar restriction of the range of Infallibility.

“Even when the Pope is *in* the Cathedra Petri, his words do not necessarily proceed from his Infallibility. He has no wider prerogative than a Council, and of a Council Perrone says: ‘Councils are not infallible in the reasons by which they are led, or on which they rely in making their definition, nor in matters which relate to persons, nor to physical matters which have no necessary connection with dogma.’

“Supposing a Pope has quoted the so-called works of the Areopagite as if really genuine, there is no call on us to believe him; nor, again, when he condemned Galileo’s Copernicanism, unless the earth’s immobility has a ‘necessary connection with

some dogmatic truth,' which the present bearing of the Holy See towards that philosophy virtually denies.”^[459]

“And again his Infallibility is not called into exercise unless he speaks to the whole world; for if his precepts, in order to be dogmatic, must enjoin what is necessary to salvation, they must be necessary for all men. Accordingly ... orders to particular countries or classes of men have no claim to be the utterances of his Infallibility.”^[460]

This treatment of the Vatican Decree is an exercise of what Newman calls “the principle of minimising,” which he considers “so necessary for a wise and cautious theology.”^[461]

A still further condition is introduced by Newman to qualify the character of papal decisions. There is the doctrine of intention. The Pope, urges Newman,

“could not fulfil the above conditions of an *ex cathedra* utterance if he did not actually *mean* to fulfil them.... What is the worth of a signature if a man does not consider what he is signing? The Pope cannot address his people East and West, North and South, without meaning it; ... nor can he exert his apostolical authority without knowing that he is doing so; nor can he draw up a form of words and use care, and make an effort in doing so accurately, without intention to do so.”

Newman himself applied this principle of intention to the case of Honorius.

“And therefore no words of Honorius proceeded from his prerogative of infallible teaching, which were not accompanied with the intention of exercising that prerogative.”^[462]

That, of course, must apply to every individual for whom the infallible prerogative is claimed. The classification of papal utterances is accordingly involved in the doctrine of intention. It will be necessary in every case to ascertain what the Pope’s intentions were. Now of all intricate and desperately difficult problems none surpass the doctrine of intention. No wonder then if there will be discordant verdicts among the theologians, and a large element of insecurity.

II

Following upon this analysis of the theoretical conditions requisite for infallible utterances comes the practical enquiry, to what particular papal decrees do these conditions really apply? Upon what precise occasions did the Pope bestow upon the Church the advantages of his Infallibility? This is a question upon which theologians are much more reticent. They deal at considerable length with the necessary conditions which such an utterance would require, but many among them refrain from all practical application. They do not indicate which among the immense collections of papal documents really possesses this supreme distinction. Newman, indeed, says that the Pope “has for centuries upon centuries had and used that authority which the Definition now declares ever to have belonged to him.”^[463] According to this assertion the Pope has not only possessed this power, but “used it.” The implication appears to be that since he has possessed it for centuries upon centuries he has used it frequently. Newman, however, quotes with approval the statement that “the Papal Infallibility is comparatively seldom brought into action.”^[464] Indeed, he himself observes:—

“Utterances which must be received as coming from an Infallible Voice are not made every day, indeed they are very rare; and those which are by some persons affirmed or assumed to be such, do not always turn out what they are said to be.”^[465]

Fessler again speaks of “the form ... which the Pope usually adopts when he delivers a solemn definition *de fide*.”^[466] And yet the result of his application of the tests of an infallible utterance is that he “finds only a few.”^[467]

To be still more precise. There is no unanimity as to occasions when an infallible decree was given. Many writers on Infallibility give no list at all. Those who attempt it differ widely, but agree in regarding them as excessively few. The Secretary of the Vatican Council tells us that he found only a few, but he did not tell us which they are. This is perfectly intelligible. He wrote in the same year in which the Decree was made, and certainly there had been no time to investigate or apply the tests with any assurance of accuracy; and it was most prudent and commendable not to

attempt the dangerous task of committing himself to a definite list which might sooner or later have been overthrown. As Newman said: “Those which are by some persons affirmed or assumed to be such, do not always turn out what they are said to be.” More recent writers have felt themselves justified by lapse of time in indicating which the infallible utterances are. Whether on Roman principles the time has really come for indicating them with any confidence may be open to question. The varieties in the lists would seem to suggest a negative. They appear to vary from eight instances down to one. Of course the compilers of the lists may contend that their researches are not yet completed. The investigation of utterances extending over well-nigh two thousand years may well require considerable time. The judgment may be regarded as still in suspense. But so far as lists are given us they vary within the limits already stated.

Cardinal Franzelin, writing in 1875, gives some examples of utterances whose Infallibility he regards as certain. They are four in number.

1. The Dogmatic Constitutions of the Council of Constance against Wiclif and Hus, confirmed by Martin V.

2. The Constitution *exsurge* of Leo X. against Luther.

3. The Constitution of Clement XI. against the Jansenists—the Bull *Unigenitus*.

4. The Constitution *Auctorem Fidei* of Pius VI. against the Synod of Pistoia; wherein many pre-positions are condemned with various degrees of censure.

Franzelin by no means limits Infallibility to these four utterances. But these are all that he gives as illustrations of its exercise. And of these he says with perfect confidence: “It is not lawful for any Catholic to deny that these are infallible definitions.”^[468]

A more recent writer, Lucien Choupin,^[469] repeats Franzelin’s list, and gives four other utterances in addition:—

1. The Decree of the Immaculate Conception.

2. The Dogma of Papal Infallibility.

Pius IX. is affirmed to have infallibly decreed his own Infallibility.

It is noteworthy that Choupin's two chief instances belong to the pontificate of Pius IX. Historical research enables the same writer to add two more.

3. The condemnation of the five propositions of Jansen by Innocent X. in 1653.

4. The Constitution of Benedict XII. in 1336.

This last affirms that departed saints who need no further cleansing possess an immediate intuitive vision of the divine nature. [\[470\]](#)

To these many theologians, says Choupin, add the *Encyclical Quanta Cura* of Pius IX. in 1864.

On the other hand, Carson in his *Reunion Essays* says:—

“These four conditions so narrow the extent of the Petrine prerogative that it is difficult to point with certainty to more than one, or at most two, papal pronouncements, and declare them, with the consent of all, to be infallible.

“The Bull *Ineffabilis Deus*, defining the Immaculate Conception, may be considered, as we have seen, to be a definition of doctrine about whose Infallibility there cannot well be any question. The tome of Pope Leo the Great on the Incarnation, sent by him to the Council of Chalcedon, and accepted by the assembled fathers as the echo of Peter's voice, may perhaps be placed on the same footing. Beyond these two ecumenical utterances on points of doctrine, we cannot assert with any assurance that the prerogative of Papal Infallibility has been exercised from the day of Pentecost to the present time.”[\[471\]](#)

Certainly if the intrinsic value of a document be any witness to its Infallibility no papal utterance has better claim to be an instance of that stupendous prerogative than the famous letter of Leo the Great to Flavian. But yet some theologians omit it from their list of Infallibility, and here a writer who inserts it as one of two can only do so with a hesitating “perhaps.” Remembering the theological defences of Leo's letter we can see the reason for this uncertainty. Theologians have felt themselves

constrained by the historic facts to admit that the Council of Chalcedon examined the contents of Leo's letter, and, that having satisfied themselves of its character, they then proceeded to endorse it, and to declare that Peter spoke by Leo. But this procedure is not thinkable in the case of an infallible document. Accordingly it was supposed that Leo never meant to speak infallibly, but only to suggest the lines upon which the Council should proceed. But this defence removed the letter from the region of inerrable authority. Hence the most that could be said about it was a mere perhaps.

The question has to be faced, What authority do these lists of infallible utterances possess? They possess the authority of the various theologians who have compiled them. But they possess no more than that authority. No infallible list of infallible utterances has yet appeared. And surely whatever theories men may invent, it must still be true that the only final way to determine whether a papal utterance be infallible is whether it has secured the consent of the Church.

It is, of course, acknowledged by Roman writers, that after a careful application of the four tests it may still be disputed, and still remain uncertain whether the particular utterance is or is not a case of Infallibility. In this event the rule must be that, so long as any uncertainty exists, after serious enquiry, there is no infallible decision.^[472] Fessler, however, adds that where uncertainty remains, the subordinate authorities will ask the highest authority what his intention was in such an utterance. If the utterer expires before answering, Fessler does not inform us what the enquirer is to do. Is a subsequent Pope an infallible judge of his predecessor's intentions? This we are not told. Fessler's translator, however, adds a remark of considerable importance.

“Of course Bishop Fessler is here understood as meaning that this fresh explanation of the definition must be provided with all the marks which are necessary to prove the presence of a real definition.”

III

Our study of the subject may be closed with a few reflections.

What impresses us perhaps chiefly is the meagreness of the result. Upon this point Newman observed:—

“It has been objected to the explanation I have given ... of the nature and range of the Pope’s Infallibility as now a dogma of the Church, that it was a lame and impotent conclusion of the Council, if so much effort was employed as is involved in the convocation and sitting of an Ecumenical Council in order to do so little. True if it were called to do what it did and no more; but that such was its aim is a mere assumption. In the first place it can hardly be doubted that there were those in the Council who were desirous of a stronger definition; and the definition actually made, as being moderate, is so far the victory of those many bishops who considered any definition on the subject inopportune. And it was no slight point of the proceedings in the Council, if a definition was to be, to have effected a moderate definition. But the true answer to the objection is that which is given by Bishop Ullathorne. The question of the Pope’s Infallibility was not one of the objects professed in condemning the Council; and the Council is not yet ended.”^[473]

The moderate character of the Definition which Newman notes is indeed conspicuous, when compared with the extravagant statements of Manning and Ward, of Veuillot and the *Univers*.

An Infallibility, whose range is possibly limited to one solitary utterance in nineteen hundred years, is very different from the ideal of perpetual irreversible decisions of almost daily occurrence as described by Ward. Very different also from rapid termination of controversies which Manning considered so necessary to our progressive age. And there is reason to believe that the decision, although at first accepted by the Extremists with the wildest joy, was on maturer reflection viewed with considerable disappointment.

But this moderation has recently been viewed as a sign of truth. Certainly Manning would never have argued that it was. A *via media* between two extremes, upheld as ideal, would have been, indeed it was, Manning’s detestation.

And if the Vatican Decree is moderate relatively to a school of extravagance, it is no less stupendous relatively to a school of antiquity. Judged by the conceptions of St Vincent of Lerins the dogma is not moderate, it is most extreme. If some who anticipated and feared something much more pronounced acquiesced in the actual dogma with comparative relief, a very different estimate will be formed by those whose standard of moderation is the doctrine of antiquity.

If the total advantage hitherto reaped from Papal Infallibility be compared with that which the Church has gained from its Ecumenical Councils, the balance is heavily on the side of the more ancient method of ascertaining and formulating Christian tradition. Whatever the solitary Infallible Voice may pronounce in the future, it has done exceedingly little in the past, even on Roman estimates. Those who consider the Immaculate Conception the only instance of an irreversible papal decision can scarcely deny that no comparison exists between this and the work of the Council of Nicæa. This is, of course, no argument against its truth. It is not for a moment produced with that design. But it is an argument against the value of numerous pretexts which instigated many of the most influential personages who helped to push this doctrine through. It shows that they were controlled by totally erroneous conceptions. It shows much more than this. The familiar controversial statements that the early Popes could not have spoken as they did, had they not been conscious that they possessed Infallibility, and a right accordingly to demand unconditional interior submission, and intellectual assent, are shown by Roman interpretation of the Vatican Dogma to be absolutely valueless. And all this shows that a profound confusion has existed in Roman minds between Authority and Infallibility. If this distinction had been sharply realised, many of the arguments by which the doctrine was unsupported could never have been employed.

The meagreness of the issue is in curious contrast with the magnitude of the battle, and the tremendous character of the affirmation. The question can hardly be evaded, Was it really in the Church's interest to impose belief in a prerogative whose exercise is admittedly so uncertain? Is it permissible to be a Roman Catholic while affirming that Papal Infallibility has never yet been exercised? If it is, Where is the dogmatic gain? If it is not, Where are the indisputable decisions? And what is its practical utility? Its strongest

advocates, as Manning, so Roman writers themselves affirm, viewed the subject rather as statesmen than as theologians. They upheld it, not so much for theoretic completeness, as because it would strengthen the Church's resources, and enable it the better to meet the age. And yet the prerogative has never since been utilised.

The practical effect so far has been to alienate more grievously than ever the separated Churches of the East. Was this in the real interests of Christendom? It may be that, somewhat exhausted by this terrific strife, authority is recruiting itself, and will some day utilise its new prerogative with tremendous results; that it is meanwhile treasuring up its new resources against a day of need. But so far as the historic development has hitherto advanced, it is a theoretic rather than a practical victory. It possesses all the intellectual problems of a new, precarious, and bewildering dogma, without the practical gains of a prerogative manifestly and constantly utilised in the service of mankind.

[455] Fessler, *True and False Infallibility*, p. 51.

[456] Billuart, ii. p. 110.

[457] Fessler, p. 65.

[458] Letter in 1874. *Life of De Lisle*, ii. p. 42.

[459] Letter to Duke of Norfolk, pp. 115, 116.

[460] Newman, Letter to Duke of Norfolk, p. 120.

[461] *Ibid.* p. 120.

[462] *Ibid.* p. 108.

[463] Letter to Duke of Norfolk, p. 128.

[464] *Ibid.* p. 125.

[465] Letter to Duke of Norfolk, p. 81.

[466] Fessler, p. 92.

[467] *Ibid.* p. 53.

[468] Franzelin, *De Traditione*, p. 123.

[469] *Valeur des Decisions Doctrinales et Disciplinaires du Saint-Siège* (1908).

[470] Denzinger, *Enchiridion*, § 456.

[471] Carson's *Reunion Essays*, p. 91.

[472] Hurter, i. p. 407.

[\[473\]](#) Newman's Letter to the Duke of Norfolk, p. 154.

INDEX

Acton, Lord, [70](#), [117](#) and *sqq.*, [326](#) and *sqq.*

Agatho, [34](#), [38](#), [40](#), [42](#)

Alexander V., [59](#), [60](#)

Alzog, [315](#)

American Presbyterians, attitude of, [222](#)

Anglican Church, attitude of, [223](#)

Antonelli, Cardinal, [159](#), [163](#) and *sqq.*, [190](#), [249](#), [254](#), [259](#), [292](#), [320](#)

À priori and *à posteriori* methods, [343](#)

—— basis of Papal Infallibility, [351](#) and *sqq.*

Aquinas, St Thomas, [30](#), [51](#) and *sqq.*

Articles (Four) of 1682, [89](#) and *sqq.*, [93](#)

Augustine, St, [17](#), [18](#), [19](#), [20](#), [173](#), [247](#)

Authority in the Church, monarchical theory of, [72](#), [350](#) and *sqq.*;

two theories of, [64](#), [66](#), [269](#), [288](#);

seat of Authority, the Church, [81](#), [83](#), [94](#), [95](#), [108](#), [109](#), [156](#), [173](#), [192](#)

and *sqq.*, [206](#), [269](#), [288](#), [315](#), [346](#).

See also [Infallibility of Church](#), [Episcopate](#), [Vincent of Lerins](#).

Baine's *Defence*, [101](#)

Baronius, [28](#), [37](#), [60](#)

Barral, [8](#)

Basle, Council of, alluded to by Bossuet, [95](#)

Bellarmino, [7](#), [9](#), [12](#), [18](#), [28](#), [29](#), [38](#) and *sqq.*, [60](#) and *sqq.*, [72](#) and *sqq.*,
[168](#), [263](#)

Benedict XIII., claims to be above appeal, [57](#)

Bergier's *Theological Dictionary*, [147](#)

Bertin, [81](#)

Bona, Cardinal, [36](#)

Bossuet, [8](#), [20](#) and *sqq.*, [26](#), [28](#), [29](#), [38](#) and *sqq.*, [53](#), [57](#), [62](#) and *sqq.*, [70](#),
[73](#), [85](#) and *sqq.*;
His sermon on Unity, [86](#) and *sqq.*;
Defence of the Declaration, [93](#) and *sqq.*;
Exposition, [96](#), [107](#)

Botalla, [12](#), [19](#)

Butler, Charles, [100](#), [101](#)

Catherine of Sienna, [56](#)

Cecconi, [185](#), [186](#), [190](#), [197](#), [277](#)

Chrismann, [201](#)

Church. See [Authority](#), [Infallibility of the Church](#), [Episcopate](#), [Tradition](#)
Civiltà Cattolica, the, [164](#), [165](#), [169](#), [184](#)

Clement VII., [56](#) and *sqq.*

—— XI., [92](#), [93](#)

Clifford, Bishop, [227](#), [245](#), [271](#)

—— Lord, [102](#)

Commission of Suggestions, [251](#) and *sqq.*

Constance, Council of, [60](#), [61](#);
alluded to by Bertin, [81](#);
by Richer, [83](#);
by Bossuet, [91](#), [95](#);
by Darboy, [265](#)

Constitution on Procedure, [230](#)

Council, [28–31](#), [33–40](#), [42](#), [45](#), [59–66](#), [74](#), [77](#), [83](#), [95](#), [348](#) and *sqq.*;
authority of, [58](#), [74](#)

Cyprian, St, [14](#) and *sqq.*

Cyrus, Patriarch of Alexandria, [32–34](#), [43](#)

Darboy, Archbishop, [157](#) and *sqq.*, [187](#), [265](#) and *sqq.*, [271](#), [292](#) and *sqq.*

Daru, Count, [249](#), [250](#)

Dechamps, Archbishop, [165](#)

Defence of the Declaration, [93](#), [94](#)

Delahogue, [107](#)

Development, theory of, [287](#);

development and immutability of the Faith, [24](#) and *sqq.*, [205](#)

Dieringer, [191](#)

Döllinger, [8](#), [188](#) and *sqq.*, [209](#), [210](#), [232](#) and *sqq.*, [316](#) and *sqq.*

Dupanloup, Bishop, [154](#) and *sqq.*, [162](#) and *sqq.*, [169](#) and *sqq.*, [271](#), [272](#), [295](#)

Ecumenical Councils, De Maistre's depreciation of, [148](#) and *sqq.*

Ecumenicity, test of, [348](#) and *sqq.*

Episcopate, [15](#), [28](#), [29](#), [31](#), [50](#), [64](#), [66](#), [173](#), [244](#), [346](#) and *sqq.*;

Bossuet on, [87](#), [95](#)

Errington, Bishop, [104](#), [105](#)

Eugenius IV., alluded to by Bossuet, [91](#)

Faith, nature of, [4](#)

Faith of Catholics, the, [106](#)

Fénelon, theory on temporal and spiritual power, [49](#)

Fessler, [277](#) and *sqq.*, [289](#), [357](#) and *sqq.*, [362](#), [365](#)

Flavian, Leo's letter to, [28](#), [29](#)

Florence, Council of, [83](#)

Franzelin, [25](#)

Friedrich, [210](#) and *sqq.*, [318](#), [321](#)

Galileo, [180](#), [359](#)

Gallicanism, [134](#), [146](#), [157](#)

Gallitzin, [110](#)

Gasquet, Abbot, [117](#)

Gelasius, [21](#), [22](#)

German Protestants, attitude of, [221](#)

Gerson, Chancellor, [58](#), [73](#)

Gosselin, [49](#), [50](#)

Gratry, [8](#), [13](#), [19](#), [20](#), [54](#), [177](#), [179](#), [296](#) and *sqq.*

Gregory VII., [49](#)

—— XII., [57](#) and *sqq.*

Gregory the Great v. Papal Infallibility, [353](#)

Guibert, Archbishop, [251](#) and *sqq.*, [295](#)

Gladstone, [101](#)

Hadrian VI., [65](#), [73](#)

Hasenclever, [314](#) and *sqq.*

Haynald, Archbishop, [273](#)

Hefele, Bishop, [26](#), [37](#), [43](#) and *sqq.*, [191](#), [202](#), [241](#), [271](#), [277](#), [307](#) and *sqq.*

Hohenlohe, Cardinal, [208](#) and *sqq.*, [303](#)

——, Prince, [207](#) and *sqq.*, [305](#) and *sqq.*

Honorius, [22](#), [32](#), [33](#), [35](#) and *sqq.*, [39](#) and *sqq.*, [46](#), [134](#), [168](#), [360](#);
De Maistre on, [150](#);
Gratry on, [179](#)

Hurter, [346](#) and *sqq.*

Husenbeth, [101](#)

Immaculate Conception, [229](#), [248](#), [255](#)

Implicit and explicit truth, [25](#)

Infallibility, not conferred on St Peter, [7](#), [8](#);

Infallibility and authority, [9](#), [15](#), [17](#);

Infallibility of the Church, [77](#), [94](#), [110](#), [111](#), [115](#), [168](#) and *sqq.*, [343](#).

See [Authority](#).

——, Papal, [21](#), [42](#);

works out as Infallibility of the Church, [77](#), [94](#);

officially denied in Lyons and Rouen, [97](#);

by English Roman Catholics of eighteenth century, [100](#);

by *Faith of Catholics*, [106](#);

nature of Infallibility, [340](#) and *sqq.*;

conditions of its exercise, [357](#) and *sqq.*, cf. 11;

parallel drawn between dogma of Christ's Divinity and that of

Infallibility, [113](#) and *sqq.*;

doctrine of intention, [360](#), [361](#)

——, Carson's list of Infallible utterances, [364](#)

——, Choupin's list, [363](#)

——, Franzelin's list, [363](#)

—— and the Council of Trent, [70](#);

the question not mentioned at beginning of the Vatican Council, [232](#),
[238](#)

Infallibility, Romanist utterances on:—

Acton, [327](#) and *sqq.*, [333](#)

Aquinas, [30](#), [51](#) and *sqq.*

Baine, [101](#)

Bellarmino, [73](#)

Bossuet, [89](#) and *sqq.*

Butler, [101](#)

Clifford, [102](#), [245](#)

Council of Constance, [60](#), [61](#)

Darboy, [161](#), [265](#), [266](#), [292](#)

Dechamps, [165](#)
Delahogue, [107](#)
Döllinger, [320](#) and *sqq.*
Dupanloup, [162](#), [170](#) and *sqq.*
Gallitzin, [110](#)
Gratry, [179](#) and *sqq.*
Gregory the Great, [353](#)
Guibert, [251](#) and *sqq.*
Hadrian VI., [65](#), [84](#)
Hefele, [204](#), [212](#), [241](#), [307](#)
Janus, [193](#)
Keenan's Catechism, [111](#) and *sqq.*
Kenrick, [247](#), [302](#)
Khayath, [213](#), [215](#)
Krautheimer, [201](#)
Liebermann, [200](#)
De Lisle, [108](#)
Luzerne, [146](#)
Maret, [167](#) and *sqq.*
Melchers, [241](#), [311](#)
Milner, [110](#)
Munich, Theological Faculty of, [199](#)
Murray, [115](#), [116](#)
Newman, [282](#) and *sqq.*, [359](#) and *sqq.*
Pie, [255](#)
Purcell, [246](#)
Ryder, [354](#) and *sqq.*
Schulte, [289](#)
Sorbonne, [58](#)
Torquemada, [77](#); cf. [94](#), [108](#)
Veron, [84](#)
Wurtzburg, Theological Faculty of, [198](#), [199](#)

Innocent I., [19](#)
Intention, doctrine of, [360](#), [361](#)
Irenæus, St, [11](#) and *sqq.*

Janus, [27](#), [54](#), [182](#), [192](#), [193](#);
Dublin Review on, [195](#)

Jerome, St, [20](#), [21](#)

John IV., [33](#)

—— XXIII., [60](#)

Keenan's Catechism, [111](#) and *sqq.*

Kenrick, Archbishop, [8](#), [18](#), [27](#), [247](#), [271](#), [300](#) and *sqq.*

Ketteler, Bishop, [240](#), [269](#)

Khayath, Bishop, [213](#) and *sqq.*

Krautheimer, [201](#)

Lacordaire, [154](#)

Lamennais, [153](#), [169](#)

Langen, [313](#)

Legouv  , [299](#), [300](#)

Leo II., [35](#), [38](#), [40](#)

—— XIII., [15](#)

—— the Great, [364](#), [365](#)

Letters, three, issued by Pius IX. before the Council, [220](#) and *sqq.*

Liber Diurnus, [35](#), [36](#)

Liberius, [20](#), [21](#), [22](#)

Liebermann, [200](#) and *sqq.*

Liguori, [323](#)

Lisle, A. P. de, [108](#), [109](#), [286](#), [287](#)

Lorraine, Cardinal de, [69](#)

Luzerne, Cardinal, [145](#) and *sqq.*

Maistre, Joseph de, [147](#) and *sqq.*;
Lenormant on, [153](#)

Manning, [104](#) and *sqq.*, [133](#) and *sqq.*, [232](#)

Maret, Bishop, [8](#), [12](#), [13](#), [19](#), [26](#), [152](#), [167](#), [256](#), [271](#), [293](#)

Martin I., [34](#), [38](#)

—— V., [60](#) and *sqq.*

Melchers, [241](#), [311](#)

Melchior, Cano, [30](#), [53](#)

Milner's *End of Religious Controversy*, [109](#)

Monothelite heresy, [32](#), [33](#) and *sqq.*

Montalembert, [154](#), [178](#), [183](#) and *sqq.*, [198](#)

Murray's *Tractatus de Ecclesia Christi*, [115](#), [116](#)

Napoleon and reconstruction of French Episcopate, [143](#) and *sqq.*

—— III., [250](#)

Newman, [130](#) and *sqq.*, [177](#), [226](#), [280](#) and *sqq.*, [348](#), [359](#) and *sqq.*, [366](#)

New Regulations, the, [253](#) and *sqq.*

Nicea, Canon of, on Episcopal consecration, [69](#)

Oriental Churches, attitude of, [221](#)

Orsi, Cardinal, [94](#)

Pastor, [56](#), [57](#)

Patrizzi, Cardinal, [252](#) and *sqq.*

Paul, St, [5](#), [12](#), [16](#), [20](#)

Perron, Cardinal du, [80](#) and *sqq.*, [107](#)

Perrone, [12](#), [19](#), [20](#)

Peter, St, [2](#) and *sqq.*, [12](#), [14](#), [16](#), [17](#), [67](#), [68](#), [72](#), [75](#), [86](#), [87](#), [167](#), [168](#), [244](#)

Pie, Bishop, [255](#) and *sqq.*

Pighius, [73](#)

Pisa, Council of, [59](#)

Pitra, Cardinal, [276](#)

Pius IX., his three letters before the Council, [220](#) and *sqq.*;
his character, [269](#)

Purcell, Bishop, [246](#)

Pusey, [225](#) and *sqq.*

Quirinus, [174](#) and *sqq.*

Quotations from Holy Scripture:—

St Luke xxii. 32, [p. 2](#)

Rom. i. 11, [p. 5](#)

1 Thess. iii. 2; iii. 13, [p. 5](#)

2 Thess. ii. 17; iii. 3, [p. 6](#)

Heb. i. 12, [p. 4](#)

1 Pet. v. 10, [p. 6](#)

2 Pet. i. 12, [p. 6](#)

Rev. iii. 2, [p. 6](#)

Rauscher, Cardinal, [240](#)

Reusch, [311](#) and *sqq.*

Richelieu, Cardinal, [79](#)

Richer, [69](#), [80](#), [81](#)

Ryder, [344](#), [354](#)

Schism, Great, [55](#), and *sqq.*

Schwane, [12](#), [51](#), [52](#), [53](#), [76](#), [77](#), [346](#)

Schwarzenberg, [190](#) and *sqq.*, [271](#)

Sergius, Patriarch of Constantinople, [32](#) and *sqq.*

Sibour, [184](#)

Sirmond, [36](#)

Sophronius, Patriarch of Jerusalem, [32](#), [33](#), [43](#)

Sorbonne, [58](#), [79](#) and *sqq.*

Stephen, Bishop of Rome, [16](#), [18](#)

Strossmayer, Bishop, [183](#), [237](#), [271](#)

Temporal and spiritual power, [49](#), [50](#), [207](#) and *sqq.*;

 Bossuet on, [88](#), [89](#);

 Sibour on, [184](#);

 Fénelon on, [49](#)

Tertullian, [13](#)

Throgmorton, Sir John, [98](#) and *sqq.*, [102](#)

Torquemada, [76](#), [77](#) and *sqq.*

Tradition, Christian, [13](#), [22](#), [24](#), [50](#)

Trent, Council of, [66](#), and *sqq.*, [70](#);
 appealed to by Veron, [83](#)

Truth, test of. See [Vincent of Lerins](#)

Turmel, [30](#), [38–41](#), [46](#), [53](#)

Ullathorne, Bishop, [103](#), [121](#), [128](#), [132](#), [284](#), [290](#)

Ultramontane methods of controversy, [262](#), [325](#)

Ultramontanism, Acton on, [336](#)

Universities, position of in the Church, [85](#)

Urban VI., [56](#) and *sqq.*

Validity of Decrees not imparted by Papal confirmation, [63](#)

Vatican Council, Infallibility not mentioned at the beginning of it, [232](#),
[238](#)

Veron's *Rule of Faith*, [83](#), [84](#)

Veillot, [177](#), [181](#)

Vincent of Lerins, St, [22](#) and *sqq.*, [50](#), [189](#), [367](#)

Ward, [116](#), [117](#), [129](#)

——, Bernard, [100](#)

——, W., [98](#)

Will, relation of human and divine, [341](#) and *sqq.*

Wiseman, Cardinal, [102–104](#), [119](#)

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Transcriber's Note

Some inconsistencies in spelling, hyphenation, and punctuation have been retained.

- “Papautè” changed to “Papauté” in multiple places (Histoire de la Papauté)
- p. ix: changed “einem” to “einen” ([Sendschreiben an einen Deutschen Bischof](#))
- p. ix: changed “de” to “du” ([Hist. du Card. Pie.](#))
- p. x: changed “Memoires” to “Mémoires” ([Consalvi, Card. Mémoires.](#))
- p. x: changed “adressée” to “adressée” ([Lettre sur le futur Concile Œcuménique adressée](#))
- p. xi: changed “Allemayne” to “Allemagne” ([L'Allemagne religieuse](#))
- p. xi: changed “Tridentince” to “Tridentinae” ([Disputationes Tridentinae](#))
- p. xi: changed “Rufinium” to “Rufinum” ([Ad Rufinum. De Script Eccles.](#))
- p. xiii: changed “Bischof” to “Bischof” ([Kniefall und Fall des Bischof Ketteler](#))
- p. xiii: changed “Doctrines” to “Doctrinæ” ([Vindiciæ Doctrinæ Majorum](#))
- p. 9 ([footnote 13](#)): changed “Theol” to “Théol” (Hist. Théol. Positive)
- p. 121: changed “ilustrates” to “illustrates” ([Foreign Review illustrates the restraints](#))
- p. 127: changed “trangressed” to “transgressed” ([which has transgressed its limits](#))
- p. 144 ([footnote 221](#)): changed “Memoires” to “Mémoires” (Consalvi, Mémoires.)
- p. 190 ([footnote 272](#)): changed “li.” to “ii.” in footnote (Ibid. ii. p. 331.)
- p. 200 ([footnote 284](#)): changed “Religreuses” to “Religieuses” (Encyclopédie des Sciences Religieuses)
- p. 215: changed “inbibed” to “imbibed” ([I imbibed in my youth](#))
- p. 277 ([footnote 384](#)): changed “de” to “du” (Histoire du Cardinal Pie)
- p. 279: inserted closing single-quote ([God has confided to my care.”](#))
- p. 279: changed “advisible” to “advisable” ([if they think it advisable](#))
- p. 301 ([footnote 416](#)): changed “Altkathliusmus” to “Altkatholicismus” (Schulte, Der Altkatholicismus)
- p. 315: changed “reponse” to “response” ([direct response to the question](#))
- p. 316: changed “apearance” to “appearance” ([a very different appearance](#))
- p. 317: changed “precedure” to “procedure” ([of the Roman procedure](#))
- p. 326: added [Section V](#) name “LORD ACTON’S SUBMISSION”, from printed page header
- p. 332 ([footnote 427](#)): changed “Bishof” to “Bischof” (an einen Deutschen Bischof)
- p. 364 ([footnote 470](#)): changed “Encheiridior” to “Enchiridion”

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